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LITERATURE SCIENCE, & THE ARTS.

VOL. XXV.

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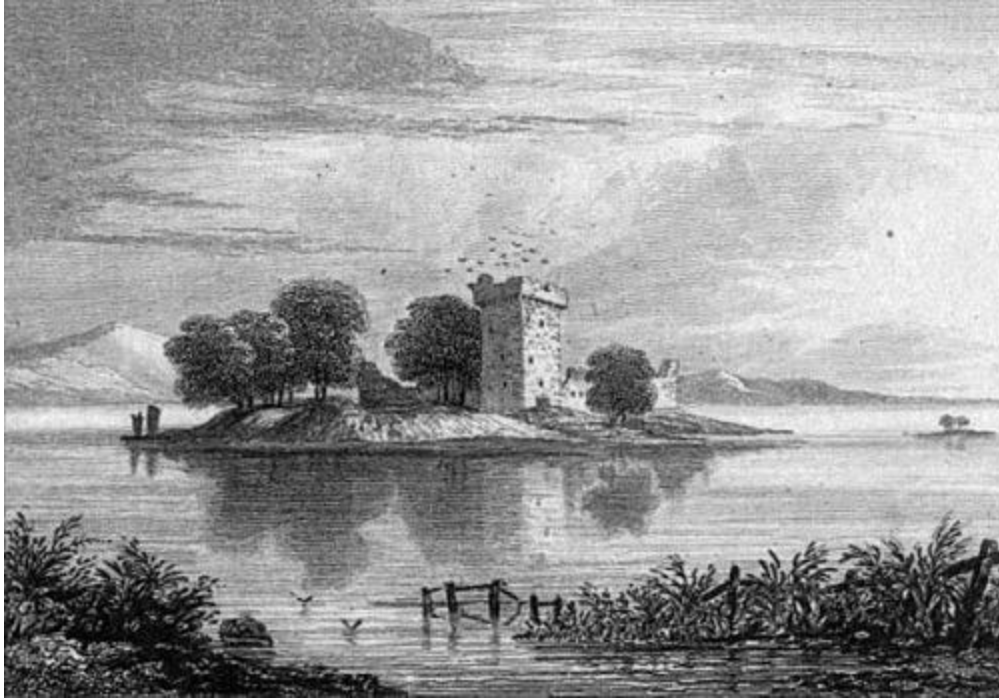
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LIFE
OF
MARY QUEEN OF SCOTS.

VOL. II.

LIFE OF MARY QUEEN OF SCOTS, VOL. II.



Drawn by W. Brown

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1828.

LIFE OF MARY QUEEN OF SCOTS.

BY
HENRY GLASSFORD BELL, Esq.

IN TWO VOLUMES.

VOL. II.

“AYEZ MEMOIRE DE L’AME ET DE L’HONNEUR DE
CELLE QUI A ESTE VOTRE ROYNE.”

Mary’s own Words.

EDINBURGH:
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ERRATA IN VOL. I.

Preface, p. v, for "*eminent*," read
"*imminent*."

Page 104, for "*On the 25th of August
1561, Mary sailed out of the harbour of*

Calais,” read “on the 15th of August,” &c.

Page 155, for “*knapsack*,” read
“*knapsap*.”

LIFE OF MARY QUEEN OF SCOTS.

CHAPTER I.

THE PROPOSAL OF A DIVORCE BETWEEN MARY AND DARNLEY, AND THE CHRISTENING OF JAMES VI.

It was in December 1566, during Mary's residence at Craigmillar, that a proposal was made to her by her Privy Council, which deserves particular attention. It originated with the Earl of Bothwell, who was now an active Cabinet Minister and Officer of State. Murray and Darnley, the only two persons in her kingdom to whom Mary had been willing to surrender, in a great degree, the reins of government, had deceived her; and finding her interests betrayed by them, she knew not where to look for an adviser. Rizzio had been faithful to her, and to him she listened with some deference; but it was impossible that he could ever have supplied the place of a Prime Minister. The Earl of Morton was not destitute of ambition sufficient to have made him aspire to that office; but he chose, unfortunately for himself, to risk his advancement in espousing Darnley's cause, in opposition to the Queen. Both, in consequence, fell into suspicion; Morton was banished from Court, and Murray again made his appearance there. But, though she still had a partiality for her brother, Mary could not now trust him, as she had once done. Gratitude and common justice called upon her not to elevate him above those men, (particularly Huntly and Bothwell), who had enabled her to pass so successfully through her recent troubles. She made it her policy, therefore, to preserve as nice a balance of power as possible among her ministers. Bothwell's rank and services, undoubtedly entitled him to the first place; but this the Queen did not choose to concede to him. The truth is, she had never any partiality for Bothwell. His turbulent and boisterous behaviour, soon after her return from France, gave her, at that period, a dislike to him, which she testified, by first committing him to prison, and afterwards ordering him into banishment. He had conducted himself better since his recall; but experience had taught Mary the deceitfulness of appearances; and Bothwell, though much more

listened to than before, was not allowed to assume any tone of superiority in her councils. She restored Maitland to his lands and place at Court, in such direct opposition to the Earl's wishes, that, so recently as the month of August (1566), he and Murray came to very high words upon the subject in the Queen's presence. After Rizzio's murder, some part of Maitland's lands had been given to Bothwell. These Murray wished him to restore; but he declared positively, that he would part with them only with his life. Murray, enraged at his obstinacy, told him, that "twenty as honest men as he should lose their lives, ere he saw Lethington robbed;" and through his influence with his sister, Maitland was pardoned, and his lands given back.^[1] Thus Mary endeavoured to divide her favours and friendship among Murray, Bothwell, Maitland, Argyle the Justice-General, and Huntly the Chancellor.

It was in this state of affairs, when the contending interests of the nobility were in so accurate an equilibrium, that Bothwell's daring spirit suggested to him, that there was an opening for one bold and ambitious enough to take advantage of it. As yet, his plans were immatured and confused; but he began to cherish the belief that a dazzling reach of power was within his grasp, were he only to lie in wait for a favourable opportunity to seize the prize. With these views, it was necessary for him to strengthen and increase his resources as much as possible. His first step was to prevail on Murray, Huntly, and Argyle, about the beginning of October, to join with him in a bond of mutual friendship and support;^[2] his second was to lay aside any enmity he may have felt towards Morton, and to intimate to him, that he would himself petition the Queen for his recall; his third and boldest measure, was that of arranging with the rest of the Privy Council the propriety of suggesting to Mary a divorce from her husband. Bothwell's conscience seldom troubled him much when he had a favourite end in view. He was about to play a hazardous game; but if the risk was great, the glory of winning would be proportionate. Darnley had fallen into general neglect and odium; yet he stood directly in the path of the Earl's ambition. He was resolved that means should be found to remove him out of it; and as there was no occasion to have recourse to violence until gentler methods had failed, a divorce was the first expedient of which he thought. He knew that the proposal would not be disagreeable to the nobility; for it had been their policy, for some time back, to endeavour to persuade the nation at large, and Mary in particular, that it was Darnley's ill conduct that made her unhappy,

and created all the differences which existed. Nor were these representations altogether unfounded; but the Queen's unhappiness arose, not so much from her husband's ingratitude, as from the impossibility of retaining his regard, and at the same time discharging her duty to the country. Though the nobles were determined to shut their eyes upon the fact, it was nevertheless the share which they held in the government, and the necessity under which Mary lay to avail herself of their assistance, which alone prevented her from being much more with her husband, and a great deal less with them. There were even times, when, perplexed by all the thousand cares of greatness, and grievously disappointed in the fulfilment of her most fondly cherished hopes, Mary would gladly have exchanged the splendors of her palace for the thatched roof and the contentment of the peasant. It was on more than one occasion that Sir James Melville heard her "casting great sighs, and saw that she would not eat for no persuasion that my Lords of Murray and Mar could make her." "She is in the hands of the physicians," Le Croc writes from Craigmillar, "and is not at all well. I believe the principal part of her disease to consist in a deep grief and sorrow, which it seems impossible to make her forget. She is continually exclaiming "Would I were dead!"^[3] "But, alas!" says Melville, "she had over evil company about her for the time; the Earl Bothwell had a mark of his own that he shot at."^[4]

One of his bolts Bothwell lost no time in shooting; but it missed the mark. By undertaking to sue with them for Morton's pardon, and by making other promises, he prevailed on Murray, Huntly, Argyle and Lethington, to join him in advising the Queen to consent to a divorce. It could have been obtained only through the interference of the Pope, and Murray at first affected to have some religious scruples; but as the suggestion was secretly agreeable to him, it was not difficult to overcome his objections. "Take you no trouble," said Lethington to him, "we shall find the means well enough to make her quit of him, so that you and my Lord of Huntly will only behold the matter, and not be offended thereat." The Lords therefore proceeded to wait upon the Queen, and lay their proposal before her. Lethington, who had a better command of words than any among them, commenced by reminding her of the "great number of grievous and intolerable offences, the King, ungrateful for the honour received from her Majesty, had committed." He added, that Darnley "troubled her Grace and

them all;" and that, if he was allowed to remain with her Majesty, he "would not cease till he did her some other evil turn which she would find it difficult to remedy." He then proceeded to suggest a divorce, undertaking for himself and the rest of the nobility, to obtain the consent of Parliament to it, provided she would agree to pardon the Earl of Morton, the Lords Ruthven and Lindsay, and their friends, whose aid they would require to secure a majority. But Lethington, and the rest, soon found that they had little understood Mary's real sentiments towards her husband. She would not at first agree even to talk upon the subject at all; and it was only after "every one of them endeavoured particularly to bring her to the purpose," that she condescended to state two objections, which, setting aside every other consideration, she regarded as insuperable. The first was, that she did not understand how the divorce could be made lawfully; and the second, that it would be to her son's prejudice, rather than hurt whom, she declared she "would endure all torments." Bothwell endeavoured to take up the argument, and to do away with the force of these objections, alleging, that though his father and mother had been divorced, there had never been any doubt as to his succession to his paternal estates; but his illustrations and Lethington's oratory met with the same success. Mary answered firmly, "I will that you do nothing, by which any spot may be laid on my honour and conscience; and therefore, I pray ye rather let the matter be in the estate as it is, abiding till God of his goodness put a remedy to it. That you believe would do me service, may possibly turn to my hurt and displeasure." As to Darnley, she expressed a hope that he would soon change for the better; and, prompted by the ardent desire she felt to get rid, for a season, of her many cares, she said she would perhaps go for a time to France, and remain there till her husband acknowledged his errors. She then dismissed Bothwell and his friends, who retired to meditate new plots.^[5]

On the 11th of December, Mary proceeded to Stirling, to make the necessary arrangements for the baptism of her son, which she determined to celebrate with the pomp and magnificence his future prospects justified. Darnley, who had been with the Queen a week at Craigmillar Castle, and afterwards came into Edinburgh with her, had gone to Stirling two days before.^[6] Ambassadors had arrived from England, France, Piedmont, and Savoy, to be present at the ceremony. The Pope also had proposed sending a nuncio into Scotland; but Mary had good sense enough to know, that her

bigoted subjects would be greatly offended, were she to receive any such servant of Antichrist. It may have occurred to her, besides, that his presence might facilitate the negotiations for the divorce proposed by her nobility, but which she was determined should not take place. She, therefore, wrote to the great spiritual Head of her Church, expressing all that respect for his authority which a good Catholic was bound to feel; but she, at the same time, contrived to prevent his nuncio, Cardinal Laurea, from coming further north than Paris.[7]

The splendour of Mary's preparations for the approaching ceremony, astonished not a little the sober minds of the Presbyterians. "The excessive expenses and superfluous apparel," says Knox, "which were prepared at that time, exceeded far all the preparations that ever had been devised or set forth before in this country." Elizabeth, as if participating in Mary's maternal feelings, ordered the Earl of Bedford, her ambassador, to appear at Stirling with a very gorgeous train; and sent by him as a present for Mary a font of gold, valued at upwards of 1000*l*. In her instructions to Bedford, she desired him to say jocularly, that it had been made as soon as she heard of the Prince's birth, and that it was large enough then; but that, as he had now, she supposed, outgrown it, it might be kept for the next child. It was too far in the season to admit of Elizabeth's sending any of the Ladies of her own realm into Scotland; she, therefore, fixed on the Countess of Argyle to represent her as godmother, preferring that lady, because she understood her to be much esteemed by Mary. To meet the extraordinary expenditure occasioned by entertaining so many ambassadors, the Queen was permitted to levy an assessment of 12,000*l*. It may appear strange, how a taxation of this kind could be imposed without the consent of Parliament; but it was managed thus. The Privy Council called a meeting both of the Lords Temporal and Spiritual, and of the representatives of the boroughs, and informed them that some of the greatest princes in Christendom had requested permission to witness, through their ambassadors, the baptism of the Prince. It was therefore moved, and unanimously carried, that their Majesties should be allowed to levy a tax for "the honourable expenses requisite." The tax was to be proportioned in this way; six thousand pounds from the spiritual estate;—four thousand from the barons and freeholders;—and two thousand from the boroughs.[8]

Till the ceremony of baptism took place, the Queen gave splendid banquets every day to the ambassadors and their suites. At one of these a slight disturbance occurred, which, as it serves to illustrate amusingly the manners of the times, is worth describing. There seems to have been some little jealousy between the English and French envoys upon matters of precedence; and Mary on the whole was inclined to favour the English, being now more connected with England than with France. It happened, however, that at the banquet in question, a kind of mummary was got up, under the superintendence of one of Mary's French servants, called Sebastian, who was a fellow of a clever wit. He contrived a piece of workmanship, in the shape of a great table; and its machinery was so ingeniously arranged, that, upon the doors of the great hall in which the feast was to be held, being thrown open, it moved in, apparently of its own accord, covered with delicacies of all sorts. A band of musicians, clothed like maidens, singing and accompanying themselves on various instruments, surrounded the pageant. It was preceded, and this was the cause of the offence, by a number of men, dressed like satyrs, with long tails, and carrying whips in their hands. These satyrs were not content to ride round the table, but they put their hands behind them to their tails, wagging them in the faces of the Englishmen, who took it into their heads that the whole was done in derision of them, "daftly apprehending that which they should not seem to have understood." Several of the suite of the Earl of Bedford, perceiving themselves thus mocked, as they thought, and the satyrs "wagging their tails or rumples," were so exasperated, that one of them told Sir James Melville, if it were not in the Queen's presence, "he would put a dagger to the heart of the French knave Sebastian, whom he alleged did it for despite that the Queen made more of them than of the Frenchmen." The Queen and Bedford, who knew that the whole was a mere jest, had some trouble in allaying the wrath of the hot-headed Southerners.

In the midst of these festivities, Mary had various cares to perplex her, and various difficulties to encounter. When she first came to Stirling, she found that Darnley had not chosen to go, as usual, to the Castle, but was residing in a private house. He left it, however, upon the Queen's arrival, and took up his residence in the Castle with her,—a fact of some consequence, and one which Murray has himself supplied.^[9] But Darnley's sentiments towards Mary's ministers, continued unchanged; and it was impossible to

prevail upon them to act and associate together, with any degree of harmony, even in presence of the ambassadors. Mary was extremely anxious to prevent her husband from exposing his weakness and waywardness to foreigners; but he was as stubborn as ever; and though he had given up thoughts of going abroad, it was only because he hoped to put into execution some new plot at home. Surrounded by gayeties, he continued sullen and discontented, shutting himself up in his own apartment, and associating with no one, except his wife and the French envoy, Le Croc, for whom he had contracted a sort of friendship. To heighten his bad humour, Elizabeth, according to Camden, had forbidden Bedford, or any of his retinue, to give him the title of King. The anger inspired by his contempt of her authority, on the occasion of his marriage, had not yet subsided; and there is not a state paper extant, in which she acknowledges Darnley in other terms than as "Henry Stuart, the Queen of Scotland's husband." It seems likely that this, added to the other reasons already mentioned, was the cause why Darnley refused to be present at the christening of his son.^[10] Mary had another cause of vexation. The baptism was to be performed after the Catholic ritual, and the greater part of her nobility, in consequence, not only refused to take any share in the ceremony, but even to be present at it. All Mary's influence with Murray, Huntly, and Bothwell, was exerted in vain. They did not choose to risk their character with the Reformers, to gratify her. "The Queen laboured much," says Knox, "with the noblemen, to bear the salt, grease, and candles, and such other things, but all refused."

On the 19th of December 1566, the baptism, for which so many preparations had been made, took place.^[11] The ceremony was performed between five and six in the afternoon. The Earls of Athol and Eglinton, and the Lords Semple and Ross, being of the Catholic persuasion, carried the instruments. The Archbishop of St Andrews, assisted by the Bishops of Dumblane, Dunkeld, and Ross, received the Prince at the door of the chapel. The Countess of Argyle held the infant at the font, and the Archbishop baptized him by the name of Charles James, James Charles, Prince and Steward of Scotland, Duke of Rothesay, Earl of Carrick, Lord of the Isles, and Baron of Renfrew; and these names and titles were proclaimed three times by heralds, with sound of trumpet. Mary called her son Charles, in compliment to the King of France, her brother-in-law; but

she gave him also the name of James, because, as she said, her father, and all the good kings of Scotland, his predecessors, had been called by that name. The Scottish nobles of the Protestant persuasion, together with the Earl of Bedford, remained at the door of the chapel; and the Countess of Argyle had afterwards to do penance for the share she took in the business of the day,—a circumstance which shows very forcibly the power of the clergy at this time, who were able to triumph over a Queen's representative, a King's daughter, and their Sovereign's sister. It is also worthy of notice, that of the twelve Earls, and numerous Lords then in the castle, only two of the former, and three of the latter, ventured to cross the threshold of a Catholic chapel.^[12]

Elizabeth was probably not far wrong, in supposing that her font had grown too small for the infant James. He was a remarkably stout and healthy child, and as Le Croc says, he made his gossips feel his weight in their arms. Mary was very proud of her son, and from his earliest infancy, the establishment of his household was on the most princely scale. The Lady Mar was his governess. A certain Mistress Margaret Little, the spouse of Alexander Gray, Burgess of Edinburgh, was his head-nurse; and for her good services, there was granted to her and her husband, in February 1567, part of the lands of Kingsbarns in Fife, during their lives. The chief nurse had four or five women under her, "Keepers of the King's clothes," &c. Five ladies of distinction were appointed to the honourable office of "Rockers" of the Prince's cradle. For his kitchen, James, at the same early age, had a master-cook, a foreman, and three other servitors, and one for his pantry, one for his wine, and two for his ale-cellar. He had three "chalmer-chields," one "furnisher of coals," and one pastry-cook or confectioner. Five musicians or "violars," as they are called, completed the number of his household. To fill so many mouths, there was a fixed allowance of provisions, consisting of bread, beef, veal, mutton, capons, chickens, pigeons, fish, pottages, wine and ale. Thus, upon the life of the infant, the comfortable support of a reasonable number of his subjects depended.^[13]

The captivating grace and affability of Mary's manners, won for her, upon the baptismal occasion, universal admiration. She sent home the ambassadors with the most favourable impressions, which were not less loudly proclaimed, because she enriched them, before they went, with gifts of value. To Bedford, in particular, she gave a chain of diamonds, worth

about six or seven hundred pounds. To other individuals of his suite, she gave chains of pearl, rings, and pictures.^[14] But she was all the time making an effort to appear happier and more contented than she really was. “She showed so much earnestness,” says Le Croc, “to entertain all the goodly company, in the best manner, that this made her forget, in a good measure, her former ailments. But I am of the mind, however, that she will give us some trouble as yet; nor can I be brought to think otherwise, so long as she continues to be so pensive and melancholy. She sent for me yesterday, and I found her laid on the bed weeping sore. I am much grieved for the many troubles and vexations she meets with.” Mary did not weep without cause. One source of uneasiness, at the present moment, was the determination of her ministers to force from her a pardon for the Earl of Morton, and seventy-five of his accomplices. As some one has remarked, her whole reign was made up of plots and pardons. Her chief failing indeed, was the facility with which she allowed herself to be persuaded to forgive the deadliest injuries which could be offered to her. Murray, from the representations he had made through Cecil, had induced Elizabeth to desire Bedford to join his influence to that of Mary’s Privy Council in behalf of Morton. The consequence was, that the Queen could no longer resist their united importunities, and, with two exceptions, all the conspirators against Rizzio were pardoned. These exceptions were, George Douglas, who had seized the King’s dagger, and struck Rizzio the first blow; and Andrew Kerr, who, in the affray, had threatened to shoot the Queen herself. Robertson, with great inaccuracy, has said, that it was to the solicitations of Bothwell alone that these criminals were indebted for their recall. It would have been long before Bothwell, whose weight with Mary was never considerable, could have obtained, unassisted, her consent to such a measure; and the truth of this assertion is proved by the clearest and directest testimony. In a letter which Bedford wrote to Cecil on the 30th of December, we meet with the following passage:—“The Queen here hath now granted to the Earl of Morton, to the Lords Ruthven and Lindsay, their relaxation and pardon.^[15] *The Earl of Murray hath done very friendly towards the Queen for them, so have I, according to your advice;* the Earls Bothwell and Athol, and all other Lords *helped* therein, or else such pardons could not so soon have been gotten.”^[16] It is no doubt true, that Bothwell was glad of this opportunity to ingratiate himself with Morton, and that, in the words of Melville, he “packed up a quiet friendship with him;”—but it

is strange that Robertson should have been so ignorant of the real influence which secured a remission of their offences from Mary.

Darnley was of course greatly offended that any of his former accomplices should be received again into favour. They would return only to force him a few steps farther down the ladder, to the top of which he had so eagerly desired to climb. They were recalled too at the very time when he had it in contemplation, according to common report, to seize on the person of the young Prince, and, after crowning him, to take upon himself the government as his father. Whether this report was true or not, (and perhaps it was a belief in it which induced the Queen to remove shortly afterwards from Stirling to Edinburgh), it is certain that Darnley declared he “could not bear with some of the noblemen that were attending in the Court, and that either he or they behoved to leave the same.”^[17] He accordingly left Stirling on the 24th of December, the very day on which Morton’s pardon was signed, to visit his father at Glasgow. But it was not with Mary he had quarrelled, with whom he had been living for the last ten days, and whom he intended rejoining in Edinburgh, as soon as she had paid some Christmas visits in the neighbourhood of Stirling.^[18]

CHAPTER II.

OCCURRENCES IMMEDIATELY PRECEDING DARNLEY'S DEATH.

We are now about to enter upon a part of Mary's history, more important in its results, and more interesting in its details, than all that has gone before. A deed had been determined on, which, for audacity and villany, has but few parallels in either ancient or modern story. The manner of its perpetration, and the consequences which ensued, not only threw Scotland into a ferment, but astonished the whole of Europe; and, even to this day, the amazement and horror it excited, continue to be felt, whenever that page of our national history is perused which records the event. Ambition has led to the commission of many crimes; but, fortunately for the great interests of society, it is only in a few instances, of which the present is one of the most conspicuous, that it has been able to involve in misery, the innocent as well as the guilty. But, even where this is the case, time rescues the virtuous from unmerited disgrace, and, causing the mantle of mystery to moulder away, enables us to point out, on one hand, those who have been unjustly accused, and, on the other, those who were both the passive conspirators and the active murderers. A plain narrative of facts, told without violence or party-spirit, is that upon which most reliance will be placed, and which will be most likely to advance the cause of truth by correcting the mistakes of the careless, and exposing the falsehoods of the calumnious.

The Earl of Bothwell was now irrevocably resolved to push his fortunes to the utmost. He acted, for the time, in conjunction with the Earl of Murray, though independently of him, using his name and authority to strengthen his own influence, but communicating to the scarcely less ambitious Murray only as much of his plans as he thought he might disclose with safety. Bothwell was probably the only Scottish baron of the age over whom Murray does not appear ever to have had any control. His character, indeed, was not one which would have brooked control. On Mary's return home, so soon as he perceived the ascendancy which her brother possessed over her,

he entered into a conspiracy with Huntly and others, to remove him. The conspiracy failed, and Bothwell left the kingdom. He was not recalled till Murray had fallen into disgrace; and though the Earl was subsequently pardoned, he never regained that superiority in Mary's councils he had once enjoyed. But Bothwell hoped to secure the distinction for himself; and, that he might not lose it as Murray had done, after it was once gained, he daringly aimed at becoming not merely a prime minister, but a king. The historians, therefore, (among whom are to be included many of Mary's most zealous defenders), who speak of Bothwell as only a "cat's-paw" in the hands of Murray and his party, evidently mistake both the character of the men, and the positions they relatively held. Murray and Bothwell had both considerable influence at Court; but there was no yielding on the part of either to the higher authority of the other, and the Queen herself endeavoured, upon all occasions, to act impartially between them. We have found her frequently granting the requests of Murray in opposition to the advice of Bothwell; and there is no reason to suppose, that, when she saw cause, she may not have followed the advice of her Lord High Admiral, in preference to that of her brother. A circumstance which occurred only a few days after the baptism of James VI., strikingly illustrates the justice of these observations. It is the more deserving of attention, as the spirit of partiality, which has been unfortunately so busy in giving an erroneous colouring even to Mary's most trifling transactions, has not forgotten to misrepresent that to which we now refer.

Darnley's death being resolved, Bothwell began to consider how he was to act after it had taken place. He probably made arrangements for various contingencies, and trusted to the chapter of accidents, or his own ingenuity, to assist him in others. But there was one thing certain, that he could never become the legal husband of Mary, so long as he continued united to his own wife, the Lady Jane Gordon. Anticipating, therefore, the necessity of a divorce, and aware that the emergency of the occasion might not permit of his waiting for all the ordinary forms of law, he used his interest with the Queen at a time when his real motives were little suspected, to revive the ancient jurisdiction of the Catholic Consistorial Courts, which had been abolished by the Reformed Parliament of 1560, and the ordinary civil judges of Commissary Courts established in their place. In accordance with his request, Mary restored the Archbishop of St Andrews, the Primate of

Scotland, to the ancient Consistorial Jurisdiction, granted him by the Canon laws, and discharged the Commissaries from the further exercise of their offices. Thus, Bothwell not only won the friendship of the Archbishop, but secured for himself a court, where the Catholic plea of consanguinity might be advanced,—the only plausible pretext he could make use of for annulling his former marriage. This proceeding, however, in favour of the Archbishop and the old faith, gave great offence to the Reformed party; and when the Primate came from St Andrews to Edinburgh, at the beginning of January, for the purpose of holding his court, his authority was very strenuously resisted. The Earl of Murray took up the subject, and represented to Mary the injury she had done to the true religion. Bothwell, of course, used every effort to counteract the force of such a representation; but he was unsuccessful. By a letter which the Earl of Bedford wrote to Cecil from Berwick, on the 9th of January 1567, we learn that the Archbishop was not allowed to proceed to the hearing of cases, and that “because it was found to be contrary to the religion, and therefore not liked of by the townsmen; *at the suit of my Lord of Murray*, the Queen was pleased to revoke that which she had before granted to the said bishop.” Probably the grant of jurisdiction was not “revoked,” but only suspended, as Bothwell subsequently availed himself of it; but even its suspension sufficiently testifies, that Mary, at this period, listened implicitly and exclusively neither to one nor other of her counsellors.[19]

In the meantime, Darnley, who, as we have seen, left Stirling for Glasgow on the 24th of December, had been taken dangerously ill. Historians differ a good deal concerning the nature of his illness, which is by some confidently asserted to have been occasioned by poison, administered to him either before he left Stirling, or on the road, by servants, who had been bribed by Bothwell; and by others is as confidently affirmed to have been the small-pox, a complaint then prevalent in Glasgow. On the whole, the latter opinion seems to be the best supported, as it is confirmed by the authority both of the English ambassador, and of the cotemporary historians, Lesley and Blackwood. Knox, Buchanan, Melville, Crawford, Birrell and others, mention, on the other hand, that the belief was prevalent, that the King’s sickness was the effect of poison. But as the only evidence offered in support of this popular rumour is, that “blisters broke out of a bluish colour over every part of his body,” and as this may have been the symptoms of

small-pox as well as of poison, the story does not seem well authenticated. Besides, in the letter which Mary is alleged to have written a week or two afterwards to Bothwell from Glasgow, she is made to say that Darnley told her he was ill of the small-pox. Whether the letter be a forgery or not, this paragraph would not have been introduced, unless it had contained what was then known to be the fact.

Be this matter as it may, it is of more importance to correct a mistake into which Robertson has not unwillingly fallen, regarding the neglect and indifference with which he maintains Mary treated her husband, during the earlier part of his sickness. We learn, in the first place, by Bedford's letter to Cecil, already mentioned, that as soon as Mary heard of Darnley's illness, she sent her own physician to attend him.^[20] And, in the second place, it appears, that it was some time before Darnley's complaint assumed a serious complexion; but that, whenever Mary understood he was considered in danger, she immediately set out to visit him. "The Queen," says Crawford, "was no sooner informed of his danger, than she hasted after him."—"As soon as the rumour of his sickness gained strength," says Turner (or Barnestaple), "the Queen flew to him, thinking more of the person to whom she flew, than of the danger which she herself incurred."—"Being advertised," observes Lesley, "that Darnley was repentant and sorrowful, she without delay, thereby to renew, quicken, and refresh his spirits, and to comfort his heart to the amendment and repairing of his health, lately by sickness sore impaired, hasted with such speed as she conveniently might, to see and visit him at Glasgow." Thus, Robertson's insinuation falls innocuous to the ground.

It was on the 13th of January 1567 that Mary returned from Stirling to Edinburgh, having spent the intermediate time, from the 27th of December, in paying visits to Sir William Murray, the Comptroller of her household, at Tullibardin, and to Lord Drummond at Drummond Castle. As is somewhere remarked, "every moment now begins to be critical, and every minuteness and specific caution becomes necessary for ascertaining the truth, and guarding against slander." The probability is, that Bothwell was not with Mary either at Tullibardin or Drummond Castle. Meetings of her Privy Council were held by her on the 2d and 10th of January; and it appears by the Register, that Bothwell was not present at any of them. Chalmers is of opinion, that, during the early part of January he must have been at Dunbar,

making his preparations, and arranging a meeting with Morton. When the Queen arrived at Edinburgh on the 13th, she lodged her son, whom she brought with her, in Holyroodhouse. A few days afterwards, she set out for Glasgow to see her husband. Her calumniators, on the supposition that she had previously quarrelled with Darnley, affect to discover something very forced and unnatural in this visit. But *Mary had never quarrelled with Darnley*. He had quarrelled with her ministers, and had been enraged at the failure of his own schemes of boyish ambition, but against his wife he had himself frequently declared he had no cause of complaint. Mary, on her part, had always shown herself more grieved by Darnley's waywardness than angry at it. Only a day or two before going to Glasgow, she said solemnly, in a letter she wrote to her ambassador at Paris,—“As for the King, our husband, God knows always our part towards him.”—“God willing, our doings shall be always such as none shall have occasion to be offended with them, or to report of us any way but honourably.”^[21] So far, therefore, from there being any thing uncommon or forced in her journey to Glasgow, nothing could be more natural, or more likely to have taken place. “Darnley's danger,” observes Dr Gilbert Stuart, with the simple eloquence of truth, “awakened all the gentleness of her nature, and she forgot the wrongs she had endured. Time had abated the vivacity of her resentment, and after its paroxysm was past, she was more disposed to weep over her afflictions, than to indulge herself in revenge. The softness of grief prepared her for a returning tenderness. His distresses effected it. Her memory shut itself to his errors and imperfections, and was only open to his better qualities and accomplishments. He himself, affected with the near prospect of death, thought, with sorrow, of the injuries he had committed against her. The news of his repentance was sent to her. She recollected the ardour of that affection he had lighted up in her bosom, and the happiness with which she had surrendered herself to him in the bloom and ripeness of her beauty. Her infant son, the pledge of their love, being continually in her sight, inspirited her sensibilities. The plan of lenity which she had previously adopted with regard to him; her design to excite even the approbation of her enemies by the propriety of her conduct; the advices of Elizabeth by the Earl of Bedford to entertain him with respect; the apprehension lest the royal dignity might suffer any diminution by the universal distaste with which he was beheld by her subjects, and her certainty and knowledge of the angry passions which her chief counsellors had fostered against him—

all concurred to divest her heart of every sentiment of bitterness, and to melt it down in sympathy and sorrow. Yielding to tender and anxious emotions, she left her capital and her palace, in the severest season of the year, to wait upon him. Her assiduities and kindnesses communicated to him the most flattering solacement; and while she lingered about his person with a fond solicitude, and a delicate attention, he felt that the sickness of his mind and the virulence of his disease were diminished.”

On arriving at Glasgow, Mary found her husband convalescent, though weak and much reduced. She lodged in the same house with him; but his disease being considered infectious, they had separate apartments. Finding that his recent approach to the very brink of the grave had exercised a salutary influence over his mind and dispositions, and hoping to regain his entire confidence, by carefully and affectionately nursing him during his recovery, she gladly acceded to the proposal made by Darnley, that she should take him back with her to Edinburgh or its vicinity. She suggested that he should reside at Craigmillar Castle, as the situation was open and salubrious; but for some reason or other, which does not appear, he objected to Craigmillar, and the Queen therefore wrote to Secretary Maitland to procure convenient accommodation for her husband, in the town of Edinburgh.^[22] Darnley disliked the Lords of the Privy Council too much to think of living at Holyrood; and besides, it was the opinion of the physicians, that the young Prince, even though he should not be brought into his father’s presence, might catch the infection from the servants who would be about the persons of both. But when Mary wrote to Maitland, she little knew that she was addressing an accomplice of her husband’s future murderer. The Secretary showed her letter to Bothwell, and they mutually determined on recommending to Darnley the house of the Kirk-of-Field, which stood on an airy and healthy situation to the south of the town, and which, therefore, appeared well suited for an invalid, although *they* preferred it because it stood by itself, in a comparatively solitary part of the town.^[23] On Monday, January 27th, Mary and Darnley left Glasgow. They appear to have travelled in a wheeled carriage, and came by slow and easy stages to Edinburgh. They slept on Monday night at Callander. They came on Tuesday to Linlithgow, where they remained over Wednesday, and arrived in Edinburgh on Thursday.

The Kirk-of-Field, in which, says Melville, “the King was lodged, as a place of good air, where he might best recover his health,” belonged to Robert Balfour, the Provost or head prebendary of the collegiate church of St Mary-in-the-Field, so called because it was beyond the city wall when first built. When the wall was afterwards extended, it enclosed the Kirk-of-Field, as well as the house of the Provost and Prebendaries. The Kirk-of-Field with the grounds pertaining to it, occupied the site of the present College, and of those buildings which stand between Infirmary and Drummond Street. In the extended line of wall, what was afterwards called the Potter-row Port, was at first denominated the Kirk-of-Field Port, from its vicinity to the church of that name. The wall ran east from this port along the south side of the present College, and the north side of Drummond Street, where a part of it is still to be seen in its original state. The house stood at some distance from the Kirk, and the latter, from the period of the Reformation, had fallen into decay. The city had not yet stretched in this direction much farther than the Cowgate. Between that street and the town wall, were the Dominican Convent of the Blackfriars, with its alms-houses for the poor, and gardens, covering the site of the present High School and Royal Infirmary,—and the Kirk-of-Field and its Provost’s residence. The house nearest to it of any note was Hamilton House, which belonged to the Duke of Chatelherault, and some part of which is still standing in College Wynd.^[24] It was at first supposed, that Darnley would have taken up his abode there; but the families of Lennox and Hamilton were never on such terms as would have elicited this mark of friendship from the King. The Kirk-of-Field House stood very nearly on the site of the present north-west corner of Drummond Street. It fronted the west, having its southern gavel so close upon the town-wall, that a little postern door entered immediately through the wall into the kitchen. It contained only four apartments; but these were commodious, and were fitted up with great care. Below, a small passage went through from the front door to the back of the house; upon the right hand of which was the kitchen, and upon the left, a room furnished as a bedroom, for the Queen, when she chose to remain all night. Passing out at the back-door, there was a turnpike stair behind, which, after the old fashion of Scottish houses, led up to the second story. Above, there were two rooms corresponding with those below. Darnley’s chamber was immediately over Mary’s; and on the other side of the lobby, above the kitchen, a “garde-robe” or “little-gallery,” which was used as a servant’s

room, and which had a window in the gavel, looking through the town-wall, and corresponding with the postern door below. Immediately beyond this wall, was a lane shut in by another wall, to the south of which were extensive gardens.[25]

During the ten days which Darnley spent in his new residence, Mary was a great deal with him, and slept several nights in the room we have described below her husband's, this being more agreeable to her, than returning at a late hour to Holyrood Palace. Darnley was still much of an invalid, and his constitution had received so severe a shock, that every attention was necessary during his convalescence. A bath was put up for him, in his own room, and he appears to have used it frequently. He had been long extremely unpopular, as has been seen, among the nobles; but following the example which Mary set them, some were disposed to forget their former disagreements, and used to call upon him occasionally, and among others, Hamilton, the Archbishop of St Andrews, who came to Edinburgh about this time, and lodged hard by in Hamilton house. Mary herself, after sitting for hours in her husband's sick-chamber, used sometimes to breathe the air in the neighbouring gardens of the Dominican convent; and she sometimes brought up from Holyrood her band of musicians, who played and sung to her and Darnley. Thus, every thing went on so smoothly, that neither the victim nor his friends could in the least suspect that they were all treading the brink of a precipice.

Bothwell had taken advantage of Mary's visit to Glasgow, to proceed to Whittingham, in the neighbourhood of Dunbar, where he met the Earl of Morton, and obtained his consent to Darnley's murder. To conceal his real purpose, Bothwell gave out at Edinburgh, that he was going on a journey to Liddesdale; but, accompanied by Secretary Maitland, whom he had by this time won over to his designs, and the notorious Archibald Douglas, a creature of his own, and a relation of Morton, he went direct to Whittingham. There, the trio met Morton, who had only recently returned from England, and opened to him their plot. Morton heard of the intended murder without any desire to prevent its perpetration; but before he would agree to take an active share in it, he insisted upon being satisfied that the Queen, as Bothwell had the audacity to assert, was willing that Darnley should be removed. "I desired the Earl Bothwell," says Morton in his subsequent confession, "to bring me the Queen's hand write of this matter

for a warrant, and then I should give him an answer; otherwise, I would not mell (intermeddle) therewith;—which warrant he never purchased (procured) unto me.”^[26] But though Morton, refused to risk an active, he had no objections to take a passive part in this conspiracy. Bothwell, Maitland, and Douglas, returned to Edinburgh, and he proceeded to St Andrews, with the understanding, that Bothwell was to communicate with him, and inform him of the progress of the plot. Accordingly, a day or two before the murder was committed, Douglas was sent to St Andrews, to let Morton know that the affair was near its conclusion. Bothwell, however, was well aware that what he had told the Earl regarding the wishes of the Queen, was equally false and calumnious. Of all persons in existence, it was from her that he most wished to conceal his design; and as for a written approval of it, he knew that he might just as well have applied to Darnley himself. Douglas was, therefore, commanded to say to Morton, evasively, “that the Queen would bear no speech of the matter appointed to him.” Morton, in consequence, remained quietly in the neighbourhood of St Andrews till the deed was done.^[27]

The Earl of Murray was another powerful nobleman, who, when the last act of this tragedy was about to be performed, withdrew to a careful distance from the scene. It is impossible to say whether Murray was all along acquainted with Bothwell’s intention; there is certainly no direct evidence that he was; but there are very considerable probabilities. When a divorce was proposed to Mary at Craigmillar, she was told that Murray would look through his fingers at it; and this design being frustrated, by the Queen’s refusal to agree to it, there is every likelihood that Bothwell would not conceal from the cabal he had then formed, his subsequent determination. That he disclosed it to Morton and Maitland, is beyond a doubt; and that Murray again consented “to look through his fingers,” is all but proved. It is true he was far too cautious and wily a politician, to plunge recklessly, like Bothwell, into such a sea of dangers and difficulties; but he was no friend to Darnley,—having lost through him much of his former power; and however the matter now ended, if he remained quiet, he could not suffer any injury, and might gain much benefit. If Bothwell prospered, they would unite their interests,—if he failed, then Murray would rise upon his ruin. Only three days before the murder, the Lord Robert Stuart, Murray’s brother, having heard, as Buchanan affirms of the designs entertained against Darnley’s life,

mentioned them to the King. Darnley immediately informed Mary, who sent for Lord Robert, and in the presence of her husband and the Earl of Murray, questioned him on the subject. Lord Robert, afraid of involving himself in danger, retracted what he had formerly said, and denied that he had ever repeated to Darnley any such report. High words ensued in consequence; and even supposing that Murray had before been ignorant of Bothwell's schemes, his suspicions must now have been roused. Perceiving that the matter was about to be brought to a crisis, he left town abruptly upon Sunday, the very last day of Darnley's life, alleging his wife's illness at St Andrews, as the cause of his departure. The fact mentioned by Lesley, in his "Defence of Queen Mary's Honour," that on the evening of this day, Murray said, when riding through Fife, to one of his most trusty servants,—"This night, ere morning, the Lord Darnley shall lose his life," is a strong corroboration of the supposition that he was well informed upon the subject.^[28]

There were others, as has been said, whom Bothwell either won over to assist him, or persuaded to remain quiet. One of his inferior accomplices afterwards declared, that the Earl showed him a bond, to which were affixed the signatures of Huntly, Argyle, Maitland, and Sir James Balfour, and that the words of the bond were to this effect:—"That for as much as it was thought expedient and most profitable for the commonwealth, by the whole nobility and Lords undersubscribed, that such a young fool and proud tyrant should not reign, nor bear rule over them, for diverse causes, therefore, these all had concluded, that he should be put off by one way or other, and who-soever should take the deed in hand, or do it, they should defend and fortify it as themselves, for it should be every one of their own, reckoned and holden done by themselves."^[29] To another of his accomplices, Bothwell declared that Argyle, Huntly, Morton, Maitland, Ruthven, and Lindsay, had promised to support him; and when he was asked what part the Earl of Murray would take, his answer was,—“He does not wish to intermeddle with it; he does not mean either to aid or hinder us.”^[30]

But whoever his assistants were, it was Bothwell's own lawless ambition that suggested the whole plan of proceeding, and whose daring hand was to strike the final and decisive blow. Everything was now arranged. His retainers were collected round him;—four or five of the most powerful ministers of the crown knew of his design, and did not disapprove of it;—

the nobles then at court were disposed to befriend him, from motives either of political interest or personal apprehension;—Darnley and the Queen were unsuspecting and unprotected. A kingly crown glittered almost within his grasp; he had only to venture across the Rubicon of guilt, to place it on his brow.



CHAPTER III.

THE DEATH OF DARNLEY.

It was on Sunday, the 9th of February 1567, that the final preparations for the murder of Darnley were made. To execute the guilty deed, Bothwell was obliged to avail himself of the assistance of those ready ministers of crime, who are always to be found at the beck of a wealthy and depraved patron. There were eight unfortunate men whom he thus used as tools with which to work his purpose. Four of these were merely menial servants;—their names were, Dalgleish, Wilson, Powrie, and Nicolas Haubert, more commonly known by the sobriquet of French Paris. He was a native of France, and had been a long while in the service of the Earl of Bothwell; but on his master's recommendation, who foresaw the advantages he might reap from the change, he was taken into the Queen's service shortly before her husband's death. Bothwell was thus able to obtain the keys of some of the doors of the Kirk-of-Field house, of which he caused counterfeit impressions to be taken.^[31] The other four who were at the "deed-doing," were persons of somewhat more consequence. They were small landed proprietors or *lairds*, who had squandered their patrimony in idleness and dissipation, and were willing to run the chance of retrieving their ruined fortunes at any risk. They were the Laird of Ormiston, Hob Ormiston his uncle, "or father's brother," as he is called, John Hepburn of Bolton, and John Hay of Tallo. Bothwell wished Maitland, Morton, and one or two others, to send some of their servants also to assist in the enterprise; but if they ever promised to do so, it does not appear that they kept their word. Archibald Douglas, however, who had linked himself to the fortunes of Bothwell, was in the immediate neighbourhood with two servants, when the crime was perpetrated.^[32]

Till within two days of the murder, Bothwell had not made up his mind how the King was to be killed. He held various secret meetings with his four principal accomplices, at which the plan first proposed was to attack Darnley when walking in the gardens adjoining the Kirk-of-Field, which his returning health enabled him to visit occasionally when the weather was

favourable. But the success of this scheme was uncertain, and there was every probability that the assassins would be discovered.[33] It was next suggested that the house might easily be entered at midnight, and the King stabbed in bed. But a servant commonly lay in the same apartment with him, and there were always one or two in the adjoining room, who might have resisted or escaped, and afterwards have been able to identify the criminals. After much deliberation, it at length occurred that gunpowder might be used with effect; and that, if the whole premises were blown up, they were likely to bury in their ruins every thing that could fix the suspicion on the parties concerned. Powder was therefore secretly brought into Edinburgh from the Castle of Dunbar, of which Bothwell had the lordship, and was carried to his own lodgings in the immediate vicinity of Holyrood Palace.[34] It then became necessary to ascertain on what night the house could be blown up, without endangering the safety of the Queen, whom Bothwell had no desire should share the fate of her husband. She frequently slept at the Kirk-of-Field; and it was difficult to ascertain precisely when she would pass the night at Holyrood.[35] In his confession, Hay mentions, that “the purpose should have been put in execution upon the Saturday night; but the matter failed, because all things were not in readiness.” It is not in the least unlikely that this delay was owing to Mary’s remaining with her husband that evening.

On Sunday, Bothwell learned that the Queen intended honouring with her presence a masque which was to be given in the Palace, at a late hour, on the occasion of the marriage of her French servant Sebastian, to Margaret Carwood, one of her waiting-maids. He knew therefore that she could not sleep at the Kirk-of-Field that night, and took his measures accordingly. At dusk he assembled his accomplices, and told them that the time was come when he should have occasion for their services.[36] He was himself to sup between seven and eight at a banquet given to the Queen by the Bishop of Argyle, but he desired them to be in readiness as soon as the company should break up, when he promised to join them.[37] The Queen dined at Holyrood, and went from thence to the house of Mr John Balfour, where the Bishop lodged. She rose from the supper-table about nine o’clock, and, accompanied by the Earls of Argyle, Huntly, and Cassils, she went to visit her husband at the Kirk-of-Field. Bothwell, on the contrary, having called Paris aside, who was in waiting on the Queen, took him with him to the

lodgings of the Laird of Ormiston.[38] There he met Hay and Hepburn, and they passed down the Blackfriars Wynd together. The wall which surrounded the gardens of the Dominican monastery ran near the foot of this wynd. They passed through a gate in the wall, which Bothwell had contrived to open by stealth, and, crossing the gardens, came to another wall immediately behind Darnley's house.[39]

Dalgleish and Wilson had, in the meantime, been employed in bringing up, from Bothwell's residence in the Abbey, the gunpowder he had lodged there. It had been divided into bags, and the bags were put into trunks, which they carried upon horses. Not being able to take it all at once, they were obliged to go twice between the Kirk-of-Field and the Palace. They were not allowed to come nearer than the Convent-gate at the foot of Blackfriars Wynd, where the powder was taken from them by Ormiston, Hepburn, and Hay, who carried it up to the house. When they had conveyed the whole, they were ordered to return home; and as they passed up the Blackfriars' Wynd, Powrie, as if suddenly conscience-struck, said to Wilson, "Jesu! whatna a gait is this we are ganging? I trow it be not good." [40] Neither of these menials had seen Bothwell, for he kept at a distance, walking up and down the Cowgate, until the others received and deposited the powder. A large empty barrel had been concealed, by his orders, in the Convent gardens, and into it they intended to have put all the bags; and the barrel was then to have been carried in at the lower back door of Darnley's house, and placed in the Queen's bedroom, which, it will be remembered, was immediately under that of the King. Paris, as the Queen's valet-de-chambre, kept the keys of the lower flat, and was now in Mary's apartment ready to receive the powder. But some delay occurred in consequence of the barrel turning out to be so large that it could not be taken in by the back door; and it became necessary therefore to carry the bags one by one into the bedroom, where they emptied them in a heap on the floor. Bothwell, who was walking anxiously to and fro, was alarmed at this delay, and came to inquire if all was ready. He was afraid that the company up stairs, among whom was the Queen, with several of her nobility and ladies in waiting, might come suddenly out upon them, and discover their proceedings. "*He bade them haste,*" says Hepburn, "*before the Queen came forth of the King's house; for if she came forth before they were ready, they would not find such commodity.*" [41] At length, every thing

being put into the state they wished, they all left the under part of the house, with the exception of Hepburn and Hay, who were locked into the room with the gunpowder, and left to keep watch there till the others should return.[42]

Bothwell, having dismissed the others, went up stairs and joined the Queen and her friends in Darnley's apartment, as if he had that moment come to the Kirk-of-Field. Shortly afterwards, Paris also entered; and the Queen, being either reminded of, or recollecting her promise, to grace with her presence Sebastian's entertainment, rose, about eleven at night, to take leave of her husband. It has been asserted, upon the alleged authority of Buchanan, that, before going away, she kissed him, and put upon his finger a ring, in pledge of her affection. It seems doubtful, however, whether this is Buchanan's meaning. He certainly mentions, in his own insidious manner, that Mary endeavoured to divert all suspicions from herself, by paying frequent visits to her husband, by staying with him many hours at a time, by talking lovingly with him, by paying every attention to his health, by kissing him, and making him a present of a ring; but he does not expressly say that a kiss and ring were given upon the occasion of her parting with Darnley for the last time.[43] It is not at all unlikely, that the fact may have been as Buchanan is supposed to state; but as it is not a circumstance of much importance, it is unnecessary to insist upon its being either believed or discredited so long as it is involved in any uncertainty. Buchanan mentions another little particular, which may easily be conceived to be true,—that, in the course of her conversation with her husband this evening, Mary made the remark, that “just about that time last year David Rizzio was killed.” Bothwell, at such a moment, could not have made the observation; but it may have come naturally enough from Mary, or Darnley himself.[44]

Accompanied by Bothwell, Argyle, Huntly, Cassils, and others, Mary now proceeded to the palace, going first up the Blackfriars' Wynd, and then down the Canongate. Just as she was about to enter Holyrood House, she met one of the Earl of Bothwell's servants (either Dalgleish or Powrie), whom she asked where he had been, that he smelt so strongly of gunpowder? The fellow made some excuse, and no further notice was taken of the circumstance.[45] The Queen proceeded immediately to the rooms where Sebastian's friends were assembled; and Bothwell, who was very

anxious to avoid any suspicion, and, above all, to prevent Mary from suspecting him, continued to attend her assiduously. Paris, who carried in his pocket the key of Mary's bed-room at the Kirk-of-Field, in which he had locked Hay and Hepburn, followed in the Earl's train. Upon entering the apartment where the dancing and masquing was going on, this Frenchman, who had neither the courage nor the cunning necessary to carry him through such a deed of villany, retired in a melancholy mood to a corner, and stood by himself wrapt in a profound reverie. Bothwell, observing him, and fearing that his conduct might excite observation, went up to him, and angrily demanded why he looked so sad, telling him in a whisper, *that if he retained that lugubrious countenance before the Queen, he should be made to suffer for it.* Paris answered despondingly, that he did not care what became of himself, if he could only get permission to go home to bed, for he was ill. "No," said Bothwell, "you must remain with me; would you leave those two gentlemen, Hay and Hepburn, locked up where they now are?"—"Alas!" answered Paris, "what more must I do this night? I have no heart for this business." Bothwell put an end to the conversation, by ordering Paris to follow him immediately.^[46] It is uncertain whether the Queen had retired to her own chamber before Bothwell quitted the Palace, or whether he left her at the masque. Buchanan, always ready to fabricate calumny, says, that the Queen and Bothwell were "in long talk together, in her own chamber after midnight." But the falsehood of this assertion is clearly established; for Buchanan himself allows, that it was past eleven before Mary left the Kirk-of-Field, and Dalgleish and Powrie both state, that Bothwell came to his own lodgings from the Palace about twelve. If, therefore, he was at the masque, as we have seen, he had no time to talk with the Queen in private; and, if he had talked with the Queen, he could not have been at the masque. It is most likely that Mary continued for some time after Bothwell's departure at Sebastian's wedding, for Sebastian was "in great favour with the Queen, for his skill in music and his merry jesting."

As soon as Bothwell came to his "own lodging in the Abbey," he exchanged his rich court dress for a more common one. Instead of a black satin doublet, bordered with silver, he put on a white canvass doublet, and wrapt himself up in his riding-cloak. Taking Paris, Powrie, Wilson and Dalgleish with him, he then went down the lane which ran along the wall of the

Queen's south gardens, and which still exists, joining the foot of the Canongate, where the gate of the outer court of the Palace formerly stood. Passing by the door of the Queen's garden, where sentinels were always stationed, the party was challenged by one of the soldiers, who demanded, "Who goes there?" They answered, "Friends." "What friends?" "Friends to my Lord Bothwell." They proceeded up the Canongate till they came to the Netherbow Port, or lower gate of the city, which was shut. They called to the porter, John Galloway, and desired him to open to friends of my Lord Bothwell. Galloway was not well pleased to be raised at so late an hour, and he kept them waiting for some time. As they entered, he asked, "What they did out of their beds at that time of night?" but they gave him no answer. As soon as they got into the town, they called at Ormiston's lodgings, who lived in a house, called Bassyntine's house, a short way up the High Street, on the south side; but they were told that he was not at home. They went without him, down a close below the Blackfriars Wynd, till they came to the gate of the Convent Gardens already mentioned. They entered, and, crossing the gardens, they stopped at the back wall, a short way behind Darnley's residence. Here, Dalgleish, Wilson, and Powrie, were ordered to remain; and Bothwell and Paris passed in, over the wall. Having gone into the lower part of the house, they unlocked the door of the room in which they had left Hay and Hepburn, and the four together held a consultation regarding the best mode of setting fire to the gunpowder, which was lying in a great heap upon the floor. They took a piece of lint, three or four inches long, and kindling one end of it, they laid the other on the powder, knowing that it would burn slowly enough to give them time to retire to a safe distance. They then returned to the Convent gardens; and having rejoined the servants whom they had left there, the whole group stood together, anxiously waiting for the explosion.

Darnley, meantime, little aware of his impending fate, had gone to bed within an hour after the Queen had left him. His servant, William Taylor, lay, as was his wont, in the same room. Thomas Nelson, Edward Simmons, and a boy, lay in the gallery, or servant's apartment, on the same floor, and nearer the town-wall. Bothwell must have been quite aware, that from the mode of death he had chosen for Darnley, there was every probability that his attendants would also perish. But when lawless ambition once

commences its work of blood, whether there be only one, or a hundred victims, seems to be a matter of indifference.^[47]

The conspirators waited for upwards of a quarter of an hour without hearing any noise. Bothwell became impatient; and unless the others had interfered, and pointed out to him the danger, he would have returned and looked in at the back window of the bedroom, to see if the light was burning. It must have been a moment of intense anxiety and terror to all of them. At length, every doubt was terminated. With an explosion so tremendous, that it shook nearly the whole town, and startled the inhabitants from their sleep, the house of the Kirk-of-Field blew up into a thousand fragments, leaving scarcely a vestige standing of its former walls. Paris, who describes the noise as that of a storm of thunder condensed into one clap, fell almost senseless, through fear, with his face upon the earth. Bothwell himself, though “a bold, bad man,” confessed a momentary panic. “I have been at many important enterprises,” said he, “but I never felt before as I do now.” Without waiting to ascertain the full extent of the catastrophe, he and his accomplices left the scene of their guilt with all expedition. They went out at the Convent-gate, and, having passed down to the Cowgate, they there separated, and went up by different roads to the Netherbow-Port. They were very desirous to avoid disturbing the porter again, lest they should excite his suspicion. They therefore went down a close, which still exists, on the north side of the High Street, immediately above the city gate, expecting that they would be able to drop from the wall into Leith Wynd; but Bothwell found it too high, especially as a wound he had received at Hermitage Castle, still left one of his hands weak. They were forced, therefore, to apply once more to John Galloway, who, on being told that they were friends of the Earl Bothwell, does not seem to have asked any questions. On getting into the Canongate, some people were observed coming up the street; to avoid them, Bothwell passed down St Mary’s Wynd, and went to his lodgings by the back road. The sentinels, at the door of the Queen’s garden again challenged them, and they made the usual answer, that they were friends of the Earl Bothwell, carrying despatches to him from the country. The sentinels asked, —“If they knew what noise that was they had heard a short time before?” They told them they did not.^[48]

When Bothwell came home, he called for a drink; and, taking off his clothes, went to bed immediately. He had not lain there above half an hour

when the news was brought him that the House of the Kirk-of-Field had been blown up, and the King slain. Exclaiming that there must be treason abroad, and affecting the utmost alarm and indignation, he rose and put on the same clothes he had worn when he was last with the Queen. The Earl of Huntly and others soon joined him, and, after hearing from them as much as was then known of the matter, it was thought advisable to repair to the Palace, to inform Mary of what had happened. They found her already alarmed, and anxious to see them, some vague rumours of the accident having reached her. They disclosed the whole melancholy truth as gradually and gently as possible, attributing Darnley's death either to the accidental explosion of some gunpowder in the neighbourhood, or to the effects of lightning. Mary's distress knew no bounds; and seeing that it was hopeless to reason with her in the first anguish of her feelings, Bothwell and the other Lords left her just as day began to break, and proceeded to the Kirk-of-Field.^[49] There they found every thing in a state of confusion;—the edifice in ruins, and the town's-people gathered round it in dismay. Of the five persons who were in the house at the time of the explosion, one only was saved. Darnley, and his servant William Taylor, who slept in the room immediately above the gunpowder, had been most exposed to its effects, and they were accordingly carried through the air over the town wall, and across the lane on the other side, and were found lying at a short distance from each other in a garden to the south of this lane,—both in their night-dress, and with little external injury. Simmons, Nelson, and the boy, being nearer the town-wall, were only collaterally affected by the explosion. They were, however, all buried in the ruins, out of which Nelson alone had the good fortune to be taken alive. The bodies were, by Bothwell's command, removed to an adjoining house, and a guard from the Palace set over them.

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Darnley and his servant being found at so great a distance, and so triflingly injured, it was almost universally supposed at the time, and for long afterwards, that they had been first strangled or assassinated, and then carried out to the garden. This supposition is now proved, beyond a doubt, to have been erroneous. If Darnley had been first murdered, there would have been no occasion to have blown up the house; and if this was done, that his death might appear to be the result of accident, his body would never have been removed to such a distance as might appear to disconnect it

with the previous explosion. Before the expansive force of gunpowder was sufficiently understood, it was not conceived possible that it could have acted as in the present instance; and various theories were invented, none of which were so simple or so true, as that which accords with the facts now established. It is the depositions already quoted that set the matter at rest; for, having confessed so much of the truth, there could have been no reason for concealing any other part of it. Hepburn declared expressly, that “he knew nothing but that Darnley was blown into the air, for he was handled with no men’s hands that he saw;” and Hay deponed that Bothwell, some time afterwards, said to him, “What thought ye when ye saw him blown into the air?” Hay answered,—“Alas! my Lord, why speak ye of that, for whenever I hear such a thing, the words wound me to death, as they ought to do you.”^[51] There is nothing wonderful in the bodies having been carried so far; for it is mentioned by a cotemporary author, that “they kindled their train of gunpowder, which inflamed the whole timber of the house, and troubled the walls thereof in such sort, that great stones of the length of ten feet, and of the breadth of four feet, were found blown from the house a far way.”^[52] Besides, after the minute account, which a careful collation of the different confessions and depositions has enabled us to give, of the manner in which Bothwell spent every minute of his time, from the period of the Queen’s leaving Darnley, till the unfortunate Prince ceased to exist, it would be a work of supererogation to seek to refute, by any stronger evidence, the notion that he was strangled.

It is, however, somewhat remarkable, that, even in recent times, authors of good repute should have allowed themselves to be misled by the exploded errors of earlier writers. “The house,” says Miss Benger, “was invested with armed men, some of whom watched without, whilst others entered to achieve their barbarous purpose; these having strangled Darnley and his servant with silken cords, carried their bodies into the garden, and then blew up the house with powder.”^[53] This is almost as foolish as the report mentioned by Melville, that he was taken out of his bed, and brought down to a stable, where they suffocated him by stopping a napkin into his mouth; or, as that still more ridiculous story alluded to by Sanderson, that the Earl of Dunbar, and Sir Roger Aston, an Englishman, who chose to hoax his countrymen, by telling them that he lodged in the King’s chamber that night, “having smelt the fire of a match, leapt both out at a window into the

garden; and that the King catching hold of his sword, and suspecting treason, not only against himself, but the Queen and the young Prince, who was then at Holyrood House with his mother, desired him (Sir Roger Aston) to make all the haste he could to acquaint her of it, and that immediately armed men, rushing into the room, seized him single and alone, and stabbed him, and then laid him in the garden, and afterwards blew up the house.”[54] Buchanan, Crawford and others, fall into similar mistakes; but Knox, or his continuator, writes more correctly, and mentions, besides, that medical men “being convened, at the Queen’s command, to view and consider the manner of Darnley’s death,” were almost unanimously of opinion that he was blown into the air, although he had no mark of fire.[55]

Henry Stuart, Lord Darnley, Duke of Albany and King of Scotland, perished in the twenty-first year of his age, and the eighteenth month of his reign. The suddenness and severity of his fate excited a degree of compassion, and attached an interest to his memory, which, had he died in the ordinary course of nature, would never have been felt. He had been to Scotland only a cause of civil war,—to his nobility an object of contempt, of pity, or of hatred,—and to his wife a perpetual source of sorrow and misfortune. Any praise he may deserve must be given to him almost solely on the score of his personal endowments; his mind and dispositions had been allowed to run to waste, and were under no controul but that of his own wayward feelings and fancies. Keith, in the following words, draws a judicious contrast between his animal and intellectual qualities. “He is said to have been one of the tallest and handsomest young men of the age; that he had a comely face and pleasant countenance; that he was a most dexterous horseman, and exceedingly well skilled in all genteel exercises, prompt and ready for all games and sports, much given to the diversions of hawking and hunting, to horse-racing and music, especially playing on the lute; he could speak and write well, and was bountiful and liberal enough. But, then, to balance these good natural qualifications, he was much addicted to intemperance, to base and unmanly pleasures; he was haughty and proud, and so very weak in mind, as to be a prey to all that came about him; he was inconstant, credulous, and facile, unable to abide by any resolutions, capable to be imposed upon by designing men, and could conceal no secret, let it tend ever so much to his own welfare or detriment.”[56] With all his faults, there was no one in Scotland who

lamented him more sincerely than Mary. She had loved him deeply; and whilst her whole life proves that she was incapable of indulging that violent and unextinguishable hatred which prompts to deeds of cruelty and revenge, it likewise proves that it was almost impossible for her to cease to esteem an object for which she had once formed an attachment. Murray must himself have allowed the truth of the first part of this statement; and for many days before his death, Darnley had himself felt the force of the latter. She had, no doubt, too much good sense to believe that Darnley, in his character of king, was a loss to the country; but the tears she shed for him, are to be put down to the account, not of the queen, but of the woman and the wife.

CHAPTER IV.

BOTHWELL'S TRIAL AND ACQUITTAL.

During the whole of the day that succeeded her husband's death, (Monday the 10th of February 1567), Mary shut herself up in her own apartment, and would see no one. Bothwell was anxious to have conversed with her, but overpowered with grief, she was unable to listen to any thing he wished to say.^[57] In the meantime all was confusion and dismay in Edinburgh, and wherever the news of this strange murder arrived, a thousand contradictory reports went abroad. Some suspected one thing, and some another; and it must be recollected, that although, at a subsequent date, facts came out sufficient to fix the guilt upon those who had really committed the crime, as yet there was nothing but mere vague conjecture. Mary herself was lost in wonder and doubt. Most of the nobility who were near her wished to persuade her, at Bothwell's instigation, that her husband's death was either the effect of accident, or that it had been brought about by the malice and villany of some obscure and ignoble traitors; and every endeavour being thus made to mislead her, she was the very last who could be expected to know the truth. Accordingly, it appears by a letter she wrote to the Archbishop of Glasgow, her ambassador at Paris, on Tuesday the 11th (two days after the murder), that she was still but very imperfectly informed even of the manner of Darnley's death. This letter, at once so simple and natural, must not be omitted here. She had, the same morning, received a despatch from her ambassador, in which he had expressed a fear, that the pardon she had lately given to Morton, Ruthven, Lindsay and others, might involve her in trouble. Mary's answer was as follows:

“Most Reverend Father in God, and trust Counsellor, we greet you well: We have received this morning your letters of the 27th January, by your servant Robert Dury, containing in part such advertisement as we find by effect over true, albeit the success has not altogether been such as the authors of that mischievous fact had preconceived in their mind, and had put it in execution, if God in his mercy had not preserved us and reserved us, as we trust, to the end that we may take a vigorous vengeance of that mischievous

deed, which, before it should remain unpunished, we had rather lose life and all. The matter is horrible, and so strange, that we believe the like was never heard of in any country. This night past, being the 9th February, a little after two hours after midnight, the house wherein the King was lodged was in an instant blown in the air, he lying sleeping in his bed, with such a vehemency, that of the whole lodging, walls, and other, there is nothing remaining,—no, not a stone above another, but all either carried far away, or dung in dross to the very ground-stone. It must be done by force of powder, and appears to have been a mine.^[58] By whom it has been done, or in what manner, it appears not as yet. We doubt not but, according to the diligence our Council has begun already to use, the certainty of all shall be obtained shortly; and the same being discovered, which we wot God will never suffer to lie hid, we hope to punish the same with such rigour, as shall serve for example of this cruelty to all ages to come. At all events, whoever has taken this wicked enterprise in hand, we assure ourself it was devised as well for us as for the King; for we lay all the most part of all the last week in that same lodging, and were there accompanied with the most part of the lords that are in this town, that same night at midnight, and of very chance tarried not all night, by reason of some masque in the Abbey; but we believe it was not chance, but God that put it in our head.^[59] We despatch this bearer upon the sudden, and therefore write to you the more shortly. The rest of your letter we shall answer at more leisure, within four or five days, by your own servant; and so, for the present, commit you to Almighty God.—At Edinburgh, the 11th day of February 1556-7.—MARIE R.”^[60]

In accordance with the resolution intimated in the above letter, to seek out and vigorously punish her husband’s murderers, a proclamation was issued upon Wednesday the 12th, immediately after an inquisition had been taken by the Justice-General, offering a reward of two thousand pounds, and “an honest yearly rent,” to whosoever should reveal “the persons, devisers, counsellors, or actual committers of the said mischievous and treasonable murder,” and promising besides to the first revealer, although a partaker of the crime, a free pardon. The same proclamation declared, that as “Almighty God would never suffer so horrible a deed to lie hid, so, before it should remain untried, the Queen’s Majesty, unto whom of all others the case was most grievous, would rather lose life and all.”^[61] In the mean time, not knowing but that the same traitors who had murdered her

husband, might intend a similar fate for herself, Mary removed to the Castle, as a place of greater security than Holyrood Palace. There she remained shut up in a dark chamber, hung with black, till after Darnley's burial. He lay in the Chapel at Holyrood, from the 12th to the 15th of February. His body having been embalmed, he was then interred in the royal vault, in which King James V., together with his first wife, Magdalene, and his two infant sons, Mary's brothers, lay. Buchanan, and his follower Laing, have both insisted upon the nocturnal secrecy and indifference with which the funeral ceremony was conducted. "The nobles that were there present," says Buchanan, "decreed, that a stately and honourable funeral should be made for him; but the Queen ordered it so, that he was carried by private bearers in the night-time, and was buried in no manner of state." The interpretation to be put upon this insidious passage is, that the Protestant Lords proposed to bury Darnley after the Presbyterian form, and that Mary refused her consent, and, in consequence, only the Catholics attended. "The ceremonies indeed," says Lesley, "were the fewer, because that the greatest part of the Council were Protestants, and had before interred their own parents without accustomed solemnities."^[62] That Mary's calumniators should have insisted upon this circumstance at all, only shows how eager they were to avail themselves of everything which they could pervert to their own purposes. Had Mary wished to act the hypocrite, nothing could have been easier for her than to have made a great parade at Darnley's funeral.

Bothwell, in the mean time, kept as quiet as possible, attending, as usual, at court, and taking care always to be present at the meetings of the Privy Council. But he had lighted a torch which was not to be extinguished, till it had blazed over Scotland, and kindled his own funeral pyre. On whatever grounds the suspicion had gone abroad, (and it is difficult to say why public attention should so soon have been directed to him as the perpetrator of the late murder, unless we suppose Murray, or some of his other accomplices, to have been now eager to publish his guilt, in order to accomplish his ruin), it is at all events certain, that in a few days after the proclamation for the discovery of the assassins had been issued, a placard was set up at night, on the door of the Tolbooth of Edinburgh, in which it was affirmed, that the Earl of Bothwell, together with a Mr James Balfour, a Mr David Chalmers, and a Mr John Spence, were the persons principally concerned in the crime,

and that the Queen herself was “assenting thereto.” It might be reasonably concluded, that no notice whatever would be taken of an anonymous paper thus expressed; but the Queen, even although it insultingly accused herself, was so anxious to have the matter of the murder investigated, that she caused another proclamation to be issued, without waiting for the advice of her Privy Council, desiring the author of the placard to divulge his name, and promising that if he could show there was any truth in any part of his averment, he should receive the promised reward.^[63] A second placard was stuck up in answer, requiring the money to be lodged in honest hands, and three of the Queen’s servants, whom it named, to be put in arrest; and undertaking, as soon as these conditions were complied with, that the author and four friends would discover themselves. This was so palpable an evasion, that it of course met with no attention. To suppose that Government would take upon itself the charge of partiality, and place the public money in what an anonymous writer might consider “honest hands,” was too grossly absurd to have been proposed by any one who really wished to do his country a service.

The circumstance of Bothwell’s name being mentioned in these placards, in conjunction with that of the Queen, probably operated in his favour with Mary. Conscious of her own innocence, she would very naturally suppose that the charge was equally calumnious in regard to him; for if she knew it to be false in one particular, what dependence could she place upon its truth in any other? At the same time, she could not of course see her husband murdered, almost before her eyes, without making various surmises concerning the real author and cause of his death. Her accusers, however, seem to suppose that she ought to have been gifted with an almost miraculous power of discovering the guilty. Only a few days before, every thing had been proceeding smoothly; and she herself, with renovated spirits, was enjoying the returning health and affection of her husband. In a moment the scene was overclouded; her husband was barbarously slain; and all Scotland was in a ferment. Yet around the Queen all wore the same aspect. Murray was living quietly in Fife; her secretary Maitland was proceeding as usual with the official details of public business; the Earl of Morton had not yet returned to Court, and he also was in Fife; the Archbishop of St Andrews was busied in bolstering up the last remains of Catholicism; Athol, Caithness, Huntly, Argyle, Bothwell, Cassils, and

Sutherland, were attending their Sovereign, as faithful and attached servants ought. Where then was she to look for the traitor who had raised his hand against her husband's life and her own happiness? Whom was she to suspect? Was it Murray?—he had left town without any sufficient cause, on the very day of Darnley's death, and had hated him ever since he put his foot in Scotland. Was it Morton?—he had returned recently from banishment, and that banishment had been the result of Darnley's treachery, and had not Morton assassinated Rizzio, with far less grounds of offence? Was it Argyle?—the Lennox family had stripped him of some of his possessions, and the King's death might, perhaps, be the means of restoring them to him. Was it the Hamiltons?—they were the hereditary enemies of the house of Lennox, and Darnley had blasted for ever their hopes of succession to the throne. Was it Huntly? Was it Athol? Was it Bothwell? It was less likely to be any of these, because Darnley had never come into direct collision with them. By what art, or superior penetration, was Mary to make a discovery which was baffling the whole of Scotland? Was she surrounded by the very men who had done the deed, and who used every means to lead her astray from the truth; yet was she to be able to single out the criminal at a glance, and hurl upon him her just indignation?[64]

Worn out by her griefs and her perplexities, her doubts and her fears, Mary's health began to give way, and her friends prevailed upon her to leave for a short time her confinement in Edinburgh Castle, and visit Seaton House, a country residence of which she was fond, only seven miles off. Lesley, after describing Mary's melancholy sojourn in the Castle, adds, that she would have "continued a longer time in this lamentable wise, had she not been most earnestly dehorted by the vehement exhortations and persuasions of her Council, who were moved thereto by her physicians informations, declaring to them the great and imminent dangers of her health and life, if she did not in all speed break up and leave that kind of close and solitary life, and repair to some good open and wholesome air; which she did, being thus advised, and earnestly thereto solicited by her said council." [65] She went to Seaton on the 16th of February, accompanied by a very considerable train, among whom were the Earls of Argyle, Huntly, Bothwell, Arbroath, the Archbishop of St Andrews, the Lords Fleming and Livingston, and Secretary Maitland.[66] It was here that a

correspondence took place between the Queen and the Earl of Lennox, Darnley's father, which deserves attention.

In his first letter, the Earl thanked her Majesty for the trouble and labour she took to discover and bring to trial those who were guilty of the "late cruel act;" but as the offenders were not yet known, he beseeched her Highness to assemble, with all convenient diligence, the whole nobility and estates of the realm, that they, acting in conjunction with her Majesty, might take such steps as should seem most likely to make manifest the "bloody and cruel actors of the deed." This letter was dated the 20th of February 1567. Mary replied to it on the 21st; and in her answer, assured Lennox that in showing him all the pleasure and goodwill in her power, she did only her duty, and that which her natural affection prompted, adding, that on that affection he might always depend, "so long as God gave her life." As to the assembling of her nobility, she informed him, that shortly before the receipt of his letter, she had desired a Parliament to be summoned, and that as soon as it met, the death of Darnley would be the first subject which it would be called upon to consider. Lennox wrote again on the 26th, to explain, that when he advised her Majesty to assemble her nobility, he did not allude to the holding of a Parliament, which he knew could not be done immediately. But because he had heard of certain placards which had been set up in Edinburgh, in which certain persons were named as the devisers of the murder, he requested that these persons should be apprehended and imprisoned, that the nobility and Council should be assembled, and that the writers of the placards should be required to appear before them, and be confronted with those whom they had accused; and that if they refused to appear, or did not make good their charge, the persons slandered should be exonerated and set at liberty. A proposal so very unconstitutional could not have been made by Lennox, unless misled by the ardour of his paternal feelings, or instigated by some personal enmity towards Bothwell. If Mary had ventured to throw into prison every one accused in an anonymous bill, there is no saying where the abuse might have ended. The most worthless coward might have thus revenged himself upon those he hated; and law and justice would have degenerated into despotism, or civil anarchy. The Queen, therefore, informed Lennox, that although, as she had already written, she had summoned a Parliament, and should lay the matter of the murder before it, it was never her intention to allow it to sleep in the mean

time. Her Lords and Council would of course continue to exert themselves, but her *whole* nobility could not be assembled till the Parliament met. As to his desire, that the persons named in the placards should be apprehended, there had been so many, and so contrary statements made in these placards, that she knew not to which in particular he alluded; and besides, that she could not find herself justified in throwing any of her subjects into prison upon such authority; but that, if he himself would condescend upon the names of such persons as he thought deserved a trial, she would order that trial to take place immediately. She was anxious that Lennox should take this responsibility upon himself, for she had hitherto been kept much in the dark, and was glad to have the assistance of one almost as desirous as herself to come to the truth. She invited him, therefore, in her letter of the 1st of March, to write to her again immediately, with any other suggestion which might occur to him, because she was determined “not to omit any occasion which might clear the matter.” It was the 17th of March before Lennox again addressed the Queen. He thanked her Majesty for her attention to his wishes; he marvelled that the names of the persons upon the placards, against whom the greatest suspicions were entertained, “*had been kept from her Majesty’s ears;*” and, as she requested it, he now named them himself, putting the Earl of Bothwell first, and several other inferior persons after him. He did not undertake to be their accuser, confessing that he had no evidence of their guilt; but he said he greatly suspected Bothwell, and hoped “her Majesty, now knowing their names, and being a party, as well and more than he was, although he was the father, would take order in the matter according to the weight of the cause.” Mary, who had by this time returned to Edinburgh, wrote to Lennox, the very day after the receipt of his letter, that she had summoned her nobility to come to Edinburgh the first week of April; and that, as soon as they came, the persons named in his letter should “abide and underlie such trial, as by the laws of the realm was usual.”—“They being found culpable,” Mary added, “in any way of that crime and odious fact, named in the placards, and whereof you suspect them, we shall even, according to our former letter, see the condign punishment as vigorously and extremely executed as the weight of that fact deserves; for, indeed, as you write, we esteem ourself a party if we were resolute of the authors.” She further entreated Lennox to come to Edinburgh, that he might be present at the trial, and lend his assistance to it. “You shall there have experience,” she concluded, “of our earnest will and

effectuious mind to have an end in this matter, and the authors of so unworthy a deed really punished.”^[67]

The Queen, having waited anxiously till something should occur which might lead to the detection of the murderers, hoped that a clue to the mystery was now about to be discovered. It was a bold and perhaps almost too strong a measure, to arraign a nobleman so powerful, and apparently so respected as Bothwell, of so serious a crime, upon such vague suspicion; but if Mary in this instance exceeded the due limits of her constituted authority, it was an error which leant to virtue’s side, and the feelings of an insulted Queen and afflicted wife must plead her excuse. Her Privy Council, which she summoned immediately upon the receipt of Lennox’s last letter, and before whom she laid it, passed an act directing the trial of the Earl of Bothwell, and the other suspected persons named by Lennox. The trial was fixed to take place on the 12th day of April 1567; letters were directed to the Earl of Lennox to inform him of it, and proclamations were made in Edinburgh, Glasgow, Dumbarton, and other places, calling upon all who would accuse Bothwell, or his accomplices, to appear in court on the day appointed.^[68] The Council, however, would not authorize the imprisonment of the suspected persons, seeing that it was only anonymous placards which had excited that suspicion.

As soon as the Earl of Lennox got intimation of the intended trial, he set out for Edinburgh from his estate in Dumbartonshire. Not choosing to proceed thither direct, in consequence of the enmity which he knew Bothwell must bear to him, he went to Stirling, where it was understood he was engaged in collecting all the evidence in his power. Nor can Bothwell be supposed to have felt very easy, under the prospect of his approaching trial. He counted, however, on the good offices of his friends among the nobility; and having removed all who might have been witnesses against him, and brought into Edinburgh a numerous body of retainers, he resolved to brazen out the accusation with his usual audacity. He even affected to complain that he had not been treated with sufficient fairness; that a paper affixed privately to the door of the Tolbooth had been made the means of involving him in serious trouble; and that, instead of the usual term of forty days, only fifteen had been allowed him to prepare for his defence.^[69] He assumed the air, therefore, of an injured and innocent man; and he was well borne out in this character by the countenance he received from most of the Lords then at

court. We learn from Killigrew, that twenty days after Bothwell had been placarded, he dined with him at the Earl of Murray's, who had by this time returned from Fife, in company with Huntly, Argyle, and Lethington.[70]

The day of trial now drew near; but, to her astonishment, Mary received a letter only twenty-four hours before it was to take place, from the Earl of Lennox, who did not exactly see how he was to carry through his accusation, and therefore wished that the case should be postponed. The letter was dated from Stirling, and mentioned two causes which he said would prevent him from coming to Edinburgh; one was sickness, and the other the short time which had been allowed him to prepare for making good his charge. He asked, therefore, that the Queen would imprison the suspected persons, and would delay the trial till he had collected his friends and his proofs.[71] This request disappointed Mary exceedingly. She had hurried on the trial as much to gratify Lennox as herself; but she now saw that, in asking for it at all, he had been guided more by the feeling of the moment, than by any rational conviction of its propriety. To postpone it without the consent of the accused, who had by this time made the necessary preparations for their defence, was of course out of the question; and, if the time originally mentioned was too short, why did Lennox not write to that effect, as soon as he received intimation of the day appointed? If she put off the trial now, for any thing she knew it might never come on at all. Her enemies, however, were determined, whatever she did, to discover some cause of complaint;—if she urged it on, they would accuse her of precipitancy; if she postponed it, they would charge her with indifference. Elizabeth, in particular, under the pretence of a mighty anxiety that Mary should do what was most honourable and requisite, insolently suggested that suspicion might attach to herself, unless she complied with the request made by Lennox. “For the love of God, Madam,” she hypocritically and insidiously wrote to Mary, “conduct yourself with such sincerity and prudence, in a case which touches you so nearly, that all the world may have reason to pronounce you innocent of a crime so enormous, which, unless they did, you would deserve to be blotted out from the rank of Princesses, and to become odious even to the vulgar, rather than see which, I would wish you an honourable sepulchre.”[72] Just as if any one *did* suspect Mary, or as if any monarch in Christendom would have dared to hint the possibility of her being an adulterous murderess, except her jealous

rival Elizabeth, pining in the chagrined malevolence of antiquated virginity. The real motives which dictated this epistle became the more apparent, when we learn that it was not written till the 8th of April, and could not at the very soonest reach Edinburgh till the morning of the very day on which the trial was to take place, and probably not till after it was over. The truth is, the very moment she heard of Darnley's death, Elizabeth had eagerly considered in her own mind the possibility of involving "her good sister" in the guilt attached to those who had murdered him, and was now the very first who openly attempted to lead the thoughts of the Scottish Queen's subjects into that channel;—she was the very first who commenced laying the train which produced in the end so fatal a catastrophe.

On Saturday, the 12th of April 1567, a Justiciary Court was held in the tolbooth of Edinburgh, for the trial of the Earl of Bothwell. The Lord High Justice the Earl of Argyle presided, attended by four assessors, or legal advisers, two of whom, Mr James MacGill and Mr Henry Balnaves, were Senators of the College of Justice; the third was Robert Pitcairn, Commendator of Dumfermlin, and the fourth was Lord Lindsay. The usual preliminary formalities having been gone through, the indictment was read, in which Bothwell was accused of being "art and part of the cruel, odious, treasonable, and abominable slaughter and murder, of the umwhile the Right High and Mighty Prince the King's Grace, dearest spouse for the time to our Sovereign Lady the Queen's Majesty."^[73] He was then called as defender on the one side, and Matthew Earl of Lennox, and all others the Queen's lieges, who wished to pursue in the matter, on the other. Bothwell appeared immediately at the bar, supported by the Earl of Morton, and two gentlemen who were to act as his advocates. But the Earl of Lennox, or other pursuers, though frequently called, did not appear. At length Robert Cunningham, one of Lennox's servants, stepped forward, and produced a writing in the shape of a protest, which his master had authorized him to deliver. It stated, that the cause of the Earl's absence was the shortness of time, and the want of friends and retainers to accompany him to the place of trial; and it therefore objected to the decision of any assize which might be held that day. In reply to this protest, the letters of the Earl of Lennox to the Queen, in which he desired that a short and summary process might be taken against the suspected persons, were produced and read; and it was maintained by the Earl of Bothwell's counsel, that the trial ought to proceed

immediately, according to the laws of the realm, and the wish of the party accused. The judges, having heard both sides, were of opinion that Bothwell had a right to insist upon the trial going on. A jury was therefore chosen, which does not seem to have consisted of persons particularly friendly to the Earl. It was composed of the Earls of Rothes, Caithness, and Cassils, Lord John Hamilton, son to the Duke of Chatelherault, Lords Ross, Semple, Herries, Oliphant, and Boyd, the Master of Forbes, Gordon of Lochinvar, Cockburn of Langton, Sommerville of Cambusnethan, Mowbray of Barnbogle, and Ogilby of Boyne. Bothwell pled *not guilty*; and, no evidence appearing against him, the jury retired, and were out of court for some time. When they returned, their verdict, delivered by the Earl of Caithness, whom they had chosen their chancellor, unanimously acquitted Bothwell of the slaughter of the King.[74]

Immediately after his acquittal, Bothwell, as was customary in those times, published a challenge, in which he offered to fight hand to hand, with any man who would avow that he still suspected him to have had a share in the King's death; but nobody ventured openly to accept it.[75] As far, therefore, as appearances were concerned, he was now able to stand upon higher ground than ever, and boldly to declare, that whosoever was guilty, he had been found innocent. Accordingly, at the Parliament which met on the 14th of April, he appeared in great state, with banners flying, and a numerous body of retainers; and in compliment to him, an act was passed, in which it was set forth, that "by a licentious abuse lately come into practice within this realm, there had been placards and bills and tickets of defamation, set up under silence of night, in diverse public places, to the slander, reproach and infamy of the Queen's majesty and diverse of the nobility; which disorder, if it were suffered to remain longer unpunished, would redound not only to the great hurt and detriment of all noblemen in their good fame, private calumniators having by this means liberty to backbite them, but also the common weal would be disturbed, and occasion of quarrel taken upon false and untrue slander;"—it was therefore made criminal to put up any such placards, or to abstain from destroying them as soon as they were seen. At this Parliament, there was also an act passed on the subject of religion, which is deserving of notice. "The same Queen," says Chalmers, "who is charged by Robertson with attempting to suppress the Reformed discipline, with the aid of the Bishops, passed a law, renouncing all foreign jurisdiction

in ecclesiastical affairs,—giving toleration to all her subjects to worship God in their own way,—and engaging to give some additional privileges.” This is one of the most satisfactory answers which can be given to the supposition, that Mary was in any way a party in the Continental persecution of the Hugonots.

The Earl of Murray was not present either at this Parliament, or the trial which immediately preceded it. Actuated by motives which do not exactly appear, and which historians have not been able satisfactorily to explain, he obtained permission from Mary, in the beginning of April, to leave Scotland, and, on the 9th, he set off for France, visiting London and the Court of Elizabeth on his way. There is something very unaccountable, in a man of Murray’s ambition thus withdrawing from the scene of action, just at the very time when he must have been anticipating political events of the last importance. His conduct can be rationally explained, only by supposing, that it was suggested by his systematic caution. He was not now, nor had he ever been since his rebellion, Mary’s exclusive and all-powerful Prime Minister;—yet he could not bear to fill a second place; and he knew that, if any civil war occurred, the eyes of many would immediately be turned towards him. If he remained in the country, he would necessarily be obliged to take a side as soon as the dissensions broke out, and might find himself again associated with the losing party; but, if he kept at a distance for a while, he could throw his influence, when he chose, into the heaviest scale, and thus gain an increase of popularity and power. These were probably the real motives of his present conduct, and, judging by the result, no one can say that he reasoned ill. That he was aware of every thing that was about to happen, and that he urged Bothwell forward into a net, from whose meshes he knew he could never be disengaged, as has been maintained so positively by Whittaker, Chalmers, and others, does not appear. The peremptoriness with which these writers have asserted the truth of this unfounded theory, is the leading defect of their works, and has tended to weaken materially the chain of argument by which they would otherwise have established Mary’s innocence. That Bothwell, as they over and over again repeat, was the mere “cat’s-paw” of Murray, is a preposterous belief, and argues a decided want of knowledge of Bothwell’s real character. But supposing that he had been so, nothing could be more chimerical than the idea, that after having made him murder Darnley,

Murray would wish to see him first acquitted of that murder, and then married to the Queen, for the vague chance that both might be deposed, and he himself called to succeed them as Regent. "Would it ever enter into the imagination of a wise man," asks Robertson, "first to raise his rival to supreme power, in hopes that, afterwards, he should find some opportunity of depriving him of that power? The most adventurous politician never hazarded such a dangerous experiment; the most credulous folly never trusted such an uncertain chance." Murray probably winked at the murder, because he foresaw that it was likely to lead to Bothwell's ruin. When he left the country, he may not have been altogether aware of Bothwell's more ambitious objects; but if he was, he would still have gone, for his staying could not have prevented their attempted execution; and if they induced a civil war, whosoever lost, he might contrive to be a gainer. He acted selfishly and unpatriotically, but not with that deliberate villany with which he has been charged.

CHAPTER V.

BOTHWELL'S SEIZURE OF THE QUEEN'S PERSON, AND SUBSEQUENT MARRIAGE TO HER.

Every thing appeared now to be going smoothly with Bothwell, and he had only to take one step more to reach the very height of his ambition. Mary's hand and Scotland's crown were the objects he had all along kept steadily in view. The latter was to be obtained only through the medium of the former, and hence his reason for removing Darnley, and willingly submitting to a trial, from which he saw he would come off triumphantly. The question he now anxiously asked himself was, whether it was likely that Mary could be persuaded to accept him as a husband. He was aware, that in the unsettled state of the country, she must feel that, unless married to a person of strength and resolution, she would hardly be able to keep her turbulent subjects in order; and he was of opinion, that it was not improbable she would now cast her eyes upon one of her own nobility, as she could nowhere else find a king who would be so agreeable to the national prejudices. Yet he had a lurking consciousness, that he himself would not be the object of her choice. She had of late, it was true, given him a considerable share in the administration; but he felt that she had done so, more as a matter of state policy, and to preserve a balance of power between himself and her other ministers, than from any personal regard. The most assiduous attentions which it was in his power to pay her, had failed to kindle in her bosom any warmer sentiment; for though she esteemed him for his fidelity as an officer of state, his manners and habits as a man, were too coarse and dissolute to please one of so much refinement, sensibility and gentleness, as Mary Stuart. Bothwell therefore became secretly convinced that it would be necessary for him to have recourse to fraud, and perhaps to force. Had Mary loved him, their marriage would have been a matter of mutual agreement, and would have taken place whenever circumstances seemed to make it mutually advisable; but as it was, artifice

and audacity were to be his weapons; nor were they wielded by an unskilful hand.

The Parliament which met on the 14th of April 1567, continued to sit only till the 19th of the same month; and on the evening of the following day, Bothwell invited nearly all the Lords who were then in Edinburgh to a great supper, in a tavern kept by a person of the name of Ainsly, from which circumstance, the entertainment was afterwards known by the name of "*Ainsly's Supper*." After plying his guests with wine, he produced a document, which he had himself previously drawn up, and which he requested them all to sign. It was in the form of a bond; and in the preamble, after expressing their conviction that James Earl of Bothwell, Lord Hales, Crichton, and Liddisdale, Great Admiral of Scotland, and Lieutenant to the Queen over all the Marches, had been grossly slandered in being suspected of having a share in the murder of Darnley, and that his innocence had been fully and satisfactorily proved at his late trial, they bound themselves, as they should answer to God, that whatever person or persons should afterwards renew such calumnation, should be proceeded against by them with all diligence and perseverance. After this introduction, evidently meant to aid in removing any lingering suspicion which the Queen might still entertain of Bothwell's guilt, the bond went on to state, that, "Moreover, weighing and considering the present time, and how our Sovereign, the Queen's Majesty, is destitute of a husband, in which solitary state the common weal of this realm may not permit her Highness to continue and endure, but at some time her Highness, in appearance, may be inclined to yield unto a marriage,—therefore, in case the former affectionate and hearty services of the said Earl (Bothwell), done to her Majesty from time to time, and his other good qualities and behaviour, may move her Majesty so far to humble herself as, preferring one of her own native born subjects unto all foreign princes, to take to husband the said Earl, we, and every one of us under subscribing, upon our honours and fidelity, oblige ourselves, and promise, not only to further, advance, and set forward the marriage to be solemnized and completed betwixt her Highness and the said noble Lord, with our votes, counsel, fortification and assistance, in word and deed, at such time as it shall please her Majesty to think it convenient, and as soon as the laws shall permit it to be done; but, in case any should presume, directly or indirectly, openly, or under whatsoever colour or

pretence, to hinder, hold back, or disturb the same marriage, we shall, in that behalf, hold and repute the hinderers, adversaries, or disturbers thereof, as our common enemies and evil-willers; and notwithstanding the same, take part with, and fortify the said Earl to the said marriage, so far as it may please our said Sovereign Lady to allow; and therein shall spend and bestow our lives and goods against all that live or die, as we shall answer to God, and upon our own fidelities and conscience; and in case we do the contrary, never to have reputation or credit in no time hereafter, but to be accounted unworthy and faithless traitors.”[\[76\]](#)

This bond having been read and considered, all the nobles present, with the exception of the Earl of Eglinton, who went away unperceived, put their signatures to it. “Among the subscribers,” says Robertson, “we find some who were the Queen’s chief confidants, others who were strangers to her councils, and obnoxious to her displeasure; some who faithfully adhered to her through all the vicissitudes of her fortune, and others who became the principal authors of her sufferings; some passionately attached to the Romish superstition, and others zealous advocates for the Protestant faith. No common interest can be supposed to have united men of such opposite interests and parties, in recommending to their Sovereign a step so injurious to her honour, and so fatal to her peace. This strange coalition was the effect of much artifice, and must be considered as the boldest and most masterly stroke of Bothwell’s address.” It is, indeed, impossible to conceive that such a bond was so numerously subscribed on the mere impulse of the moment. Before obtaining so solemn a promise of support from so many, he must have had recourse to numerous machinations, and have brought into action a thousand interests. He must, in the first place, have influenced Morton, his brother-in-law Huntly, Argyle, and others; and having secured these, he would use them as agents to bring over as many more. The rest, finding that so formidable a majority approved of the bond, would not have the courage to stand out, for they would fear the consequences if Bothwell ever became king. Among the names attached to this bond are those of the Archbishop of St Andrews, the Bishops of Aberdeen, Dumblane, Brechin, and Ross, the Earls of Huntly, Argyle, Morton, Cassils, Sutherland, Errol, Crawford, Caithness, and Rothes, and the Lords Boyd, Glamis, Ruthven, Semple, Herries, Ogilvie, and Fleming.[\[77\]](#) Here was an overwhelming and irresistible force, enlisted by Bothwell in his support. The sincerity of many

of the subscribers he probably had good reason to doubt; but what he wanted was to be able to present himself before Mary armed with an argument which she would find it difficult to evade, and if she yielded to it, his object would be gained. He was afraid, however, to lay the bond openly and fairly before her; he dreaded that her aversion to a matrimonial connexion with him might weigh more powerfully than even the almost unanimous recommendation of her nobility. But having already gone so far, he was resolved that a woman's will should not be any serious obstacle to his wishes.

The whole affair of the supper was, for a short time, kept concealed from Mary; and though Bothwell's intentions and wishes began to be pretty generally talked of throughout the country, she was the very last to hear of them. When the Lord Herries ventured on one occasion to come upon the subject with the Queen, and mentioned the report as one which had gained considerable credit, "her Majesty marvelled," says Melville, "to hear of such rumours without meaning, and said *that there was no such thing in her mind*." Only a day or two after the bond was signed, she left Edinburgh to visit the prince her son, who was then in the keeping of the Earl of Mar at Stirling. Before she went, Bothwell ventured to express his hopes to her, but she gave him an answer little agreeable to his ambition. "The bond being once obtained," Mary afterwards wrote to France, "Bothwell began afar off to discover his intention, and to essay if he might by humble suit purchase our good will."—"But finding an answer nothing correspondent to his desire, and casting from before his eyes all doubts that men use commonly to revolve with themselves in similar enterprises,—the backwardness of our own mind—the persuasions which our friends or his enemies might cast out for his hindrance—the change of their minds whose consent he had already obtained, with many other incidents which might occur to frustrate him of his expectation,—he resolved with himself to follow forth his good fortune, and, all respect laid apart, either to tine all in one hour, or to bring to pass that thing he had taken in hand."^[78] This is a clear and strong statement, describing exactly the feelings both of Bothwell and Mary at this period.

The Earl did not long dally on the brink of his fate. Ascertaining that Mary was to return from Stirling on the 24th, he left Edinburgh with a force of nearly 1000 men well mounted, under the pretence of proceeding to quell some riots on the Borders. But he had only gone a few miles southward,

when he turned suddenly to the west, and riding with all speed to Linlithgow, waited for Mary at a bridge over the Almond about a mile from that town. The Queen soon made her appearance with a small train, which was easily overpowered, and which indeed did not venture to offer any resistance. The Earl of Huntly, Secretary Maitland, and Sir James Melville, were the only persons of rank who were with the Queen; and they were carried captive along with her; but the rest of her attendants were dismissed. Bothwell himself seized the bridle of Mary's horse, and turning off the road to Edinburgh, conducted her with all speed to his Castle at Dunbar.^[79]

The leading features of this forcible abduction, or *ravishment*, as it is commonly called by the Scottish historians, have been greatly misrepresented by Robertson and Laing. Both of these writers mention, as a matter of surprise, that Mary yielded without struggle or regret, to the insult thus offered her. That she yielded without struggle,—that is to say, without any attempt at physical resistance, is exceedingly probable; for when was a party of a dozen persons, riding without suspicion of danger, able to offer resistance to a thousand armed troopers? There is little wonder that they were surrounded and carried off, “without opposition,” as Laing expresses it; for by a thousand soldiers, a dozen Sir William Wallaces would have been made prisoners “without opposition.” But the very number which Bothwell brought with him, and which even Mary's worst enemies allow was not less than six hundred, proves that there was no collusion between him and the Queen. Had it been only a pretended violence, to afford a decent excuse for Mary's subsequent conduct, fifty horsemen would have done as well as a thousand; but Bothwell knew the Queen's spirit, and the danger of the attempt, and came prepared accordingly. But it is urged, that, if displeased, she must have expressed her resentment to those who were near her. And there is certainly no reason to suppose that she was silent, though neither Huntly nor Lethington would be much influenced by her complaints, for they had both secretly attached themselves to Bothwell. Sir James Melville, who was more faithful to the Queen, was dismissed from Dunbar the day after her capture, lest she should have employed him to solicit aid for her relief, as she had formerly done on the occasion of the murder of Rizzio.^[80] Mary herself, in the letter already quoted, sets the matter beyond dispute, for she there gives a long and interesting detail, both of her own indignation, and of the arts used by Bothwell to appease it.^[81]

Nothing, indeed, can be more contrary to reason, than to suppose this abduction a mere device, mutually arranged to deceive the country. If Mary had really loved Bothwell and was anxious to marry him, it would have been the very last thing she would have wished to be believed, whether she thought him guilty of Darnley's murder or not, that she gave him her hand, after he had been publicly acquitted, and all her principal nobility had declared in his favour, only in consequence of a treasonable act, committed by him against her person. If she hoped to live in peace and happiness with him, why should she have allowed it to be supposed, that she acted from necessity, rather than from choice, or that she yielded to a seducer, what she would not give to a faithful subject? This pre-arranged ravishment, would evidently defeat its own purpose, and would serve as a pretence suggested by Mary herself, for every malcontent in Scotland to take up arms against her and Bothwell. It was a contrivance directly opposed to all sound policy, and certainly very unlike the open and straight-forward manner in which she usually went about the accomplishment of a favourite purpose. "But one object of the seizure," says Laing, "was the vindication of her precipitate marriage." Where was the necessity for a precipitate marriage at all? Was Mary so eager to become the wife of Bothwell, with whom, according to the veracious Buchanan, she had long been indulging an illicit intercourse, that she could not wait the time required by common decency to wear her widow's garb for Darnley? Was he barbarously murdered by her consent on the 9th of February, on the express condition that she was to have Bothwell in her arms as her husband on the 15th of May? Was she, indeed, so entirely lost to every sense of female delicacy and public shame,—so utterly dead to her own interests and reputation,—or so very scrupulous about continuing a little longer her unlicensed amours, that, rather than suffer the delay of a few months, she would thus run the risk of involving herself in eternal infamy? Even supposing that she was perfectly assured the artifice would remain undiscovered,—was her conscience so hardened, her feelings so abandoned, and her reason so perverted, as to enable her to anticipate gratification from a marriage thus hastily concluded, with so little queenly dignity, or female modesty, and with a man who was not yet divorced from his own wife? There is but one answer which can be given to these questions, and that answer comes instinctively to the lips, from every generous heart, and well-regulated mind.

For ten days Bothwell kept Mary in Dunbar “sequestered,” in her own words, “from the company of all her servants, and others of whom she might have asked counsel, and seeing those upon whose counsel and fidelity she had before depended, already yielded to his appetite, and so *left alone, as it were, a prey to him.*”^[82] Closely shut up as she was, she long hoped that some of her more loyal nobles would exert themselves to procure her deliverance. But not one of them stirred in her behalf, for Bothwell was at this time dreaded or courted by all of them, and finding the person of the Queen thus left at his disposal, he did not hesitate to declare to her, that he would make her his wife, “who would, or who would not,—yea, whether she would herself or not.”^[83] Mary, in reply, charged him with the foulest ingratitude; and his conduct, she told him, grieved her the more, because he was one “of whom she doubted less than of any subject she had.”^[84] But he was not now to be driven from his purpose. He spent his whole time with Mary; and his whole conversation was directed to the one great object he had in view. He called to his aid every variety of passion; sometimes flinging himself at her feet, and imploring her to pardon a deed which the violence of his love had made imperative; and, at other times, giving vent to a storm of rage, and threatening dishonour, imprisonment, and death, if she hesitated longer to comply with his demands. Mary herself is the best chronicler of these distracting scenes, although it must be observed, that she did not write of them till Bothwell had achieved his purpose; and consequently, making a virtue of necessity, she was anxious to place them in as favourable a point of view as possible. “Being at Dunbar,” she says, “we reproached him the honour he had to be so esteemed of us, the favour we had always shewn him, his ingratitude, with all other remonstrances which might serve to rid us out of his hands. Albeit we found his doing rude, yet were his answer and words but gentle, that he would honour and serve us, and would noways offend us, asking pardon of the boldness he had taken to convoy us to one of our own houses, whereunto he was driven by force, as well as constrained by love, the vehemency whereof had made him to set apart the reverence, which naturally, as our subject, he bore to us, as also for safety of his own life. And then began to make us a discourse of his whole life, how unfortunate he had been to find men his unfriends whom he had never offended; how their malice never ceased to assault him on all occasions, albeit unjustly; what calumnies they had spread of him, touching the odious violence perpetrated in the person of the

King our late husband; how unable he was to save himself from the conspiracies of his enemies, whom he could not know by reason that every man professed himself outwardly to be his friend; and yet he found such hidden malice that he could not find himself in surety, unless he were insured of our favour to endure without alteration; and on no other assurance of our favour could he rely, unless it would please us to do him that honour to take him to husband, protesting always that he would seek no other sovereignty but as formerly, to serve and obey us all the days of our life; joining thereunto all the honest language that could be used in such a case.”^[85] But these arguments were of no avail, and he was obliged to go a step farther. “When he saw us like to reject all his suit and offers,” says Mary, “in the end he shewed us how far he had proceeded with our whole nobility and principals of our estates, and what they had promised him under their handwriting. If we had cause then to be astonished, we leave to the judgment of the King and Queen, (of France), our uncle, and our other friends.” “Many things we resolved with ourself, but never could find an outgait (deliverance); and yet he gave us little space to meditate with ourself, ever pressing us with continual and importunate suit.” “As by a bravade in the beginning, he had won the first point, so ceased he never till, by persuasions and importunate suit, *accompanied not the less with force*, he has finally driven us to end the work begun, at such time, and in such form, as he thought might best serve his turn; wherein we cannot dissemble that he has used us otherwise than we would have wished, or yet have deserved at his hand; having more respect to content them, by whose consent granted to him beforehand, he thinks he has obtained his purpose, than regarding our contentation, or weighing what was convenient for us.”^[86]

Bothwell had kept Mary at Dunbar for nearly a week, when, in order to make it be believed that her residence there was voluntary, he ventured to call together a few of the Lords of the Privy Council on whom he could depend, and on the 29th of April there was one unimportant act of Council passed, concerning provisions for the Royal Household. From the influence he at that time possessed over the Scottish nobles, Bothwell might have held a Privy Council every day at Dunbar, and whether he allowed the Queen, *pro forma*, to be present or not, nobody would have objected to any thing he proposed.^[87] In the meantime, mutual actions of divorce were

raised by Bothwell and his wife, the Lady Jane Gordon, and being hurried through the courts, only a few days elapsed before they were obtained.[88] This is another circumstance which tends to prove, that Bothwell's seizure of Mary was not collusive; for had it been so, she would certainly never have allowed it to take place till these actions had been decided.

The die was now cast; Mary was in Bothwell's fangs, and her ruin was completed. On the 3d of May 1567, he thought it expedient to conduct her, closely guarded, from Dunbar to the Castle of Edinburgh. When they came near the town, he desired his followers to conceal their arms, lest it should be supposed that he was still keeping the Queen an unwilling prisoner. But the truth broke out in spite of his precautions; for at the foot of the Canongate, Mary was about to turn her horse towards Holyrood, upon which Bothwell himself seized the bridle, and conducted her up the High Street to the Castle, which was then in the keeping of Sir James Balfour, who was entirely subservient to Bothwell.[89] He was now resolved that his marriage should be consummated with as little delay as possible, having wrung a consent to it from the unfortunate Queen, by means of which, it is impossible to think without shuddering. In the state to which she was reduced, she had no alternative; she chose the least of two evils, in becoming, with an aching heart, the wife of her ravisher. Yet it would appear, that she did not herself take a single step to advance the matter. Three days after she arrived at the Castle, a person of the name of Thomas Hepburn, (probably a relation of the Hepburn who was engaged with Bothwell in Darnley's murder), was sent to Craig, Knox's colleague in the church of St Giles, to desire that he would proclaim the banns of matrimony betwixt the Queen and Bothwell. But the clergyman refused, because Hepburn brought no authority from the Queen.[90] Neither Mary nor Bothwell were so ignorant as to suppose that any minister would publish banns without receiving a written or personal order; and Hepburn would hardly have been sent on so idle an errand, had not the Queen been still reluctant to surrender herself to one whose person and manners she had never liked, and who was now so odious to her. But not a voice was raised, —not a sword was drawn to protect her,—and what resource was left? In a day or two, the Lord Justice Clerk conveyed a written mandate to Craig; but the preacher, had still some scruples: not thinking such a marriage agreeable to the laws either of God or man, he insisted upon seeing the Queen and

Bothwell, before he gave intimation of it. He was admitted to a meeting of the Privy Council, where Bothwell presided, but at which Mary does not seem to have been present. “In the Council,” says Craig, “I laid to his charge the law of adultery, the ordinance of the kirk, the law of ravishing, the suspicion of collusion betwixt him and his wife, the sudden divorcement and proclaiming within the space of four days, and lastly, the suspicion of the King’s death, which his marriage would confirm; but he answered nothing to my satisfaction.”—“Therefore, upon Sunday, after I had declared what they had done, and how they would proceed, whether we would or not, I took heaven and earth to witness, that I abhorred and detested that marriage, because it was odious and scandalous to the world; and *seeing the best part of the realm did approve it, either by flattery or by their silence*, I desired the faithful to pray earnestly, that God would turn it to the comfort of this realm.”[91]

It was not till after the banns had been twice proclaimed, that Bothwell allowed the Queen, on the 12th of May, to come forth from the Castle for the first time. He conducted her himself to the Court of Session, where he persuaded her to affix her signature to two deeds of great importance to him. The bond he had obtained from the nobles, recommending him as a husband to the Queen, has been already fully described; but when the Lords put their names to it, they were not aware that Bothwell would, in consequence, conceive himself entitled to have recourse to violence; and they now became alarmed lest the Queen should imagine that they were themselves implicated in an act which many of them, though they did not yet venture to express their sentiments, viewed with disgust. By way of precaution, therefore, they required Bothwell to obtain, from her Majesty, a written promise, that she would not at any time hereafter impute to them as a crime the consent they had given to the bond. Here is another argument against the idea of collusion between Mary and Bothwell; for in that case, so far from having any thing to fear, Bothwell’s friends would have known that nothing could have recommended them more to Mary, than the countenance they gave his marriage; and if, for the sake of appearances, she wished it to be believed that she was forced into it, she would certainly have carefully avoided recording her approval of the previous encouragement given to Bothwell by her nobility. Mary’s calumniators are thus placed between the horns of a dilemma. If she did not consent to the abduction,

then the marriage was not one of her choice; if she did, then why defeat the only object she had in view, which was to deceive her subjects, by publicly declaring that the Lords who signed the bond had done nothing to displease her? and why, moreover, should such a declaration have been thought necessary, either by Bothwell or his friends? The deed which Mary signed in the Court of Session, and which, taking this view of it, is worthy of every attention, was subjoined to a copy of the bond, and expressed in these words: “The Queen’s Majesty having seen and considered the bond above written, promises, on the word of a Princess, that she, nor her successors, shall never impute as crime or offence, to any of the persons subscribers thereof, their consent and subscription to the matter above written therein contained; nor that they nor their heirs shall never be called nor accused therefor; nor yet shall the said consent or subscribing be any derogation or spot to their honour, or they esteemed undutiful subjects for doing thereof, notwithstanding whatever thing can tend or be alleged in the contrary. In witness whereof, her Majesty has subscribed the same with her own hand.”[\[92\]](#)

On the same day, Mary granted a formal pardon to Bothwell, before all the Lords of Session and others, for his late conduct, in taking her to, and holding her in Dunbar, “contrary to her Majesty’s will and mind,” which is also very much against the supposition of collusion. It states,—“That albeit her Highness was commoved for the present time of her taking at the said Earl Bothwell; yet for his good behaviour, and thankful service in time past, and for more thankful service in time coming, her Highness stands content with the said Earl, and has forgiven and forgives him, and all others his accomplices, being with him in company at the time, all hatred conceived by her Majesty, for the taking and imprisoning of her, at the time foresaid.”[\[93\]](#)

All these preparations having been made, Mary at length became the wife of Bothwell, after he had been previously created Duke of Orkney. Even in the celebration of the marriage ceremony, the despotic power which Bothwell now exercised over the unhappy and passive Queen, is but too evident. She, who had never before failed in a single instance, to observe the rites of her own faith, however tolerant she was to those who professed a different persuasion, was now obliged, in opposition to all the prejudices of education, and all the principles of her religion, to submit to be married

according to the form of the Protestant church. Adam Bothwell, Bishop of Orkney, who, though holding an Episcopal order, had lately renounced that heresy, and joined the Reformers, presided on the occasion. The marriage took place, not at mass in the Queen's chapel, but in the Council Chamber, where, after a sermon had been delivered, the company separated, with little demonstrations of mirth.^[94] Melville, who came to Court the same evening, mentions some particulars, which show how the dissolute Bothwell chose to spend his time:—"When I came to the Court," he says, "I found my Lord Duke of Orkney, sitting at his supper. He said I had been a great stranger, desiring me to sit down and sup with him. The Earl of Huntly, the Justice-Clerk, and diverse others, were sitting at the table with him. I said that I had already supped. Then he called for a cup of wine, and drank to me, that I might pledge him like a Dutchman. He made me drink it out to grow fatter, 'for,' said he, 'the zeal of the commonweal has eaten ye up, and made ye lean.' I answered, that every little member should serve to some use; but that the care of the commonweal appertained most to him, and the rest of the nobility, who should be as fathers to it. Then he said, I well knew he would find a pin for every bore. Then he discoursed of gentlewomen, speaking such filthy language, that I left him, and passed up to the Queen, who was very glad at my coming."^[95]

Such was the man who was now inseparably joined to Mary, and who, by fraud and villany, had made himself, for the time, so absolute in Scotland, that her possession of the throne of her ancestors, nay, her very life, seems to have depended upon his will and pleasure.

CHAPTER VI.

THE REBELLION OF THE NOBLES, THE MEETING AT CARBERRY HILL, AND ITS CONSEQUENCES.

Mary's first step, after her marriage, was to send, at her husband's desire, ambassadors into England and France, to explain to these Courts the motives by which she had been actuated. The instructions given to these ambassadors, as Buchanan has justly remarked, and after him the French historians De Thou and Le Clerc, were drawn up with much art. They came, no doubt, from the pen of Bothwell's friend, Secretary Maitland; and they recapitulate so forcibly all the Earl's services, both to Mary and her mother, enlarge so successfully upon his influence in Scotland, his favour with the nobility, and their anxiety that he should become King; and finally, colour so dexterously his recent conduct, that after their perusal, one is almost induced to believe that the Queen could not have chosen a better husband in all Christendom. Of course, Mary would herself see them before they were despatched, as they are written in her name; and the consent she must have given to the attempt made in them to screen her husband from blame, confirms the belief that she did not plan, along with him, the scheme of the abduction; for she would, in that case, have represented, in a much stronger light, the consequences necessarily arising from it. If she had consented to such a scheme, it must have been with the view of making it be believed that her marriage with a suspected murderer (suspected at least by many, though probably not by Mary herself), was a matter of necessity; and she could never have been so inconsistent as labour to convince her foreign friends, that though violence had been used in the first instance, she had ultimately seen the propriety of voluntarily becoming Bothwell's wife. But it was her sincere and laudable desire, now that she was married, to shelter her husband as much as possible; and, conscious of her own innocence, she did not anticipate that the measures she took in his behalf might be turned against herself. It must indeed be distinctly remembered, in tracing the

lamentable events which followed this marriage, that though force and fraud were not perhaps employed on the very day of its consummation, yet that they had previously done their utmost, and that it was not the Queen who surrendered herself to Bothwell, but Bothwell who forced himself upon the Queen.

Though Mary attempted to conceal her misery from the prying eye of the world, they who had an opportunity of being near her person easily saw that her peace of mind was wrecked. So little love existed either on the one side or the other, that even the days usually set aside for nuptial rejoicings, were marked only by suspicions and wranglings. They remained together at Holyrood from the 15th of May to the 7th of June; but during the whole of that time, Bothwell was so alarmed, lest she should yet break from him, and assert her independence, that he kept her “environed with a continual guard of two hundred harquebuziers, as well day as night, wherever she went;”—and whoever wished an audience with her, “it behoved him, before he could come to her presence, to go through the ranks of harquebuziers, under the mercy of a notorious tyrant,—a new example, wherewith this nation had never been acquainted; and yet few or none were admitted to her speech, for his suspicious heart, brought in fear by the testimony of an evil conscience, would not suffer her subjects to have access to her Majesty as they were wont to do.”^[96] The letter from which these passages are quoted, deserves, at this period of Mary’s history, every attention, for it was written, scarcely two months after her marriage, by the Lords who had associated themselves against Bothwell, but who had not yet discovered the necessity of implicating Mary in the guilt with which they charged him. The declarations therefore, they then made, contrasted with those which ambition and selfishness afterwards prompted, prove their sincerity in the first instance, and their wickedness in the last. “They firmly believe,” they say, “that whether they had risen up against her husband or not, *the Queen would not have lived with him half a year to an end*, as may be conjectured by the short time they lived together, and *the maintaining of his other wife at home at his house*.” This last fact is no less singular than it is important. It seems distinctly to imply, that though Bothwell was divorced from his first wife, and that though her brother, the Earl of Huntly, had given his consent to the divorce, yet that in reality, the dissolution of the marriage was, on the part of Bothwell, merely *pro forma*, to enable him to prosecute

his scheme of ambition, that his attachment to the Lady Jane Gordon continued unabated, and that if Mary had ever loved him, she must have loved him, knowing that he did not return her affection. No wonder that under such an accumulation of miseries—the suspicion with which she was regarded by foreign courts,—the ready hatred of many of her more bigoted Presbyterian subjects,—the dependence, almost amounting to a state of bondage, in which she was kept,—and the brutal treatment she experienced from her worthless husband,—no wonder that Mary was heard, in moments almost of distraction, to express an intention of committing suicide.[97] Her heart was broken,—her prospects were blighted,—her honour, which was dearer to her than life, was doubted. She was a Queen without the command of her subjects,—a wife without the love of her husband. The humblest peasant in Scotland was more to be envied than the last daughter of the royal line.

But Bothwell was not permitted to triumph long in the success of his villany. Many, even of his own friends, now began to think that he had carried through his measures with too high a hand. They were willing that he should have won Mary by fair means, but not by foul; and when they saw that he had not only imperatively thrust himself upon her as a husband, but was taking rapid strides towards making himself absolute in Scotland, they trembled for the freedom of the Constitution, and the safety of the Commonwealth. With an imprudence equal to his audacity, Bothwell was at no pains either to disguise his wishes, or to conciliate the good will of those whose assistance might have been valuable. With the restless uneasiness of one conscious of guilt, and dreading its probable consequences, he scrupled not to avow his anxiety to get into his possession the person of the young Prince, and had even “made a vaunt already among his familiars, that if he could get him once into his own hands, he should warrant him from revenging his father’s death.”[98] But the Prince was lodged in the Castle of Stirling, in the custody of the Earl of Mar, a nobleman of approved fidelity and honour, who positively refused to deliver him up. It was not easy, however, to divert Bothwell from his object; and though the Queen did not countenance it, being, on the contrary, rather desirous that her son should remain with Mar, yet he ceased not to cajole and threaten, by turns, until all Scotland was roused into suspicion and anger.[99] A number of the nobility met at Stirling, and entered into an association to defend the person of the

Prince; and they soon saw, or thought they saw, the necessity of taking active measures to that effect. On the 28th of May, proclamations were issued at Edinburgh, intimating the intention of the Queen and Bothwell to proceed, with a strong force, to the Borders, to suppress some disturbances there, and requiring all loyal subjects to assemble in arms at Melrose. It was immediately rumoured that this expedition was only a pretence, and that Bothwell's real design was to march to Stirling, there to make himself master of the Castle and its inhabitants. In a second proclamation, made for the purpose, this suspicion was characterized as most unfounded; but whether just or not, it had taken a strong hold of the public mind, and was not easily removed. The Prince's Lords, as they were called, the chief of whom were Argyle, Athol, Morton, Mar, and Glencairn, busied themselves in collecting their followers, as if in compliance with the requisition to assemble at Melrose. On the 6th or 7th of June 1567, Bothwell took the Queen with him from the Palace of Holyrood to the Castle of Borthwick, situated about eight miles to the south of Edinburgh, having discovered, only a day or two before, that Edinburgh was no longer a safe residence for him. Sir James Balfour, the Governor of the Castle, seeing so strong a party start up against his former patron, had allowed himself to be tampered with, and Bothwell now suspected that he held the Castle not for him, but for the Lords at Stirling. He feared, that Balfour might be persuaded by them to sally down to Holyrood with a party of troops, and carry him off a prisoner to the Castle, and therefore thought it wise to withdraw to a safer distance.

It was not long before the nobility at Stirling heard of Bothwell's retreat to Borthwick, and they resolved to take advantage of it. They advanced unexpectedly from Stirling, and, marching past Edinburgh, suddenly invested the Castle of Borthwick. It was with great difficulty that Bothwell and the Queen escaped to Dunbar, and the Lords then fell back upon Edinburgh. Huntly commanded there for Bothwell; but though, at his request, the magistrates shut the gates of the city, the opposite party found little difficulty in forcibly effecting an entrance. Huntly, and the rest of Bothwell's friends, still trusting to Sir James Balfour's fidelity, retreated into the Castle. The opposite faction, with Morton at its head, immediately issued proclamations, in which they demanded the assistance of all loyal subjects, on the grounds, "that the Queen's Majesty, being detained in captivity, was neither able to govern her realm, nor try the murder of her

husband, and that they had assembled to deliver her and preserve the Prince.”^[100] These proclamations prove, that no feelings of hostility were as yet entertained or expressed against Mary. One of them, issued at Edinburgh on the 12th of June, commences thus:—“The Lords of Secret Council and Nobility, understanding that James, Earl of Bothwell, put violent hands on our Sovereign Lady’s most noble person upon the 24th day of April last, and thereafter warded (imprisoned) her Highness in the Castle of Dunbar, which he had in keeping, and, before a long space thereafter, conveyed her Majesty, environed with men of war, and such friends and kinsmen of his as would do for him, ever into such places where he had most dominion and power, her Grace being destitute of all counsel and servants, during which time the said Earl seduced, by unlawful ways, our said Sovereign to a dishonest marriage with himself, which, from the beginning, is null and of no effect.” And the proclamation concludes with announcing their determination, “to deliver the Queen’s Majesty’s most noble person forth of captivity and prison,” and to bring Bothwell and his accomplices to trial, both for the murder of Darnley, and for “the ravishing and detaining of the Queen’s Majesty’s person,” as well as to prevent the enterprise intended against the Prince.^[101] Can any thing establish an historical fact more explicitly than such evidence?

Bothwell was, in the meantime, busily collecting his friends at Dunbar. In a few days, upwards of 2000 men had resorted to him, more because the Queen was with him, than from any love they bore himself; and, as he was unwilling that the hostile Lords should be allowed time to collect their strength, he marched, with this force, from Dunbar on the 14th of June. When the news of his approach reached Edinburgh, the Lords immediately advanced to meet him, though with a somewhat inferior strength. The two armies did not come in sight of each other till the morning of the 15th, when Bothwell’s troops were discovered upon Carberry Hill, a rising ground of some extent between Musselburgh and Dalkeith. The Lords, who had spent the night at Musselburgh, made a circuit towards Dalkeith, that they also might get on the high ground, and took up a position to the west of Bothwell. It was here discovered that neither party was very anxious to commence an engagement; and the French ambassador, Le Croc, spent several hours in riding between both armies, and endeavouring to bring them to terms of mutual accommodation, being authorized on the part of the

Queen, to promise that the present insurrection would be willingly forgiven, if the Lords would lay down their arms and disband their followers. But the Earl of Morton answered, “that they had taken up arms *not against the Queen*, but against the murderer of the King, whom, if she would deliver to be punished, or at least put from her company, she should find a continuation of dutiful obedience from them and all other good subjects.”^[102] Le Croc, despairing of effecting his purpose, unwillingly quitted the field, and returned to Edinburgh. But both parties were still desirous to temporize,—Bothwell, because he hourly expected reinforcements from Lord Herries and others,—and the Lords, because they also looked for an accession of strength, and because the day was hot, and the sun shining strong in their faces.^[103] To draw out the time, Bothwell made a bravado of offering to end the quarrel, by engaging in single combat any Lord of equal rank who would encounter him. Kircaldy of Grange, one of the best soldiers of the day, and Murray of Tullibardin, both expressed their willingness to accept the challenge, but were rejected on the score of inferiority in rank. Lord Lindsay then offered himself, and him Bothwell had no right to refuse. It was expected, therefore, that the whole quarrel would be referred to them, the Queen herself, though at the head of an army superior to that of her opponents, having consented, that a husband to whom she had so short a while been married, and for whom the veracious Buchanan would have us believe she entertained so extravagant an affection, should thus unnecessarily risk his life. Twenty gentlemen on either side were to attend, and the ground was about to be marked out, when the Lords changed their minds, and declared they did not choose that Lord Lindsay should take upon himself the whole burden of a quarrel in which they all felt equally interested.^[104]

In these negotiations the day passed over. It was now between seven and eight in the evening, and a battle must have ensued, either that night or next morning, had not an unexpected step been taken by the Queen. Without betraying Bothwell, she formed a resolution to rid herself from the bondage in which he kept her. She sent to desire that Kircaldy of Grange should come to speak with her, and she intimated to him her willingness to part from Bothwell as was demanded, if Morton and the other Lords would undertake to conduct her safely into Edinburgh, and there return to their allegiance. This overture, on being reported by Grange, was at once

accepted, provided Mary agreed to dismiss Bothwell on the field. It may be easily conceived that to Bothwell himself such an arrangement was not particularly agreeable, and could never have entered the imagination, much less have been the deliberate proposal, of a loving and obedient wife. Historians, we think, have not sufficiently insisted on the strong presumption in Mary's favour, afforded by her conduct at Carberry Hill. It is true, that there might have been an understanding between her and Bothwell, that as soon as she was re-instated in her power, she would recall him to a share of her throne and bed. But even supposing that, notwithstanding the alleged violence of her love, she had been willing to consent to a temporary separation, both she and Bothwell knew the spirit of the men they had to deal with too well, to trust to the chance of outwitting them, after yielding to their demands. Mary must have been aware, that if she parted with Bothwell at all, she in all probability parted with him for ever. Had she truly loved him, she would rather have braved all risks (as she did with Darnley when Murray rebelled) than have abandoned him just at the crisis of his fortune. But she had at no period felt more than the commonest friendship for Bothwell; and since she had been seized by him at the Bridge of Almond, she had absolutely hated him. Melville, accordingly, expresses himself regarding this transaction in these terms. "Albeit her Majesty was at Carberry Hill, I cannot name it to be her army; for many of them that were with her, were of opinion that she had intelligence with the Lords; chiefly such as understood of the Earl Bothwell's mishandling of her, and many indignities that he had both said and done unto her since their marriage. He was so beastly and suspicious, that he suffered her not to pass a day in patience, or without giving her cause to shed abundance of salt tears. Thus, part of his own company detested him; and the other part believed that her Majesty would fain have been quit of him, but thought shame to be the doer thereof directly herself."^[105] Melville adds, that so determined was Bothwell not to leave the field if he could avoid it, that he ordered a soldier to shoot Grange when he overheard the arrangement which he and the Queen were making. It was "not without great difficulty," says another cotemporary writer, that Mary prevailed upon Bothwell to mount his horse, and ride away with a few followers back to Dunbar.^[106] There is no wonder;—but that a wife of one month's standing, who is said for his sake to have murdered her former husband, should permit, nay beseech him, thus to sneak off a field he might

have won, had she allowed him to fight, is indeed strange and unaccountable. When Bothwell left Carberry Hill, he turned his back upon a Queen and a throne;—he left hope behind, and must have seen only ruin before.

As soon as her husband had departed, Mary desired Grange to lead her to the Lords. Morton and the rest came forward to meet her, and received her with all due respect. The Queen was on horseback, and Grange himself walked at her bridle. On riding up to the associated Nobles, she said to them,—“My Lords, I am come to you, not out of any fear I had of my life, nor yet doubting of the victory, if matters had gone to the worst; but I abhor the shedding of Christian blood, especially of those that are my own subjects; and therefore I yield to you, and will be ruled hereafter by your counsels, trusting you will respect me as your born Princess and Queen.”^[107] Alas! Mary had not calculated either on the perfidy of the men to whom she had surrendered herself, or on the vulgar virulence of their hired retainers, who, having been disappointed in their hopes of a battle, thought they might take their revenge, by insulting the person of a Roman Catholic Sovereign, now for the first time standing before them somewhat in the light of a suitor and a prisoner. They led her into Edinburgh between eight and nine in the evening; and the citizens, hearing of the turn which affairs had taken, came out in great crowds, and lined the way as they passed. The envy and hatred of the more bigoted part of the rabble did not fail to exhibit itself. Royalty in misfortune, like a statue taken from its pedestal, is often liable to the rudest handling, simply because it has fallen from a height which previously kept it at a distance from the multitude. There had long rancoured in the bosoms of the more zealous and less honest Presbyterians, an ill-concealed jealousy of Mary’s superiority; and in the mob which now gathered round her, the turbulent and unprincipled led the way, as they commonly do in a mob, to insult and outrage. So far from being allowed to return to Edinburgh as a Queen, and to take possession of her wonted state, Mary was forced to ride as a captive in a triumphal show. The hatred which was borne towards Bothwell was transferred to her, and the Lords, at the head of whom was the crafty Morton, forgetting the proclamation they had made only two days before, announcing their intention to rescue the Queen from the bondage in which she was held, only took her from one tyrant to retain her in the hands of many. As the

cavalcade proceeded, a banner was displayed in front, on which was represented the King lying dead at the foot of a tree, and the young Prince upon his knees near him, exclaiming—"Judge and revenge my cause, O Lord!" The people shouted with savage exultation, as this ensign was carried past, and turning their eyes on the Queen, who was dissolved in tears, they scrupled not, by the coarse malice of their expressions, to add to the agony of her feelings.

When Mary arrived in Edinburgh, and found she was not to be taken to Holyrood House, (from which, indeed, the Lords had previously carried off much of her valuable furniture), she gave up all for lost, and in her despair called upon all who came near her to rescue her from the hands of traitors. But an excitement had just been given to the public mind, which it required some hours of sober reflection to allay. No one interfering in her behalf, she was taken to the Provost's house in the High Street, where she was lodged for the night. The crowd gradually dispersed, and the Lords were left to themselves to arrange their future plan of procedure. Kircaldy of Grange, was the only one among them who was disposed to act honourably. He reminded them that he had been commissioned to assure the Queen of their loyal services, provided she parted from Bothwell, and came over to them,—and as she had fulfilled her part of the agreement, he did not think it right that they should fail in theirs. Influenced by these representations, a division might thus have taken place among themselves, had not Morton fallen on an expedient to silence the scruples of Grange. He produced a letter, which he alleged Mary had just written to Bothwell, and which he had intercepted, in which she was made to declare, that she was resolved never to abandon him, although for a time she might be obliged to yield to circumstances. Kircaldy, possessing all the blunt sincerity of a soldier, and being little given to suspicion, was startled by this letter, and left Morton, in consequence, to take his own way. That the pretended epistle was in truth a mere hasty forgery, is proved to demonstration, by the fact that, important as such a document would have been, it was never afterwards alluded to by the Lords, nor produced in evidence along with the other papers they so laboriously collected to lay before Elizabeth's Commissioners. From this specimen of their honesty, we may guess what reliance is to be placed on the authenticity of writings, subsequently scraped together by men who, on the spur of the moment, executed a forgery so clumsily, that they were

unable to avail themselves of it on any future occasion. But Morton's intriguing spirit was again busily at work; and having the Queen's person once more in his possession, and being apparently supported by the people, he was determined on taking a step which would secure him Elizabeth's lasting gratitude, and might ultimately raise him to the regency of Scotland. He, therefore, veered suddenly round; and though he had asserted, on the 12th of June, that Mary was kept in unwilling bondage by Bothwell, he saw it prudent to maintain on the 15th, that there was no man in Scotland to whom she was so passionately attached. In support of this assertion, the letter became a necessary fabrication; and Morton well knew that a political falsehood, though credited only for a day, may be made a useful engine in the hands of a skilful workman.

It would appear, however, that a night's reflection operated a considerable change in the minds of the ever-fluctuating populace. In the course of the 16th, they collected before the Provost's house; and the Queen having come several times to the window, and represented to them strongly the iniquity of the constraint in which she was kept by her own nobles who had betrayed her, a general feeling began to manifest itself in her favour. Morton and his colleagues no sooner perceived this change, than they waited on the Queen, and, with the most consummate hypocrisy, protested that she had quite mistaken their intentions, and that, to convince her of their sincerity, they should immediately replace her in the palace of Holyrood. Mary listened to them, and was again deceived. In the evening, as if to fulfil their promise, they conducted her to Holyrood, Morton walking respectfully on one side of her horse, and Athol on the other. But when she reached the Palace, she was as strictly watched as ever; and about midnight, to her terror and surprise, they suddenly came to her, and forcing her to disguise herself in an ordinary riding-habit, mounted her on horseback, and rode off, without informing her whither she was going. She was escorted by the Lords Ruthven and Lindsay, and, after riding all night, arrived at the castle of Loch-Leven early in the morning. This castle was a place of considerable strength, standing on a small island in the centre of the lake, which is ten or twelve miles in circumference. It was possessed by Lady Douglas, the Lady of Loch-Leven, as she was commonly called, the widow of Sir Robert Douglas, and mother to the Earl of Murray, by James V. "It is needless to observe," says Keith, "how proper a place this was for

the design of the rebels, the house being surrounded with water on all sides, for the space, at shortest, of half a mile; and the proprietors of it being so nearly related to some principal persons among them, in whom, therefore, they could the more securely confide. And indeed it has been said, that the Lady Loch-Leven answered the expectation of the Lords to the full, having basely insulted the captive Queen's misfortune, and bragged, besides, that she herself was King James V.'s lawful wife, and her son, the Earl of Murray, his legitimate issue, and true heir of the crown. The Lady Loch-Leven was not only mother to the Earl of Murray, but likewise to the Lord Lindsay's lady, by her husband Robert Douglas of Loch-Leven. The family of Loch-Leven was moreover heirs-apparent to that of Morton; and to that family they did actually succeed some time after. The Lord Ruthven also had to wife a natural daughter of the Earl of Angus;—all which considerations centering together in one, made the house of Loch-Leven, humanly speaking, a most sure and close prison for the Royal captive.”[\[108\]](#)

To give an air of something like justice to a measure so violent and unexpected, Morton and his friends endeavoured to sanction it by what they were pleased to term an Act of Privy Council. They experienced, however, no little difficulty in determining on the proper mode of expressing this act. They recollected the proclamations in the Queen's favour to which they had so recently put their names; they recollected also the solemn engagement into which they had entered at Carberry Hill; and though *might* was with them of greater value than *right*, they did not choose, if they could avoid it, to stand convicted of treason in the face of the whole country. They tried, therefore, to excuse the step they had taken, by asserting, that though they still believed her Majesty had unwillingly married Bothwell, and had been kept in bondage by him, and that, though she had quitted his company for theirs at Carberry, yet that after they had “opened and declared unto her Highness her own estate and condition, and the miserable estate of this realm, with the danger that her dearest son the Prince stood in, requiring that she would suffer and command the murder and authors thereof to be punished, they found in her Majesty such untowardness and repugnance thereto, that rather she appeared to fortify and maintain the said Earl Bothwell and his accomplices in the said wicked crimes.” The truth of this statement is directly contradicted by the transactions of the 15th of June, when Mary, though at the head of an army, had agreed to do every thing the

Lords desired, and when, with a degree of facility only to be accounted for on the supposition that she was anxious to escape from his company, she had separated herself finally from Bothwell in the face of the whole world. So far from charging her with “fortifying” and “maintaining” him in his crimes, these Lords themselves declared, on the 11th, that they had assembled “to deliver their sovereign’s most noble person out of bondage and captivity;” and, a month afterwards, they told the English ambassador they “firmly believed the Queen would not have lived with Bothwell half a year to an end.”[\[109\]](#)

In addition to this act of Privy Council, which was no doubt the production of Morton, and is signed by him and Athol, and six other noblemen of less note, a bond of association was drawn up the same day, in which an explanation was given at greater length, of the system on which the Lords were about to proceed. It is a remarkable feature of this bond, that, in so far as Mary is concerned, it very materially contradicts the act of Council. Instead of containing any accusation against her, it represents her throughout as having been the victim of force and fraud. It commences by stating the conviction of the subscribers, that Bothwell was the murderer of Darnley, and that, had he himself not taken means to prevent a fair trial, he would have been convicted of the crime. It goes on to assert, that, adding wickedness to wickedness, the Earl had treasonably, and without any reverence for his native Prince, carried her prisoner to his castle at Dunbar, and had afterwards pretended unlawfully to marry her; which being accomplished, his cruel and ambitious nature immediately showed itself, “no nobleman daring to resort to her Majesty to speak with her without suspicion, unless in his presence and hearing, and her chamber-doors being continually watched by armed men.” It is therefore maintained that their interference was necessary, both on account of the “shameful thralldom” in which the Queen was kept, and the great danger of the young Prince, her only son. They had taken up arms, they say, against Bothwell, and to deliver their sovereign; and though they had already chased him from his unlawful authority, they considered themselves obliged to continue in arms till “the authors of the murder and ravishing were condignly punished, the pretended marriage dissolved, their sovereign relieved of the thralldom, bondage, and ignominy, which she had sustained, and still underlies by the said Earl’s

fault, the person of the innocent prince placed in safety, and, finally, justice restored and uprightly administered to all the subjects of the realm.”[\[110\]](#)

This, then, was all the length to which Morton and the other Lords, as yet ventured. They had sent Mary to Loch-Leven, merely to keep her at a safe distance from Bothwell; and as soon as they had seized his person, or driven him from the kingdom, it was of course implied that they would restore their sovereign to her throne. They did not hint, in the most distant manner, that she was in the least implicated in the guilt of her husband’s death; and they expressly declared that, for every thing which had taken place since, Bothwell alone was to blame. Judging by their own words, they entertained as much respect for the Queen as ever; and the impression they gave to the country was, that they intended she should remain at Loch-Leven only for a short time, and that so far from meaning to punish one whom they accused of no crime, by forcing from her an abdication of her crown, and condemning her to perpetual imprisonment, they would soon be found rallying round her, and conducting her back to her capital in triumph. These may have been the hopes entertained by some; but they forgot that Morton, who was at the head of the new faction, had assassinated Rizzio, and countenanced the murder of Darnley;—and that Murray, though at present in France, had left the country only till new disturbances should afford new prospects for his inordinate ambition.

CHAPTER VII.

MARY AT LOCHLEVEN, HER ABDICATION, AND MURRAY'S REGENCY.

Scotland was now in the most unfortunate condition in which a country could possibly be. Like a ship without a pilot, it was left at the mercy of a hundred contrary opinions; and it was not long before there sprung out of these two opposing currents or distinct parties, known by the name of the Queen's and the Prince's. Morton and his friends calling themselves the Prince's Lords, continued at Edinburgh; whilst the Queen's nobles assembled at Hamilton Palace in very considerable force, having among them, besides the Hamiltons, Huntly, (who had been allowed by Sir James Balfour to escape from the Castle of Edinburgh, in which he had taken shelter some time before), Argyle, (who, though he had at first joined with Morton and Mar at Stirling, when they announced their determination to keep the Prince out of Bothwell's hands, never intended taking up arms against the Queen), Rothes, Caithness, Crawford, Boyd, Herries, Livingston, Seaton, Ogilvie, and others.^[111] Morton laboured to effect a coalition with these Lords; but though he employed the mediation of the General Assembly, they would not consent to any proposals he made them. Buchanan himself is forced to allow, that affairs took a very different turn from what was expected. "For popular envy being abated, partly by time, and partly by the consideration of the uncertainty of human affairs, commiseration succeeded; nay, some of the nobility did then no less bewail the Queen's calamity than they had before execrated her cruelty."^[112] The truth is, that Mary's friends were at this time much more numerous than her enemies; but unfortunately they were not sufficiently unanimous in their councils, to be able to take any decisive steps in her behalf.

Morton earnestly laboured to increase the popularity of his faction by every means in his power. To please the multitude, he apprehended several persons, whom he accused of being implicated in the murder of Darnley; and though he probably knew them to be innocent, they were all

condemned and executed, with the exception of Sebastian, the Queen's servant, who was seized with the view of casting suspicion on Mary herself, but who contrived to escape.^[113] Thus, they who blamed Mary for being too remiss in seeking out and punishing the murderers, were able to console themselves with the reflection, that, under the new order of things, persons were iniquitously executed for the sake of appearances, by those who had themselves been Bothwell's accomplices. Against Bothwell himself, Morton, for his own sake, proceeded with more caution. It was not till the 26th of June, that letters were addressed to the keeper of the Castle at Dunbar, ordering him to deliver up his charge, because he had received and protected Bothwell; and, on the same day, a proclamation was issued, offering the moderate reward of a thousand crowns to any one who should apprehend the Earl.^[114] It is singular that these Lords, who were so fully convinced of his criminality, not only allowed him to depart unmolested from Carberry Hill, but took no steps, for ten days afterwards, towards securing his person.

The precise period at which Bothwell left Dunbar, the efforts he made to regain his authority in Scotland, and in general, most of the particulars of his subsequent fate, are not accurately known. He entered, no doubt, into correspondence with the noblemen assembled at Hamilton; but probably received from them little encouragement, as it was the Queen's cause, not his, in which they were interested. He then retired to the North, where he possessed estates as Duke of Orkney, and some influence with his kinsman, the Bishop of Murray. As soon as his flight thither was known, Grange and Tullibardin were sent in pursuit of him, with several vessels which were fitted out on purpose. Hearing of their approach, Bothwell fled towards the Orkney and Shetland Islands, and, being closely followed, was there very nearly captured. His pursuers were at one time within gun-shot of his ship, and it must have been taken, had not the vessels of Grange and Tullibardin, in the very heat of the chase, both struck upon a sunken rock, which Bothwell, either because his pilot was better acquainted with the seas, or because his ship was lighter, avoided. They were, however, fortunate enough to seize some of his accomplices, who were brought to Edinburgh, and having been tried and condemned, made the confessions which have been already referred to, and by which the particulars of the murder became known. Bothwell himself proceeded to Denmark, imagining that the King

of that country, Frederick II., who was distantly related to Mary, through her great-grandmother Margaret of Denmark, the spouse of James III., might be disposed to interest himself in his behalf. But finding that the circumstances under which he had left Scotland, would prevent him from appearing at the Danish Court with so much *eclat* as he desired, he ventured on enriching his treasury, by making a seizure of one or two merchantmen, trading in the North Seas. These practices were discovered; a superior force was fitted out against him; and he was carried into a Danish port, not as an exiled prince, but as a captive pirate. He was there thrown into prison without ceremony; and though he lost no time in letting his name and rank be known to the government, it does not appear that the discovery operated greatly in his favour. He was retained in durance for many years, the King of Denmark neither choosing to surrender him to Elizabeth or his enemies in Scotland, nor thinking it right to offend them by restoring him to liberty, so long at least as Mary herself remained a prisoner. Broken down by misfortune, and perhaps assailed by remorse, Bothwell is believed to have been in a state of mental derangement for several years before his death. There can be no doubt that he died miserably; and he seems, even in this life, to have paid the penalty of his crimes, if any earthly penalty could atone for the misery he brought on the innocent victim of his lawless ambition and systematic villany. His character may be summed up in the words of our great poet:—

“Tetchy and wayward was thy infancy;
Thy schooldays frightful, desp’rate, wild, and furious;
Thy prime of manhood daring, bold, and venturous;
Thy age confirmed, proud, subtle, sly, and bloody.”^[115]

In the meantime, foreign courts were not inattentive to the state of affairs in Scotland. An ambassador arrived from Mary’s friends in France; but finding, to his astonishment, that she was imprisoned, and that some of the nobility had usurped the government, he refused to acknowledge their authority, and immediately left the country. Elizabeth’s messenger, who came about the same time, was less scrupulous; and, indeed, few things could have given that Queen greater satisfaction, than the turn which Scottish affairs had recently taken. In the letters she sent by her ambassador Sir Nicholas Throckmorton, are discovered all that duplicity, affected sincerity, and real heartlessness, which so constantly distinguish the despatches of Cecil and his mistress. After taking it for granted, in direct

opposition to the declarations of the rebel Lords themselves, that Mary had given her consent to the hasty marriage with Bothwell, and that she was consequently implicated in all his guilt, Elizabeth proceeds with no little contradiction, to assure her good sister that she considers her imprisonment entirely unjustifiable. But the insincerity of her desire, that the Queen of Scots should recover her liberty, is evinced by the very idle conditions she suggests should first be imposed upon her. These are, that the murderers of Darnley should be immediately prosecuted and punished, and that the young Prince should be preserved free from all danger;—just as if Mary could punish murderers before they were discovered or taken, unless, indeed, she chose to follow the example of her Lords, and condemn the innocent; and as if she had lost the natural affection of a mother, and would have delivered her only son to be butchered, as his father had been. In short, Morton and his colleagues had no difficulty in perceiving, that though Elizabeth thought it necessary, for the sake of appearances, to pretend to be displeased with them, yet that they had, in truth, never stood higher in her good graces. They well knew, as they had observed in the case of Murray, and experienced in their own, that Elizabeth seldom said what she meant, or meant what she said.

But to put her conduct on the present occasion in a still clearer light, the reader will be somewhat surprised to learn, that Throckmorton brought with him into Scotland two distinct sets of “Instructions,” both bearing the same date (June 30th 1567), the one of which was to be shown to Mary, and the other to the rebel Lords. In the former, she expresses the greatest indignation at the Queen’s imprisonment, and threatens vengeance on all her enemies. In the latter, the Lords are spoken of in a much more confidential and friendly manner. They are told, that Elizabeth thought it requisite to send an ambassador; but that he came to solicit nothing that was not for the general weal of the realm; and that, if she were allowed to mediate between their Queen and them, “they should have no just cause to mislike her doings,” because she would consent to nothing that was not “for their security hereafter, and for quietness to the realm.” Nay, she even desired Throckmorton to assure them, that she “meant not to allow of such faults as she hears *by report* are imputed to the Queen of Scots, but had given him strictly in charge to lay before, and to *reprove her*, in her name, for the same.”—“And in the end also,” she adds, “we mean not with any

such partiality to deal for her, but that her princely state being preserved, she should conform herself to all reasonable devices that may bring a good accord betwixt her and her nobility and people.” Thus she was to take upon herself to reprove Mary for faults which “*she heard by report were imputed to her;*” and to insist, though she herself was of opinion that she had been unlawfully imprisoned, that she should enter into negotiations with her rebel subjects, which would compromise her dignity, and even impugn her character.^[116]

When Throckmorton came into Scotland, in July 1567, although he was allowed no more access to the Queen than had been granted to the French ambassador, yet, as his instructions authorized him to treat with the Lords of Secret Council, he of course remained. From them he received an explanation of their late proceedings, containing some of the most glaring contradictions ever exhibited in a State paper. They do not throw out the most distant suspicion of the Queen being implicated in Bothwell’s guilt; on the contrary, they continue to express their conviction that she became his wife very unwillingly, and only after force had been used; but they allege, as their reason for imprisoning her, the change which took place in her mind an hour or two after she parted with her husband at Carberry Hill. They state, that, immediately after, Bothwell, “caring little or nothing for her Majesty” left her to save himself, and that after she, caring as little for him, had parted company from him, and voluntarily come with them to Edinburgh, they all at once, and most unexpectedly, “found her passion so prevail in maintenance of him and his cause, that she would not with patience hear speak any thing to his reproof, or suffer his doings to be called in question; but, on the contrary, offered to give over the realm and all, so that she might be suffered to enjoy him, with many threatenings to be revenged on every man who had dealt in the matter.”^[117] This was surely a very sudden and inexplicable change of mind; for, in the very same letter, with an inconsistency which might almost have startled themselves, these veracious Lords declare, that “the Queen, their Sovereign, had been led captive, and, by fear, force, and other extraordinary and more unlawful means, compelled to become bed-fellow to another wife’s husband;” that even though they had not interfered, “she would not have lived with him half a year to an end;” and that at Carberry Hill, a separation voluntary on both sides took place. Was it, therefore, for a moment to be credited, that

during the short interval of a few hours, which elapsed between this separation and Mary's imprisonment in Loch-Leven, she could either have so entirely altered her sentiments regarding Bothwell, or, if they had in truth never been unfavourable, so foolishly and unnecessarily betrayed them, as to convince her nobility, that to secure their own safety, and force her to live apart from him, no plan would be of any avail, but that of shutting her up in a strong and remote castle? And even if this expedient appeared advisable at the moment, did they think that, if Mary was now restored to liberty, she would set sail for Denmark, and join Bothwell in his prison there? No; they did not go so far; for, in conclusion, they assured Throckmorton, that, "knowing the great wisdom wherewith God hath endowed her," they anticipated that within a short time her mind would be settled, and that as soon as "by a just trial they had made the truth appear, she would conform herself to their doings."^[118]

"By the above answer," says Keith, "I make no doubt but my readers will be ready enough to prognosticate what shall be the upshot of Sir Nicholas Throckmorton's negotiations with the rebels in favour of our Queen." There can be no doubt that the same motives (whatever these might be) which led to Mary's imprisonment, would have equal force in keeping her there. The whole history of this conspiracy may be explained in a few words. When Morton and the other Lords took up arms at Stirling, they were, to a certain extent, sincere; they believed (especially those of them who had been his accomplices) that Bothwell was the murderer of Darnley, and that he was anxiously endeavouring to get the young Prince into his power. This they determined to prevent, and having won over Sir James Balfour, the governor of the Castle, they advanced to Edinburgh. Bothwell retired to Dunbar, taking the Queen along with him. But the Lords knew that Mary entertained no affection for her husband, and they therefore hoped to create a division between them. They accomplished this object at Carberry Hill, and reconducted the Queen to Edinburgh. There, though not sorry that she had parted from her husband, Mary did not express any high approbation of the conduct of Lords who, when she was first seized by Bothwell, did not draw a sword in her defence, and now that she had become his wife, according to their own express recommendation recorded in the bond they had given him, openly rebelled against the authority with which they had induced her to intrust him. Morton recollected at the same time his share in

Rizzio's assassination, and the disastrous consequences which ensued, as soon as Mary made her escape from the thralldom in which he had then kept her for several days. He determined not to expose himself to a similar risk now, especially as he had an army at his command; if he disbanded it, he might be executed as a traitor,—if he remained at the head of it, he might become Regent of Scotland. These were the secret motives by which his conduct was regulated;—having taken one step he thought he might venture to go on with another; he commenced with defending the son, and ended by dethroning the mother.

Four different plans were now in agitation, by adopting any of which it was thought the troubles of the kingdom might be brought to a conclusion. The first was suggested by the Queen's friends assembled at Hamilton; their proposal was, to restore the Queen to her liberty and throne, having previously bound her, by an express agreement, to pardon the rebel Lords, to watch over the safety of the Prince, to consent to a divorce from Bothwell, and to punish all persons implicated in the murder of Darnley. The other three schemes came from Morton and his party, and were worthy of the source from which they came. The *first* was, to make the Queen resign all government and regal authority in favour of her son, under whom a Council of the nobility should govern the realm, whilst she herself should retire to France or England, and never again return to her own country. The *second* was, to have the Queen tried, to condemn her, to keep her in prison for life, and to crown the Prince. The *third* was, to have her tried, condemned, and executed,—a measure which would have disgraced Scotland in even its most barbarous times, and which nothing but the violence of party feeling could now have suggested.^[119] The English ambassador, knowing the wishes of his mistress, did not hesitate to assure her that there was no probability of any of the more lenient proposals being adopted; and he took care to remind the Lords, that “it would be convenient for them so to proceed, as that by their doings they should not wipe away the Queen's infamy, and the Lord Bothwell's detestable murder, and by their outrageous dealings bring all the slander upon themselves.” At Morton's request, he likewise suggested to Elizabeth, that it would be proper to send a supply of ten or twelve thousand crowns to aid the Lords in their present increased expenditure; and this he said was the more necessary, because Lethington and others had reminded him that,

notwithstanding all her Majesty's fair words, Murray, Morton, and the rest, "had in their troubles found cold relief and small favour at her Majesty's hands."^[120] No wonder that, in moments when his better nature prevailed, Throckmorton felt disgusted with the double part he was obliged to act, and spoke "honestly and plainly" of it to Melville. "Yea," says Sir James, "he detested the whole counsel of England for the time, and told us friendly what reasoning they held among themselves to that end; namely, how that one of their finest counsellors (Cecil) proposed openly to the rest, that it was needful for the welfare of England, to foster and nourish the civil wars, as well in France and in Flanders, as in Scotland; whereby England might reap many advantages, and be sought after by all parties, and in the meantime live in rest, and gather great riches. This advice and proposition was well liked by most part of the Council; yet an honest counsellor stood up and said, it was a very worldly advice, and had little or nothing to do with a Christian commonweal."^[121]

The Earl of Murray was in the meantime anxiously watching the progress of affairs in Scotland, and, though still in France, had so contrived, that he possessed as much influence in the counsels of the nation as Morton himself. The Lords indeed had long been in close correspondence with him. Letters from them were forwarded to him by Cecil, who exchanged frequent communications with Murray; and, on the 26th of June, four days before Throckmorton left London for Scotland, Cecil wrote to the English ambassador at Paris, that "Murray's return into Scotland was much desired, for the weal both of England and Scotland."^[122] But as Murray had attempted to ingratiate himself at the French Court, by exaggerating his fidelity to Mary, he found it impossible to disengage himself immediately from the connexions he had there made, not anticipating so sudden a revolution in the state of affairs at home. He sent, however, an agent into Scotland, of the name of Elphinston, whom he commissioned to attend to his interests, and whom the Lords allowed to visit the Queen at Loch-Leven, though they refused every body else. It is not likely that Morton, who had thus a second time been engaged in setting up a ladder for Murray to ascend by, was altogether pleased to find that he could not obtain the first place for himself. As soon as he determined to force Mary to abdicate the Crown, he saw that he would be obliged to yield the Regency to Murray, supported as that nobleman was, both by his numerous friends in England

and Scotland, and the earnest recommendations of Knox and the other preachers, who, in their anxiety to see their old patron once more Lord of the ascendant, “took pieces of Scripture, and inveighed vehemently against the Queen, and persuaded extremities against her, by application of the text.”^[123] Morton, however, consoled himself with the reflection, that he was in great favour with Murray, and that, by acting in concert with him, he would enjoy a scarcely inferior degree of power and honour.

Preparatory to extorting from her an abdication, the Lords anxiously circulated a report, that the Queen was devotedly and almost insanely attached to Bothwell. They did not venture, it is true, to put this attachment to the test, by publicly offering her reasonable terms of accommodation, which, if she had refused, all men would have acknowledged her infatuation, and deserted her cause;—they brought her to no trial,—they proved her guilty of no crime; all they did was to endeavour to impose upon the vulgar. They asserted that Mary would not agree to prosecute the perpetrators of the murder, after she had already prosecuted them,—and that she would not consent to abandon a husband whom she had already abandoned, and with whom, they themselves had declared, only a few weeks before, she could not, under any circumstances, have lived for many months. Throckmorton, who was willing enough to propagate all the absurd falsehoods they told him, wrote to Elizabeth,—“she avoweth constantly that she will live and die with him; and saith, that if it were put to her choice to relinquish her Crown and kingdom, or the Lord Bothwell, she would leave her kingdom and dignity, to go as a simple damsel with him; and that she will never consent that he shall fare worse, or have more harm than herself.”^[124] But the numerous party in favour of the Queen openly avowed their disbelief of these reports; and Elizabeth herself, who began to fear that, in sending Throckmorton to the rebel Lords, she had countenanced the weaker side, wrote to her ambassador on the 29th of August in the following terms, which, as they are used by an enemy so determined as Elizabeth, speak volumes in favour of Mary:—“We cannot perceive, that they, with whom they have dealt, can answer the doubts moved by the Hamiltons, who, howsoever they may be carried for their private respects, yet those things which they move will be allowed by all reasonable persons. For if they may not, being noblemen of the realm, be suffered to hear the Queen, their Sovereign, declare her mind concerning the reports which are

made of her by such as keep her in captivity, how should they believe the reports, or obey them which do report it?"[125]

That Mary refused to return to her throne, unless Bothwell was placed upon it beside her, is an assertion so ridiculous, that no time need be lost in refuting it. That she may not have chosen to submit to an immediate divorce from one whom all her nobility had recommended to her as a husband, and by whom she might possibly have a child, is within the verge of probability. She would naturally be anxious to avoid doing any thing which would be equivalent with acknowledging her belief of his guilt, and might have appeared to implicate her in the suspicion attached to him. She had not married Bothwell till he had been judicially acquitted; and were she to consent to be divorced from him before he was again tried, she would seem to confess, that she had previously sanctioned a procedure possessing the show of justice, without the substance.[126] There can be no doubt, however, that if Bothwell's guilt had been distinctly proved to her, and if she could have disunited herself from him without injury to her reputation or her prospects, she would have been the very last person to have objected either to see Darnley's death revenged, or herself freed from an alliance into which she had been forced against her will.

But the Lords of Secret Council, conscious as they were of the injustice of their proceedings, had gone too far to recede, and were determined not to rest satisfied with any half-measures. On the 24th of July 1567, Lord Lindsay and Sir Robert Melville (brother to Sir James), were commissioned to pass to Loch-Leven, and to carry with them deeds or instruments of abdication.[127] These instruments were three in number. By the first, Mary was made to resign the Crown in favour of her son,—by the second, to constitute the Earl of Murray Regent during his nonage,—and, by the third, to appoint a Council to administer the Government until Murray's return home, and, if he should refuse to accept of the regency, until her son's majority. It was of course well known to the rebels, that the Queen would not willingly affix her signature to deeds by which she was to surrender all power, and to reduce herself at once to the station of a subject, without receiving in return any promise of liberty, or the enjoyment of a single worldly good. Yet they had the effrontery to aver, that rather than submit to a separation from one with whom "she could not have lived half-a-year to

an end,” she preferred becoming a landless and crownless pensioner, on the bounty of such men as Morton and his accomplices.

Were we to single out the day in Mary’s whole life in which it might be fairly concluded that she suffered the most intense mental anguish, we should fix on the 25th of July 1567, the day on which the Commissioners had their audience. Shut up in a gloomy edifice, which, though dignified with the name of a castle, was little else than a square tower of three stories; and instead of a numerous assemblage of obsequious nobles, attended by only three or four female servants;—it must have required a more than common spirit of queenly fortitude to support so great a reverse of fortune. [128] But the misery of her situation was now to be increased a hundred fold, by a blow the severest she had yet experienced. When the report first reached her, that it was in contemplation to force her to abdicate her crown, she indignantly refused to believe so lawless an attempt possible. Mary had been all her life fond of power, and proud of her illustrious birth and rank; and there were few subjects on which she dwelt with greater pleasure, than her unsullied descent from a “centenary line of kings.” Was she now, without a struggle, to surrender the crown of the Stuarts into the hands of the bastard Murray, or the blood-stained Morton? Was she to submit to the bitter mockery, introduced in the very preamble to the instrument of demission, which stated, that, ever since her arrival in her realm, she had “employed her body, spirit, whole senses and forces, to govern in such sort, that her royal and honourable estate might stand and continue with her and her posterity, and that her loving and kind lieges might enjoy the quietness of true subjects;” but that, being now wearied with the fatigues of administration, she wished to lay down her sceptre? [129] Even though prepared to lay it down, was she also to countenance falsehood, and practise dissimulation?

When the commissioners arrived at Lochleven, Sir Robert Melville, knowing that Lindsay was personally disagreeable to his Sovereign, came to her at first alone. Opening to her his errand, and, addressing her with respect, and professions of attachment (for she had often employed him before about her person, or as her ambassador to foreign courts), he urged every argument he could think of to persuade her to affix her signature to the deeds. She listened to him with calm dignity and unshaken resolution. She heard him describe the distracted state of Scotland—the impossibility

of ever prevailing on all parties to submit again to her sway—the virulence of her enemies, and the apparent lukewarmness of her friends. She allowed him to proceed from these more general topics, to others more intimately connected with her own person. She listened to his assurance, that, if she continued obstinate, it was determined to bring her to trial,—to blacken her character, by accusing her of incontinency, not only with Bothwell, but with others, and of the murder of her late husband, and, upon whatever evidence, to condemn and execute her.^[130] But she remained unmoved, and preserved the same composure of manner, though not without many a secret throb of pain, at the discovery of the utter ingratitude and perfidy of those whom she had so often befriended and advanced. As a last expedient, Melville produced a letter from Throckmorton, in which the ambassador advised her to consult her personal safety, by consenting to an abdication—a somewhat singular advice to be given by one who affected to have come into Scotland for the express purpose of securing her restoration to the throne.^[131] But she only remarked on this letter, that it convinced her of the insincerity of Elizabeth’s promises of assistance.

Melville now saw that there was no alternative, and that Lindsay must be called in to his assistance. Notorious for being one of the most passionate men in Scotland, Lindsay burst into the Queen’s presence, with the instruments in his hands, and rage sparkling in his eyes. Mary, for the first time, became agitated, for she recollected the evening of Rizzio’s murder, when Lindsay stood beside the gaunt form of Ruthven, instigating him to the commission of that deed of cruelty. With fearful oaths and imprecations, this unmannered barbarian, entitled to be called a man only because he bore the external form of one, vowed, that unless she subscribed the deeds without delay, he would sign them himself with her blood, and seal them on her heart.^[132] Mary had a bold and masculine spirit; but, trembling under the prospect of immediate destruction, and imagining that she saw Lindsay’s dagger already drawn, she became suddenly pale and motionless, and would have fallen in a swoon, had not a flood of tears afforded her relief. Melville, moved perhaps to contrition by the depth of her misery, whispered in her ear, that instruments signed in captivity could not be considered valid, if she chose to revoke them when she regained her liberty. This suggestion may have had some weight; but almost before she had time to attend to it, Lindsay’s passion again broke forth, and, pointing to the lake

which surrounded her confined residence, he swore that it should become her immediate grave, if she hesitated one moment longer. Driven to distraction, and scarcely knowing what she did, Mary seized a pen, and without reading a line of the voluminous writings before her, she affixed her name to each of them, as legibly as her tears would permit. The Commissioners then took their departure, secretly congratulating themselves, that, by a mixture of cunning and ferocity, they had gained their end. Mary, no longer a Queen, was left alone to the desolate solitude of her own gloomy thoughts.^[133]

As soon as Lord Lindsay returned to Edinburgh, and notified the success of his mission, it was determined by Morton and his associates that the Prince should be crowned with as little delay as possible. Sir James Melville, who was considered a moderate man by both parties, was sent to the Lords at Hamilton, to invite their concurrence and presence on the occasion. He was received courteously; but the nobility there would not agree to countenance proceedings which they denounced as treasonable. On the contrary, perceiving the turn which matters were about to take, they retired from Hamilton to Dumbarton, where they prepared for more active opposition. They signed a bond of mutual defence and assistance, in which they declared, that owing to the state of captivity in which the Queen was detained at Loch-Leven, her Majesty's subjects were prevented from having free access to her, and that it therefore became their duty to endeavour to procure her freedom, by all lawful means, however strong the opposition that might be offered. This bond was signed by many persons of rank and influence, among whom were the Archbishop of St Andrews, the Earls of Argyle and Huntly, and the Lords Ross, Fleming, and Herries.^[134]

On the 29th of July 1567, James was publicly crowned at Stirling. He was anointed by Adam, Bishop of Orkney, in the parish church, and the Earl of Morton took the oath of coronation in the Prince's name, who was little more than a year old. On returning in procession to the Castle, the Earl of Athol carried the crown, Morton the sceptre, Glencairn the sword, and Mar the new made King. All public writs were thenceforth issued, and the government was established, in the name and authority of James VI.^[135] The infant King was in the power of his mother's deadliest enemies; and of course they resolved that neither her religion nor modes of thinking should be transmitted to her son. Buchanan was appointed his principal tutor, and if

early precept can ever counteract natural affection, there is good reason to suppose, that, together with her crown, the filial love of her child was taken from Mary.

Only a few days after the coronation, the Earl of Murray returned to Scotland. He came by the way of London, where he concocted his future measures with Cecil and Elizabeth. He had some difficulty in fixing on the course which would be most expedient for him to pursue. He knew that the regency was about to be offered to him; but he also knew how unlawfully his sister's abdication had been obtained, and that there was a strong party in Scotland who were still bent on supporting her authority. Were he at once to place himself at the head of a faction which might afterwards turn out to be the weaker of the two, he incurred the risk of falling from his temporary eminence lower than ever. He resolved therefore, with his usual caution, to feel his way before he took any decisive step. Sir James Melville was sent to meet him at Berwick; and from him he learned that even Morton's Lords had by this time split into two parties, and that while one-half were of opinion that Murray should accept of the regency without delay, and give his approval to all that had been done in his absence, the other, among whom were Mar, Athol, Lethington, Tullibardin, and Grange, prayed him to bear himself gently and humbly towards the Queen, and to get as much into her favour as possible, as her Majesty was of "a clear wit, and princely inclination," and the time might come when they would all wish her at liberty to rule over them.^[136] Murray, who adopted on this occasion Elizabeth's favourite maxim,—"*Video et taceo*," disclosed his mind to no one, until he ascertained for himself the precise state of affairs, and of public feeling in Scotland.

To be the better informed, he determined on visiting the Queen personally at Loch-Leven. He was accompanied by Athol, Morton, and Lindsay. When Mary saw her brother, a crowd of recollections rushing into her mind, she burst into tears, and it was some time before she could enter into conversation with him. At length she desired that the others would retire, and they had then a long private conference, of which the particulars are not fully known. Mary had flattered herself that she might place some reliance on Murray's affection and gratitude, but she had egregiously mistaken his character. Having, by this time, secretly resolved to accept the regency at all hazards, his only desire was to impress her with a belief, that he assumed

that office principally with the view of saving her from a severer fate, and that he was actually conferring a favour on her by taking her sceptre into his own hands. Reduced already to despair, the Queen listened, with tears in her eyes, to Murray's representations, and at length became convinced of his sincerity, and thanked him for his promises of protection. Thus the Earl and his friends were able to give out, that Mary confirmed, by word of mouth, what she had formerly signed with her hand, and that she entreated her brother to accept the Government.^[137] Besides, if she were ever restored to the throne, she would not be disposed to treat with severity one who had been artful enough to persuade her, that, in usurping her authority, he was doing her a service.

On the 22d of August 1567, James, Earl of Murray, was proclaimed Regent; and, in the Tolbooth of Edinburgh, before the Justice Clerk and others, he took the oaths, and accepted the charge. He first, however, made a long discourse, in which, with overacted humility, he stated his own insufficiency, and expressed a desire that the office had been conferred on some more worthy nobleman.^[138] But his scruples were easily conquered; and, under the title of Regent, he became, in fact, King of Scotland, until James VI. should attain the age of seventeen.^[139] He proceeded to establish himself in his Government by prudent and vigorous measures. He made himself master of the Castles of Edinburgh and Dunbar, and other places of strength; he contrived either to bring over to his own side, or to overawe and keep quiet, most of the Queen's Lords; and he severely chastised such districts as continued disaffected. A Parliament was summoned in December, at which the imprisoning and dethroning of the Queen were declared lawful, and, what is remarkable, the reason assigned for these measures had never been hinted at before Murray's return,—that there was certain proof that she was implicated in the murder of Darnley. This proof was stated to consist in certain "private letters, written wholly with the Queen's own hand." They were not produced at the time, but will come to be examined more particularly afterwards. All that need be remarked here, is the sudden change introduced by the Regent into the nature of the allegations against Mary. It had been always given out previously, that she was kept in Loch-Leven, because she evinced a determination to be again united to Bothwell; but now, an entirely new and more serious cause was assigned for her detention.^[140]

CHAPTER VIII.

MARY'S ESCAPE FROM LOCHLEVEN, AND THE BATTLE OF LANGSIDE.

With few comforts and no enjoyments, Mary remained closely confined in the Castle of Loch-Leven. Her only resources were in herself, and in the religion whose precepts she was ever anxious not only to profess, but to practise. Though deprived of liberty and the delights of a court, she was able to console herself with the reflection, that there is no prison for a soul that puts its trust in its God, and that all the world belongs to one who knows how to despise its vanities. Yet the misfortunes which had overtaken her were enough to appal the stoutest heart. Her husband had been murdered, she herself forced into an unwilling marriage, her kingdom taken from her, her child raised up against her, her honour defamed, and her person insulted,—all within the short space of four months. History records few reverses so sudden and so complete. Many a masculine spirit would have felt its energies give way under so dreadful a change of fortune; and if Mary was able to put in practice the Roman maxim, *Ne cedere malis, sed contra audentior ire*, it would be to exalt vice and libel virtue to suppose, that she could have been inspired with strength for so arduous a task by aught but her own integrity.

It was not these more serious calamities alone whose load she was doomed to bear; there were many petty annoyances to which she was daily and hourly subject. Margaret Erskine, the Lady of Loch-Leven, and widow of Sir Robert Douglas, who fell at the battle of Pinkie one-and-twenty years before, was a woman of a proud temper and austere disposition. Soured by early disappointment, for, previous to her marriage with Sir Robert, she had been one of the rejected mistresses of James V., she chose to indulge her more malignant nature in continually exalting her illegitimate offspring the Earl of Murray above his lawful Queen, now her prisoner. Her servants, of course, took their tone from their mistress; and there was one in particular, named James Drysdale, who held a place of some authority in her

household, and who, having had some concern in the murder of Rizzio, and being a bigoted and unprincipled fanatic, entertained the most deadly hatred against Mary, and had been heard to declare, that it would give him pleasure to plunge a dagger into her heart's blood. This savage probably succeeded in spreading similar sentiments among the other domestics; and thus the Queen's very life seemed to hang upon the prejudices and caprices of menials.[\[141\]](#)

But numerous and violent as Mary's enemies may have been, few could remain near her person, without becoming ardently attached to her. Hence, throughout all her misfortunes, her own immediate attendants continued more than faithful. At Loch-Leven, it is true, although her rebellious nobles had been willing to allow her a suitable train, the absence of accommodation would have rendered their residence there impossible. One or two female, and three or four male servants, were all, over whom Mary, the Queen of Scotland, and Dowager of France, could now exercise the slightest control. Of these, John Beaton was the individual upon whose assiduity she placed most reliance. But the influence which the fascination of her manners, and the beauty of her person, obtained for her, over two of the younger branches of the House of Loch-Leven, made up for the want of many of her former attendants. The persons alluded to were George Douglas, the youngest son of Lady Douglas, about five-and-twenty years of age, and William Douglas, an orphan youth of sixteen or seventeen, a relative of the family, and resident in the Castle. So forcibly was George Douglas, in particular, impressed with the injustice of Mary's treatment, that he resolved on sparing no pains till he accomplished her escape; and his friend William, though too young to be of equal service, was not less ardent in the cause.[\[142\]](#) George commenced operations, by informing Mary's friends in the adjoining districts of Scotland, of the design he had in view, and establishing a communication with them. At his suggestion, Lord Seaton, with a considerable party, arrived secretly in the neighbourhood of Loch-Leven, and held themselves in readiness to receive the Queen as soon as she should be able to find her way across the lake. Nor was it long before Mary made an attempt to join her friends. On the 25th of March 1568, she had a glimpse of liberty so enlivening, that nothing could exceed the bitterness of her disappointment. Suffering as she did, both in health and spirits, she had contracted a habit of spending a considerable part of the

morning in bed. On the day referred to, her laundress came into her room before she was up, when Mary, according to a scheme which Douglas had contrived, immediately rose, and resigning her bed to the washer-woman, dressed herself in the habiliments of the latter. With a bundle of clothes in her hand, and a muffler over her face, she went out, and passed down unsuspected to the boat which was waiting to take the laundress across the lake. The men in it belonged to the Castle; but did not imagine any thing was wrong, for some time. At length one of them observing, that Mary was very anxious to keep her face concealed, said in jest,—“Let us see what kind of a looking damsel this is;” and attempted to pull away her muffler. The Queen put up her hands to prevent him, which were immediately observed to be particularly soft and white, and a discovery took place in consequence. Mary, finding it no longer of any use, threw aside her disguise, and, assuming an air of dignity, told the men that she was their Queen, and charged them upon their lives to row her over to the shore. Though surprised and overawed, they resolutely refused to obey, promising, however, that if she would return quietly to the castle, they would not inform Sir William Douglas or his mother that she had ever left it. But they promised more than they were able to perform, for the whole affair was soon known, and George Douglas, together with Beaton and Sempil, two of Mary’s servants, were ordered to leave the island, and took up their residence in the neighbouring village of Kinross.^[143]

But neither the Queen nor her friends gave up hope. George Douglas continued indefatigable, though separated from her; and William supplied his place within the Castle, and acted with a degree of cautious and silent enterprise beyond his years. It was probably in reference to what might be done by him, that a small picture was secretly conveyed to Mary, representing the deliverance of the lion by the mouse.^[144] Little more than a month elapsed from the failure of the first attempt, before another was adventured, and with better success. On Sunday, the second of May, about seven in the evening, William Douglas, when sitting at supper with the rest of the family, managed to get into his possession the keys of the Castle, which his relation, Sir William, had put down beside his plate on the table. The young man immediately left the room with the prize, and, locking the door of the apartment from without, proceeded to the Queen’s chamber, whom he conducted with all speed, through a little postern gate, to a boat

which had been prepared for her reception. One of her maids, of the name of Jane Kennedy, lingered a few moments behind, and as Douglas had locked the postern gate in the interval, she leapt from a window, and rejoined her mistress without injury. Lord Seaton, James Hamilton of Rochbank, and others who were in the neighbourhood, had been informed by a few words which Mary traced with charcoal on one of her handkerchiefs, and contrived to send to them, that she was about to make another effort to escape, and were anxiously watching the arrival of the boat. Nor did they watch in vain. Sir William Douglas and his retainers, were locked up in their own castle; and the Queen, her maid, and young escort, had already put off across the lake. It is said that Douglas, not being accustomed to handle the oar, was making little or no progress, until Mary herself, taking one into her own hands, lent him all the aid in her power. It was not long before they arrived safely at the opposite shore, where Lord Seaton, Hamilton, Douglas, Beaton, and the rest, received the Queen with every demonstration of joyful loyalty. Little time was allowed, however, for congratulations; they mounted her immediately upon horseback, and surrounding her with a strong party, they galloped all night, and having rested only an hour or two at Lord Seaton's house of Niddry, in West Lothian, they arrived early next forenoon at Hamilton. Mary's first tumultuous feelings of happiness, on being thus delivered from captivity, can hardly be imagined by those who have never been deprived of the blessing of liberty. It is fair, however, to state, that her happiness was neither selfish nor exclusive; and it deserves to be recorded to her honour, that till the very latest day of her life, she never forgot the services of those who so essentially befriended her on this occasion. She bestowed pensions upon both the Douglasses,—the elder of whom, became afterwards a favourite with her son James VI., and the younger is particularly mentioned in Mary's last will and testament. Nor was the faithful Beaton allowed to go unrewarded.[145]

The news that Mary was arrived at Hamilton, and that noblemen and troops were flocking to her from all quarters, was so astounding, that the Regent, who was not many miles off, holding courts of justice at Glasgow, refused at first to credit the report. He would soon, however, (without other evidence) have discovered its truth, from the very visible change which took place even among those whom he had previously considered his best

friends. "A strange alteration," says Keith, "might be discovered in the minds and faces of a great many; some slipped privately away, others sent quietly to beg the Queen's pardon, and not a few went publicly over to her Majesty." In this state of matters, Murray was earnestly advised to retire to Stirling, where the young King resided; but he was afraid that his departure from Glasgow might be considered a flight, which would at once have animated his enemies and discouraged his friends. He, therefore, resolved to continue where he was, making every exertion to collect a sufficient force with as little delay as possible. He was not allowed to remain long in suspense regarding Mary's intentions, for she sent him a message in a day or two, requiring him to surrender his Regency and replace her in her just government; and before the Earls, Bishops, Lords, and others, who had now gathered round her, she solemnly protested, that the instruments she had subscribed at Loch-Leven were all extorted from her by fear. Sir Robert Melville, one of those who, in this new turn of affairs, left Murray's party for the Queen's, gave his testimony to the truth of this protest, as he had been a witness of the whole proceeding. The abdication, therefore, was pronounced *ipso facto* null and void; and Murray having issued a proclamation, in which he refused to surrender the Regency, both parties prepared for immediate hostilities. The principal Lords who had joined the Queen, were Argyle, Huntly, Cassils, Rothes, Montrose, Fleming, Livingston, Seaton, Boyd, Herries, Ross, Maxwell, Ogilvy, and Oliphant. There were, in all, nine Earls, nine Bishops, eighteen Lords, and many Barons and Gentlemen. In a single week, she found herself at the head of an army of 6000 men. Hamilton, not being a place of strength, they determined to march to Dumbarton, and to keep her Majesty there peaceably, until she assembled a Parliament, which should determine on the measures best suited for the safety of the common weal.^[146]

On Thursday the 13th of May 1568, Murray was informed that the Queen with her troops was on her way from Hamilton to Dumbarton, and would pass near Glasgow. He instantly determined to intercept her on the road; for should she reach Dumbarton, which was then, and had long been in the possession of the Hamiltons, she would be comparatively beyond his reach, and would have time to collect so great a strength, that she might once more chase him out of Scotland. Besides, the loss of a battle, where the army on either side consisted of only a few thousand men, though it might in all

probability be fatal to Mary, was not of so much consequence to the Regent. He therefore assembled his troops, which mustered about 4000 strong, on the Green of Glasgow; and being informed that the Queen was marching upon the south side of the Clyde, he crossed that river, and met her at a small village called Langside, on the Water of Cart, about two miles to the south of Glasgow. Mary was anxious to avoid a battle, for she knew that Murray himself possessed no inconsiderable military talent, and that Kircaldy of Grange, the best soldier in Scotland, was with him. But party spirit ran so high, and the Hamiltons and the Lennoxes, in particular, were so much exasperated against each other, that as soon as they came within sight, it was evident that nothing but blows would satisfy them. The main body of the Queen's army was under the command of the Earl of Argyle; the van was led by Claud Hamilton, second son of the Duke of Chatelherault; and the cavalry was under the conduct of Lord Herries. The Earl of Huntly would have held a conspicuous place in the battle, but he had set off from Hamilton a few days before to collect his followers, and did not return till it was too late. Murray himself commanded his main body, and the Earl of Morton the van; whilst to Grange was intrusted the special charge of riding about over the whole field, and making such alterations in the position of the battle as he deemed requisite.

Nothing now intervened between the two armies but a hill, of which both were anxious to gain possession, the one marching from the east, and the other from the west. It happened, however, that the ascent on the side next Mary's troops was the steepest, and a stratagem suggested by Grange secured the vantage-ground to the Regent. He ordered every man who was mounted to take up a foot soldier behind him, and ride with all speed to the top of the hill, where they were set down, and instantly formed into line. Argyle was therefore obliged to take his position on a lesser hill, over against that occupied by Murray. A cannonading commenced upon both sides, and continued for about half an hour but without much effect. At length, Argyle led his forces forward, and determined if possible to carry the heights sword in hand. The engagement soon became general, and advantages were obtained upon both sides. The Earl of Morton, who came down the hill to meet Argyle, succeeded in driving back the Queen's cannoneers and part of her infantry; whilst on the other hand, Lord Herries, making a vigorous charge on Murray's cavalry, put them to rout.

Judiciously abstaining from a long pursuit, he returned to attack some of the enemy's battalions of foot, but as he was obliged to advance directly up hill, he was unable to make much impression on them. In the meantime, with the view of obtaining more equal ground, Argyle endeavoured to lead his troops round towards the west, and it was to counteract this movement that the most desperate part of the engagement took place. All the forces of both parties were gradually drawn off from their previous positions, and the whole strength of the battle on either side was concentrated upon this new ground. For half an hour the fortune of the day continued doubtful; but at length the Queen's troops began to waver, and a re-inforcement of two hundred Highlanders, which arrived just at the fortunate moment for Murray, and broke in upon Argyle's flank, decided the victory. The flight soon afterwards became general; and though the loss of lives on the Queen's side did not exceed three hundred, a great number of her best officers and soldiers were made prisoners.[147]

Mary had taken her station upon a neighbouring eminence to watch the progress of the fight. Her heart beat high with a thousand hopes and fears, for she was either to regain the crown of her forefathers, or to become a fugitive and a wanderer she knew not where. It must have been with emotions of no common kind, that her eye glanced from one part of the field to another;—it must have been with throbbing brow and palpitating heart, that she saw her troops either advance or retreat; and when at length she beheld the goodly array she had led forth in the morning, scattered over the country, and all the Lords who had attended her with pride and loyalty, seeking safety in flight, no wonder if she burst into a passion of tears, and lamented that she had ever been born. But the necessity of the moment fortunately put a check to this overwhelming ebullition of her feelings. With a very small retinue of trusty friends, among whom was the Lord Herries, she was quickly hurried away from the scene of her disasters. She rode off at full speed, taking a southerly direction towards Galloway, because from thence she could secure a passage either by sea or land into England or France. She never stopped or closed her eyes till she reached Dundrennan, an abbey about two miles from Kirkcudbright, and at least sixty from the village of Langside.[148]

She remained two days at Dundrennan, and there held several anxious consultations with the few friends, who had either accompanied her in her

flight, or who joined her afterwards. Lord Herries, her principal adviser, gave it as his decided opinion, that she ought to sail immediately for France, where she had relations on whose affection she could depend, even though they should not be able to secure her restoration to the throne of Scotland. But Mary could not brook the idea of returning as a fugitive to a country she had left as a Queen; and besides, had she placed herself under the protection of Catholics, she might have exasperated her own subjects, and would certainly have displeased Elizabeth and the people of England. She was disposed also to place some reliance on the assurances of friendship she had lately received from the English Queen. She was well aware of the hollowness of most of Elizabeth's promises; but in her present extremity, she thought that to cross the sea would be to resign her crown forever. After much hesitation, she finally determined on going into England, and desired Herries to write to Elizabeth's Warden at Carlisle, to know whether she might proceed thither. Without waiting for an answer, she rode to the coast on Sunday the 16th of May, and with eighteen or twenty persons in her train, embarked in a fishing-boat, and sailed eighteen miles along the shore, till she came to the small harbour of Workington, in Cumberland. Thence she proceeded to the town of Cockermouth, about twenty-six miles from Carlisle. Lord Scroope, the Warden on these frontiers, was at this time in London; but his deputy, a gentleman of the name of Lowther, having sent off an express to the Court, to intimate the arrival of the Queen of Scots, assembled, on his own responsibility, the men of rank and influence in the neighbourhood, and having come out to meet the Queen, conducted her honourably to the Castle of Carlisle, with the assurance, that, until Elizabeth's pleasure was known, he would protect her from all her enemies.

As soon as the important news reached Elizabeth, that Mary was now within her dominions, and consequently at her disposal, she perceived that the great end of all her intrigues was at length achieved. It was necessary, however, to proceed with caution, for she did not yet know either the precise strength of Mary's party in Scotland, or the degree of interest which might be taken by France in her future fate. She, therefore, immediately despatched Lord Scroope, and Sir Francis Knollys her Vice-Chamberlain, to Carlisle, with messages of comfort and condolence. Mary, who anxiously waited their arrival, anticipated that they would bring consolatory assurances. Her spirits began to revive, and she was willing to believe that

Elizabeth would prove her friendship by deeds, as well as by words. But this delusion was destined to be of only momentary duration.[\[149\]](#)

CHAPTER IX.

MARY'S RECEPTION IN ENGLAND, AND THE CONFERENCES AT YORK AND WESTMINSTER.

If there had been a single generous feeling still lurking in Elizabeth's bosom, the time was now arrived when it should have discovered itself. Mary was no longer a rival Queen, but an unfortunate sister, who, in her hour of distress, had thrown herself into the arms of her nearest neighbour and ally. During her imprisonment in Scotland, Elizabeth had avowed her conviction of its injustice; and, if it was unjust that her own subjects should retain her in captivity, it would of course be much more iniquitous in one who had no right to interfere with her affairs, and who had already condemned such conduct in others. If it was too much to expect that the English Queen would supply her with money and arms, to enable her to win back the Crown she had lost, it was surely not to be doubted that she would either allow her to seek assistance in France, or, if she remained in England, would treat her with kindness and hospitality. All these hopes were fallacious; for, "with Elizabeth and her counsellors," as Robertson has justly observed, "the question was, not what was most just or generous, but what was most beneficial to herself and the English nation."

On the 29th of May 1568, Lord Scroope and Sir Francis Knollys arrived at Carlisle. They were met at some little distance from the town by Lord Herries, who told them, that what the Queen his mistress most desired, was a personal interview with Elizabeth. But they had been instructed to answer, that they doubted whether her Majesty could receive the Queen of Scots, until her innocence from any share in the murder of her husband was satisfactorily established.^[150] Thus, the ground which Elizabeth had resolved to take was at once discovered. She was to affect to treat the Scottish Queen with empty civility, whilst in reality she detained her a prisoner, until she had arranged with Murray the precise accusation which was to be brought against her, and which, if it succeeded in blackening her character, might justify subsequent severities. Mary could not at first

believe that she would be treated with so much treachery; but circumstances occurred every day to diminish her confidence in the good intentions of the English Queen. Under the pretence that there was too great a concourse of strangers from Scotland, Lord Scroope and Sir Francis Knollys ordered the fortifications of Carlisle Castle to be repaired, and Mary was not allowed to ride out to any distance. The most distinguished of the few friends who were now with her, and who remained faithful to her to the end of her life, were Lesley, Bishop of Ross,—the Lords Herries, Livingston, and Fleming, and George and William Douglas. She had also her two secretaries, Curl and Nawe, who afterwards betrayed her,—and among other servants, Beaton, and Sebastian the Frenchman; there were likewise the Ladies Livingston and Fleming, Mary Seaton, Lord Seaton's daughter, and other female attendants.[151]

Mary's first interview with the envoys from Elizabeth, prepossessed them both in her favour. "We found her," they said, "to have an eloquent tongue and a discreet head, and it seems by her doings, that she has stout courage, and a liberal heart adjoined thereto." When they told her that the Queen, their mistress, refused to admit her to her presence, Mary burst into tears, and expressed the bitterest disappointment. Checking her grief, however, and assuming a tone of becoming dignity, she said, that if she did not receive without delay, the aid she had been induced to expect, she would immediately demand permission to pass into France, where she did not doubt she would obtain what the English Queen denied.[152] In the meantime, as she was not allowed to proceed to London herself, she despatched Lord Herries to superintend her interests there; and shortly afterwards, it being represented to her that her person was not in safety so long as she continued so near the Borders, she consented to be removed further into England, and was conveyed to Bolton Castle, a seat of Lord Scroope, in the North Riding of Yorkshire.[153]

The Regent Murray, on his part, was any thing but inactive. He forced the Earl of Huntly, who had collected upwards of 2000 men, and was marching to the Queen's assistance when he heard of the unfortunate battle of Langside, to retire to the North, and disband the greater part of his troops; he put to flight the remains of the Queen's army, which had been again gathered by Argyle and Cassils; and, assembling a Parliament, he procured acts of forfeiture and banishment against many of the most powerful Lords

of the opposite party. Elizabeth, perceiving his success, had no desire to check the progress of his usurped authority, whatever professions to the contrary she chose to make to Mary. On the 8th of June, she wrote Murray a letter, in which she addressed him as her “right trusty, and right well-beloved cousin;” told him falsely that the Queen of Scots had confided to her the examination of the differences between herself and her subjects; and advised him to take such steps as would place his own side of the question in the most favourable point of view. Murray had no objection to make Elizabeth the umpire between himself and his sister, well assured that she would ultimately decide in his favour, lest the rival, whom she had once found so formidable, should again become a source of jealousy and alarm.

But Mary had never dreamt of appealing to Elizabeth as to a judge, and she now learned with indignation that her rebellious nobles were to be encouraged to come before that Queen on the same footing with herself. When she asked for a personal interview, it was that she might speak to her cousin as to a friend and equal, of the wrongs she had suffered. She had voluntarily undertaken to satisfy the English Queen, as soon as they conversed together, of her innocence from all the charges which had been brought against her; but she was not to degrade herself by entering into a controversy with her subjects regarding these charges. Accordingly, as soon as she discovered Elizabeth’s insidious policy, she addressed a letter to her, in which she openly protested against it. The letter was in French, and to the following effect:—

“Madam, my good sister, I came into your dominions to ask your assistance, and not to save my life. Scotland and the world have not renounced me. I was conscious of innocence; I was disposed to lay all my transactions before you; and I was willing to do you honour, by making you the restorer of a Queen. But you have afforded me no aid, and no consolation. You even deny me admittance to your presence. I escaped from a prison, and I am again a captive. Can it expose you to censure, to hear the complaints of the unfortunate? You received my bastard brother when he was in open rebellion; I am a Princess, and your equal, and you refuse me this indulgence. Permit me then to leave your dominions. Your severity encourages my enemies, intimidates my friends, and is most cruelly destructive to my interests. You keep me in fetters, and allow my enemies to conquer my realm. I am defenceless; and they enjoy my authority, possess

themselves of my revenues, and hold out to me the points of their swords. In the miserable condition to which I am reduced, you invite them to accuse me. Is it too small a misfortune for me to lose my kingdom? Must I, also, be robbed of my integrity and my reputation? Excuse me, if I speak without dissimulation. In your dominions I will not answer to their calumnies and criminations. To you, in a personal conference, I shall at all times be ready to vindicate my conduct; but to sink myself into a level with my rebellious subjects, and to be a party in a suit or trial with them, is an indignity so vile, that I can never submit to it. I can die, but I cannot meet dishonour. Consult, I conjure you, what is right and proper, and entitle yourself to my warmest gratitude; or, if you are inclined not to know me as a sister, and to withhold your kindness, abstain at least from rigour and injustice. Be neither my enemy nor my friend; preserve yourself in the coldness of neutrality; and let me be indebted to other princes for my re-establishment in my kingdom.”[\[154\]](#)

Unmoved by the forcible representations contained in this and other letters, Elizabeth resolved to treat the Queen of Scots only with greater severity than before, in the hope of intimidating her into a compliance with her wishes. It was with this view that she had removed her to Bolton, where she took care that she should be strictly guarded, and not allowed to hold any intercourse with the loyal part of her Scottish subjects. Lord Fleming, too, whom Mary wished to send as her ambassador to France, was stopped; and she was given distinctly to understand, that she must not expect any of her commands to be obeyed, unless they met with Elizabeth’s approval. The English Privy Council, of course, sanctioned their Sovereign’s severity; and gave it as their opinion, that, until an inquiry had taken place into the whole conduct of the Scottish Queen, it would not be consistent with the honour or safety of the realm to afford her the aid she required. The result of all these machinations,—a result which Elizabeth contrived to bring about with the most consummate art,—was, that Mary agreed to nominate Commissioners to meet the Earl of Murray and the Lords associated with him, and to authorize them, before Commissioners to be appointed by Elizabeth, to state the grievances of which their mistress, the Queen of Scots, complained. Murray approved of this arrangement, because he foresaw from the first how it would end; and Mary consented to it, because she was led to believe, that Murray and his accomplices were summoned solely that

they might answer to her complaints. Well aware that their answer could not be satisfactory, she fondly imagined that she would soon be restored to the power they had usurped.

The important *Conference*, as it was termed, between the three sets of Commissioners, was appointed to be held at York. Mary's Commissioners were Lesley, Bishop of Ross, the Lords Herries, Livingston, and Boyd, Gavin Hamilton, Commendator of Kilwinning, Sir John Gordon of Lochinvar, and Sir James Cockburn of Stirling.^[155] Murray associated with himself the Earl of Morton, Bothwell, Bishop of Orkney, Pitcairn, Commendator of Dunfermlin, and Lord Lindsay. Macgill and Balnaves, two civilians, Buchanan, whose pen was always at the Regent's command "through good report and bad report," Secretary Maitland, and one or two others, came with them as legal advisers and literary assistants.^[156] On the part of Elizabeth, the Commissioners were Thomas Howard Duke of Norfolk, Thomas Ratcliffe Earl of Sussex, and Sir Ralph Sadler; and they were invested with full authority to arrange all the differences and controversies existing between her "dear sister and cousin, Mary Queen of Scots," and James Earl of Murray.^[157]

On the 4th of October 1568, the conference was opened with much solemnity at York. "The great abilities of the deputies on both sides," observes Robertson, "the dignity of the judges before whom they were to appear, the high rank of the persons whose cause was to be heard, and the importance of the points in dispute, rendered the whole transaction no less illustrious than it was singular. The situation in which Elizabeth appeared on this occasion, strikes us with an air of magnificence. Her rival, an independent queen, and the heir of an ancient race of monarchs, was a prisoner in her hands, and appeared, by her ambassadors, before her tribunal. The Regent of Scotland, who represented the Majesty, and possessed the authority of a king, stood in person at her bar, and the fate of a kingdom, whose power her ancestors had often dreaded, but could never subdue, was now absolutely at her disposal." It may, however, be remarked, that the "magnificence" of power depends, in a great degree, on the manner in which that power has been acquired; and when it is recollected that, by secretly and diligently fomenting civil disturbances in Scotland, Elizabeth first attacked Mary's peace, and then undermined her authority, and that, having subsequently assumed the mask of a friend, only to conceal the

scowl of an enemy, she had forcibly arrogated the rank of a judge, her “air of magnificence” is discovered to be little else than stage-trick.

The “Instructions” given to her Commissioners, are of themselves sufficient to show that her desire was not to extinguish, but to encourage animosities between the Queen of Scots and her subjects. She had previously assured Mary, in order to induce her to send Commissioners to York at all, that so far from intending to use any form or process by which her subjects should become her accusers, “she meant rather to have such of them, as the Queen of Scots should name, called into the realm, to be charged with such crimes as the said Queen should please to object against them; *and if any form of judgment should be used, it should be against them.*”^[158] But as soon as she had persuaded Mary, by these specious promises, to come into Court, she resolved to alter the features of the cause. She instructed her Commissioners to listen particularly to the requests and complaints of the Earl of Murray, and to assure him privately, that if he could prove Mary to have been implicated in her husband’s murder, she should never be restored to the throne. Nay, she went further; she desired it to be intimated to the Regent, that even though he could not prove Mary’s guilt, yet, that if he could attach sufficient suspicion to her, it would be left to himself and his friends to determine under what conditions they would again consent to receive her into Scotland. This was as much encouragement as Murray could desire; for he knew that, by artifice and effrontery, a shade of suspicion might be made to attach itself even to the most perfect. Mary’s Commissioners, on the other hand, though doubting much the impartiality of the party which was to arbitrate between them, felt strong in the justice of their cause; and after protesting that their appearance was not to be construed as implying any surrender of her independence on the part of their mistress, or of feudal inferiority to the Crown of England, they proceeded to give in their complaint. It contained a short review of the injuries the Queen of Scots had suffered since her marriage with Bothwell;—of the rebellion of Morton and others,—of her voluntary surrender at Carberry Hill,—of her imprisonment in Loch-Leven,—of the abdication that had been forced from her,—of the coronation of her infant son, and the assumed regency of the Earl of Murray,—of her defeat at Langside,—and of the undutiful conduct in which the Regent had since persevered.^[159]

To this complaint it was answered, at great length, by Murray, that the Earl of Bothwell having forcibly carried off the person of the Queen to the Castle of Dunbar, and kept her there a prisoner for some time, had, in the end, suddenly accomplished “a pretended marriage,” which, confirming the nobility in the belief that the Earl was the chief author of the murder of the King, made them determine to take up arms to relieve those who were unjustly calumniated, and to rescue the Queen from the bondage of a tyrant, who had presumptuously attempted to ravish and marry her, though he could neither be her lawful husband, nor she his lawful wife;—that Bothwell came against these nobility, “leading the Queen in his company, as a defence and cloak to his wickedness;” but that, as the quarrel was intended only against him, the Queen was received by the nobles, and led by them into Edinburgh, as soon as she consented to part from the Earl;—that she was then requested to agree that the murderers should be punished, and that the pretended marriage into which she had been led, should be dissolved;—that to this request she only answered, by rigorously menacing all who had taken up arms in her cause, and declaring she would surrender her realm altogether, “so she might be suffered to possess the murderer of her husband;”—that, perceiving the inflexibility of her mind, they had been compelled to “sequester her person” for a season;—that, during this time, she had voluntarily renounced the Government, finding herself wearied by its fatigues, and perceiving that she and her people could not well agree; and that she had appointed, during the minority of her son, the Earl of Murray Regent of the realm, and that every thing he had done since had been in accordance with the legal authority with which she had thus invested him;—and that he therefore required, in behalf of his Sovereign Lord the King, to be allowed peaceably to enjoy and govern the country.

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The “Reply” of Mary’s Commissioners, to this feeble and disingenuous “Answer” of the Earl of Murray, was quite as candid as it was conclusive. It was stated for Mary, that, so far from having been aware, at the time of her marriage, that Bothwell was “known,” or “affirmed,” to be the “chief author” of the horrible murder committed on her late husband, she had seen him solemnly acquitted of all suspicion by a regular trial, according to the laws of the realm, and that most of her principal nobility had solicited her to accept of him as a husband, promising him service, and her Highness loyal

obedience,—not one of them, either before or after the marriage, having warned her to avoid it, or expressed their discontent with it, till they suddenly appeared in arms;—that, at Carberry Hill, she willingly parted with Bothwell, as they themselves had seen; but that, if he were in truth guilty of the crimes imputed to him, which she did not then believe, they were to blame for permitting him to escape;—that, upon being taken into Edinburgh, where they had promised to reverence her as their Queen, she found herself treated as their captive;—that, so far from showing any persevering attachment to Bothwell, she repeatedly declared it to be her wish, that the estates of the realm should examine into all the charges which had been made against him;—that, notwithstanding, she had been forcibly carried off under shade of night, and imprisoned against her will in the Castle of Loch-Leven, where she was afterwards made to subscribe instruments of abdication, only through the fear of present death;—that, consequently, the pretended coronation of her son was an unlawful and treasonable proceeding, and the pretended nomination of the Earl of Murray as Regent, a proof of itself that force and fraud had been used; for, even supposing she had been willing to abdicate, if she had been left to her own free choice, there were others whom she would have preferred to appoint to the chief rule during her son's minority;—that, therefore, she required the Queen of England to support and fortify her in the peaceable enjoyment and government of her realm, and to declare the pretended authority usurped by others null from the beginning.[\[161\]](#)

“So far,” says Hume, “the Queen of Scots seemed plainly to have the advantage in the contest; and the English Commissioners might have been surprised, that Murray had made so weak a defence.” The truth is, that not only were the English Commissioners surprised, but the Regent himself felt painfully conscious, that he had entirely failed to offer even a plausible pretext for the dethronement of his sister, and his own usurpation. Elizabeth also, anxious as she was to befriend him, saw that she would be imperatively required, by every principle of justice and good government, to take measures against him, were the discussion allowed to terminate at the point to which it had now been brought. Means were therefore taken to inform Murray, that unless he was able to strengthen his case, and to bring his charges more directly home, the matter would in all probability go against him. Upon this the Regent held a consultation with his friends,

Maitland and Buchanan, and the necessity of bringing into play a new device, which had been prepared as a corps-de-reserve, was by all of them felt and acknowledged. Though no evidence had been adduced against her, Mary had already been accused by her brother of having had a share in the murder of Darnley. But as the charge was made soon after his return from France, it was strongly suspected to have been invented only to justify himself for retaining her in Loch-Leven. Now, however, seeing the emergency of his affairs, he determined that something like evidence of its truth should be produced. This evidence consisted of a collection of certain letters and sonnets, alleged to be in the Queen's own hand, and addressed to the Earl of Bothwell, containing passages which testified at once her love for him, and her guilt towards Darnley. But here the question very naturally occurs, why these important documents should not have been brought forward in the earlier part of the conference; and as Robertson, in endeavouring to account for the delay, appears to have fallen into a mistake, it will be worth while examining, for a moment, the soundness of his hypothesis.

The Duke of Norfolk, Elizabeth's principal Commissioner, was one of the most powerful of all her nobility, and, since Mary's arrival in England, he had formed the ambitious project of ascending the Scottish throne by means of a marriage with her. With this view, he had already engaged extensively in secret intrigues, and had, in particular, prevailed on Lethington to approve of his plans, and promise him his support. But Robertson asserts further, that soon after his arrival at York, he won over Murray also to his views, and persuaded him to keep back, for a time, the heaviest part of his accusation against Mary, that her character might not be so fatally blackened. The historian's assertion, however, is unsupported by the evidence he adduces in its favour, his references to Anderson, to Goodall, and to his own Appendix, being quite unsatisfactory. Whatever promises Murray may, at a subsequent date, have made to Norfolk, it clearly appears that no charge against Mary was delayed one hour at York, in consequence of any understanding between these two noblemen.

It had been all along the Regent's determination, not to have recourse to the letters, if he could make out a case without them; and even after he perceived that he would require their aid, he did not produce them openly, till they had been first shown privately to the English Commissioners, and

their opinion obtained concerning them. It was on the 4th of October that the conference commenced; and on the 10th, Lethington, Macgill, and Buchanan, in a secret interview with Norfolk, Sussex, and Sadler, laid before them the mysterious documents. The nature of their contents was communicated to Elizabeth on the 11th, and she was requested to mention in reply, whether, when publicly adduced and authenticated, they would be sufficient to secure Mary's condemnation. Murray, therefore, cannot at this time, have entered into any agreement with the Duke of Norfolk; for, so far from keeping back his box-full of letters, he was nervously anxious to ascertain, as speedily as possible, whether Elizabeth would attach any weight to them, or allow them to be branded as palpable forgeries. Had Robertson attended a little more to dates, he would have discovered, that so far from wishing to favour the views of the Duke of Norfolk, Murray informed Elizabeth regarding the letters and their contents, on the very day on which he gave in his first "Answer" to Mary's Commissioners. Nor had these letters been entirely unheard of till now; for, though they had never been exhibited, they had been expressly alluded to nearly a year before, in an act published by the Lords of Secret Council, on the 4th of December 1567, in which it was asserted, that by the discovery of certain of the Queen's private letters, sent by her to the Earl of Bothwell, it was "most certain that she was art and part of the actual device and deed of the murder of the King."^[162] The same assertion was subsequently repeated, founded upon the same alleged proof, in one of the Acts of the Parliament called by Murray. The only legitimate conclusion therefore to be drawn from his unwillingness to bring forward these letters at York, and make good, by their means the sole charge against the Queen which could justify his usurpation of her authority, is, that he was afraid to expose such fabrications to the eye of day, until he should have received Elizabeth's assurance that she would treat them with becoming consideration, and assign to them an air of importance, even though forgery, with brazen audacity, was stamped upon their face.^[163]

As soon as Elizabeth heard of the letters, and reflected on the turn which they might give to the case, she determined on taking the whole of the proceedings under her own immediate superintendence, and with this view removed the conference from York to Westminster. To the Commissioners previously appointed, she there added the Earls of Arundel and Leicester,

Lord Clinton, Sir Nicolas Bacon, and Sir William Cecil. Mary at first expressed satisfaction at this new arrangement, but several circumstances soon occurred which proved, that no favour was intended to her by the change. That which galled her most, was the marked attention paid to the Earl of Murray. Though Elizabeth refused Mary a personal interview, she admitted her rebellious brother to that honour, and thus glaringly deviated from the impartiality which ought to have been observed by an umpire. Accordingly, the Queen of Scots commanded her Commissioners, the Bishop of Ross and Lord Herries, to complain of this injustice. Not to be received into Elizabeth's presence, she could regard in no other light but as an assumption of superiority,—a parade of rigid righteousness,—and an affected dread of contamination, which, whilst it was meant to imply the purity of the maiden Queen, aimed at exciting suspicion of the purity of another. Continuing to believe that her Scottish rebels had been called before the English Commissioners at her instance, Mary had consented that her representatives should proceed from York to Westminster, to make her complaints as a free Sovereign. In her instructions to the Bishop of Ross, and those associated with him, she expressly told them, that the conference was appointed “only for making a pacification between her and her rebellious subjects, and restoring her to her realm and authority.” She never lost sight of the fact, that she did not appeal to Elizabeth as a suppliant, but as an equal; and she always took care to preserve high and dignified ground. But to depart from this, and before the tribunal of Hampton Court, in which such men as Cecil were able to procure any decision they chose, to undertake to answer every calumnious charge which might be brought against her, never entered into her imagination. “It is not unknown to us,” she wrote to her Commissioners from Bolton, “how hurtful and prejudicial it would be to us, our posterity and realm, to enter into foreign judgment or arbitrement before the Queen our good sister, her Council, or Commissioners, either for our estate, Crown, dignity or honour;—we will and command you, therefore, that you pass to the presence of our said dearest sister, her Council and Commissioners, and there, in our name, extend our clemency toward our disobedient subjects, and give them appointment for their offences committed against us and our realm,—so that they may live, in time coming, in surety under us their head.”—“And, in case they will otherwise proceed, then we will and command you to

dissolve this present diet and negotiation, and proceed no further therein, for the causes foresaid.”[164]

It may well be conceived, therefore, that when Mary heard of Elizabeth’s kind and familiar treatment of the Earl of Murray, “the principal of her rebels,” she was not a little indignant. She immediately sent word to her Commissioners, that, before proceeding a step further in the negotiation, she considered it right that she should be put on at least an equal footing with the pretended Regent,—for she did not choose that greater respect should be shown to her rebels than to her and her true subjects. There were other three points, of which she thought she had also just cause to complain. *First*, that though she had come into England on the assurance of friendship, and of her own free will, she had not only seen no steps taken to restore her to her realm and authority, but had most unexpectedly found herself detained a prisoner, and her confinement rendered closer every day;—*second*, that though, at Elizabeth’s request, she had desired her loyal subjects in Scotland to abstain from hostilities, yet the Earl of Murray had not been prevented from molesting and invading them;—and, *third*, that having already established the utter groundlessness of the charges brought against her, instead of finding herself reinstated on her throne, the conference had been merely removed to a greater distance, where she could not communicate with her Commissioners so frequently and speedily as was necessary. In consideration of these premises, and especially in consideration of the treatment of the Earl of Murray, “you shall break the conference,” she continued, “and proceed no further therein, but take your leave, and come away. And if our sister allege that, at the beginning, she were content our cause should be conferred on by Commissioners, it is true. But since our principal rebels have free access towards her to accuse us in her presence, and the same is denied to us, personally to declare our innocence, and answer to their calumnies, being held as prisoner, and transported from place to place, though we came into her realm, of our free will, to seek her support and natural amity, we have resolved to have nothing further conferred on, except we be present before her, as the said rebels.”[165]

In the mean time, before these letters arrived, the Commissioners had held several sittings at Westminster; and Elizabeth having personally informed Murray, that if he would accuse the Queen of Scots of a share in the murder

of Darnley, and produce the letters he had in his possession, she would authorize his continuance in the Regency, he no longer hesitated. On the 26th of November, after protesting that he had been anxious to save, as long as possible, the mother of his gracious King, James VI., from the perpetual infamy which the discovery of her shame would attach to her, and that he was now forced to disclose it, in his own defence, because it was maintained, that his previous answer to the complaint made against him was not sufficient, Murray, in conjunction with his colleagues, presented to the English Commissioners an “Eik” or addition to their “Answer,” in which they formally charged Mary with the murder. As to the reluctance so hypocritically avowed, it has been already seen, that so far back as December 1567, precisely the same charge, though unsupported by any evidence, was brought forward in the Scottish Parliament; and having then served its purpose, was allowed to lie dormant for eleven months. It is true, that there was then, no less than now, a palpable contradiction between this accusation, and the grounds which had always previously been assigned, both for Mary’s “sequestration” in Loch-Leven, and her alleged voluntary abdication. It was not till the public mind had been inflamed, and till opposing interests contributed to involve the truth in obscurity, that the notorious fact was denied or concealed, that Mary had been forced into an unwilling marriage with Bothwell, and that her abduction, and imprisonment in the Castle of Dunbar, were themselves an answer to any suspicion, that she was one of his accomplices in Darnley’s slaughter. But now that Mary was a prisoner, in the hands of a jealous rival, the Regent naturally supposed, that some contradictions would be overlooked; and all at once, assuming a tone of the utmost confidence, and undertaking “to manifest the naked truth,” he ventured on couching his assertion in these terms:—“It is certain, and we boldly and constantly affirm, that as James, some time Earl of Bothwell, was the chief executor of the horrible and unworthy murder, perpetrated in the person of King Henry, of good memory, father to our Sovereign Lord, and the Queen’s lawful husband,—so was she of the fore-knowledge, counsel, and device, persuader and commander of the said murder to be done, maintainer and fortifier of the executors thereof, by impeding and stopping of the inquisition and punishment due for the same, according to the laws of the realm, and, consequently, by marriage with the said James, some time Earl Bothwell, dilated and universally esteemed chief author of the above named

murder.”^[166] In support of this new charge, the letters and other documents were referred to, and it was promised to produce them as soon as they were called for.

Before they were able to inform their mistress of the unexpected turn which affairs had taken, Mary’s Commissioners received her instructions from Bolton, to proceed no further in the conference. They therefore stated to Elizabeth, that though they were heartily sorry to perceive their countrymen, with a view to colour their unjust and ungrateful doings, had committed to writing a charge of so shameful a sort, they nevertheless could not condescend to answer it, having begun the conference at York as plaintives, and having afterwards found their relative positions altered, Murray being admitted into her Majesty’s presence, to advance his calumnious falsehoods, and Mary being expected to defend herself against them, though kept in imprisonment at a distance. At the same time, according to Mary’s commands, they said that, although the proceedings of the Regent were altogether intolerable and injurious, they would not yet dissolve the conference, provided their mistress were permitted to appear in her own person before the Queen of England and her nobility.^[167] To this request Elizabeth would not agree. Her real motive was the fear of truth; that which she assigned was sufficiently preposterous. “As to your desire,” she said to Mary’s Commissioners, “that your Sovereign should come to my presence to declare her innocence in this cause, you will understand, that from the beginning why she was debarred therefrom, was through the bruit and slander that was passed upon her, that she was participant of such a heinous crime as the murder of her husband; and I thought it best for your mistress’s weal and honour, and also for mine own, that trial should be taken thereof before her coming to me; *for I could never believe, nor yet will, that ever she did assent thereto.*”^[168] If Elizabeth had been anxious to see justice done, she could very easily have overcome the squeamish dread of being brought into contact with Mary, the more especially as she arrogated for herself the superior character of judge, as it was only “bruit and slander” that implicated her “dearest sister,” and as she did not, according to her own confession, believe her guilty, *even after she had been informed of the existence of the love-letters, and made acquainted with their contents.* Both parties, however, continuing alike resolute, the

Commissioners of the Queen of Scots intimated, that in so far as they were concerned, the conference might be considered closed.

It is here of some importance to point out, that both Robertson and Hume have deduced an argument against Mary, from their own erroneous manner of stating the proceedings of the conference at Westminster. According to the narrative of both these historians, the reader is led to believe, that Mary was perfectly willing to go on till the moment that Murray accused her of being a sharer in Darnley's murder, but that, as soon as this charge was made, she drew back as if afraid to meet it. Robertson and Hume would have themselves discovered how unfair this view of the matter was, had they taken the trouble to attend to the dates of the documents connected with the transaction. By these they would have seen, that Mary refused to proceed on the 22d of November 1568, unless admitted equally with the Earl of Murray into Elizabeth's presence, and that Murray's accusation was not produced till the 26th.^[169] Thus so far from "recoiling from the inquiry at the critical moment," as Hume expresses it, she did not hesitate to proceed until she had rebutted every thing which had been advanced against her, and stood on even higher ground than before. It will besides be immediately found, that notwithstanding her previous determination to the contrary, she was no sooner informed of the existence of letters alleged to have been written by her to Bothwell, than she was willing to enter into a proof of their authenticity.

It would not have suited Elizabeth's views to allow the contending parties to slip through her fingers, before arriving at any definite conclusion. She therefore fell upon an expedient by which she hoped, although the Queen of Scots had withdrawn from the conference, and it consequently should have been considered at an end, to attach to her so great a degree of suspicion, that she might safely detain her from her own realm. She ordered Murray and his colleagues to be called before her Commissioners; and the scene having been arranged before-hand with them, she commanded the Regent to be rebuked for accusing his native Sovereign of a crime so horrible, that if it could be proved true, she would be infamous to all princes in the world. The Regent readily answered, that finding he had displeased her Majesty, he had no objections to show the Commissioners "a collection made in writing of the presumptions and circumstances" by which he had been guided in the charge he had advanced against Mary, and which would satisfy them that it

had not been made without due grounds and consideration. This was all that Elizabeth wished. In however glaring a point of view it placed her injustice, she rejoiced that Mary's Commissioners were no longer attending the conference; for she would now be able to represent to the world, without fear of contradiction, the overwhelming strength of Murray's evidences, and hold them out as the justification of her own severity. These hopes and plans, however, were very nearly frustrated by the boldness and decision of Mary's conduct. As soon as she received intelligence of this new accusation, and of the means by which it was to be supported, she resolved that her own innocence and its falsehood should be made apparent; and for this purpose, she even consented to depart from her former demand of being personally admitted to Elizabeth's presence. She wrote to her Commissioners to resume the duties which they had intermitted, and to renew the conference once more. "We have seen the copy," she said, "which you have sent us of the false and unlawful accusation presented against us by some of our rebels, together with the declarations and protestations made by you thereon before the Queen of England, our good sister's Commissioners, wherein you have obeyed our commands to refuse consenting to any further proceedings, if the presence of our sister were refused us. But that our rebels may see that they have not closed your mouths, you may offer a reply to the pretended excuse and cloak of their wicked actions, falsity and disloyalty, whereof you had no information before, it being a thing so horrible, that neither we nor you could have imagined it would have fallen into the thoughts of the said rebels."^[170]

A reply was accordingly made, in which the "Eik" was maintained to be false in every particular, and nothing but a device, contrived to justify Murray's own "detestable doings and ambitious purpose." The writings, or at least copies of them, which had been adduced in support of the Regent's charge, were required to be delivered; and it was intimated, that Mary would undertake to prove, that the very men who now accused her of murder, were themselves the first inventors, and some of them the executors of the deed. It will at first appear hardly credible, but it is nevertheless true, that Elizabeth refused to allow duplicates of the evidence against her to be sent to Mary. On the contrary, she now hastened to break up the conference; Murray was sent back to his Regency, and the Queen of Scots detained in closer captivity than ever; and though she even yet petitioned to see the

writings, Elizabeth refused to surrender them, except upon conditions with which Mary's Commissioners would not comply. They had formally accused the Regent and his adherents of a share in Bothwell's guilt; yet the latter had been permitted "to depart into Scotland without abiding to hear the defence of the Queen of Scotland's innocency, nor the trial and proof of their detection, which was offered to verify and prove them guilty of the same crime, but were fully released, and no end put to the cause, according to the equity and justice thereof. It did not appear meet, therefore, that their Sovereign should make any further answer, unless her rebels were made to remain within the realm until the trial ended."[\[171\]](#)

As no decision had been pronounced against Mary, and as the Regent had been allowed to depart, leave was also asked for her to return to Scotland, or proceed to France, as she might think fit. This, however, was expressly refused; but it was insultingly promised, that if she would yield up the crown and government of Scotland in favour of her son the Prince, she would be permitted to remain privately and quietly in England. Mary, of course, rejected the proposal with scorn. "The eyes of all Europe," she said, "are upon me at this moment; and were I thus tamely to yield to my adversaries, I should be pronouncing my own condemnation. A thousand times rather would I submit to death, than inflict this stain upon my honour. The last words I speak shall be those of the Queen of Scotland."[\[172\]](#)

Thus ended this famous conference, which Elizabeth had opened with so many professions of friendship, which she conducted with so much duplicity, and which she concluded without any conclusion, except that of endeavouring to blacken the character of her sister Mary, and give plausibility to her continued imprisonment. To a certain extent it answered her purpose. She had won the reputation, in the eyes of those who looked only at the surface of things, of having endeavoured to do justice between the Queen of Scots and her nobility; she had secured the favour of the Regent; and had obtained a strong hold of the person of her rival, whom she now doomed to lingering and hopeless captivity.[\[173\]](#)

CHAPTER X.

MARY'S EIGHTEEN YEARS' CAPTIVITY.

The last eighteen years of Mary's life were spent in imprisonment, and are comparatively a blank in her personal history. She was transported, at intervals, from castle to castle, and was intrusted sometimes to the charge of one nobleman, and sometimes of another; but for her the active scenes of life were past,—the splendour and the dignity of a throne were to be enjoyed no longer,—the sceptre of her native country was never more to grace her hand,—her will ceased to influence a nation,—her voice did not travel beyond the walls that witnessed her confinement. She came into England at the age of twenty-five, in the prime of womanhood, the full vigour of health, and the rapidly ripening strength of her intellectual powers. She was there destined to feel in all its bitterness, that “hope delayed maketh the heart sick.” Year after year passed slowly on, and year after year her spirits became more exhausted, her health feebler, and her doubts and fears confirmed, till they at length settled into despair. Premature old age overtook her, before she was past the meridian of life; and for some time before her death, her hair was white “with other snows than those of age.” Yet, during the whole of this long period, amid sufferings which would have broken many a masculine spirit, and which, even in our own times, have been seen to conquer those who had conquered empires, Mary retained the innate grace and dignity of her character, never forgetting that she had been born a queen, or making her calamities an excuse for the commission of any petty meanness, which she would have scorned in the day of her prosperity. Full of incident as her previous life had been,—brilliant in many of its achievements, fortunate in some, and honourable in all, it may be doubted whether the forbearance, fortitude, and magnanimity, displayed in her latter years, does not redound more highly to her praise, than all that preceded. Many important events took place, and intrigues of various kinds were carried on, between the years 1569, and 1586, but as it is not the intention of this work to illustrate any parts of the history either of Scotland or England, which do not bear immediate

reference to the Queen of Scots, nothing but a summary of them, in so far as they were connected with her, need be introduced here.

It was on the 12th of January 1569, that the Earl of Murray and the Scottish Commissioners obtained permission to return home, the Regent having previously received from Elizabeth a loan of 5000*l.*, lent him “for the maintenance of peace between the realms of England and Scotland,” or in other words, as a bribe to secure his co-operation in all time coming.^[174] Mary, on the contrary, was removed from Bolton, to the Castle of Tutbury in Staffordshire, farther in the interior of England, and was placed under the charge of Lord Shrewsbury, to whom Tutbury belonged. Elizabeth was unwilling to allow her captive to remain long in any one place, lest she should form connections and friendships, which might lead to arrangements for an escape. Besides, Sir Francis Knollys had represented, that unless it was determined to keep the Scottish Queen so close a prisoner, that she should not be allowed to ride out occasionally, which would be death to her, she could not remain any longer at Bolton, for want of forage and provisions.^[175] During the year, she was taken about by Shrewsbury, on occasional visits, to several mansions which he possessed in different parts of England; but Tutbury was her head-quarters; and wherever she went, she was very strictly guarded. “If I might give advice,” says one of Cecil’s friends, in a letter he wrote to him about this time, “there should very few subjects of this land have access to a conference with this lady; for, beside that she is a goodly personage (and yet in truth not comparable to our Sovereign), she hath withal an alluring grace, a pretty Scotch speech, and a searching wit, clouded with mildness. The greatest person about her is the Lord Livingston, and the lady his wife, which is a fair gentlewoman. She hath nine women more, fifty persons in her household, with ten horses. Lord Shrewsbury is very watchful of his charge; but the Queen overwatches them all, for it is one of the clock at least every night ere she go to bed. I asked her Grace, since the weather did cut off all exercise abroad, how she passed the time within? She said, that all the day she wrought with her needle, and that the diversity of the colours made the work seem less tedious; and she continued so long till even pain made her give over; and with that laid her hand upon her left side, and complained of an old grief newly increased there. She then entered upon a pretty disputable comparison between carving, painting, and working with the needle,

affirming painting, in her own opinion, for the most commendable quality.”^[176]

But though Mary thus attempted to beguile her solitude, the thought of her unjust imprisonment never ceased to prey upon her mind. Elizabeth and Cecil tried to defend themselves upon four grounds; but they were all alike weak. They said, *first*, that she was a lawful prisoner by good treaties. But as they did not mention to what treaties they alluded, Chalmers supposes they meant the same kind of treaties “which justify the Barbary Powers to detain all Christians as slaves.” They said, *secondly*, that she could not be suffered to depart, till she had satisfied the wrong she had done to Elizabeth, in openly claiming the crown of England, and not making any just recompense. But the disavowal of that claim was all the recompense that was necessary; and though Mary had made the claim when married to Francis, she had expressly given it up ever since his death. They said, *thirdly*, that Elizabeth possessed a superiority over the crown of Scotland. But this antiquated notion, arising from the subservience of John Baliol to Edward I., in 1292, had long been relinquished, and had never been acknowledged in any treaty between the two nations. They said, *fourthly*, that the Queen of England was bound to attend to the petition of her subjects “in matters of blood.” But though Lord and Lady Lennox had been brought forward to present a petition against Mary, it was evident that Elizabeth had no power either to grant or refuse such petition, the Queen of Scots not being one of her subjects.

Though Mary’s enemies, however, prevailed, her friends were by no means discomfited. In Scotland, Murray found that only one half of the kingdom was disposed to submit to his authority; and it was not till after a protracted and disastrous civil war, that he was able to free himself from the resolute hostility of Chatelherault, Argyle, Huntly, and others. In England, the Duke of Norfolk was more active than ever in his intrigues. So far from being alarmed by the pretended discoveries to her prejudice, he openly expressed his conviction of their falsehood, and prevailed upon a number of the English nobility to second, to the best of their power, his honourable proposals to the Queen of Scots.^[177] Though it does not appear that he was able to obtain a personal interview with Mary, many letters passed between them; and as she soon perceived that her best chance of restoration to the throne of Scotland was by joining her interests with those of Norfolk,

(whose power and estates were so extensive, that Melville calls him the greatest subject in Europe,) she promised that, though little disposed to form a new alliance, after the experience she had already had of matrimony, she would nevertheless bestow her hand on him as soon as she should regain her liberty, through his means. The Duke's machinations, however, which had been hitherto carefully concealed from Elizabeth, at length reached her ears, and in the utmost indignation she scrupled not, with her usual arbitrary violence, to send him to the Tower, where she kept him a close prisoner for upwards of nine months,—while the Earls of Arundel, Pembroke, and Leicester, who had favoured his views, all fell into disgrace. Mary was watched more narrowly than before; and Hastings, Earl of Huntingdon, who pretended a superior right to the English succession, was joined with Shrewsbury in the commission of superintending her imprisonment.

Norfolk had not been long in the Tower, when an open rebellion broke out in the Northern counties, headed by the Earls of Northumberland and Westmoreland. It is difficult to ascertain the precise causes which led to it. Though there is no reason to believe that Mary gave it any encouragement, it seems to have borne some reference to her; for in the "Declaration" published by the Earls, one ground of complaint was the want of a law for settling the succession. They marched also towards Tutbury, with the evident intention of restoring Mary to freedom, which they might have succeeded in doing, had she not been removed with all expedition to Coventry. Elizabeth sent an army against the rebels, and they were speedily dispersed;—Westmoreland concealed himself on the Borders; but Northumberland, proceeding further into Scotland, was seized by Murray, and confined in the castle of Loch-Leven,—probably in the very apartments which Mary had occupied.

The year 1570 opened with an event which materially affected the state of public affairs in Scotland, and which to Mary was the occasion of many mingled feelings. Elizabeth, perceiving the danger which accrued to herself from detaining a prisoner of so much importance, had commenced a negotiation with the Earl of Murray for replacing his sister in his hands, when she received the unexpected and unwelcome intelligence of his assassination. The manner and cause of his death are sufficiently known to all who are acquainted with Scottish History; and though nothing can justify

a murder committed to gratify private revenge, yet it is impossible to read the story of the wrongs which the Regent had heaped upon Hamilton of Bothwellhaugh, without feeling towards the latter more of pity than of hatred.

Next to Mary herself, no one had held so prominent a place in Scotland as the Earl of Murray; and there is no one concerning whose character historians have more widely differed. There can be no doubt that, like most human characters, it was a very mixed one; but it is to be feared that the evil preponderated. Ambition was his ruling passion, and the temptations which his birth, rank, and fortune, held out for its indulgence, unfortunately led him into errors and crimes which, had he been contented with an humbler sphere, he would in all probability have avoided. There are various sorts of ambition, and the most dangerous is not always that which is most apparent and reckless. Murray was ambitious under the cloak of patriotism, and the mask of religion. He had enough of knowledge of mankind to be aware, that no one could so safely play the villain as he who maintained a high name for integrity. Hence, though he may have loved honesty to a certain extent, for its own sake, he loved it a great deal more for the sake of the advantages to be derived from a reputation for possessing it. He was perhaps constitutionally religious; but though he was very willing to fight as a leader in the armies of the Reformation, it is somewhat questionable that he would have served the good cause with equal zeal, had he been obliged to fill only a subordinate place in its ranks. There is every reason to believe that in many cases he did good only that he might the more safely do wrong; and that he rigidly observed all the external forms of religion, only that the less suspicion might attach to him when he infringed its precepts. He had enough of moral rectitude to understand the distinctions between right and wrong, but too much selfishness to observe them unostentatiously, and too much prudence to disregard them openly. Thus to the casual observer he appeared strong in unshaken integrity, and full of the odour of sanctity. He possessed the art, which few but profound politicians can acquire, of going in the wrong path, as if he were in the right, and of gaining more estimation for his errors, than others do for their virtues. His conduct towards his sister was altogether unjustifiable; yet with the exception of his rebellion on the occasion of her marriage with Darnley, which was the least objectionable, because the boldest and most straight-

forward part of the whole, he contrived to inflict, and to see inflicted, the deadliest injuries, as if he unwillingly submitted to them, rather than actively instigated them. He had little warmth of feeling; but what he had, prompted him to affect to feel as he never in reality did. He possessed all the talent compatible with cunning; he had abundance of military skill, and was not deficient in personal courage. He was not often cruel, because he saw it for his interest to be humane; he was a patron of literature, and attentive to his friends, because patronage and a numerous body of friends confer power. He affected nevertheless an ostentatious austerity in his manners, which it was impossible to reconcile with the worldliness of his pursuits. In short, he had so involved his whole character in disingenuousness, under a show of every thing that was exactly the reverse, that he was probably not aware himself when he acted from good, and when from bad motives. He had far too much ambition to be an upright man, and far too much good sense to be an undisguised villain. Notwithstanding all the ill usage she had received from him, Mary shed tears when she heard of his untimely death; and to record this fact, is the highest eulogium which need be passed on his memory.

The Scots chose the Earl of Lennox Regent in the place of Murray, whilst Elizabeth, says Robertson, “adhering to her old system with regard to Scottish affairs, laboured, notwithstanding the solicitations of Mary’s friends, to multiply and to perpetuate the factions which tore in pieces the kingdom.” At the same time, she pretended to enter into a new negotiation with Mary, as she frequently did at subsequent periods, when hard pressed by any of the more powerful friends of the Queen of Scots. But after appointing Commissioners, and requiring Morton and others to meet them from Scotland, the affair ended as it began; Mary still continued in her prison, and Morton returned home, no proposals having been made, to which either of the parties would agree. About this period Elizabeth’s temper was particularly soured, by an excommunication which Pope Pius V. issued against her, and which she erroneously supposed had been prepared in concert with Mary. A person of the name of Felton, affixed a copy of the Pope’s Bull on the gate of the Bishop of London’s palace, and, refusing either to fly or conceal himself, he was seized and executed for the crime. In her ill humour, Elizabeth also ordered that Mary should not be allowed to go abroad, and she did not revoke this order, until strong representations

were made to her of the cruel effect produced by it on the health of the Queen, whose constitution was now much broken. The weakness in one of her sides which had long pained her, had of late greatly increased, and she was obliged to have recourse to strengthening baths of white wine.^[178] During this year she was removed from Tutbury to Chatsworth, and from Chatsworth she was taken to the Earl of Shrewsbury's castle at Sheffield,—“a town,” says Camden, “of great renown for the smiths therein.” She had not at the most above thirty attendants, among whom the principal were Lord and Lady Livingston, her young friend William Douglas, Castel her French physician, and Roulet her French Secretary. The latter died when she was at Sheffield, and his death afflicted her much. All communication with her friends at a distance was denied her; and her letters were continually intercepted, and either copies, or the originals, sent to Cecil. Yet she had too proud a spirit to give way to unavailing complaints; and when she wrote to inquire after her faithful servant the Bishop of Ross, whom Elizabeth had put into confinement, from a jealousy of his exertions for his mistress, all she allowed herself to say was, that she pitied poor prisoners, for she was used like one herself.

In the year 1571, the Duke of Norfolk, who had been by this time discharged from the Tower, had the imprudence to renew his intrigues for the liberation of Mary, and his own marriage with her. The secret correspondence was renewed between them; and the Queen of Scots sent him, says Stranguage, “a long commentary of her purposes, and certain love-letters in a private character, known to them two.” The Duke was now resolved either to make or mar his fortune; and, deeply engaging in the dangerous game he was playing, he scrupled not to have recourse to many highly treasonable practices. He set on foot negotiations both with one Rodolphi, a Florentine merchant, residing in London, and an agent of the Court of Rome, and with the Spanish ambassador; and with them he boldly entered into an extensive conspiracy, which, if successful, would entirely have subverted the Government. His plan was, that the Duke of Alba should land in England with a numerous army, and should be immediately joined by himself and friends. They were then to proclaim Mary's right to the throne, call upon all good Catholics to support them, and march direct for London. The Pope, and the King of Spain, readily entered into the scheme; and every thing appeared to be proceeding according to his wishes, when

the treachery of one of Norfolk's servants made Elizabeth acquainted with the whole conspiracy. The Duke was immediately seized, and thrown into prison; and, after several private examinations, he was tried for high treason, found guilty, and condemned to death. Elizabeth, who cultivated a reputation for extreme sensibility, affected the greatest reluctance to sign the warrant for Norfolk's execution. But she was at length able to shut her heart against his many noble qualities, his princely spirit, and valuable services, and she ordered him to be led to the scaffold. He there confessed that he had been justly found guilty, in so far as he had dealt with the Queen of Scots, in weighty and important business, without the knowledge of his own Queen. He died, as he had lived, with undaunted courage. When the executioner offered him a napkin to cover his eyes, he refused it, saying, "I fear not death;" and, laying his head on the block, it was taken off at one blow.

Elizabeth was extremely anxious to implicate Mary in Norfolk's guilt, and, for this purpose, sent Commissioners to her to reproach her with her offences. Mary heard all they had to say with the utmost calmness; and, when they called upon her for her answer, she replied, that though she was a free Queen, and did not consider herself accountable, either to them or their mistress, she had, nevertheless, no hesitation to assure them of the injustice of their accusations. She protested that she had never imagined any detriment to Elizabeth by her marriage with Norfolk,—that she had never encouraged him to raise rebellion, or been privy to it, but was, on the contrary, most ready to reveal any conspiracy against the Queen of England which might come to her ears,—that though Rodolphi had been of use to her in the transmission of letters abroad, she had never received any from him,—that as to attempting an escape, she willingly gave ear to all who offered to assist her, and in hope of effecting her deliverance, had corresponded with several in cipher,—that so far from having any hand in the Bull of excommunication, when a copy of it was sent her, she burned it after she had read it,—and that she held no communication with any foreign State, upon any matters unconnected with her restoration to her own kingdom. Satisfied with this reply, the Commissioners returned to London.

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All the miseries of civil war were in the meantime desolating the kingdom of Scotland. The Earl of Lennox was a feeble and very incompetent

successor to Murray. Perceiving him unable to maintain his authority, and observing that the current of popular feeling was becoming stronger against the unjust imprisonment which Mary was suffering, many of those who had stood by Murray deserted to the opposite faction. Among the rest were Secretary Maitland and Kircaldy of Grange, the first the ablest statesman, and the second the best soldier in the country. It was now almost impossible to say which side preponderated. Both parties levied armies, convoked Parliaments, fought battles, besieged towns, and ordered executions. "Fellow-citizens, friends, brothers," says Robertson, "took different sides, and ranged themselves under the standards of the contending factions. In every county, and almost in every town and village, *Kingsmen* and *Queensmen* were names of distinction. Political hatred dissolved all natural ties, and extinguished the reciprocal good-will and confidence which hold mankind together in society. Religious zeal mingled itself with these civil distinctions, and contributed not a little to heighten and to inflame them." One of the most successful exploits performed by the Regent, was the taking of the Castle of Dumbarton from the Queen's Lords. The Archbishop of St Andrews, whom he found in it, was condemned to be hanged without a trial, and the sentence was immediately executed. No Bishop had ever suffered in Scotland so ignominiously before; and while the King's adherents were glad to get rid of one who had been very zealous against them, the nobles who supported the Queen were exasperated to the last degree by so violent a measure, and their watchword became,—*"Think on the Archbishop of St Andrews!"* Lennox was sacrificed to his memory; for the town of Stirling having been suddenly taken, in an expedition contrived by Grange, Lennox, after he had surrendered himself prisoner, was shot by command of Lord Claud Hamilton, brother to the deceased Archbishop; and in his room, the Earl of Mar was elected Regent.

In the year 1572, Mary's cause sustained a serious injury, by the atrocious massacre of the Hugonots in France, which exasperated all the Protestants throughout Europe, and made the very name of a Catholic Sovereign odious. Although Mary herself, so far from having lent any countenance to this massacre, had expressly avowed her unwillingness to constrain the conscience of any one, and had been all her life the strenuous advocate of toleration, yet, recollecting her connexion with Charles IX. and Catharine de Medicis, whose sanguinary fury made itself so conspicuous on this

melancholy occasion, her enemies took care that she should not escape from some share of the blame. Elizabeth, in particular, taking advantage of the excitement which had been given to public feeling, used every exertion to secure the circulation of Buchanan's notorious "Detection of Mary's Doings," which had been published a short time before. She ordered Cecil to send a number of copies to Walsingham, her ambassador at Paris, that they might be presented to the King, and leading persons of the French Court. "It is not amiss," Cecil wrote, "to have divers of Buchanan's little Latin books to present, if need be, to the King, as from yourself, and likewise to some of the other noblemen of his Council; for they will serve to good effect to disgrace her, *which must be done before other purposes can be attained.*" Cecil himself printed and circulated a small treatise, in the shape of a letter, from London to a friend at a distance, giving an account of the "Detection," and the credit it deserved. The publication, on the other hand, of Bishop Lesley's "Defence of Queen Mary's Honour," was positively interdicted; and Lesley was obliged to send the manuscript abroad, before he was able to present it to the world. To such low and cowardly devices were Elizabeth and her Minister under the necessity of resorting, to blacken the character of Mary, and justify their own iniquitous proceedings![\[180\]](#)

In Scotland, too, Mary's party, beginning to see the hopelessness of the cause, was gradually dwindling away. Through Mar's exertions, a general peace might have been obtained, had not Morton's superior influence and persevering cruelty drawn out the civil war to the last dregs. Mar, finding himself thwarted in every measure he proposed for the tranquillity of his country, fell into a deep melancholy, which ended in his death, before he had been a year in office. Morton succeeded him without opposition, and immediately proceeded to very violent measures against all the Queen's friends, who were now divided into two parties, the one headed by Chatelherault and Huntly, and the other by Maitland and Grange. After gaining some advantages over both, he concluded a peace with the former; and having invested the Castle of Edinburgh on all sides, in conjunction with some troops which Elizabeth sent to his assistance, he at length forced the latter to surrender. Kircaldy of Grange, the bravest and most honest man in Scotland, was hanged at the Cross of Edinburgh; and Secretary Maitland, who, with all his talents, had vacillated too much to be greatly respected,

anticipating a similar fate, avoided it by a voluntary death, “ending his days,” says Melville, “after the old Roman fashion.”

About the same time, John Knox concluded his laborious, and, in many respects, useful life, in the 67th year of his age. Appearing as he did, in treacherous and turbulent times, the rough unpolished integrity of Knox demands the higher praise, because it enabled him the more successfully to maintain an influence over the minds of his countrymen, and effect those important revolutions in their modes of thought and belief, which his superior abilities pointed out to him as conducive to the moral and religious improvement of the land. He had many failings, but they were to be attributed more to the age to which he belonged, than to any fault of his own. His very violence and acrimony, his strong prejudices, and no less confirmed partialities, were perhaps the very best instruments he could have used for advancing the cause of the Reformation. He was without the cunning of Murray, the fickleness of Maitland, or the ferocity of Morton. He pursued a steady and undeviating course; and though loved by few, he was revered by many. Courage, in particular,—and not the mere common-place courage inspired by the possession of physical strength, but the far nobler courage arising from a consciousness of innate integrity,—was the leading feature of his mind. Morton never spoke more truly than when he said at the grave of Knox,—“Here lies he who never feared the face of man.”

In the year 1573, Mary, at her own earnest request, was removed, for the benefit of her health, from Sheffield to the Wells at Buxton. The news she had lately received from Scotland, and the apparent annihilation of all her hopes, had affected her not a little. “Though she makes little show of any grief,” the Earl of Shrewsbury wrote to Cecil, “yet this news nips her very sore.” At Buxton, which was then the most fashionable watering-place in England, she was obliged to live in complete seclusion; and it may easily be conceived, that the waters could be of little benefit to her, without the aid of air, exercise, and amusement. Lesley, though detained at a distance, took every means in his power to afford her consolation, and wrote two treatises, after the manner of Seneca, expressly applicable to her condition; both of which he sent to her. The first was entitled,—“*Piæ afflictæ animi meditationes divinaque remedia*,” and the second,—“*Tranquillitatis animi conservatio et munimentum*.” She thanked him for both of these

productions, and assured him, that she had received much benefit from their perusal. With many parts of the first, in particular, she was so pleased, that she occupied herself in paraphrasing them into French verse.^[181] Lesley was soon afterwards allowed by Elizabeth to pass into France, where he long continued to exert himself in the cause of his mistress, visiting, on her account, several foreign courts, and exposing himself to many inconveniences and hardships. He died at a good old age in 1596, and his memory deserves to be cherished, both for the many amiable qualities he possessed in private life, and his inflexible fidelity and attachment to the Queen of Scots.^[182]

In 1574, a fresh misfortune overtook Mary, in the death of her brother-in-law, Charles IX. He was succeeded on the throne by the Duke of Anjou, who took the title of Henry III., and was little inclined to exert himself in the cause of his sister, having been long at enmity with the house of Guise. But a still more fatal blow was the death of her uncle, the Cardinal of Lorraine, who had ever made it a part of his policy to identify her interests with his own, and to whom she had always been accustomed to turn, with confidence, in her greatest distresses.

From this period to the year 1581, Mary seems to have been nearly forgotten by all parties. Elizabeth, satisfied with keeping her rival securely imprisoned, busied herself with other affairs of political moment; and, in Scotland, as the Prince grew up, and years passed on, death, or other causes, gradually diminished the number of Mary's adherents; and though the country was far from being in tranquillity, the dissensions assumed a new shape, for even they who opposed the regency of the Earl of Morton, found it more for their interest to associate themselves with the young King than with the absent Queen. Mary became gradually more solitary and more depressed. Though yet only in the prime of womanhood, she had lived to see almost all her best friends, and some of her worst enemies, depart from the world before her. The specious Murray,—the imbecile Lennox,—Hamilton, the last supporter of Catholicism,—Knox, the great champion of the Reformation,—the gentle Mar,—the brilliant but misguided Norfolk,—the gallant Kircaldy,—and the sagacious Maitland,—had all been removed from the scene; and in the melancholy solitude of her prison, she wept to think that she should have been destined to survive them. But Elizabeth had no sympathy for her griefs, and every rumour which reached her ear, only

served as an excuse for narrowing and rendering more irksome Mary's captivity. Even the few female friends who had been at first allowed to attend her, were taken from her; no congenial society of any sort was allowed her; it was rarely, indeed, that she was permitted to hunt or hawk, or take any exercise out of doors; and the wearisome monotony of her sedentary life, at once impaired her health and broke down her spirits. The manner in which she spoke of her own situation, in letters she wrote about this period to France and elsewhere, is not the less affecting, that it is characterized by that mental dignity and queenly spirit which no afflictions could overcome. "I find it necessary," she wrote from Tutbury in 1680, "to renew the memorial of my grievances respecting the remittance of my dowry, the augmentation of my attendants, and a change of residence,—circumstances apparently trivial, and of small importance to the Queen, my good sister, but which I feel to be essential to the preservation of my existence. Necessity alone could induce me to descend to earnest and reiterated supplications, the dearest price at which any boon can be purchased. To convey to you an idea, of my present situation, I am on all sides enclosed by fortified walls, on the summit of a hill which lies exposed to every wind of heaven: within these bounds, not unlike the wood of Vincennes, is a very old edifice, originally a hunting lodge, built merely of lath and plaster, the plaster in many places crumbling away. This edifice, detached from the walls, about twenty feet, is sunk so low, that the rampart of earth behind the wall is level with the highest part of the building, so that here the sun can never penetrate, neither does any pure air ever visit this habitation, on which descend drizzling damps and eternal fogs, to such excess, that not an article of furniture can be placed beneath the roof, but in four days it becomes covered with green mould. I leave you to judge in what manner such humidity must act upon the human frame; and, to say every thing in one word, the apartments are in general more like dungeons prepared for the reception of the vilest criminals, than suited to persons of a station far inferior to mine, inasmuch as I do not believe there is a lord or gentleman, or even yeoman in the kingdom, who would patiently endure the penance of living in so wretched an habitation. With regard to accommodation, I have for my own person but two miserable little chambers, so intensely cold during the night, that but for ramparts and entrenchments of tapestry and curtains, it would be impossible to prolong my existence; and of those who have sat up with me during my illness, not

one has escaped malady. Sir Amias can testify that three of my women have been rendered ill by this severe temperature, and even my physician declines taking charge of my health the ensuing winter, unless I shall be permitted to change my habitation. With respect to convenience, I have neither gallery nor cabinet, if I except two little pigeon-holes, through which the only light admitted is from an aperture of about nine feet in circumference; for taking air and exercise, either on foot or in my chair, I have but about a quarter of an acre behind the stables, round which Somers last year planted a quickset hedge, a spot more proper for swine than to be cultivated as a garden; there is no shepherd's hut but has more grace and proportion. As to riding on horseback during the winter, I am sure to be impeded by floods of water or banks of snow, nor is there a road in which I could go for one mile in my coach without putting my limbs in jeopardy; abstracted from these real and positive inconveniences, I have conceived for this spot an antipathy, which, in one ill as I am, might alone claim some humane consideration. As it was here that I first began to be treated with rigour and indignity, I have conceived, from that time, this mansion to be singularly unlucky to me, and in this sinister impression I have been confirmed by the tragical catastrophe of the poor priest of whom I wrote to you, who, having been tortured for his religion, was at length found hanging in front of my window.”[183]

In 1581, Mary made a still more melancholy representation of her condition. “I am reduced to such an excessive weakness,” she says, “especially in my legs, that I am not able to walk a hundred steps, and yet I am at this moment better than I have been for these six months past. Ever since last Easter, I have been obliged to make my servants carry me in a chair; and you may judge how seldom I am thus transported from one spot to another, when there are so few people about me fit for such an employment.”[184] In the midst of all this distress, it was only from resources within herself that she was able to derive any consolation. Her religious duties she attended to with the strictest care, and devoted much of her time to reading and writing. At rare intervals, she remembered her early cultivation of the Muses; and she even yet attempted occasionally to beguile the time with the charms of poetry. She produced several short poetical compositions during her imprisonment; and of these, the following Sonnet,

embodying so simply and forcibly her own feelings, cannot fail to be read with peculiar interest:

“Que suis je, hélas! et de quoi sert ma vie?
Je ne suis fors q’un corps privé de coeur;
Un ombre vain, un objet de malheur,
Qui n’a plus rien que de mourir envie.
Plus ne portez, O ennemis, d’envie
A qui n’a plus l’esprit à la grandeur!
Je consomme d’excessive douleur,—
Votre ire en bref ce verra assouvie;
Et vous amis, qui m’avez tenu chere,
Souvenez vous, que sans heur—sans santé
Je ne saurois aucun bon œuvre faire:
Souhaitez donc fin de calamité;
Et que ci bas étant assez punie,
J’aye ma part en la joye infinie.”[\[185\]](#)

But the most celebrated of all Mary’s efforts during her captivity, is a long and eloquent letter she addressed to Elizabeth, in 1582, when she heard that her son’s person had been seized at the Raid of Ruthven,—and when, dreading, with maternal anxiety, that he might be involved in the woes which had overtaken herself, she gave vent to those feelings which had long agitated her bosom, and which she now, with pathetic force, laid before Elizabeth, as the author of all her misfortunes. The ability and vigour with which this letter is written, well entitle it, as Dr Stuart has remarked, to survive in the history of the Scottish nation. It was Mary’s own wish that it should do so. “I am no longer able,” she says, “to resist laying my heart before you; and while I desire that my just complaints shall be engraved in your conscience, it is my hope that they will also descend to posterity, to prove the misery into which I have been brought by the injustice and cruelty of my enemies. Having in vain looked to you for support against their various devices, I shall now carry my appeal to the Eternal God, the Judge of both, whose dominion is over all the princes of the earth. I shall appeal to him to arbitrate between us; and would request you, Madam, to remember, that in his sight nothing can be disguised by the paint and artifices of the world.” She proceeds to recapitulate the injuries she had sustained from Elizabeth ever since she came to the throne of Scotland,—reminding her,

that she had busied herself in corrupting her subjects and encouraging rebellion; that when imprisoned in Loch-Leven, she had assured her, through her ambassador, Throckmorton, that any deed of abdication she might subscribe, was altogether invalid; yet that, upon her escape, though she at first allured her by fair promises into England, she had no sooner arrived there, than she was thrown into captivity, in which she had been kept alive only to suffer a thousand deaths; that she had tried for years to accommodate herself to that captivity, to reduce the number of her attendants, to make no complaint of the plainness of her diet, and the want of ordinary exercise, to live quietly and peaceably, as if she were of a far inferior rank, and even to abstain from correspondence with her friends in Scotland; but that the only return she had experienced for her good intentions was neglect, calumny, and increasing severity. “To take away every foundation of dispute and misunderstanding between us,” Mary continued, “I invite you, Madam, to examine into every report against me, and to grant to every person the liberty of accusing me publicly; and while I freely solicit you to take every advantage to my prejudice, I only request that you will not condemn me without a hearing. If it be proved that I have done evil, let me suffer for it; if I am guiltless, do not take upon yourself the responsibility, before God and man, of punishing me unjustly. Let not my enemies be afraid that I aim any longer at dispossessing them of their usurped authority. I look now to no other kingdom but that of Heaven, and would wish to prepare myself for it, knowing that my sorrows will never cease till I arrive there.” She then speaks of her son, and entreats that Elizabeth would interfere in his behalf. She concludes with requesting, that some honourable churchman should be sent to her, to remind her daily of the road she had yet to finish, and to instruct her how to pursue it, according to her religion, in which she would wish to die as she had lived. “I am very weak and helpless,” she adds, “and do beseech you to give me some solitary mark of your friendship. Bind your own relations to yourself; let me have the happiness of knowing, before I die, that a reconciliation has taken place between us, and that, when my soul quits my body, it will not be necessary for it to carry complaints of your injustice to the throne of my Creator.”^[186] The only result which this letter produced, was a remonstrance from Elizabeth which she sent by Beal, the Clerk of her Privy Council, against such unnecessary complaints.^[187]

In Scotland, meanwhile, the event of greatest consequence which had taken place, was the trial and execution of the Earl of Morton, for having been *art* and *part* in the murder of Darnley. Morton's intolerable tyranny having rendered him odious to the greater part of the nobility, and the young King having nearly arrived at an age when he could act and think for himself, he found it necessary, very unwillingly, to retire from office. He did not, even then, desist from carrying on numerous intrigues; and it was rumoured, that he intended seizing the King's person, and carrying him captive into England. Whether there was any truth in this report or not, it is certain that James became anxious to get rid of so factious and dangerous a nobleman. The only plausible expedient which occurred to him, or his Council, was, to accuse Morton of a share in Bothwell's guilt. His trial does not seem to have been conducted with any very scrupulous regard to justice. But a jury of his peers was allowed him; and they, having heard the evidence in support of the charges, found him guilty of having been in the council or knowledge of the conspiracy against the late King, of concealing it, and of being *art* and *part* in the murder. It was to the latter part of this verdict alone that Morton objected. He confessed that he knew of the intended murder, and had concealed it, but positively disclaimed having been *art* and *part* in it. This seems, however, to have been a distinction without a difference. On the 1st of June 1581, he was condemned to the block, and next day the sentence was executed. The instrument called the *Maiden*, which was used to behead him, he had himself brought into Scotland, and he was the first to suffer by it. His head was placed on the public gaol at Edinburgh, and his body buried privately by a few menials. He had been universally hated, and there was hardly one who lamented his death.

CHAPTER XI.

MARY'S TRIAL AND CONDEMNATION.

The closing scene of Mary's life was now rapidly approaching. Debilitated as she was by her long confinement, and the many painful thoughts which had been incessantly preying on her peace of mind, it is not likely that she could have long survived, even though she had been left unmolested within the walls of her prison. But she had been the source of two much jealousy and uneasiness to Elizabeth, to be either forgotten or forgiven. Weak as she was in body, and destitute alike of wealth and power, her name had nevertheless continued a watchword and a tower of strength, not only to all her own friends throughout Christendom, but to all who were disposed, from whatever cause, to stir up civil dissensions and broils in England. Scarcely a conspiracy against Elizabeth's person and authority had been contrived for the last sixteen years, with which the Queen of Scots was not supposed to be either remotely or immediately connected. Nor is it to be denied, that appeals were made to her sufferings and cruel treatment, to give plausibility to many an enterprise which was anti-constitutional in its object, and criminal in its execution. Other less objectionable enterprises Mary herself expressly countenanced, for she always openly declared, that being detained a captive by force, she considered herself fully entitled to take every means that offered to effect her escape. She acted solely upon a principle of self-defence. Whenever a nobleman of influence like Norfolk, or a man of integrity like Lesley, undertook to arrange a scheme for her release, she willingly listened to their proposals, and was ever ready to act in concert with them. She had been detained in strict ward in a realm into which she had come voluntarily, or rather into which she had been seduced by specious promises and offers of assistance; and it would have been against every dictate of common sense and common justice, to suppose that she had not a right to free herself from her unwarrantable imprisonment. It is true, that many of her attempts, mixed up as they were with the interested and ambitious projects of others, gave Elizabeth no little inconvenience and anxiety. But this was the price she must have laid her account with paying

for the pleasure of seeing the Queen of Scots a helpless hostage in her hands.

To discourage the numerous plots which were formed, either by Mary's real or pretended adherents, a number of persons of the first rank in the kingdom entered into a solemn "Association," in which they bound themselves to defend Elizabeth against all her enemies, "and if any violence should be offered to her life, in order to favour the title of any pretender to the crown, not only never to allow or acknowledge the person or persons *by* whom, or *for* whom such a detestable act should be committed, but, as they should answer to the Eternal God, to prosecute such person or persons to the death, and pursue them with the utmost vengeance to their overthrow and extirpation." The Parliament, which met in 1585, sanctioned this Association; and, alarmed by the recent discovery of a fanatical design, on the part of a Roman Catholic, to assassinate the Queen, because she had been excommunicated by the Pope, they passed an Act, by which they determined, with the most arbitrary injustice, "That if any rebellion should be excited in the kingdom, or any thing attempted to the hurt of her Majesty's person, *by* or *for* any person pretending a title to the crown, the Queen should empower twenty-four persons, by a commission under the Great Seal, to examine into and pass sentence upon such offences; and that, after judgment given, a proclamation should be issued, declaring the persons whom they found guilty excluded from any right to the crown; and her Majesty's subjects might lawfully pursue every one of them to the death; and that, if any design against the life of the Queen took effect, the persons *by* or *for* whom such a detestable act was executed, and their issues, being in any wise assenting or privy to the same, should be disabled for ever from pretending to the crown, and be pursued to death, in the like manner." That the persons *by* whom any of these faults were committed, should be punished, was in strict accordance with equity; but that the persons *for* whom they might be supposed to be done, should be considered as much involved in their guilt, was alike contrary to law and reason. The discontented were forming plots every year against Elizabeth, and, with the very existence of many of these plots, Mary was unacquainted; yet, by this statute, she was made answerable for all of them. There is little wonder, therefore, if she considered it only a forerunner of greater severities; and it

was not long before an occasion occurred which afforded a plausible pretext for making a practical application of it.

In the year 1586, three English priests, who had been educated in a Catholic seminary at Rheims, and over whose minds the most illiberal superstition held unlimited sway, actually conceived the belief, that the bull of excommunication, issued by Pope Pius V. against Elizabeth, had been dictated under the immediate inspiration of the Holy Ghost. They looked, consequently, upon that Sovereign with a fanatical hatred, which they determined, if possible, to gratify. Having contrived to win over one or two others to their own way of thinking, and, in particular, an officer of the name of Savage, and another priest of the name of Ballard, they sent them into England to disseminate their principles among all on whose co-operation they thought they could depend; and, in the meantime, they set on foot a negotiation with the Spanish ambassador in Paris, through whose means they hoped to obtain the assistance of a foreign force. He gave them a promise of encouragement, only on condition that they secured a strong party in England, and that means were taken to remove Elizabeth. Among the first persons to whom Savage and Ballard communicated their designs, was Anthony Babington, a young gentleman of estate and fortune in Derbyshire. Having resided for some time in France, he had formed an acquaintance with the Archbishop of Glasgow, and from him had heard so many eulogiums on Mary, that he became inspired with the most enthusiastic feelings in her favour, and cherished a romantic desire of performing some exploit which might secure for him her gratitude and esteem. By his advice and assistance, a knowledge of the conspiracy was intrusted to a number of persons of respectability of the Roman Catholic persuasion; and a secret correspondence was set on foot with the Queen of Scots, through the medium of her Secretaries Naw and Curl. Mary, however, was not disposed to give the conspirators much encouragement. She had been now so long accustomed to despair, and was so convinced of the fallaciousness of hope, that she was almost inclined to turn away from it, as from something painful. She had grown indifferent about her future fate, and had endeavoured to resign herself to the prospect of ending her days in captivity. Besides, she had the recent Act of Parliament before her eyes; and she was well aware, that though she did nothing but attempt an escape, she would be held responsible for the whole plot, whatever its

extent or criminality might be. It is, however, not at all unlikely that she may, notwithstanding, have authorized her Secretaries to write once or twice to Babington and his associates; but that she gave them any support in their designs against Elizabeth, was never proved, and is not to be believed. It was indeed with no little difficulty that Mary was able to hold any epistolary communication at all with her friends, so strictly was she watched by Sir Amias Paulet and Sir Drue Drury, to whose custody she had been committed, and who kept her in the Castle of Chartley in Staffordshire. The conspirators were obliged to bribe one of the servants, who conveyed to the Queen or her Secretaries, the letters which they deposited in a hole in the wall, and put the answers into the same place, from which they took them privately, when it was dark.

Every thing seemed to proceed smoothly, and all the necessary arrangements were now concluded. The different conspirators had different tasks allotted to them; by some a rebellion was to be excited in several parts of the kingdom at once; six others bound themselves by solemn oaths to assassinate Elizabeth; and Babington himself undertook to head a strong party, which he was to lead to the rescue of the Queen of Scots. Nor were they to be destitute of foreign assistance as soon as the first blow was struck, and the first symptoms of internal commotion appeared. So inspired were these infatuated men with an idea of the glory of the revolution they were about to achieve, that they had medals prepared representing themselves assembled together, with Babington in the midst, and bearing the motto,—“*Hi mihi sunt comites quos ipsa pericula ducunt.*” But in all their fancied security and enthusiasm, they were ignorant that every step they took was known to Elizabeth and her minister Walsingham, and that they were advancing only to the foot of their own scaffold. It was through the treachery of one of their own associates of the name of Polly, one of Walsingham’s accredited spies, who had joined them only that he might betray them, that all their proceedings were discovered, and attentively watched. Savage, Ballard, and the other four who were bent on the murder of Elizabeth, had already come up to London, and were lying in wait for the first favourable opportunity to execute their purpose; and, as Walsingham was anxious to have complete evidence of their guilt in his possession before apprehending them, they were allowed to remain unmolested for some time. The Queen, however, fearing for her personal safety, at length

insisted on their being seized, remarking, that, “in not taking heed of a danger when she might, she seemed more to tempt God than to hope in him.” Ballard was first arrested; his accomplices, struck with astonishment and dismay, fled out of London; but, after lurking for some days in woods and byeways, cutting off their hair, disfiguring their faces, and submitting to every kind of deprivation and hardship to avoid the hot search which was made for them, they were at length taken; and so much had the public feeling been excited against them, that, when they were brought into London, the bells of the city were rung, and bonfires kindled in the streets. Walsingham had arranged his measures so effectively, that all the other conspirators, who were scattered throughout the kingdom, were also seized and brought to the capital within a very short time. Fourteen of the principal inventors of the plot were immediately tried, condemned, and executed. No mercy whatever was shown to them; for Elizabeth seldom forgave her enemies.[\[188\]](#)

But, in the death of these men, only one part of Elizabeth’s vengeance was gratified. The wrongs and the merits of the Queen of Scots had been the means of imparting to this conspiracy a degree of respectability; and she, therefore, was regarded as the chief culprit. Walsingham had ascertained, that communications of some sort or another had passed between Mary’s secretaries and the conspirators; and before she was aware that Babington’s plot had been discovered, he sent down Sir Thomas Gorges to Chartley to take her by surprise, and endeavour to discover some additional grounds of suspicion. Sir Thomas arrived just as she was about to ride out in a wheeled carriage which had been procured for her, and, without permitting her to alight, he rudely told her of Babington’s fate; then entering the Castle, he committed Naw and Curl into custody; and, breaking into the private cabinets of the Queen, he seized all her letters and papers, and sent them off immediately to Elizabeth. He took possession too of all her money, “lest she should use it for corruption.” She herself was not allowed to return to Chartley for some days, but conveyed about from one castle to another. When she was at length brought back, and saw how she had been plundered in her absence, she could not refrain from weeping bitterly. “There are two things, however,” she said in the midst of her tears, “which they cannot take away,—my birth and my religion.”[\[189\]](#)

In the excited state of feeling which then prevailed in the nation, and the fears which her subjects entertained for the safety of their Sovereign, Elizabeth perceived that she might now safely proceed to those extremities against Mary which she had so long meditated, but which considerations of selfish prudence had hitherto prevented her from putting into execution. She asserted, that not only her own life, but the religion and peace of the country were at stake, and that either the Queen of Scots must be removed, or the whole realm given up as a sacrifice. By her own injustice, she had involved herself in inconveniences; and as soon as she began to feel their effects, she pretended to be indignant at the innocent victim of her tyranny. But it was not without difficulty that she brought all her ministers to think on this subject precisely as she herself did. Many of them did not hesitate to state their conviction, that Mary had neither set on foot nor countenanced Babington's plot, and that, however the conspirators might have interwoven her name with it, she could not be punished for what she could not have prevented. Besides, they urged that she was not likely to live long at any rate, and that it would be more for the honour of the kingdom to leave her unmolested for the short remainder of her days. Nevertheless, by Elizabeth's exertions, and those of Walsingham, who had always courted the favour of his mistress by the most persevering persecution of Mary, opposition was at length silenced, and the trial of the Queen of Scots finally determined. To give as much dignity, and as great a semblance of justice as possible to a proceeding so unwarrantable as that of calling upon her to answer for an imaginary offence, forty of the most illustrious persons in the kingdom were appointed Commissioners, and were intrusted with the charge of hearing the cause, and deciding upon the question of life or death.

On the 25th of September 1586, Mary had been taken from Chartley to the Castle of Fotheringay in Northamptonshire, where she was more strictly watched than ever by Sir Amias Paulet, who was a harsh and inflexible gaoler. On the 11th of October, Elizabeth's Commissioners arrived, the great hall of the Castle having been previously fitted up as a court-room for their reception. They would have proceeded with the trial immediately; but a difficulty occurred, which, though they scarcely can have failed to anticipate, they were not prepared to obviate. Mary refused to acknowledge their jurisdiction, denying that they possessed any right either to arraign or try her. "I am no subject to Elizabeth," she said, "but an independent Queen

as well as she; and I will consent to nothing unbecoming the majesty of a crowned head. Worn out as my body is, my mind is not yet so enfeebled as to make me forget what is due to myself, my ancestors, and my country. Whatever the laws of England may be, I am not subject to them; for I came into the realm only to ask assistance from a sister Queen, and I have been detained an unwilling prisoner.” For two days the Commissioners laboured in vain to induce Mary to appear before them; and as she assigned reasons for refusing, which it was impossible for fair argument to invalidate, recourse was at length had to threats. They told her that they would proceed with the trial, whether she consented to be present or not; and that, though they were anxious to hear her justification, they would nevertheless conclude that she was guilty, and pronounce accordingly, if she refused to defend herself. It would have been well had Mary allowed them to take their own way; but, conscious that she was accused unjustly, she could not bear to think that she excited suspicion, by refusing the opportunity of establishing her innocence. Actuated by this honourable motive, she at length yielded, after solemnly protesting that she did not, and never would, acknowledge the authority which Elizabeth arrogated over her.

On the 14th of October the trial commenced. The upper half of the great hall of Fotheringay Castle was railed off, and at the higher end was placed a chair of state, under a canopy, for the Queen of England. Upon both sides of the room benches were arranged in order, where the Lord Chancellor Bromley, the Lord Treasurer Burleigh, fourteen Earls, thirteen Barons, and Knights and Members of the Privy Council, sat. In the centre was a table, at which the Lord Chief Justice, several Doctors of the Civil Law, Popham, the Queen’s Attorney, her Solicitors, Sergeants and Notaries, took their places. At the foot of this table, and immediately opposite Elizabeth’s chair of state, a chair, without any canopy, was placed for the Queen of Scots. Behind, was the rail which ran across the hall, the lower part of which was fitted up for the accommodation of persons who were not in the commission.[\[190\]](#)

There was never, perhaps, an occasion throughout the whole of Mary’s life on which she appeared to greater advantage than this. In the presence of all the pomp, learning, and talent of England, she stood alone and undaunted; evincing, in the modest dignity of her bearing, a mind conscious of its own integrity, and superior to the malice of fortune. Elizabeth’s craftiest lawyers

and ablest politicians were assembled to probe her to the quick,—to press home every argument against her, which ingenuity could devise and eloquence embellish,—to dazzle her with a blaze of erudition, or involve her in a maze of technical perplexities. Mary had no counsellor—no adviser—no friend. Her very papers, to which she might have wished to refer, had been taken from her; and there was not one to plead her cause, or defend her innocence. Yet was she not dismayed. She knew that she had a higher Judge than Elizabeth; and that great as was the array of Lords and Barons that appeared against her, posterity was greater than they, and that to its decision all things would be finally referred. Her bodily infirmities imparted only a greater lustre to her mental pre-eminence; and not in all the fascinating splendor of her youth and beauty—not on the morning of her first bridal day, when Paris rang with acclamations in her praise—was Mary Stuart so much to be admired, as when, weak and worn out, she stood calmly before the myrmidons of a rival Queen, to hear and refute their unjust accusations, her eye radiant once more with the brilliancy of earlier years, and the placid benignity of a serene conscience, lending to her countenance its undying grace.

Elizabeth's Attorney-General opened the pleadings. He began by referring to the act of Parliament, in which it was made capital to be the person *for* whom any design was undertaken against the life of the Queen. He then described the late conspiracy, and attempted to establish Mary's connexion with it, by producing copies of letters which, he alleged, she had written to Babington himself and several of his accomplices. To these having added letters from Babington to her, and the declarations and confessions which had been extorted from her secretaries, he asserted that the case was made out, and wound up his speech with a laboured display of legal knowledge and forensic oratory.

Mary was now called upon for her defence; and she entered on it with composure and dignity. She denied all connexion with Babington's conspiracy, in so far as he entertained any designs injurious to Elizabeth's safety or the welfare of her kingdom;—she allowed that the letters which he was said to have addressed to her might be genuine, but it had not been proved that she ever received them;—she maintained that her own letters were all garbled or fabricated;^[191] that as to the confessions of her secretaries, they had been extorted by fear, and were therefore not to be

credited; but that, if they were in any particulars true, these particulars must have been disclosed at the expense of the oath of fidelity they had come under to her when they entered her service, and that men who would perjure themselves in one instance were not to be trusted in any;—she objected besides that they had not been confronted with her according to an express law enacted in the thirteenth year of Elizabeth’s reign “that no one should be arraigned for intending the destruction of the Prince’s life, but by the testimony and oath of two lawful witnesses, *to be produced face to face before him;*”—she maintained, that even supposing she were to allow the authenticity of many of the papers adduced against her, they would not prove her guilty of any crime; for she was surely doing no wrong, if, after a calamitous captivity of nineteen years, in which she had lost forever her youth, her health, and her happiness, she made one last effort to regain the liberty of which she had been so unfairly robbed; but that as to scheming against the life of the Queen her sister, it was an infamy she abhorred;—“I would disdain,” said she “to purchase all that is most valuable on earth by the assassination of the meanest of the human race; and worn out, as I now am, with cares and sufferings, the prospect of a crown is not so inviting that I should ruin my soul in order to obtain it. Neither am I a stranger to the feelings of humanity, nor unacquainted with the duties of religion, and it is my nature to be more inclined to the devotion of Esther, than to the sword of Judith. If ever I have given consent by my words, or even by my thoughts, to any attempt against the life of the Queen of England, far from declining the judgment of men, I shall not even pray for the mercy of God.”^[192]

Elizabeth’s advocates were not a little surprised at the eloquent and able manner in which Mary conducted her defence. They had expected to have every thing their own way, and to gain an easy victory over one unacquainted with the forms of legal procedure, and unable to cope with their own professional talents. But they were disappointed and baffled; and in order to maintain their ground even plausibly, they were obliged to protract the proceedings for two whole days. Nor, after all, did the Commissioners venture to pronounce judgment, but adjourned the court to the Star-Chamber at Westminster, where they knew that Mary would not be present, and where, consequently, they would have no opposition to fear.^[193] On the 25th of October, they assembled there, and having again

examined the Secretaries, Naw and Curl, who appear to have been persons of little fidelity or constancy, and who confirmed their former declarations, a unanimous judgment was delivered, that “Mary, commonly called Queen of Scots and dowager of France, was accessory to Babington’s conspiracy, and had compassed and imagined divers matters within the realm of England, tending to the hurt, death, and destruction of the royal person of Elizabeth, in opposition to the statute framed for her protection.”^[194]

Elizabeth ordered this verdict to be laid before her Parliament, which assembled a few days afterwards; and, at Walsingham’s instigation, its legality was not only confirmed, but the Lord Chancellor was sent up with an address to the Queen, in which, after stating their conviction that her security was incompatible with Mary’s life, they requested that she would give the sentence effect, by ordering her immediate execution. Elizabeth, though conscious that, if her personal safety had been endangered, she had herself to blame, was rejoiced at the opportunity at length afforded her, for gratifying her long cherished hatred. She affected, however, to be greatly perplexed how to act. She declared that, if she were not afraid of endangering the welfare of her people, she would freely pardon Mary for all her treasonable practices, and she beseeched the House to endeavour to discover some less severe method of procedure. The Parliament, as she expected, replied firmly, that they could not recommend any more lenient measure; and in the pedantic language of the day, called to Elizabeth’s remembrance the examples of God’s vengeance upon Saul for sparing Agag, and on Ahab for sparing Benhadad. Elizabeth still affected to be irresolute; and indeed it was not unlikely that she was so in reality; for, though anxious to have Mary removed, she was not so hardened and insane as not to know, that however it might be sanctioned by the world, murder was as criminal and as contrary to the unchanging code of moral justice, when commanded by a Queen, as when perpetrated by a peasant. She desired that her Parliament should be content for the present “with an answer without an answer.” “If I should say, that I will not do what you request, I might say perhaps more than I intend; and if I should say I will do it, I might plunge myself into as much inconvenience as you endeavour to preserve me from.” All this manœuvring was for the purpose of conveying to the nation an impression of her extreme sensibility, and generous hesitation.

Another reason why Elizabeth did not choose to be over-precipitate, was her fear of giving any deadly offence to foreign courts. She ordered the sentence against Mary to be published both throughout her own kingdom and abroad, and she waited anxiously to observe the sensation which it should create, and the steps that might be taken in consequence. She need not, however, have given herself much uneasiness upon this score. Henry III. of France had never been more than a very lukewarm advocate for the Queen of Scots, and the remonstrances he occasionally made in her behalf, were rather for the sake of appearances, than because he was anxious that they should be successful. On the present occasion, startled by the imminence of his cousin's danger, he seems to have been a little more in earnest, and ordered his ambassador to make as forcible a representation as possible against the iniquitous severity that was intended. But Elizabeth knew that his rage would evaporate in words, and paid little attention to the harangue. In Scotland, the young King, James, was surrounded by ministers who had sold themselves to England, and Elizabeth was well aware, that though he might bark, he dared not bite. Besides, the sentiments regarding his mother, which had been carefully instilled into him from his earliest years, were not such as were likely to inspire him with any decided wish to protect and avenge her. He had been constantly surrounded by her deadliest enemies, and the lesson which Buchanan taught him daily, was a lesson of hatred towards his only surviving parent. His succession also to the English crown, greatly depended on the friendship of Elizabeth; and she was able, in consequence, to maintain an ascendancy over him, which he dared not venture to resist. He was not, however, so entirely destitute of all ordinary filial sentiments as to consent to remain a quiet spectator of his mother's execution. "His opinion is," said his worthless minion the Master of Gray, "that it cannot stand with his honour to be a consenter to take his mother's life, but he does not care how strictly she be kept; and is content that all her old knavish servants should be hanged."^[195] To prevent if possible a catastrophe which "did not stand with his honour," he sent the Master of Gray and Sir Robert Melville as his ambassadors to London, to press his objections upon the attention of Elizabeth. The latter was true to the cause in which he had been sent, and his remonstrances were vigorous and sincere. But Gray, wishing to curry favour with Elizabeth, assured her that she had no cause to fear the King's resentment, for he was of an irresolute character and timid disposition, and that whatever might happen, he would

never think of embroiling himself in a disastrous war with England. Elizabeth listened with evident satisfaction to these artful insinuations; and desired her minister Walsingham, to inform the Scottish monarch, that Mary's doom was already fixed by the decision of the nation, and that his mistress the Queen had it not in her power to save her. James received this intelligence with grief, but not with the spirit that became the only child of Mary Stuart. Instead of putting himself at the head of an army, and marching into the heart of England, he was contented to communicate his mother's unfortunate condition to his subjects, and order prayers to be said for her in all the churches,—“that it might please God to enlighten her with the light of his truth, and to protect her from the danger which was hanging over her.”

In the mean time, messengers had been sent to the Queen of Scots, to report to her the sentence of the Commissioners, and to prepare her for the consequences which might be expected to follow. So far from receiving the news with dismay, Mary solemnly raised her hands to heaven, and thanked God that she was so soon to be relieved from her troubles. They were not yet, however, at a close; and even during the short remainder of her life, she was to be still further insulted. Her keepers, Sir Amias Paulet and Sir Drue Drury, refused any longer to treat her with the reverence and respect due to her rank and sex. The canopy of state, which she had always ordered to be put up in her apartment wherever she went, was taken down, and every badge of royalty removed. It was intimated to her, that she was no longer to be regarded as a Princess, but as a criminal; and the persons who came into her presence stood before her without uncovering their heads, or paying her any obeisance. The attendance of a Catholic priest was refused, and an Episcopalian bishop sent in his stead, to point out and correct the errors of her ways. Mary bore all these indignities with a calm spirit, which rose superior to them, and which proved their unworthiness, by bringing them into contrast with her own elevation of mind. “In despite of your Sovereign and her subservient judges,” said she, “I will die a Queen. My royal character is indelible, and I will surrender it with my spirit to the Almighty God, from whom I received it, and to whom my honour and my innocence are fully known.”^[196] In December 1586, she wrote her last letter to Elizabeth; and though from an unfriended prisoner to an envied and powerful Sovereign, it evinces so much magnanimity and calm

consciousness of mental serenity, that it is impossible to peruse it, without confessing Elizabeth's inferiority, and Mary's triumph. It was couched in the following terms:

“Madam, I thank God from the bottom of my heart, that, by the sentence which has been passed against me, he is about to put an end to my tedious pilgrimage. I would not wish it prolonged, though it were in my power, having had enough of time to experience its bitterness. I write at present only to make three last requests which, as I can expect no favour from your implacable ministers, I should wish to owe to your Majesty, and to no other. *First*, as in England, I cannot hope to be buried according to the solemnities of the Catholic church, (the religion of the ancient Kings, your ancestors and mine, being now changed,) and as in Scotland they have already violated the ashes of my progenitors, I have to request, that, as soon as my enemies have bathed their hands in my innocent blood, my domestics may be allowed to inter my body in some consecrated ground; and, above all, that they may be permitted to carry it to France, where the bones of the Queen, my most honoured mother, repose. Thus, that poor frame, which has never enjoyed repose so long as it has been joined to my soul, may find it at last when they will be separated. *Second*, as I dread the tyranny of the harsh men, to whose power you have abandoned me, I entreat your Majesty that I may not be executed in secret, but in the presence of my servants and other persons, who may bear testimony of my faith and fidelity to the true church, and guard the last hours of my life, and my last sighs from the false rumours which my adversaries may spread abroad. *Third*, I request that my domestics, who have served me through so much misery, and with so much constancy, may be allowed to retire without molestation wherever they choose, to enjoy for the remainder of their lives the small legacies which my poverty has enabled me to bequeath to them. I conjure you, Madam, by the blood of Jesus Christ, by our consanguinity, by the memory of Henry VII., our common father, and by the royal title which I carry with me to death, not to refuse me those reasonable demands, but to assure me, by a letter under your own hand, that you will comply with them; and I shall then die as I have lived, your affectionate sister and prisoner, MARY, Queen of Scots.”[\[197\]](#)

Whether Elizabeth ever answered this letter, does not appear; but it produced so little effect, that epistles from her to Sir Amias Paulet still

exist, which prove that, in her anxiety to avoid taking upon herself the responsibility of Mary's death, she wished to have her privately assassinated or poisoned. Paulet, however, though a harsh and violent man, positively refused to sanction so nefarious a scheme. Yet in the very act of instigating murder, Elizabeth could close her eyes against her own iniquity, and affect indignation at the alleged offences of another.^[198] But perceiving at length, that no alternative remained, she ordered her secretary Davidson to bring her the warrant for Mary's execution, and after perusing it, she deliberately affixed her signature. She then desired him to carry it to Walsingham, saying, with an ironical smile, and in a "merry tone," that she feared he would die of grief when he saw it. Walsingham sent the warrant to the Chancellor, who affixed the Great Seal to it, and despatched it by Beal, with a commission to the Earls of Shrewsbury, Kent, Derby, and others, to see it put in execution. Davidson was afterwards made the victim of Elizabeth's artifice,—who, to complete the solemn farce she had been playing, pretended he had obeyed her orders too quickly, and doomed him in consequence to perpetual imprisonment.^[199]

CHAPTER XII.

MARY'S DEATH, AND CHARACTER.

On the 7th of February 1587, the Earls, who had been commissioned to superintend Mary's execution, arrived at Fotheringay. After dining together, they sent to inform the Queen, that they desired to speak with her. Mary was not well, and in bed; but as she was given to understand that it was an affair of moment, she rose, and received them in her own chamber. Her six waiting maids, together with her physician, her surgeon, and apothecary, and four or five male servants, were in attendance. The Earl of Shrewsbury, and the others associated with him, standing before her respectfully, with their heads uncovered, communicated, as gently as possible, the disagreeable duty with which they had been intrusted. Beal was then desired to read the warrant for Mary's execution, to which she listened patiently; and making the sign of the cross, she said, that though she was sorry it came from Elizabeth, she had long been expecting the mandate for her death, and was not unprepared to die. "For many years," she added, "I have lived in continual affliction, unable to do good to myself or to those who are dear to me;—and as I shall depart innocent of the crime which has been laid to my charge, I cannot see why I should shrink from the prospect of immortality." She then laid her hand on the New Testament, and solemnly protested that she had never either devised, compassed, or consented to the death of the Queen of England. The Earl of Kent, with more zeal than wisdom, objected to the validity of this protestation, because it was made on a Catholic version of the Bible; but Mary replied, that it was the version, in the truth of which she believed, and that her oath should be therefore only the less liable to suspicion. She was advised to hold some godly conversation with the Dean of Peterborough, whom they had brought with them to console her; but she declined the offer, declaring that she would die in the faith in which she had lived, and beseeching them to allow her to see her Catholic Confessor, who had been for some time debarred her presence. This however they in their turn positively refused.[\[200\]](#)

Other topics were introduced, and casually discussed. Before leaving the world, Mary felt a natural curiosity to be informed upon several subjects of public interest, which, though connected with herself, and generally known, had not penetrated the walls of her prison. She asked if no foreign princes had interfered in her behalf,—if her secretaries were still alive,—if it was intended to punish them as well as her,—if they brought no letters from Elizabeth or others,—and above all, if her son, the King of Scotland, was well, and had evinced any interest in the fate of a mother who had always loved and never wronged him. Being satisfied upon these points, she proceeded to inquire when her execution was to take place? Shrewsbury replied, that it was fixed for the next morning at eight. She appeared startled and agitated for a few minutes, saying that it was more sudden than she had anticipated, and that she had yet to make her will, which she had hitherto deferred, in the expectation that the papers and letters which had been forcibly taken from her, would be restored. She soon, however, regained her self-possession; and informing the Commissioners that she desired to be left alone to make her preparations, she dismissed them for the night.

During the whole of this scene, astonishment, indignation, and grief, overwhelmed her attendants, all of whom were devoted to her. As soon as the Earls and their retinue retired, they gave full vent to their feelings, and Mary herself was the only one who remained calm and undisturbed. Bourgoine, her physician, loudly exclaimed against the iniquitous precipitancy with which she was to be hurried out of existence. More than a few hours' notice was allowed, he said, to the very meanest criminal; and to limit a Princess, with numerous connections both at home and abroad, to so brief a space, was a degree of rigour which no guilt could authorize. Mary told him, that she must submit with resignation to her fate, and learn to regard it as the will of God. She then requested her attendants to kneel with her, and she prayed fervently for some time in the midst of them. Afterwards, while supper was preparing, she employed herself in putting all the money she had by her into separate purses, and affixed to each, with her own hand, the name of the person for whom she intended it. At supper, though she sat down to table, she eat little. Her mind, however, was in perfect composure; and during the repast, though she spoke little, placid smiles were frequently observed to pass over her countenance. The calm magnanimity of their mistress, only increased the distress of her servants.

They saw her sitting amongst them in her usual health, and, with almost more than her usual cheerfulness, partaking of the viands that were set before her; yet they knew that it was the last meal at which they should ever be present together; and that the interchange of affectionate service upon their part, and of condescending attention and endearing gentleness on her's, which had linked them to her for so many years, was now about to terminate for ever. Far from attempting to offer her consolation, they were unable to discover any for themselves. As soon as the melancholy meal was over, Mary desired that a cup of wine should be given to her; and putting it to her lips, drank to the health of each of her attendants by name. She requested that they would pledge her in like manner; and each, falling on his knee, and mingling tears with the wine, drank to her, asking pardon at the same time, for all the faults he had ever committed. In the true spirit of Christian humility, she not only willingly forgave them, but asked their pardon also, if she had ever forgotten her duty towards them. She beseeched them to continue constant to their religion, and to live in peace and charity together, and with all men. The inventory of her wardrobe and furniture was then brought to her; and she wrote in the margin, opposite each article, the name of the person to whom she wished it should be given. She did the same with her rings, jewels, and all her most valuable trinkets; and there was not one of her friends or servants, either present or absent, to whom she forgot to leave a memorial.[\[201\]](#)

These duties being discharged, Mary sat down to her desk to arrange her papers, to finish her will, and to write several letters. She previously sent to her confessor, who, though in the Castle, was not allowed to see her, entreating that he would spend the night in praying for her, and that he would inform her what parts of Scripture he considered most suited for her perusal at this juncture. She then drew up her last will and testament; and without ever lifting her pen from the paper, or stopping at intervals to think, she covered two large sheets with close writing, forgetting nothing of any moment, and expressing herself with all that precision and clearness which distinguished her style in the very happiest moments of her life. She named as her four executors, the Duke of Guise, her cousin-german; the Archbishop of Glasgow, her ambassador in France; Lesley, Bishop of Ross; and Monsieur de Ruysseau, her Chancellor. She next wrote a letter to her brother-in-law, the King of France, in which she apologized for not being

able to enter into her affairs at greater length, as she had only an hour or two to live, and had not been informed till that day after dinner that she was to be executed next morning. “Thanks be unto God, however,” she added, “I have no terror at the idea of death, and solemnly declare to you, that I meet it innocent of every crime. The bearer of this letter, and my other servants, will recount to you how I comported myself in my last moments.” The letter concluded with earnest entreaties, that her faithful followers should be protected and rewarded. Her anxiety on their account, at such a moment, indicated all that amiable generosity of disposition, which was one of the leading features of Mary’s character.^[202] About two in the morning, she sealed up all her papers and said she would now think no more of the affairs of this world, but would spend the rest of her time in prayer and commune with her own conscience. She went to bed for some hours; but she did not sleep. Her lips were observed in continual motion, and her hands were frequently folded and lifted up towards Heaven.^[203]

On the morning of Wednesday the 8th of February, Mary rose with the break of day; and her domestics, who had watched and wept all night immediately gathered round her. She told them that she had made her will, and requested that they would see it safely deposited in the hands of her executors. She likewise beseeched them not to separate until they had carried her body to France; and she placed a sum of money in the hands of her physician to defray the expenses of the journey. Her earnest desire was, to be buried either in the Church of St Dennis, in Paris, beside her first husband Francis, or at Rheims, in the tomb which contained the remains of her mother. She expressed a wish too, that, besides her friends and servants, a number of poor people and children from different hospitals should be present at her funeral, clothed in mourning at her expense, and each, according to the Catholic custom, carrying in his hand a lighted taper.^[204]

She now renewed her devotions, and was in the midst of them, with her servants praying and weeping round her, when a messenger from the Commissioners knocked at the door, to announce that all was ready. She requested a little longer time to finish her prayers, which was granted. As soon as she desired the door to be opened, the Sheriff, carrying in his hand the white wand of office, entered to conduct her to the place of execution. Her servants crowded round her, and insisted on being allowed to accompany her to the scaffold. But contrary orders having been given by

Elizabeth, they were told that she must proceed alone. Against a piece of such arbitrary cruelty they remonstrated loudly, but in vain; for as soon as Mary passed into the gallery, the door was closed, and believing that they were separated from her forever, the shrieks of the women and the scarcely less audible lamentations of the men were heard in distant parts of the castle.

At the foot of the staircase leading down to the hall below, Mary was met by the Earls of Kent and Shrewsbury; and she was allowed to stop to take farewell of Sir Andrew Melvil, the master of her household, whom her keepers had not allowed to come into her presence for some time before. With tears in his eyes, Melvil knelt before her, kissed her hand, and declared that it was the heaviest hour of his life. Mary assured him, that it was not so to her. "I now feel, my good Melvil," said she, "that all this world is vanity. When you speak of me hereafter, mention that I died firm in my faith, willing to forgive my enemies, conscious that I had never disgraced Scotland my native country, and rejoicing in the thought that I had always been true to France, the land of my happiest years. Tell my son," she added, and when she named her only child of whom she had been so proud in his infancy, but in whom all her hopes had been so fatally blasted, her feelings for the first time overpowered her, and a flood of tears flowed from her eyes,—“tell my son that I thought of him in my last moments, and that I have never yielded, either by word or deed, to aught that might lead to his prejudice; desire him to preserve the memory of his unfortunate parent, and may he be a thousand times more happy and more prosperous than she has been.”

Before taking leave of Melvil, Mary turned to the Commissioners and told them, that her three last requests were, that her secretary Curl, whom she blamed less for his treachery than Naw, should not be punished; that her servants should have free permission to depart to France; and that some of them should be allowed to come down from the apartments above to see her die. The Earls answered, that they believed the two former of these requests would be granted; but that they could not concede the last, alleging, as their excuse, that the affliction of her attendants would only add to the severity of her sufferings. But Mary was resolved that some of her own people should witness her last moments. "I will not submit to the indignity," she said, "of permitting my body to fall into the hands of strangers. You are the servants

of a maiden Queen, and she herself, were she here, would yield to the dictates of humanity, and permit some of those who have been so long faithful to me to assist me at my death. Remember, too, that I am cousin to your mistress, and the descendant of Henry VII.; I am the Dowager of France, and the anointed Queen of Scotland.” Ashamed of any further opposition, the Earls allowed her to name four male and two female attendants, whom they sent for, and permitted to remain beside her for the short time she had yet to live.[205]

The same hall in which the trial had taken place, was prepared for the execution. At the upper end was the scaffold, covered with black cloth, and elevated about two feet from the floor. A chair was placed on it for the Queen of Scots. On one side of the block stood two executioners, and on the other, the Earls of Kent and Shrewsbury; Beal and the Sheriff were immediately behind. The scaffold was railed off from the rest of the hall, in which Sir Amias Paulet with a body of guards, the other Commissioners, and some gentlemen of the neighbourhood, amounting altogether to about two hundred persons, were assembled. Mary entered leaning on the arm of her physician, while Sir Andrew Melvil carried the train of her robe. She was in full dress, and looked as if she were about to hold a drawing-room, not to lay her head beneath the axe. She wore a gown of black silk, bordered with crimson velvet, over which was a satin mantle; a long veil of white crape, stiffened with wire, and edged with rich lace, hung down almost to the ground; round her neck was suspended an ivory crucifix; and the beads which the Catholics use in their prayers, were fastened to her girdle. The symmetry of her fine figure had long been destroyed by her sedentary life; and years of care had left many a trace on her beautiful features. But the dignity of the Queen was still apparent; and the calm grace of mental serenity imparted to her countenance at least some share of its former loveliness. With a composed and steady step she passed through the hall, and ascended the scaffold,—and as she listened unmoved, whilst Beal read aloud the warrant for her death, even the myrmidons of Elizabeth looked upon her with admiration.[206]

Beal having finished, the Dean of Peterborough presented himself at the foot of the scaffold, and with more zeal than humanity, addressed Mary on the subject of her religion. She mildly told him, that as she had been born, so she was resolved to die, a Catholic, and requested that he would not

annoy her any longer with useless reasonings. But finding that he would not be persuaded to desist, she turned away from him, and falling on her knees, prayed fervently aloud,—repeating, in particular, many passages from the Psalms. She prayed for her own soul, and that God would send his Holy Spirit to comfort her in the agony of death; she prayed for all good monarchs, for the Queen of England, for the King her son, for her friends, and for all her enemies. She spoke with a degree of earnest vehemence, and occasional strength of gesticulation, which deeply affected all who heard her. She held a small crucifix in her hands, which were clasped, and raised to Heaven; and at intervals a convulsive sob choked her voice. As soon as her prayers were ended, she prepared to lay her head on the block. Her two female attendants, as they assisted her to remove her veil and head-dress, trembled so violently that they were hardly able to stand. Mary gently reproved them,—“Be not thus overcome,” she said; “I am happy to leave the world, and you also ought to be happy to see me die so willingly.” As she bared her neck, she took from around it a cross of gold, which she wished to give to Jane Kennedy; but the executioner, with brutal coarseness, objected, alleging that it was one of his perquisites. “My good friend,” said Mary, “she will pay you much more than its value;” but his only answer was, to snatch it rudely from her hand. She turned from him, to pronounce a parting benediction on all her servants, to kiss them, and bid them affectionately farewell. Being now ready, she desired Jane Kennedy to bind her eyes with a rich handkerchief, bordered with gold, which she had brought with her for the purpose; and laying her head upon the block, her last words were,—“O Lord, in thee I have hoped, and into thy hands I commit my spirit.” The executioner, either from a want of skill, or from agitation, or because the axe he used was blunt, struck three blows before he separated her head from her body. His comrade then lifted the head by the hair, (which, falling in disorder, was observed to be quite grey), and called out, “God save Elizabeth, Queen of England!” The Earl of Kent added, “Thus perish all her enemies;”—but, overpowered by the solemnity and horror of the scene, none were able to respond, “Amen!”^[207]

Mary’s remains were immediately taken from her servants, who wished to pay them the last sad offices of affection, and were carried into an adjoining apartment, where a piece of old green baize, taken from a billiard-table, was thrown over that form which had once lived in the light of a nation’s eyes. It

lay thus for some time; but was at length ordered to be embalmed, and buried, with royal pomp, in the Cathedral at Peterborough,—a vulgar artifice used by Elizabeth to stifle the gnawing remorse of her own conscience, and make an empty atonement for her cruelty. Twenty-five years afterwards, James VI. wishing to perform an act of tardy justice to the memory of his mother, ordered her remains to be removed from Peterborough to Henry VII.'s Chapel, in Westminster Abbey. A splendid monument was there erected, adorned with an inscription, which, if it spoke truth, James must have blushed with shame and indignation whenever he thought of his mother's fate.

Mary Stuart, Queen of Scots, died in the forty-fifth year of her age. If the events of her life have been faithfully recorded in the preceding pages, the estimate which is to be formed of her character cannot be a matter of much doubt. To great natural endowments,—to feelings constitutionally warm,—and to a disposition spontaneously excellent, were added all the advantages which education could confer or wealth purchase. That she was one of the most accomplished and talented women of the age, even her enemies allow. But talents do not always insure success, nor accomplishments command happiness; and by few persons in the whole range of history was this truth more fatally experienced than by Mary Stuart. At first sight, her life and fate seem almost a paradox. That one upon whom most of the common goods of fortune had been heaped with so lavish a hand,—one who was born to the enjoyment of all the rank and splendour which earth possesses,—one whose personal charms and fascinations obtained for her an empire over the heart, more lasting and honourable than that which her birth gave her over a nation,—that even she should have lived to lament that she had ever beheld the light of day, is one of those striking examples of the uncertainty of all human calculations regarding happiness, which, while it inspires the commonest mind with wonder, teaches a deeper lesson of philosophy to the wisely reflective. Circumstances are not so much the slaves of men, as men are of circumstances. Mary lived at an age, and in a country, which only rendered her risk the greater the more exalted her station. In France, where civilization had made more progress, she might perhaps have avoided the evils which overtook her at home; but in Scotland, a Princess possessing the refinement of a foreign court, and though with a large proportion of the virtues and captivations of her sex, not entirely destitute of some of its

weaknesses, could hardly expect to cope with the turbulent spirit, the fanatical enthusiasm, the semi-barbarous prejudices of the times, without finding her own virtues immersed in the crowd of contending interests, and the vortex of fierce passions that surrounded her.

Mary's failings, almost without an exception, "leant to virtue's side." They arose partly from too enthusiastic a temperament, and partly from a want of experience. Although she lived forty-four years and two months, it ought to be remembered that she was just twenty-five when she came into England, and that all the most important events of her history happened between sixteen and twenty-five. With feelings whose strength kept pace with the unsuspecting generosity of her nature, Mary was one who, in an especial manner, stood in need of experience, to teach what the world calls wisdom. The great mass of mankind, endowed with no finer susceptibilities, and influenced by no hidden impulses of soul or sense, fall into the common track naturally and easily. But they whom heaven has either cursed or blessed with minds, over which external circumstances exercise a deeper sway, whose fancies are more vivid, and whose impressions are more acute, require the aid of time to clip the wings of imagination,—to cast a soberer shade over the glowing pictures of hope,—and to teach the art of reducing an ideal standard of felicity and virtue, to one less romantic, but more practical. Had she continued longer in public life, there is every probability that the world would have been forced to own, without a dissenting voice, the talent which Mary possessed. In youth, genius is often indicated only by eccentricity and imprudence; but its errors are errors of judgment, which have their origin in an exuberance of sensibility. The sentiments of the heart have burst forth into precocious blossom long before the reasoning faculties have reached maturity. Her youth was Mary's chief misfortune, or rather it was the source from which most of her misfortunes sprung. She judged of mankind not as they were, but as she wished them to be. Conscious of the sincerity of her own character, and the affectionate nature of her own dispositions, she formed attachments too rashly, and trusted too indiscriminately. She often found, when it was too late, that she had been deceived; and the consequence was, that she became diffident of her own judgment, and anxious to be guided by that of others. Here again, however, she fell into an opposite extreme. In yielding, on her return to Scotland, so implicitly to the counsels of Murray, she did what few queens, young and

flattered as she had been, would have done, and what, had she been older, or more experienced, she ought not to have done.

But the highest degree of excellence, both in the material and the moral world, arises out of the skilful combination of many discordant elements. Time must be allowed them to settle down into an harmonious arrangement; and time is all that is required. Before the age of five-and-twenty, it is not to be supposed that Mary's character had acquired that strength and stability which it would afterwards have attained. Nor was it desirable that it should; for an old head upon youthful shoulders is contrary to nature, and the anomaly frequently ends with a youthful head upon old shoulders. Mary was young—she was beautiful—she was admired—she was a woman; and to expect to have found, in the spring-time of her life, the undeviating consistency, and the cool calculations of riper years, would have been to imagine her that “faultless monster whom the world ne’er saw.” But, considering the situation in which she was placed—the persons by whom she was surrounded—the stormy temper of the age—the pious and deep-rooted prejudices of her subjects against the creed which she professed—the restless jealousy of the Sovereign who reigned over the neighbouring and more powerful country of England—the unfortunate though not precipitate marriage with Lord Darnley,—it may be very safely asked, where there is to be found an example of so much moderation, prudence, and success, in one so recently introduced to the arduous cares of government? Had Mary been vain, headstrong, opinionative, and bigotted, she would never have yielded, as she did, to the current of popular opinion which then ran so tumultuously;—she would never have condescended to expostulate with Knox,—she would never have been ruled by Murray,—she would never have so easily forgiven injuries and stifled resentments. She was in truth only too facile. She submitted too tamely to the insolence of Knox; she was too diffident of herself, and too willing to be swayed by Murray; she was too ready to pardon those who had given her the justest cause of offence; she was too candid and open, too distrustful of her own capacity, too gentle, too generous, and too engaging.

But if her faults consisted only in an excess of amiable qualities, or in those strong feelings which, though properly directed, were not always properly proportioned, the question naturally occurs, why the Queen of Scots should have suffered so much misery? “To say that she was always unfortunate,”

observes Robertson, “will not account for that long and almost uninterrupted succession of calamities which befel her; we must likewise add, that she was often imprudent.” Here the historian first mistates the fact, and then draws an inference from that mistatement. No “long and uninterrupted succession of calamities” befel Mary. She experienced an almost unparalleled reverse of fortune, but that reverse was sudden and complete. She sunk at once from a queen into a captive,—from power to weakness,—from splendor to obscurity. So long as she was permitted to be the arbitress of her own fortune, she met and overcame every difficulty; but when lawless and ambitious men wove their web around her, she was caught in it, and could never again escape from its meshes. Had she stumbled on from one calamity to another, continuing all the while a free agent, Robertson’s remark would have been just. But such was not her case;—the morning saw her a queen, and the evening found her a captive. The blow was as sudden as it was decisive; and her future life was an ineffectual struggle to escape from the chains which had been thrown round her in a moment, and which pressed her irresistibly to the ground. A calamity which no foresight could anticipate, or prudence avert, may overtake the wisest and the best; and such to Mary was the murder of Darnley, and Bothwell’s subsequent treason and violence. If to these be added the scarcely less iniquitous conduct of Elizabeth, the treachery of Morton, the craftiness of Murray, and the disastrous defeat at Langside, it needs no research or ingenuity to discover, that her miseries were not of her own making.

Should a still more comprehensive view of this subject be taken, and the whole life of the Queen of Scots reviewed, from her birth to her death, it will be found that, however great her advantages, they were almost always counterbalanced by some evil, which necessarily attended or sprung out of them. She was a queen when only a few months old; but she was also an orphan. She was destined, from her earliest childhood, to be the wife of the future monarch of France; but she was, in consequence, taken away from her native country, and the arms of her mother. The power and talents of her uncles of Guise were constantly exerted in her behalf; but she shared, therefore, in the hatred and jealousy in which they were held by a numerous party, both at home and abroad. Her residence and education, at the Court of Henry II., insured the refinement of her manners and the cultivation of her mind; but it excited the suspicions and the fears of the people of

Scotland. She was beautiful even to a proverb; but her beauty obtained for her as much envy as praise. She possessed the heart of her husband Francis; but she only felt his loss the more acutely. She returned to her own kingdom as the Queen-dowager of France; but her power and her pretensions made the English dread, and did not prevent her heretical subjects from openly braving, her authority. She married Darnley in the hopes of brightening her prospects, and securing her happiness; but he was the main cause of overclouding the one, and destroying the other. She was freed, by his death, from the wayward caprices of his ill-governed temper; but she escaped from one yoke only to be forced into another a thousand times worse. She loved her brother, and loaded him with favours; but he repaid them by placing himself upon her throne, and chasing her from the country. She escaped into England; but there she met with reproaches instead of assistance, a prison instead of an asylum, a mortal enemy instead of a sister, an axe and a scaffold instead of sympathy and protection.[\[208\]](#)

Mary's misfortunes, therefore, may be safely asserted not to have been the result of her imprudence or her errors. But justice is not satisfied with this merely negative praise. The Queen of Scots was one who needed only to have been prosperous, to be in the eyes of the world all that was great and good. And though the narrow-minded are only too ready, at all times, to triumph over the fallen, and to fancy, that where there is misery there is also guilt, they must nevertheless own, that there are some whose character only rises the higher, the more it is tried. If, on the one hand, the temptations to which Mary was exposed be duly considered,—her youth,—the prejudices of her education,—and the designing ministers by whom she was surrounded;—and, on the other, her conduct towards the Reformers, towards her enemies, towards her friends, towards all her subjects,—the deliberate judgment of calm impartiality, not of hasty enthusiasm, must be, that illustrious as her birth and rank were, she possessed virtues and talents which not only made her independent of the former, but raised her above them. In her better days, the vivacity and sweetness of her manners, her openness, her candour, her generosity, her polished wit, her extensive information, her cultivated taste, her easy affability, her powers of conversation, her native dignity and grace, were all conspicuous, though too little appreciated by the less refined frequenters of the Scottish Court. Nor did she appear to less advantage in the season of calamity. On the contrary, she had an opportunity of displaying in adversity a fortitude and nobility of soul, which she herself might not have known that she possessed, had she been always prosperous. Her piety and her constancy became more apparent in a prison than on a throne; and of none could it be said more truly than of her,—“*ponderibus virtus innata resistit.*” In the glory of victory and the pride of success, it is easy for a conquering monarch to float down the stream of popularity; but it is a far more arduous task to gain a victory over the natural weaknesses of one's own nature, and, in the midst of sufferings, to triumph over one's enemies. Mary did this; and was a thousand times more to be envied, when kneeling at her solitary devotions in the Castle of Fotheringhay, than Elizabeth surrounded with all the heartless splendor of Hampton Court. As she laid her head upon the block, the dying graces threw upon her their last smiles; and the sublime serenity of her death was an argument in her favour, the force of which must be

confessed by incredulity itself. Mary was not destined to obtain the crown of England, but she gained instead the crown of martyrdom.[\[209\]](#)

“Many of us,” said the Archbishop of Bruges, who was appointed to preach Mary’s funeral sermon in the church of Notre Dame at Paris, “Many of us have seen in this very place the Queen whom we now deplore, on her bridal morning and in her royal robes, so resplendent with jewels, that they shone like the light of day, or like her own beauty, which was more resplendent still. Nothing was to be discovered around or within but embroidered hangings, and cloth of gold, and precious tapestry, and couches and thrones occupied by kings and queens, and princes and nobles, who had come from all parts to be present at the festival. In the palace were magnificent banquets, and pageants, and masquerades; in the streets and squares, joustings, tournaments, and processions. It seemed as if the overwhelming brilliancy of our age was destined to surpass the richest pomp of every preceding age,—even the times when Greece and Rome were in all their splendor. A brief space has passed away like a cloud, and we have seen *her* a captive whom we saw in triumph,—a prisoner, who set the prisoners free, —poor, who gave away so liberally,—disdained, who was the fountain of honour. We have seen *her*, who was a two-fold Queen, in the hands of a common executioner, and that fair form, which graced the nuptial couch of the greatest monarch in Christendom, dishonoured on a scaffold. We have seen that loveliness, which was one of the wonders of the world, broken down by long captivity, and at length effaced by an ignominious death. If this fatal reverse teaches the uncertainty and vanity of all human things, the patience and incomparable fortitude of the Queen we have lost, also teach a more profitable lesson, and afford a salutary consolation. Every new calamity gave her an opportunity of gaining a new victory, and of evincing new proofs of her piety and constancy. It seems certain, indeed, that Providence made her affliction conspicuous, only to make her virtue more conspicuous. Others leave to their successors the care of building monuments, to preserve their name from oblivion; but the life and death of this lady are her monument. Marble, and brass, and iron decay, or are devoured by rust; but in no age, however long the world may endure, will the memory of Mary Stuart, Queen of Scots, and Dowager of France, cease to be cherished with affection and admiration.”[\[210\]](#)

**AN
EXAMINATION
OF THE
LETTERS, SONNETS, AND OTHER
WRITINGS,
ADDUCED IN EVIDENCE AGAINST MARY
QUEEN OF SCOTS.**

O place and greatness! millions of false eyes
Are stuck upon thee! Volumes of report
Run with these false and most contrarious guests
Upon thy doings! Thousand 'scapes of wit
Make thee the father of their idle dream,
And rack thee in their fancies.—

SHAKESPEARE.

Considering the very opposite opinions which have been long entertained, regarding the character and conduct of the Queen of Scots, no memoirs of her life would be complete, that did not contain some examination of the evidence upon which they who believe her guilty principally rest their conviction. This evidence consists of eight Letters, eleven Love-Sonnets, and one Marriage Contract, all alleged to have been written in the Queen's own hand, and addressed to the Earl of Bothwell. In corroboration of these, another Contract, said to have been written by the Earl of Huntly, and signed by the Queen; and the Confessions and Depositions of some of the persons who were known to be implicated in Bothwell's guilt, were likewise produced. Of the Letters, two were supposed to have been written from Glasgow, at the time Mary went thither to visit Darnley when he was ill, and are intended to prove her criminal connection with Bothwell; two or three from the Kirk-of-Field, for the purpose of facilitating the arrangements regarding the murder; and the rest after that event, and before

her abduction, to show that the whole scheme of the pretended ravishment was preconcerted between them. The precise time at which it is pretended the Sonnets were composed, does not appear; but expressions in them prove, that it must have been posterior to the Queen's residence at Dunbar. The Contract of Marriage, in Mary's own hand, though without date, must have been written very soon after Darnley's death, and contained a promise never to marry any one but Bothwell. The Contract, said to be in Huntly's hand, was dated at Seton, the 5th of April 1567, eight weeks after Darnley's death, a week before Bothwell's trial and acquittal, and three weeks before he was divorced from his first wife. The Confessions and Depositions are various, but only in one or two of them is any allusion made to Mary. The Letters, Sonnets, and Contracts, were said to have been discovered in a small gilt coffer, which the Earl of Bothwell left in the Castle of Edinburgh, in the custody of Sir James Balfour, at the time he fled from Edinburgh to Borthwick, about a month after his marriage, and shortly before the affair at Carberry Hill. After his discomfiture there, he is stated to have sent his servant, Dalgleish, into Edinburgh from Dunbar, to demand the coffer from Balfour. Sir James, it was said, delivered it up, but at the same time gave intimation to the Earl of Morton, who seized Dalgleish, and made himself master of the box and its contents. The Letters and Sonnets, which were written in French, were afterwards all translated into Scotch, and three into Latin.

Anxious to put beyond a doubt, either the forgery or the authenticity of these writings, numerous authors have exercised their ingenuity and talents, in a most minute and laborious examination, not only of their leading features, but of every line, and almost of every word. It would seem, however, not to be necessary, in so far as the great interests of truth are concerned, to descend to such microscopic investigation, and tedious verbal criticism, as have extended pages into volumes, and rendered confused and tiresome, disquisitions which might otherwise have been simple and interesting. If Mary's innocence is to be established, it must not be by the discovery of petty inconsistencies, or trifling inaccuracies. If her guilt is to be proved, the impartial reader is not to be satisfied with vague suspicions or ingenious suggestions, but must have a body of evidence set before him, which, if it does not amount to actual demonstration, contains a circumstantial strength equally calculated to convince.

It may be observed, at the outset, that unless the conclusions, to which these writings would lead, be corroborated by the established facts of History, it cannot be expected that a great deal of weight will be attached to them. Besides, it must not be forgotten, that as the originals have been lost, it is by means of translations alone that their alleged contents are known to the world. Upon their authority, Mary is accused of having first committed adultery, and then murder. Whatever opinion may have been formed of her from her behaviour during the rest of her existence,—however gentle her dispositions may have appeared,—however strong her sense of the distinction between right and wrong,—however constant her religious principles,—however wise her government,—however excellent the culture of her mind,—if the letters are to be credited, the whole was either hypocrisy from beginning to end, or, (overcome by some sudden impulse,) a year of gross criminality was introduced into the very middle of a well spent life. If she made so rapid a descent into a career of vice, she as rapidly rose again; and reassuming the character she had laid aside, lived and died with the purity of a saint, and the fortitude of a martyr. It cannot therefore be upon slight grounds that evidence so fatal to her reputation is to be admitted; and there will be little necessity to engage in minute cavilling, or to enter upon points of minor importance, if, by a distinct statement of some of the leading arguments against its authenticity, the whole shall be made to appear nugatory, improbable, and unentitled to credit.

The evidences naturally divide themselves into the two heads of *external* and *internal*; and, without further preface, it will be best to consider these in succession.

THE EXTERNAL EVIDENCES.—It was on the 20th of June 1567, that Dalgleish was seized, with the box and writings. The official account given by Buchanan is,—“That in the Castle of Edinburgh there was left by the Earl Bothwell, before his flying away, and was sent for by one George Dalgleish, his servant, who was taken by the Earl of Morton, a small gilt coffer, not fully a foot long, being garnished in sundry places with the Roman letter F, under a king’s crown, wherein were certain letters and writings well known, and by oaths, to be affirmed to have been written with the Queen of Scots own hand, to the Earl of Bothwell.”^[211] The question to be decided is, whether these letters and writings are genuine, or whether

they can be proved to be fabrications? That the latter is the correct conclusion, appears on the following grounds.

First, The conduct of Murray, Morton, and others of the Scottish nobility, on various occasions, proves that ambition was the ruling passion of their lives. Murray's iniquitous extermination of the Gordons in 1562, the influence he afterwards exercised in Mary's councils, and his unjustifiable opposition to her marriage with Darnley, carried even the length of open rebellion, illustrate his character no less clearly, than the share he had in the murder of Rizzio, and his proceedings after the meeting at Carberry Hill, do that of Morton. A train of events, arising out of the audacious machinations of Bothwell, placed Mary at the disposal of men thus devoted to the attainment of power. Yielding to their irresistible desire to secure its possession, they first imprisoned, and then dethroned their sovereign. She escaped from their hands, and, though driven from the country, threatened to return with foreign aid, to place herself at the head of her own party, which was still powerful, and to force from them their usurped authority. The urgency of the case called for a bold and decisive remedy. If Mary could prove, as there was no doubt she could, that, according to all the facts yet before the world, she had suffered severely and unjustly, they must either fall upon some means to vindicate their own actions, or be ruined for ever. Nothing would more naturally suggest itself than the expedient they adopted. The circumstance of Mary having been actually married to the man who murdered her former husband, opened a door to the very worst suspicions; and if they could artfully conceal the events which led to the marriage, and which not only justified it, but made it a matter of necessity, they hoped still to retain possession of the government. They were aware, indeed, that by their own proclamations and acts of council, they had acknowledged Mary's innocence, and pointed out the real cause of her connection with Bothwell; and it was now not enough, after they had involved themselves in deeper responsibility, merely to retract their former allegations. They were called upon to show *why* they departed from them;—they were called upon to prove, that when they first imprisoned her, though they confessed the Queen was innocent, they were now satisfied she was guilty. There was a positive necessity for the appearance of the letters; and if they had not been fortunately discovered, just at the proper time,

Murray and his colleagues must either have had recourse to some other expedient, or have consented to Mary's restoration, and their own disgrace.

Second, That Mary may have written love-letters to Francis II., and to Darnley, before and after she was married to them, is not unlikely; that she wrote sonnets and letters of affection to many of her friends, both male and female, is beyond a doubt; but that she would ever have written such letters and sonnets to the Earl of Bothwell, whom she never loved, whom she at one time threw into prison, and at another sent into banishment, whom she knew to be a married man, and whose marriage she had herself countenanced and encouraged, is against all probability. If Bothwell had never become Mary's husband, history does not record one circumstance, which would at all lead to the belief, that she was attached to him. Her very marriage, when fairly and fully considered, only makes the fact more certain, that she had no regard for Bothwell, else there would have been no forcible abduction on his part, or pretended reluctance on hers. Even though she had consented to marry Bothwell, which the clearest evidence proves her not to have done, it would afford no presumption against her, that he was afterwards discovered to have been the murderer of Darnley. He had not only been legally acquitted, but all her chief nobility had recommended him to her as a husband, stating the grounds of their recommendation to be the high opinion they entertained of his worth and loyalty. Robertson, Laing, and others, it is true, copying Buchanan, have laboured to show, that Mary discovered in various ways her extreme partiality for Bothwell. Most of their arguments have been already considered elsewhere; but it will be worth while attending for a moment to such of the circumstances collected by Robertson, and drawn up in formidable array, in the "Critical Dissertation" subjoined to his History of Scotland, as have not yet been noticed. The answers and explanations which immediately suggest themselves are so entirely satisfactory, that we can only wonder the historian did not himself perceive them.

Robertson states, that on the 15th of February 1567, five days after the murder, Mary bestowed on Bothwell the reversion of the superiority of the town of Leith, and that this grant was of much importance, as it gave him both the command of the principal port in the kingdom, and a great ascendancy over the citizens of Edinburgh. But this assignation, as is expressly stated in the charter, was made to Bothwell as a reward for his

faithful services, both to Mary's mother and to herself, especially on the occasion of Rizzio's death, and must have been in contemplation for some time; nor can it be supposed to have occupied the Queen's thoughts, at a moment when she was refusing to see any one, and was shut up by herself in a dark room, a prey to the bitterest regrets. It ought to be recollected, besides, that she had not yet conferred on Bothwell any adequate recompense for his fidelity and exertions after her escape from Morton; and that the grant of the superiority of the town of Leith, was only a very tardy acknowledgment of her obligations. She made presents of a similar description to others of her nobility about the same time: if any of them had afterwards forced her into a marriage, these gifts might have been raked up with equal plausibility, to prove that she was then in love with Morton, Huntly, Secretary Maitland, or any body else. At the Parliament which assembled on the 14th of April 1567, ratifications of grants were passed to many of the principal persons in the realm; and among others to the Earl of Mar, Morton, Crawford, Caithness, and Lord Robert Stuart.^[212] It will not be asserted, that Mary was attached to any of these persons; and is there any thing wonderful that she included in the list of those to whom she made donations, her Lord High Admiral? The case, no doubt, would have been worse, had she known that Bothwell was the murderer of Darnley, but throughout the whole of this discussion, it must be remembered, that if Mary was really innocent, she could not believe Bothwell guilty till he had been actually proved so.

Robertson states further, that two days after the trial, Mary allowed Bothwell to carry the sceptre before her when she went to open the Parliament; that she there granted him a ratification of all the vast possessions and honours which she had conferred upon him; and that, when Sir James Melville warned her of the danger which would attend a marriage with that nobleman, she not only disregarded his admonition, but discovered to Bothwell what had passed. But, as to the carrying of the sceptre, it was surely not to be expected, that after a full acquittal, without even the shadow of evidence being advanced against him, Mary could have ventured to refuse his accustomed honours to the most powerful noble in the realm. As to the Parliamentary ratification of "all the vast possessions and honours which she had conferred upon him," the misrepresentation is glaring in the extreme; for she never conferred on Bothwell any vast

possessions and honours, and the ratification alluded only to certain lands which were given him, to defray his charges in keeping the Castle of Dunbar.^[213] Bothwell no doubt enjoyed “vast possessions and honours;” but they were mostly hereditary, or had been obtained by him before Mary came into the kingdom. And as to the manner in which Mary took Sir James Melville’s warning,—the facts were these:—Sir James received a letter out of England, from a person of the name of Bishop, telling him that it had been rumoured (and there is no wonder, considering the bond which had been previously obtained from the nobility) that Bothwell was to be married to her Majesty, and assuring him, that if she consented to such an alliance, it would be much against her own reputation and interest. When Sir James showed this letter to Mary, she immediately sent, not for Bothwell, but for Secretary Maitland, to whom she handed it, expressing her surprise at its contents, and her suspicion that it was only a device on the part of some of Bothwell’s enemies, who wished to ruin him in her estimation. She afterwards took an opportunity to speak of it to Bothwell himself, who affected to be highly indignant, and was so enraged against Melville, that, had not Mary interfered, he would have forced him to fly from the Court to save his life. Bothwell’s rage is easily accounted for, considering the designs he then had in view, and the necessity for concealing them. But had he known that Mary was disposed to favour them, he would of course have taken the whole matter much more coolly. When Melville came upon the subject with Mary, she assured him that she did not contemplate any such alliance, and she had in like manner previously told Lord Herries, that “there was no such thing in her mind.”^[214] If deductions like those of Robertson, so contrary to the premises on which they are founded, be allowed, it is impossible to say to what belief they may not be made to lead.

Robertson states, lastly, that even after Mary had been separated from Bothwell, and confined in Loch-Leven, her affection for him did not abate; and that the fair conclusion from all these circumstances is, that had Mary really been accessory to the murder of her husband, “she could scarcely have taken any other steps than those she took, nor could her conduct have been more repugnant to all the maxims of prudence or of decency.” But that Mary’s affection for a man she had never loved, continued after she had left him to his fate, at Carberry Hill, and gone publicly over in the face of the whole world to his bitterest enemies, (on whose authority alone Robertson’s

assertion is made, though expressly contradicted by their own previous declarations, as well as by Mary's statements whenever she regained her liberty), is not to be believed; and had she been really innocent, "she could scarcely have taken any other steps than those she took," nor could her conduct have been more accordant with all the maxims of prudence and propriety.

Third, Supposing Mary to have actually written the letters to Bothwell, it may very fairly be asked,—Why he was so imprudent as preserve them?—why he chose to keep only eight?—why he put them all into the same box?—and why he should ever have intrusted that box to the custody of Sir James Balfour? It is extremely difficult to answer satisfactorily any of these questions. The only explanation which the first admits of, is, that Bothwell was afraid lest Mary should afterwards quarrel with him, and resolved therefore not to destroy the evidence of her participation in the murder. But if he acted upon this principle, why did he limit himself to a collection of eight letters? If Mary ever corresponded with him at all, he must have had in his possession many more of her epistles; for the first of the series which has been preserved, is evidently not the letter of one commencing a correspondence, but of one who writes as a matter of course, to a person whom she has often written to before. It may be said, perhaps, that none of her previous letters bore upon the subject of Darnley's murder; but they must at all events have contained expressions of affection, which would have served as an indirect proof of her guilt. If, by preserving these documents, and running the risk of their falling into the hands of his enemies, who would so eagerly use them to his disadvantage, Bothwell thought he was choosing the least of two dangers, he would certainly have been anxious to make his evidence of Mary's connexion with him as full and complete as possible. Accordingly, some love-sonnets, and a contract of marriage, were said to have been put into the same box, but only eight letters; as if, during the whole course of his amour with the Queen, and all its anxious days and nights, she had limited herself to eight epistolary testimonials of her love. But having preserved them, and having limited their number to eight, and having chosen to put them, not into a strong iron box locked and pad-locked, of which he alone kept the key, but into a "small gilt coffer" which never belonged to him at all, but had been a gift to Mary from her first husband Francis,—why was he so very absurd as send

them to Sir James Balfour in the Castle of Edinburgh, at the very time that a rebellion was rising in the nation, and that he was beginning to suspect Balfour's fidelity? They were sent, we are informed, "before his flying away" from Edinburgh, in the beginning of June 1567. Was this the moment at which he would be disposed to part with writings he had so carefully treasured? If he was afraid that his enemies would advance upon Edinburgh, why did he not take the "small gilt coffer" with him to Dunbar, instead of sending it to the very place where it was sure to become their prey? If the letters were in truth forged, it was necessary for the forgers to concoct as plausible a story concerning them as possible. They knew it was not likely that Bothwell would send them to the Castle tied up as an open packet; and the idea of a box would therefore occur to them. But as they had not in their possession any box which belonged to Bothwell, they were forced to make use of what they could get; and finding at Holyrood, when they rifled the palace of most of the Queen's valuables, the coffer in question, they would readily avail themselves of it. It would further occur to them, that Bothwell could not be supposed to have left the letters at Holyrood, which was not a place of any strength; and as they had not followed him to Dunbar, they were obliged to give out that he had made the Castle of Edinburgh their hiding-place. But if the letters had not been forgeries, and if they had been really preserved by Bothwell, they would have been more numerous,—they would not have been kept in one of Mary's trinket-boxes,—and they would never have found their way out of his own hands into the custody of Sir James Balfour.

Fourth, The next improbability connected with this story, is, that Bothwell sent to reclaim the letters at the time alleged. On the 15th of September 1568, Murray, before going into England, to attend the conference at York, gave the Earl of Morton a receipt for the "silver box, overgilt with gold, with all missive letters, contracts or obligations for marriage, sonnets or love ballads, and all other letters contained therein, sent and passed betwixt the Queen and James, sometime Earl Bothwell; which box, and whole pieces within the same, were taken and found with umwhile George Dalgleish, servant to the said Earl Bothwell, upon the 20th day of June, in the year of God 1567."^[215] This, then, was exactly five days after Bothwell had fled from Carberry Hill, and when Edinburgh was in the possession of the opposite faction, with whom Sir James Balfour had now associated

himself. Dalgleish, it appears, who was well known to be a servant of Bothwell, was able not only to effect an entrance into Edinburgh, though the city was strictly guarded, but was received into the Castle, and had the box actually delivered to him by Balfour. How he happened to be afterwards discovered, and his property taken from him, is not made out. If Balfour privately intimated to Morton what he had done, then he at once acted knavishly towards Bothwell, and most inconsiderately towards those whom he wished to befriend; for Dalgleish might have either baffled pursuit, or he might have secreted the box, or destroyed its contents before he was taken. Thus we have a tissue of improbabilities, pervading the whole of this part of the narrative. Bothwell could never send to Edinburgh Castle for writings he would never have deposited there: and most especially he would never send, when he himself was a fugitive, and that fortress, along with the adjacent town, in the hands of his enemies. Nor would Balfour have surrendered a box so precious; nor, if he did, would Dalgleish have allowed it again to become the prey of those from whom it was most wished to conceal it.

Fifth, What was done with the letters immediately after Morton and the other Lords got possession of them? Bothwell had been already accused of the murder of Darnley; his former acquittal had been declared unjust; he had been separated from the Queen; and she herself had been sequestered in Loch-Leven, until the whole affair should be duly investigated. Surely, then, the discovery of these letters would be regarded with signal satisfaction, and the associated Lords would lose not a moment in announcing their existence to the nation, as the best justification of their own proceedings. They had sent Mary, it is true, to Loch-Leven, somewhat precipitately, five days before they were aware of her enormous guilt; but if their own ambition had prompted that step, they would now be able to free themselves from blame, and would silence at once the boldest of the Queen's defenders. As it appears by the records, that a meeting of Privy Council was held on the 21st of June, the very day after Dalgleish was seized, we shall surely find that all the papers were produced, and their contents impressively recorded in the Council-books. Nothing of the kind took place; and though Morton was present at the meeting, not a single word was said of the letters.^[216] Again, on the 26th of June, an act was passed for sanctioning the imprisonment of the Queen in Loch-Leven, and a

proclamation issued for apprehending the Earl of Bothwell; but though the latter was accused of having “treasonably ravished” the person of her Highness the Queen, and also of being the “principal author of the late cruel murder,” no hint was given of the evidence which had been recently discovered against him, and which, indeed, had it been in their possession, would have directly contradicted the assertion, that Bothwell had been guilty Of “treasonable ravishment,” or of keeping the Queen in “thralldom and bondage;” for it would have appeared, that he had obtained her previous consent for every thing he had done.^[217] Between this date and the 11th of July, several other meetings of Council were held, and acts published, but not a whisper was heard concerning these important letters. When Sir Nicolas Throckmorton was sent by Elizabeth, as her ambassador into Scotland, the Lords presented him, on the 11th of July, with a formal justification of their doings; but, in all that long and laboured paper, the letters were never once alluded to. On the contrary, in direct opposition to them, such passages as the following occur more than once:—“How shamefully the Queen, our Sovereign, was led captive, and, by fear, force, and (as by many conjectures may be well suspected) other extraordinary and more unlawful means, compelled to become bed-fellow to another wife’s husband, and to him who, not three months before, had in his bed most cruelly murdered her husband, is manifest to the world, to the great dishonour of her Majesty, us all, and this whole nation.”—“It behoved us, assuredly, to have recommended the soul of our Prince, and of the most part of ourselves, to God’s hands; and as we may firmly believe the soul also of our Sovereign the Queen, who should not have lived with him half a year to an end, as may be conjectured by the short time they lived together, and the maintaining of his other wife at home in his house.”—“The respects aforesaid, with many others, and very necessity, moved us to enterprise the quarrel we have in hand, which was only intended against the Earl of Bothwell’s person, to dissolve the dishonourable and unlawful conjunction under the name of marriage.”^[218] These are positive declarations, which not only bear no reference to the box of love-letters, but which deliberately and conclusively give the lie to their contents. When was it, then, that these momentous letters were introduced to the world? The Lords, not satisfied with “sequestrating the person” of the Queen, forced from her an abdication of her throne on the 25th of July. Surely, before venturing on so audacious a proceeding, these criminal writings would be made known to the country.

But no; we in vain expect to hear any thing of them;—"shadows, clouds, and darkness" still rest upon them.

At length, a fresh actor returned to that scene, in which he had formerly played with so much success; and *his* inventive genius brought the mystery to light. Early in August, the Earl of Murray rejoined his old associates; and on the 22d of that month, he was proclaimed Regent. It was necessary for him, shortly afterwards, to hold a Parliament; and the Queen's party being then almost as strong as his own, it was still more necessary for him to fall upon some means to justify his usurpation, as well as those severe proceedings against Mary to which he had given his sanction. Accordingly, after he had been in Scotland four months, and had cautiously prepared his body of written evidence, we find it mentioned, *for the first time*, in an act of Council, passed on the 4th of December, only ten days before the meeting of Parliament, and evidently in anticipation of that event. In this act it is expressly declared, "that the cause and occasion of the private conventions of the Lords, Barons and others, and consequently their taking of arms, and coming to the field, and the cause and occasion of the taking of the Queen's person, upon the 15th day of June last, and holding and detaining of the same within the house and place of Loch Leven, continually since, presently, and in all time coming, and generally all other things invented, spoken, or written by them since the 10th day of February last, (upon which day umwhile King Henry was shamefully and horribly murdered), unto the day and date hereof, touching the Queen's person, cause, and all things depending thereon, was in the said Queen's own default, in as far as, by diverse her privy letters, written and subscribed with her own hand, and sent by her to James Earl of Bothwell, chief executor of the said horrible murder, as well before the committing thereof as after, and by her ungodly and dishonourable proceeding in a private marriage with him, suddenly and unprovokedly thereafter, it is most certain that she was privy, art and part, and of the actual device and deed of the forementioned murder."^[219] The ensuing Parliament passed an act, which, after a preamble expressed in nearly the same words, sanctioned the Queen's imprisonment and Murray's Regency;^[220] and nothing more whatever is known or heard of these "privy letters," till nearly the end of the following year, 1568.

With regard to these acts of Council and Parliament, it is to be remarked, in the first place, that they refer to the Letters as the grounds upon which the

nobles took up arms, separated the Queen from Bothwell at Carberry Hill, and imprisoned her at Loch-Leven; although, according to a subsequent confession, the Letters were not discovered till after she had been in captivity for five days, and although, in all the proclamations and acts of the time, Mary's innocence was openly allowed, and the bondage in which she had been kept by Bothwell as openly proclaimed. It is to be remarked, in the second place, that no account is given, either of the contents of these Letters, of the time of their discovery, or of the evidence by which their authenticity was ascertained. Dalgleish was at the very moment in custody, and a few days afterwards was tried and executed for his share in Darnley's death, of which he made a full confession. But why was he not brought forward and examined concerning the Letters; and why is there not a word about them in his confession?[\[221\]](#) Why was Dalgleish never mentioned as having any connection with the Letters at all till after he was dead? And if it was originally intended to refer to the Letters as the authorities on which the Lords sent Mary to Loch-Leven, may it not be fairly concluded, that the idea of their having been taken from Dalgleish on the 20th of June, was an after-thought, when it became necessary to account for the manner in which they had fallen into their hands? Was it, besides, enough to satisfy the nation to allude, in vague and general terms, to the existence of documents of so much weight? If they were thus obscurely locked up in Murray's custody,—if nothing further was said about them but that they existed,—if all the nobility of Scotland were not requested to come and examine them, —if they were not printed and published that the people might see them, and feel convinced that the Lords had acted justly, can it be cause of wonder, that, not only all Mary's friends, but even Elizabeth herself, intimated doubts of their authenticity?

Sixth, If it is strange that these important writings were so long kept from the public eye, it is no less strange, that, when they were at length produced, a degree of caution and hesitation was observed regarding them not a little suspicious. If the Regent had been satisfied of their authenticity, he would fearlessly have exhibited them to all who were interested in their contents. Even allowing that he had a fair excuse for concealing them so long, he would have been eager to challenge for them, when he at last determined to bring them forward, the minutest examination, so that the most sceptical might be convinced they were genuine. If he acted honestly, and, on the

authority of these writings, believed his sister unworthy of continuing on the Scottish throne, he must have been anxious that the whole country should acknowledge the propriety of his conduct; or if he had himself been misled, he ought not to have been unwilling to have had the forgery pointed out to him, and Mary restored to the government. But we look in vain for any thing frank, open, and candid, in Murray's proceedings.

When the conference began at York, there was not a word said of the letters, till it was found that, without their aid, no plausible answer could be given to the complaints made by Mary. Even then they were not boldly produced, and openly laid before the Commissioners; but Maitland, Macgill, Wood, and Buchanan, were sent to hold a "private and secret conference" with Norfolk and his colleagues, in which they produced the letters and other papers, and asked their opinion concerning them.^[222] As soon as Elizabeth was informed of their contents, she removed the conference to Westminster; and Mary sent her Commissioners thither, still ignorant of the alleged existence of any such writings. It was not till the 8th of December 1568 that the letters made their appearance in an official manner. As Elizabeth herself, departing from the impartiality of an umpire, had already secretly encouraged their production, and as she had evidently entered into Murray's views regarding them, there was now surely no further trepidation or concealment. But what is the fact? On only *two* occasions were the originals of these writings ever shown; and on neither occasion does their authenticity appear to have been at all determined. On the 8th of December, "they produced seven several writings, written in French, and avowed by them to be written by the said Queen; which seven writings being copied, were read in French, and a due collation made thereof, as near as could be, by reading and inspection, and made to accord with the originals, which the said Earl of Murray required to be re-delivered, and did thereupon deliver the copies, being collated."^[223] Here, therefore, nothing was done except comparing copies with what were called originals, to see that they agreed. These copies were left in the hands of the Commissioners, and the originals, by whoever they were written, were immediately returned to Murray. On the 14th of December, they again made their appearance, for the second and last time; "and being read, were duly conferred and compared, for the manner of writing and fashion of orthography, with sundry other letters, long since heretofore written, and sent by the said Queen of Scots to the

Queen's Majesty.”^[224] Was this all the proof that was offered? Yes; the whole. Elizabeth, who was no less anxious than Murray himself to blacken the character of the Queen of Scots, was allowed to supply the letters with which the other writings were to be compared; and, for any thing that is known to the contrary, these “other letters, long since heretofore written,” were only a few more forgeries from the same hand, prepared for the very use to which they were applied. And be this as it may, is it likely that, by a hasty collation of this kind, any accurate decision could be formed; or that, in a single forenoon, a number of different individuals could come to a conclusion on so very nice a point as a comparison of hands, especially having before them so great a number of documents to decide upon? It is a maxim in law, that “*fallacissimum genus probandi sit per comparationem litterarum;*” and surely the fallaciousness of such a proof was not diminished by the hasty examination given to them by some English nobles, probably unacquainted previously with the writing of the Queen of Scots.

But could Mary herself, it will be asked, refuse to acknowledge her own hand? Her Commissioners would of course be allowed to see the original letters; if not the whole, at least some of them, would be given to them, that they might transmit them to their mistress; and she being either unable to deny them, would confess her guilt, or, perceiving them to be fabrications, would point out the proofs. But nothing of all this was done. Mary's Commissioners were not present at the only meetings at which the originals were produced; and when they afterwards applied for a sight of them, or for copies, they were put off from time to time till the conference was dissolved, and Murray sent back to Scotland. “Suppose a man,” says Tytler, “was to swear a debt against me, and offered to prove it by bond or bill of my handwriting; if I knew this bond to be a false writing, what would be my defence? Show me the bond itself, and I will prove it a forgery. If he withdrew the bond, and refused to let me see it, what would be the presumption? Surely that the bond was forged, and that the user was himself the forger. The case is precisely similar to the point in hand. The Queen, we have seen, repeatedly demands to see the principal writings themselves, which she asserts are forged. Elizabeth herself says the demand is most reasonable. What follows? Is this reasonable demand of Mary complied with? Far from it; so far from seeing or having inspection of the originals, even copies of them are refused to her and her

Commissioners.”^[225] Under these circumstances, and as the writings were seen only twice by a few of the English nobility, and then locked up again in Murray’s box, that they once existed may perhaps be granted, but that they were what they pretended to be, cannot be believed to have been ever proved.

Seventh, Having effected the purpose they were meant to achieve, it might have been expected that these letters would be carefully preserved in the public archives of the Scottish nation;—that, as they had been the means of bringing about a revolution in the country, they would be regarded not as private, but as public property;—and that Murray would be anxious to lodge them where they might be referred to, both by his cotemporaries and posterity, as documents with which his own reputation, no less than that of his sister, was indissolubly connected. Here again, however, the impartial inquirer is disappointed. The Regent appears to have kept these writings close in his own possession till his death, and they then fell into the hands of his successor, the Earl of Lennox. Towards the end of January 1571, Lennox delivered them to Morton; and after Morton’s execution, the box and its contents became the property of the Earl of Gowrie. Knowing that he would be less anxious to maintain their authenticity, not being influenced by any of the motives which had actuated Murray, Lennox, and Morton, and fearing lest the whole trick should be discovered, Elizabeth became now very anxious to obtain them. She ordered her ambassador in Scotland, in 1582, to promise Gowrie, that if he would surrender them, he should “be requited to his comfort and contentment, with princely thanks and gratuity.” But Gowrie was neither to be bribed nor persuaded; he knew the value of the papers too well, and the power which their possession gave him, both over James and Elizabeth. As long as they befriended him, he would be silent; but should he ever be cast off by them, he would proclaim their fabrication, and remove the stains they had cast upon Mary’s honour. Elizabeth’s earnest endeavours to get them into her own possession can be accounted for, only on the supposition that she knew them to be forgeries; for it was in that case alone, that any dangerous use could have been made of them. Subsequent to the correspondence with Gowrie, in 1582, nothing further is known of these writings. In 1584, Gowrie was executed as a traitor, on account of the conspiracy in which he had engaged, and many of his effects fell into the hands of James VI.; but whether these documents

were among them, is uncertain. In so far as the originals are concerned, this celebrated body of evidence is little else than a mere shadow. It was never spoken of at all, till long after it had been discovered,—it was not produced till long after it had been first spoken of,—it appeared only for a few hours before persons predisposed to give it all credit,—it then returned to its former obscurity, and not even *copies* but merely *translations*, are all that were ever presented to the world, on which to form an opinion. It is strange that any importance should have ever been attached to papers, which were never fairly exposed to the light, and which the jaws of darkness so soon devoured.[\[226\]](#)

Eighth, Though it would be perhaps as difficult to prove a negative, as to demonstrate the spuriousness of writings which do not exist, and which were hardly ever seen, the presumption against them is increased a hundred-fold, if it can be clearly established, that the same men who produced them were more than once guilty of deliberate forgery. This could be done in many instances; but it will be enough to mention two, which are sufficiently glaring. The first is the letter which Morton exhibited before Mary was taken to Loch-Leven, and which was never afterwards referred to or produced, even at the time when evidence of all kinds was raked up against her. It was a letter which would not only have gone a great way to corroborate the others, but, as it did not implicate the Queen in Darnley's murder, was exactly the sort of apology that was wished for keeping her "sequestered" at Loch-Leven, and forcing from her an abdication. Even though all the other epistles had been kept back, this might have been safely engrossed in the minutes of Morton's Privy Council, and referred to again and again by the King's Lords, as the great justification of their conduct. If by any chance a reason could be found, why it was first produced, and again concealed, it would still be impossible to discover why it alone was withdrawn, when all the rest were laid before Elizabeth. There is but one solution of the enigma, which is, that it was too hasty a fabrication to bear minute examination, and that, though it misled Kircaldy of Grange, Morton and Murray were themselves ashamed of it.

A second and even more remarkable example of forgery is to be found in one of the papers which Murray showed to the English Commissioners at York, but which he afterwards thought it prudent to withdraw when the writings were more publicly produced at Westminster. This paper was

described as,—“The Queen’s consent given to the Lords who subscribed the bond for the promotion of the said James Earl Bothwell to her marriage.”^[227] In the “private and secret Conference,” which Lethington, MacGill, Wood, and Buchanan, had with the Commissioners at York; “they showed unto us,” say the latter, “a copy of a band, bearing date the 19th of April 1567, to the which the most part of the Lords and Counsellors of Scotland have put to their hands; and, as they say, more for fear than any liking they had of the same. Which band contained two special points,—the one a declaration of Bothwell’s purgation of the murder of the Lord Darnley, and the other a general consent to his marriage with the Queen, so far forth as the law and her own liking should allow. And yet, in proof that they did it not willingly, they procured a warrant which was now showed unto us, bearing date the 19th of April, signed with the Queen’s hand, whereby she gave them license to agree to the same; affirming, that before they had such a warrant, there was none of them that did or would set to their hands, saving only the Earl of Huntly.”^[228] This must have been a very curious and interesting warrant; and it is somewhat surprising, that it had never been heard of before. It was a very strong link in the chain; and spoke volumes of Mary’s love for Bothwell, which carried her so far that she not only secretly wished, but openly requested her nobles to recommend him to her as a husband. Besides, if the warrant was genuine, it must have been seen by all the Lords who were present at “Ainsly’s supper;” and they must have been consequently well aware that there was no such thing as a forcible abduction of the Queen’s person. So far from supposing that Bothwell ever kept her in “unlawful bondage,” or forced her into a “pretended marriage,” they would know that she had shown greater anxiety to possess him than he had to secure her. Their only wonder would be, that after so far overcoming the natural modesty of her sex, as to point out to them one of her own subjects, whom she asked them to advise her to marry, she should so palpably have contradicted herself, as to give out afterwards that it was not till she had been carried off, and till every argument had been used which power could supply, or passion suggest, that she reluctantly agreed to become his wife. If she openly and formally licensed her nobles to recommend him, what was the use of all her subsequent affected reluctance? But it was not Murray’s business to explain this problem. The warrant spoke for itself, and it was with it only that he had to do. What, then, were the comments which he made on it at Westminster, and the

conclusive presumptions against Mary which he drew from it? *The “Warrant” was not produced at Westminster at all, and not a single allusion was made to it.*^[229] This fact alone is sufficient to mark the credit it deserves. It could do no harm to show it privately to Norfolk, Sussex, and Sadler; but it would not have answered so well to have advanced it publicly, as all the nobility of Scotland would at once have known it to be a fabrication. The probability is, that this “Warrant,” or “Consent,” was neither more nor less than a garbled copy of the pardon which Bothwell obtained from Mary, for the Lords who had signed the bond, when he brought her out of the Castle of Edinburgh on the 14th of May, the day previous to her marriage; and she would never have been asked for this pardon if she had before recommended the bond.^[230] If Murray and his party are thus detected in fabrications so gross, that they themselves, however anxious to bolster up their cause, were afraid to make use of them, what dependence is to be placed upon the authenticity of any writings they chose to produce?

Ninth, It was Bothwell who murdered Darnley; it was Bothwell who seized the person of the Queen; it was Bothwell who was married to her; it was Bothwell whose daring ambition waded through blood and crime, till at length he set his foot upon a throne. But his triumph was of short duration. The Queen left him, and went over to his enemies; and he himself was forced into a miserable exile. It was this reverse of fortune which he had all along dreaded; and it was to be prepared for the evil day, that he had preserved the eight letters and love-sonnets so carefully in the small gilt box. He had determined, that whatever might happen, he should never lose his hold over Mary, but that, as she had participated in his guilt, she should be made to share his subsequent fortunes. He cannot have been well pleased with her conduct at Carberry Hill; and it was perhaps to revenge himself upon her, that he sent Dalgleish for the casket, part of the contents of which he may have intended to disclose to the world. Dalgleish and the casket were seized, but the secret of Mary’s criminality was still in Bothwell’s possession; and there was surely no occasion that he should become odious in the eyes of all men, whilst his paramour and accomplice preserved her reputation. Did he never, then, throughout the whole course of his life, utter a word, or issue a declaration, or make a confession which in the slightest

degree implicated Mary? It is surely a strong presumption in her favour if he never did.

Before Darnley was murdered, Bothwell went to meet Morton at Whittingham, to consult him on the subject. Morton told him, that unless he could produce proof, under the Queen's hand, of her consent to have her husband removed, he would not interfere in the matter. Before going to Whittingham, Bothwell must have received the two letters which Mary is alleged to have written to him from Glasgow; *yet he was unable to show Morton any writing to corroborate his assertion, that the Queen would not be offended at the proposed murder.* He promised, however, that he would do all he could to procure the warrant which Morton desired. Some time afterwards, "I being at St Andrews," says Morton in his confession, "to visit the Earl of Angus a little before the murder, Mr Archibald Douglas came to me there, both with write and credit of the Earl Bothwell, to show unto me that the purpose of the King's murder was to be done, and near a point; and to request my concurrence and assistance thereunto. My answer to him was, that I would give no answer to that purpose, seeing I had not got the Queen's warrant in write, which was promised; and therefore, seeing the Earl Bothwell never reported any warrant of the Queen to me, I never meddled further with it."^[231] As all that Morton wished, before giving Bothwell his active support, was "the Queen's hand-write of the matter for a warrant," what would have been more natural or easy for Bothwell than to have produced any of the letters he had got from Mary, which would exactly have answered the purpose, and satisfied all Morton's scruples? As Bothwell told him that the Queen approved of the design, he could not have any objection to make good that assertion, by any written evidence in his possession. He need not even have shown the whole of any one letter, but only such detached parts of it as bore directly on the subject in question. It is strange, that Bothwell should have gone so far, and should have been so anxious to secure the co-operation of Morton; yet, that he did not obviate the only objection which Morton started, by putting into his hands a letter, or letters, which, if they ever existed, he must have then had.^[232]

Various occasions occurred afterwards, which held out every inducement to Bothwell to produce the letters and accuse the Queen. Passing over his silence at Carberry Hill, notwithstanding her desertion of him there, and during all the rest of the time that he remained in Scotland, it may be

mentioned, that Murray, shortly after he had been appointed Regent, wrote to the King of Denmark, to request that Bothwell should be delivered up to him. The King refused, on several grounds, and among others, that Bothwell maintained he had been unjustly driven from the kingdom,—that he had been legally tried and acquitted,—that he had been lawfully married to the Queen,—and that *no blame whatever attached to her*.^[233] Not at all satisfied with this answer, Mr Thomas Buchanan was afterwards sent out to Denmark, to procure, if possible, Bothwell's surrender. Buchanan, of course, made himself acquainted with all that Bothwell had been saying and doing, since he fled from Scotland; and in January 1571, he sent home a full account of his discoveries to his constituents. The letter was addressed to the Earl of Lennox, who was then Regent; but it fell first into the Earl of Morton's hands, who was at the time in London. Perceiving that it contained matter by no means favourable to their cause, and afraid lest it might produce some effect on the mind of Elizabeth, he played the same game with her he had formerly been so successful in with Mary, and passed off upon her a garbled copy as a genuine transcript of the original. "We had no will," the Earl of Morton wrote to Lennox, "that the contents of the letter should be known, fearing that some words and matters mentioned in the same being dispersed here as news, would rather have hindered than furthered our cause. And, therefore, being desired at Court to show the letter, we gave to understand that we had sent the principal away, and delivered a copy, omitting such things as we thought not meet to be shown, as your Grace may perceive by the like copy, which also we have sent you herewith; which you may communicate to such as your Grace thinks it not expedient to communicate the whole contents of the principal letter unto."^[234] Both the original despatch and the spurious copy have unfortunately been lost, or were more probably destroyed by Lennox himself; so that their contents can only be conjectured; but it is evident, that so far from tending to hurt Mary's reputation, they must rather have served to exculpate her.

In the year 1576, Mary wrote to the Archbishop of Glasgow, that she had received intelligence of Bothwell's death, and that, before his decease, he had declared himself the murderer of Darnley, and expressly freed her from any share in it, attesting her innocence in the most solemn manner. "If this be true," Mary added, "this testimony will be of great importance to me

against the false calumnies of my enemies. I therefore beseech you to take every means in your power to discover the real state of the case.”^[235] The Archbishop proposed, in consequence, to send a messenger to Denmark, to procure a properly authenticated copy of the testament, but for want of money and other causes, it appears that he was never able to carry his intentions into effect. The confession was transmitted to Elizabeth by the King of Denmark, but its publication was anxiously suppressed by her;^[236] and is now lost. Its place, however, has been not unsatisfactorily supplied by a discovery which has recently been made in the Royal library at Drottningholm, entitled, a “Declaration of the Earl of Bothwell,” made by him when a prisoner at Copenhagen in the year 1568. It contains a full account of all the principal events of his past life; and though it was written, not as a confession, but as a justification, and is consequently an artful piece of special pleading in his own defence, and not always particularly accurate in its detail of facts, it cannot fail nevertheless to be regarded as an interesting and important document. One thing is especially to be remarked, that throughout the whole, he never attempts in the most distant manner to implicate Mary in the blame attachable to his own conduct. On the contrary, he speaks of her throughout with the utmost respect. It may be said, that if Bothwell had accused Mary, he could not have defended himself, and that he abstained only from a selfish motive. There were, however, a thousand different degrees of responsibility with which he might have charged Mary. There was no necessity to have accused her of the murder of Darnley, or of a criminal attachment to him; but if it had been the truth, it would certainly have been for his own interest, to have proved that the Queen loved him sincerely and warmly. Even this he does not venture to state; and the impression left by the whole tone of the declaration unquestionably is, that he felt it would be for his advantage to say as little about Mary as possible, knowing that, of all others he had offended most against her, and that to attempt to cast any imputation upon her innocence, would be only to throw a darker shade over his own villany.^[237]

Tenth.—Some historians have ventured to assert, that however little credit they might be disposed to give to the statements of such men as Murray and Morton, they have been somewhat startled to find that Mary herself never denied them very positively, or evinced much indignation against them. These historians cannot have looked very deeply into the records on this

subject, else they would have found that the fact was exactly the reverse of what they suppose it to have been. “And yet is there one injury more,” says Bishop Lesley, “that doth grieve and molest this good guiltless lady more than all their foretold villanous pranks played by them against her, and surely not without just cause of grief; for, indeed, it far passeth and exceedeth them all, and that is, their shameful and most traitorous defaming her, being altogether innocent therein, with the death of her husband, as though that she had suborned the Earl of Bothwell thereto, and rewarded him therefor with the marriage of her own body.”^[238] It is altogether unnecessary to refer to any particular authorities upon this subject; for a volume might be easily filled with Letters, Despatches, and Instructions from Mary, which not only deny her guilt, but, by the arguments they contain, go very far to establish her innocence. A communication, which she addressed, in the year 1569, to the States of Scotland, must, however, be mentioned, as it distinctly shows what her feelings then were towards Bothwell; for whom, indeed, she had so little affection, that, very soon after her arrival in England, she lent a favourable ear to the proposals of marriage made by the Duke of Norfolk. Her letter to the Scottish Parliament is to be considered in connection with this contemplated marriage. Its purpose was, to obtain the sanction of the States to a divorce from Bothwell; and she alluded to him in the following terms: “Forasmuch as we are credibly informed, by sundry and diverse noblemen of our realm, that the pretended marriage, some time contracted, and in a manner solemnized, between us and James Earl of Bothwell, was, for diverse respects, unlawful, and may not of good conscience and law stand betwixt us, (albeit it seemed otherwise to us and our Council at that time);—considering, therefore, with ourselves, and thinking that the same does touch us as highly in honour and conscience that it daily and hourly troubles and vexes our spirit quite through, we are moved to seek remedy.”^[239] The very Lords, however, who had before affected so much anxiety to free her from that “ungodly alliance,” now refused to take any steps towards forwarding the divorce; and they were thus convicted of another inconsistency.^[240] Little more than eighteen months had elapsed since they had not only imprisoned her, but forced her to surrender her crown, because, as they alleged, she “would not consent, by any persuasion, to abandon the Lord Bothwell for her husband, but avowed constantly that she would live and die with him, saying, that if it were put to her choice to relinquish her crown and kingdom, or the Lord

Bothwell, she would leave her kingdom and dignity to go as a simple damsel with him, and would never consent that he would fare worse, or have more harm than herself.”^[241] Yet she now expressly asked a divorce from this Lord Bothwell, her connection with whom had “daily and hourly troubled and vexed her spirit;” and the Lords, forgetting all their former protestations, were not disposed to accede to it.

Nor was it by Mary herself alone, that a direct contradiction was given to the defamatory accusations of the regent and his associates. Numerous state papers exist which show, that all the impartial and disinterested part, not only of her own nobility, but of Elizabeth’s, considered her entirely innocent. In the year 1568, letters were addressed to the Queen of England, by many of the Lords of Scotland, which spoke very strongly in her favour. Among the signatures to these, will be found the names of the Archbishop of St Andrews, the Earl of Huntly, Argyle, Crawford, Errol, Rothes, Cassils, Eglinton, and Caithness, and the Lords Fleming, Ross, Sanquhar, Ogilvy, Boyd, Oliphant, Drummond, Maxwell, and others.^[242] In England, the great number of Lords and gentlemen of the first rank who joined with Norfolk in aid of Mary, affords perhaps a still stronger presumption in her favour. But Robertson, on the other hand, asserts that her father and mother-in-law, Lord and Lady Lennox, were convinced of her guilt. By attaching himself to the Prince’s faction, Lennox came to be elected Regent, and that he was willing to believe, or affect to believe, all that Mary’s enemies advanced, cannot be matter of much wonder; for he had in truth identified his interests with those of Murray and Morton, and if their fabrications had been detected, he must have suffered along with them. But in so far as regards the Countess of Lennox, Robertson’s statement is directly contrary to the fact. He quotes a letter, it is true, written by Mary to that Lady in the year 1570, in which, with ingenuous sincerity, the Queen laments that the Countess should allow herself to be persuaded to think evil of her; and it was perhaps partly in consequence of this appeal, that Lady Lennox began to consider the subject more seriously. Robertson either did not know, or chose to conceal the fact, that she saw cause soon after receiving Mary’s letter decidedly to change her opinions. In 1578, Mary wrote to the Archbishop of Glasgow to this effect:—“The Countess of Lennox, my mother-in-law, died about a month ago. This good lady, thanks to God, has been in very good intelligence and correspondence with me for the last five

or six years. She has confessed to me, by diverse letters under her hand which I carefully keep, the wrong she did me in the unjust prosecutions which she allowed to proceed against me in her name, and which originated, partly in erroneous information, but principally in the express commands of the Queen of England, and persuasions of those of her Council who were always averse to our reconciliation. As soon as she became persuaded of my innocence, she desisted from these prosecutions, and resolutely refused to countenance the proceedings which were carried on against me under her name.”^[243] Thus, however prejudiced her husband necessarily was, the Countess was unable to resist the force of truth, as soon as she was allowed to judge for herself. It may further be mentioned, that in France there was scarcely an individual who thought Mary guilty; and that the funeral orations which were ordered by the Government to be preached upon her death, were attended by hundreds, who wept over the injuries and the misfortunes of their beloved Queen-dowager.^[244] It appears, therefore, both by Mary’s own declarations, repeated over and over again with undeviating consistency, up to the very hour of her death, when she passed into the presence of her Maker, solemnly protesting her innocence, and by the deliberate opinions of nearly all her cotemporaries who are deserving of credit, that the strongest and most positive contradiction was given to the malicious insinuations of the opposite party.

Eleventh, and Lastly.—A considerable number of Bothwell’s accomplices were tried, condemned and executed, for their share in the murder; and before their death, they all made Depositions and Confessions which still exist, and have been printed by Goodall, Anderson, Laing, and others. Among these are the Examinations, Depositions, and Confessions, of Powrie, Dalgleish, Hay, Hepburn and Paris; the evidence of Nelson, Darnley’s servant, and the Confessions of Ormiston, and the Earl of Morton. Here, then, is a tolerably voluminous collection of facts, supplied by those who were most intimate with Bothwell, and who, if he had any undue intimacy with the Queen, would in all probability have known something concerning it, and have had it in their power to throw some light upon the subject. These Documents, therefore, will be anxiously read by all who aim at discovering the real perpetrators and devisers of the murder. The result of their readings will be the discovery, that in every one of these documents, which is properly authenticated and ascertained to be genuine,

Bothwell, and Bothwell alone, is mentioned as the executor of the deed; and there is not a syllable in any of them which can be construed to the disadvantage of the Queen. On the contrary, various particulars are mentioned, which have a direct tendency to disprove her connexion with him. Some of these have been already alluded to; but a few of the circumstances most decisive in the Queen's favour may be recapitulated here. 1. Hepburn deponed, that as it took longer time to get the powder into the lower part of Darnley's house than was expected, Bothwell became impatient, and told them to make haste, for they would not find so much commodity if the Queen came out.^[245] 2. Hepburn and Paris deponed, that Bothwell got false keys made for opening all the doors of the house in which Darnley lodged, for which he would have had no occasion, if the Queen had been in the plot with him.^[246] 3. Ormiston being asked if ever the Queen spoke to him at any time concerning the murder, or if he knew what was her mind unto it, replied—"As I shall answer to God, she spoke never to me, nor I to her, of it, nor I know nothing of her part, but as my Lord Bothwell told me." As if alluding to some bribe which had been offered him, if he would accuse the Queen, he added,—“I will not speak but the truth for all the gold of the earth, which I desire you, good minister, bear record of, and as you have written, I pray you read over to me; let me also see it.”^[247] 4. Paris can have had no suspicion that the Queen countenanced the proposed murder; for, in the conversation he had with Bothwell, when the Earl first disclosed his intention to him, he beseeched him to desist from his enterprise, telling him that he was “already the most powerful nobleman in the country, and that, having lately married, he ought now or never to be anxious to keep himself out of trouble.”^[248] 5. Paris further deponed, that Bothwell asked him to procure the key of the Queen's chamber, at the Kirk-of-Field, telling him that he had got him transferred to the Queen's service, solely in the hope of finding him useful on this occasion. Had Mary herself known of the plot, Bothwell need not have run the risk of disclosing it to Paris.^[249] 6. Though Dalgleish was minutely examined regarding all the circumstances of the murder, not one question was put to him upon the subject of the box and letters which were of so much importance; nor was it ever mentioned till after his death, that the casket had been in his custody. On the 20th of June 1567, Dalgleish is said to have been seized, and this is probably the fact; he was examined six days afterwards, before Morton and the other Lords of the Privy Council, and his examination has been

preserved entire. “This remarkable particular,” says Tytler, “naturally occurs to be observed in it, that it was surely of great importance for Morton, who then had the box in his custody, to have confronted Dalglish with the persons who apprehended him, and to have asked him some questions relating to this box; such as, Whether or not this box was in his custody when he was seized?—What orders he received from his master Bothwell concerning it?—Who delivered it to him? or where he found it?—Whether open, or locked?—If open, what it contained? and where he was to have carried it? Dalglish, and the persons who seized him, in a matter so recent, only six days before, could have given distinct answers to those questions.”^[250] There can be little doubt, that as no such questions were put, no such transaction, as the seizure of a box and papers had taken place. Laing endeavours to account for this very suspicious circumstance in the following manner: “The depositions are strictly confined to the murder, as the design was to procure judicial evidence against Bothwell and his associates, not to implicate the Queen in his guilt.” But in the first place, these letters were themselves the very best “judicial evidence” they could have found; and in the second, questions might have been put concerning them, without, in the mean time making any disclosure of their contents. The total silence of the Privy Council, and of Dalglish, is fatal to their supposed existence. 7. The Earl of Morton confessed, that though he told Bothwell he would give him more active assistance if he could show him any writing of the Queen, which proved that she sanctioned the murder; yet that Bothwell, after undertaking to procure such writing, was never able to fulfil his promise; and this was at a time posterior to the date of some of the love-letters, which Mary was afterwards alleged to have written to him. Thus, these Confessions, Depositions, and Examinations, though they were collected with the anxious wish of eliciting some circumstances which would seem to criminate Mary, must have been felt by the rebel Lords themselves, to be as much in her favour as it was possible for any negative evidence to be.^[251]

Having thus stated the leading External Evidences against the genuineness of these Letters, it will be worth while to examine, for a moment, Robertson’s “external proofs” in support of them,—which, when contrasted with those stated above, will be found to be of little weight. The Historian argues for their authenticity, on the following grounds:—*First*, “Murray and

the nobles who adhered to him, affirmed, upon their word and honour, that the letters were written with the Queen's own hand, with which they were well acquainted." This is a very powerful argument to begin with, as if men who forged letters for a particular purpose, would themselves confess that they were forged. *Second*, "The Letters were publicly produced in the Parliament of Scotland, December 1567, and were so far considered as genuine, that they are mentioned in the Act against Mary, as one chief argument of her guilt." This is nothing but a repetition, in other words, of the former powerful argument; for the Parliament of December 1567 was the Parliament assembled by Murray, after he had been elected Regent, and he was able to secure the passing of any act he chose. Where Robertson learned, that at this Parliament "the letters were publicly produced," does not appear, as his reference to Goodall (vol. ii. p. 66) by no means authorizes the assertion. *Third*, "The Letters seem to have been considered genuine by Elizabeth's Commissioners, both at York and Westminster, as appears by letters which Norfolk, Sussex, and Sadler, wrote from York; and as, in the journal of the proceedings at Hampton Court, it is said that, when the letters supposed to be written by the Queen of Scots, 'were duly conferred and compared for the manner of writing and fashion of orthography, with sundry other letters long since heretofore written, and sent by the said Queen of Scots to the Queen's Majesty, in the collation no difference was found.'" It has been seen, however, that whatever Norfolk chose to write concerning those letters with the view of pleasing Elizabeth, and concealing from her his own engagements and designs, he was, in truth, so little influenced by them, that he avowed a passion for Mary, and risked his life and fortune in order to become her husband. It has been also seen, that the hasty collation, made by the nobles at Hampton Court, of these pretended letters, with others, "long since heretofore written" and furnished by Elizabeth herself, is, in truth, no collation at all, or one upon which no dependence be placed. *Fourth*, "The Earl of Lennox, both in public, and in a private letter he wrote to his own wife, so expressed himself, that it is plain he not only thought the Queen guilty, but believed the authenticity of her letters to Bothwell." This matter has been already investigated. The Regent Lennox was obliged to maintain Mary's guilt for his own sake; and it is scarcely to be supposed he would have been so imprudent as write to his wife, to inform her that the opinions he had so strenuously supported before the world were not those of his heart and conscience. Murray himself

would as soon have acknowledged that the letters were fabricated as Lennox. But it is a strong fact, that, though she had every inducement to think as her husband did, Lady Lennox believed Mary innocent. These are all Robertson's "external proofs of the genuineness of Mary's letters."[\[252\]](#)

The external evidence against these writings, is probably enough to convince every impartial reader that they are forgeries. But, as they exist in one shape or other, it may be as well to go a step further, and see whether their perusal will strengthen or weaken the belief of their fabrication. This brings us to the second division of the subject, which will not detain us so long as the first.

INTERNAL EVIDENCES.—Considering the weight which Mary's enemies have attached to these letters, the first question the impartial inquirer would naturally ask is, whether properly authenticated copies of what Mary is alleged to have written can still be seen,—whether the *ipsissima verba* which she used have been preserved,—and whether an opportunity can thus be had of judging of the precise shade of meaning of particular passages, and of the general style and tenor of these strange compositions. In answer to these inquiries it has to be stated, that the letters, as taken out of the casket, were exhibited only to a few noblemen, who acted under Elizabeth; and that nothing but translations of them are now extant. The Latin edition of Buchanan's "Detection," published in 1571, contained only the three first letters translated into Latin; in the Scottish edition, all the eight letters were translated into Scotch.[\[253\]](#) The originals were thus left at the mercy of translators; and, in particular, at the mercy of such a translator as Buchanan, who cannot be supposed to have had any great desire to be scrupulously accurate. In 1572, a French edition of the "Detection" was published at London, to which were subjoined seven French letters and the love-sonnets. For two hundred years, no one doubted but that these were Mary's original letters, and they were always referred to as such in any controversies which took place on the subject. In 1754, however, Mr Walter Goodall, keeper of the Advocates' Library at Edinburgh, published his "Examination of the Letters," and showed, in the clearest manner, that these seven French letters were nothing but re-translations from the Latin and Scottish translations which had been previously published. This was certainly an important and interesting discovery, although it scarcely warranted the conclusion which Goodall thought he was entitled to draw from it, that no French copy of the

letters had, in reality, ever existed until the Latin and Scottish editions were first fabricated. Robertson and others have maintained more justly, that, though they acknowledge Goodall to have proved that the existing French copies of the letters are only translations from translations, there is, nevertheless, no reason to believe that these are the French letters which were produced by Murray at York and Westminster, copies of which they grant have never been given to the world. That this is the true state of the case, appears by the French editor's own admission in his Preface. "The letters subjoined to this work," he says, "were written by the Queen, partly in French and partly in Scotch, and were afterwards translated altogether into Latin; but having no knowledge of the Scottish language, I have preferred translating accurately from the Latin copy, lest, by being over scrupulous about changing a single syllable, I might frustrate the reader in his desire to ascertain precisely to whom the fault of the execrable murder, and other enormities mentioned in them, ought to be ascribed."^[254] Thus, both by the ignorance which this translator evinces, in alleging, contrary to the assertions which had been made by Murray, that the letters were originally written partly in French and partly in Scotch, and, by his own confession, that he preferred translating from the Latin wherever he could get it, rather than from the Scotch, it is perfectly evident that no such thing as the original French letters have ever appeared, and that the French letters which do exist, are not so much to be depended on as even the Scotch or Latin, which were probably translated directly from the epistles which Murray produced.

In what condition, then, do we find these wonderful letters about which so much has been written? We have three in Latin, eight in Scotch, and seven in French. The French are only re-translations from the Latin and Scottish; and they, in their turn, are translations from the invisible French originals. And under whose superintendence were these translations, into the Scottish and Latin, made? It must have been either under that of Murray, or of Elizabeth and Cecil. The former, after merely showing the letters at Westminster, took them back with him to Scotland; but intrusted the latter with copies.^[255] It is not very likely that the Scottish translation could be made in England; and the three that have been rendered into Latin, have been commonly attributed to George Buchanan. Laing, however, labours to show, that this is a mistake, and that the translation was made by a Dr

Wilson, Elizabeth's master of requests. Be this as it may, in what court of law or equity would such documents as these be admitted as evidence? The grossest errors have often been made by translators, even where they were anxious to be as faithful as possible. Yet we are now called upon to form an opinion of letters, which exist in languages different from that in which they were originally written, and which are either translations from translations, or translations executed by those who had every motive and desire to pervert the original, and make it appear much worse than it really was. What jury would for a moment look at such letters? What impartial judge would allow his mind to be biassed by them, altered and garbled as they must unquestionably be, even supposing that their originals once existed? It was to Buchanan's *Detection* that these letters were always subjoined. At Westminster, Murray produced a Book of Articles, in five parts, containing certain presumptions, likelihoods and circumstances, whereby it should evidently appear, that as Bothwell was the chief murderer of the King, so was the Queen a deviser and maintainer thereof. "From the explanation given in Buchanan's *History*," says Laing, "the book of articles corresponds, and was undoubtedly the same with the *Detection* of the doings of Mary."^[256] Buchanan, identifying as he did, his interests with those of Murray, was from the first one of the most active of the Queen's prosecutors. The dependence to be placed upon his accuracy and honesty as a controversialist, has been already pretty clearly established; and the sort of translations he would make, of any of Mary's writings, may be very easily conjectured.

Laing, however, claims the merit of a discovery, which, at first sight, appears somewhat remarkable. It is a copy of one of the eight Love-letters, in the original French, and found in the State-Paper Office in a book containing, "Letters upon Scottish Affairs to Queen Elizabeth." Whether it be in the original French or not, it is certainly different from the French translation published with the French edition of the *Detection* in 1572, and has altogether a greater air of originality about it. But being confessedly only a copy, it is quite impossible to say whether it is Mary's French, or that of some one who chose to write French in her name. It is, besides, remarkable, that, even though it could be proved to demonstration to be a copy of a genuine letter, it does not contain a single word which, in the slightest degree, implicates Mary. Introduced, it is true, as one of a series,

all of which, it is maintained, were addressed to Bothwell, something suspicious might easily be made out of it. But, as it stands by itself, it must be taken by itself; and as it bears no address or date, it may just as well be supposed to have been written to Darnley, or even to a female friend. The subject spoken of, is the ungrateful conduct of one of Mary's female attendants; and the advice of the person to whom it is written is asked, as to what is proper to be done in consequence. To this person, whoever it was, several natural terms of endearment are also applied, such as, "*Mon cœur*," and, "*Ma chere vie*;" and these are all the grounds of suspicion which this "Copy from the State-Paper Office," contains.^[257]

Having thus shown the extreme uncertainty which must attend any argument against Mary, founded on any minute or literal examination of these Letters, a very few objections further may be stated to them, upon evidences which they themselves afford.

Although it is impossible to form any opinion of the *words* which Mary may have used in these letters, some conclusions may be drawn from the *sentiments* which the translators of course pretend not to have altered. These are, in many respects, directly contradictory of the character which history proves her to have possessed. Whatever follies Mary may have committed—whatever weaknesses she may have fallen into—it cannot be denied, even by her worst enemies, that she was a woman of a proud spirit, and too much accustomed to admiration and flattery, to consider her esteem a gift of little value. Yet, through all these writings, she is made to evince a degree of ardour and forwardness of affection for Bothwell, at once against every notion of female delicacy, and all probability. She is continually made to express fears that he does not return her love with an equal warmth,—that he loves his wife, the Lady Jane Gordon, better than he does her,—and that he is not so zealous in bringing about their mutual purposes as she could wish. If Bothwell had ever carried on these criminal intrigues with Mary, one of his first objects would have been to remove from her mind all suspicion that he was not in truth devotedly attached to her. Whether he was successful in deceiving her or not, is it likely that Mary Queen of Scots, whose hand had been sought by all the first Princes in Christendom, would have condescended to servility, meanness, and abject cringing in her advances to him? If the letters were forged, Murray would naturally wish to put in as strong a point of view as possible, Mary's anxiety to urge Bothwell

on to all the crimes which he perpetrated. But if letters had been really written by her, many compunctious visitings of conscience would surely be apparent in them,—many a fear would be expressed,—many a symptom would be discovered of the reluctance with which she yielded to the overwhelming strength of Bothwell's passion and entreaties. Yet in these letters nothing of the kind is to be found. Passages occur continually, in which, far from there being any of the conscious confusion and hesitation which would necessarily have marked the style of one who was, for the first time, deviating so far from the paths of virtue, nothing is to be discovered but the hardened vice and shameless effrontery of a confirmed and *masculine villain*.

Another peculiarity is to be observed in the first and longest of these letters. In describing a conversation which she had with Darnley at Glasgow, Mary is made to give very minutely all his defence of his own conduct, in reply to some charges which she brought against him; and to make it evident that he was in the right, and that she herself, even when instigating Bothwell to his murder, must have felt him to be so. "This is another proof of forgery," says Whittaker; "that the Queen should repeat all the King's defences of himself, and should not repeat her replies to them, is contrary to every principle of the human heart. Our natural fondness for ourselves puts us constantly upon a conduct the very reverse of all this. We shorten the defences, we lengthen the replies; or, if we are fair enough to give the full substance of the former, we are always partial enough to do the same by the latter."^[258] The forger, however, in his anxiety to throw as much odium as possible upon Mary, was willing to diminish some of even Bothwell's responsibility, and disposed to vindicate Darnley entirely; but he took a clumsy method of effecting his purpose.

Notwithstanding these considerations, Robertson was of opinion, as usual, that the style and sentiments of these letters tended on the whole to prove that they were genuine. His principal reason for entertaining this belief is, that "there are only imperfect hints, obscure intimations, and dark expressions in the letters, which, however convincing evidence they might furnish if found in real letters, bear no resemblance to that glare and superfluity of evidence which forgeries commonly contain." "Had Mary's enemies been so base as to have recourse to forgery, is it not natural to think, that they would have produced something more explicit and

decisive?”—“Mary’s letters, especially the first, are filled with a multiplicity of circumstances extremely natural in a real correspondence, but altogether foreign to the purpose of the Queen’s enemies, and which it would have been perfect folly to have inserted, if they had been altogether imaginary and without foundation.” There is some plausibility in this view of the subject; and Laing and others have dwelt upon it at great length, and with much confidence. But it is divested of all force as soon as we come to consider the manner in which these letters would be prepared, if they were in truth forgeries. The long time which elapsed after Mary’s imprisonment in Loch-Leven, before any allusion was made to them, and the still longer time they were allowed to lie dormant after their existence had been first asserted, has been already described. Upon the hypothesis that they were fabrications, it was during this period that Murray and his associates were engaged in preparing them; and they would probably reason on the following grounds, as to what ought to be the nature of their contents. The point they wished to establish was, “that as the Earl of Bothwell was chief executor of the horrible and unworthy murder; so was the Queen of the fore-knowledge, counsel, device, persuader and commander of the said murder to be done.” They knew that, in so far as appearances went, nothing made this latter part of the assertion in the least probable, except the circumstance of Mary having been married to Bothwell, which they themselves had declared was a forced marriage, and which Mary had proved to be so by taking the first opportunity which occurred to desert him. It had become necessary, however, even at the expense of their own consistency to accuse the Queen of having acted in concert with Bothwell throughout. No evidence whatever would establish this fact, (the more especially as all the confessions and depositions of Bothwell’s accomplices tended to exculpate her), except writings under her own hand acknowledging her guilt. In order to make it appear possible that Mary had committed an account of that guilt to paper, the idea of letters to a confidential friend naturally suggested itself; and to none could these letters with so much propriety be addressed as to Bothwell himself; because, having subsequently married him, it was to be shown that it was her inordinate affection for him that induced her to wish for the death of Darnley. The train being thus laid, the next question was, in what precise manner Mary was to be made to address Bothwell. The forgers would at once perceive, that it would not do to make her speak straight out, and in

plain terms command the perpetration of the murder, and arrange all the preliminary steps for it. This would have been to represent Mary as at once a Messalina and a Medea,—which even Murray felt would have been going too far. The letters were to show her guilt, but to show it in such a manner as she herself might be naturally supposed to have exhibited it, had she actually written them;—and nothing therefore was to be introduced but those “imperfect hints, obscure intimations, and dark expressions,” which, without the “glare and superfluity” of common forgeries, furnished convincing evidence when found in letters alleged to be real. Murray, Morton, Maitland, and Buchanan, were no ordinary forgers; and if they were not able to conceive and express the whole so artfully, that it would cost some difficulty to detect them, then, forgery in every instance must be hopeless and manifest.

There were, besides, two circumstances which afforded them peculiar facilities, and of which they were no doubt glad to avail themselves. The first was, that Mary’s hand-writing was not very difficult of imitation. “It was formed,” says Goodall, “after what is commonly called Italic print, which it much resembled both in beauty and regularity.”^[259] All the letters being shaped according to certain definite rules, there would be fewer singularities in the writing, and less danger of the forger committing mistakes. Mary herself alluded to the facility with which her hand could be imitated, in her instructions to her Commissioners on the opening of the conferences, and mentioned also another important fact. “In case they allege,” she says, “that they have any writings of mine, which may infer presumption against me, you shall desire the principals to be produced, and that I myself may have inspection thereof, and make answer thereto. For you shall affirm, in my name, I never wrote any thing concerning that matter to any creature; and if any such writings be, they are false and feigned, forged and invented by themselves, only to my dishonour and slander. And there are divers in Scotland, both men and women, that can counterfeit my hand-writing, and write the like manner of writing which I use, as well as myself, and principally such as are in company with themselves.”^[260] “There are sundry who can counterfeit her hand-write,” says Lesley, “who have been brought up in her company, of whom there are some assisting themselves, as well of other nations as of Scotland. And I doubt not but your Majesty,” (he is addressing Elizabeth), “and divers

others of your Highness's Court, has seen sundry letters sent here from Scotland, which would not be known from her own hand-write; and it may be well presumed, in so weighty a cause, that they who have put hands on their Prince, imprisoned her person, and committed such heinous crimes, if a counterfeit letter be sufficient to save them, to maintain their cause, and conquer for them a kingdom, will not leave the same unforged, '*cum si violandum est jus, imperii causa violandum est.*'" In still further confirmation of these facts, Blackwood mentions that the hand-writing of Mary Beaton, one of her maids of honour, could not possibly be distinguished from that of the Queen;[\[261\]](#) and Camden and other contemporary authors speak of it as a matter of established notoriety, that Maitland often counterfeited her hand.[\[262\]](#)

The second facility which the forgers enjoyed, arose from their either possessing among them, or having access to, many genuine letters of Mary. This is a circumstance of some consequence, and has scarcely been sufficiently attended to by the various writers on the subject. It at once obviates Robertson's cause of wonder, that the letters should be "filled with a multiplicity of circumstances, extremely natural in a real correspondence, but altogether foreign to the purpose of the Queen's enemies." In all probability, Mary wrote to her Secretary Maitland from Glasgow, and had of course written to him a hundred times before. There is every reason to believe also, that she corresponded with Maitland's wife, Mary Fleming, who had been one of her friends and attendants from infancy. Murray must have had in his possession numerous letters from his sister. Where then was the difficulty of founding these forgeries upon writings which were not forgeries, and of making it almost impossible for any one but Mary herself to detect what was genuine in them from what was fabricated? Many passages might be introduced which Mary had actually written, but which she had applied in some very different manner; and here and there might be artfully interwoven a few sentences which she never wrote, but which seemed so naturally connected with the rest, that they fixed upon her soul the guilt of adultery and murder. There is nothing which ought to be more constantly borne in mind, whenever these writings are read or discussed, than the probability, we might almost say the certainty, that the originals contained parts which had been actually written by Mary, although neither addressed to Bothwell, nor ever meant to be twisted into the sense which

was afterwards put upon them; and which appeared the true meaning only, in consequence of their having been so much garbled and disfigured.

Were we disposed to enter still more minutely into an examination of these writings, it would not be difficult to show, as Goodall, Tytler, Whittaker and Chalmers, have in various instances done, that they abound in many other symptoms of forgery, which, though not perhaps conclusive, when taken separately, make up, when combined, a very strong presumption against them. It might be shown, for example, *first*, that as Mary, in all probability, did not set off for Glasgow till Friday the 24th of January 1567, and staid a night at Callendar on the way, it is quite impossible she could have been at Glasgow on Saturday the 25th, though her second letter ends with these words:—"From Glasgow, this Saturday, in the morning."^[263] She is thus made to have written two letters from Glasgow, one of them a very long one, by Saturday morning; while, in point of fact, she could not have reached that town till Saturday afternoon. "*Non sunt hæc satis divisa temporibus.*"^[264] It might be shown, *second*, that these letters were neither addressed, signed, nor sealed; and that, in the words of Whittaker, "it violates every principle of probability to suppose, that letters with such a plenitude of murderous evidence in them should be sent open."^[265] It might be shown, *third*, that before the appearance of the letters, they were differently described at different times, as if they were gradually undergoing changes;—that in the Act of Privy Council, in which they are first referred to, they are mentioned as Mary's "Privy Letters, written and *subscribed* with her own hand;"—but in the Act of Parliament passed a few weeks afterwards, they are only spoken of as "*written wholly* with her own hand," not, "written and subscribed;"^[266]—that though at first nothing was spoken of as having been found in the box but the "Privy Letters," "written and subscribed with her own hand," and afterwards only "wholly written with her own hand," yet, before the box made its appearance at York, love-sonnets and contracts of marriage were also found in it;—and that at York and Westminster only five letters were laid before the Commissioners, though the number afterwards printed was eight. "Did the three remaining letters," asks Whittaker, "lie still lower in the box, under the contracts and sonnets, and so escape the notice of the rebels?"^[267] It might be shown, *fourth*, that all the letters are contradicted and overthrown by the first three lines of the ninth sonnet, which are, in French,

——“Pour luy aussi J’ay jeté mainte larme,
Premier qu’il fust de ce corps possesseur,
Du quel alors il n’avoit pas le cœur;”

and in English—“For him also I shed many a tear, when he first made himself possessor of this body, *of which he did not then possess the heart.*”^[268] In the letters, Mary is made, with the most violent protestations of love, to suggest arrangements for her pretended abduction by Bothwell; yet here she expressly says, that when he first carried her off, he did not possess her heart. How then could she have written him love-letters before this event? These and other things might be insisted on. The sonnets and contracts of marriage might be also minutely examined and proved, both to contradict one another, and to be liable, in a still stronger degree, to almost all the objections which have been advanced against the letters.^[269] But it is much better to rest Mary’s innocence on the broad basis of her life and character, and a distinct statement of leading and incontrovertible facts, than on wranglings about dates, or disputations concerning detached incidents and ill-authenticated papers.

From a full review of the proof on both sides, and an ample examination of all the principal facts advanced in the controversy, it appears evident that one of two conclusions must be formed. Either that Mary, having formed a criminal attachment to Bothwell, encouraged him to perpetrate the murder, and that, having thus become responsible for at least an equal share of the guilt, was justly imprisoned and dethroned; or that, never having had any excessive love for Bothwell, she was altogether ignorant of his designs, and irresponsible for his crimes, of which his own lawless ambition made her the victim, and with which the treachery of Murray, Morton and Elizabeth, too successfully contrived to involve her for the remainder of her life. That the latter conclusion is that to which impartial inquiry must inevitably lead, these Memoirs, it is hoped, have sufficiently established. That the arguments in Mary’s favour, drawn from the history of her life and death, are not invalidated by the contents of the “gilt coffer,” it has been the object of the present Examination to prove.

It has been seen, first, by external evidence, that these papers are spurious, because the notorious ambition of Morton and Murray, and the perilous predicament in which it finally placed them, rendered their fabrication

necessary to save themselves from ruin,—because Mary could not have written any love-letters or sonnets to Bothwell, for whom, at best, she never felt any thing but common regard, and who was obliged to seize and carry off her person, in order to force her into an unwilling marriage,—because such letters, if they had been written, would not have been preserved by Bothwell, or, if preserved, would have been more numerous,—because the story of their discovery is altogether improbable, since Bothwell, for the most satisfactory reasons, would never have thought of sending for them to the Castle of Edinburgh on the 20th of June 1567,—because not a word was said about them long after they were discovered, but, on the contrary, motives quite inconsistent with their contents assigned for sequestrating Mary's person in Loch-Leven,—because, though Dalgleish was tried, condemned, and executed, not a question was put to him, as appears by his examination, still extant, concerning these letters,—because the originals were only produced twice, and *that* under suspicious and unsatisfactory circumstances,—because nothing but translations, and translations from translations, of these originals, now exist, from which no fair arguments can be drawn,—because Murray and his associates have been convicted of open forgery in several other instances, and are therefore the more liable to be doubted in this,—because Bothwell not only never accused Mary, but was unable to show Morton any writing of her's sanctioning the murder, and, by subsequent declarations, seems to have exculpated her from all share in it,—because Mary herself invariably denied that she had ever written such letters, undertaking to prove that they were fabrications, if the originals, or even copies, were shown to her,—because Lady Lennox, Darnley's mother, many of the most respectable of the Scottish nobility, Norfolk, and a numerous party in England, and all her Continental friends, avowed their belief of her innocence,—because the confessions and depositions of Bothwell's accomplices, so far from implicating, tended to acquit her of all blame, though the persons by whom the depositions were made had every inducement to accuse her, if it had been in their power,—and because the external evidence, advanced in support of the letters by Robertson and others, is entirely nugatory.

It has been seen, second, by internal evidence, that the Letters are spurious,—because the translations differ from each other,—because the style and composition of many passages, are not such as could ever have come from

Mary's pen,—because every facility was given to forgery by the nature of her handwriting, and by the access which the forgers had to genuine letters and papers, of which they could make a partial use,—because, at the time in which they are alleged to have been written, Mary was, in all probability, not at the places from which they are dated,—because the letters contradict each other, and are all contradicted by the sonnets,—and because the arguments in support of them, drawn from internal evidence by Robertson and others, are equally inconclusive with their external proofs.

If Mary's innocence, from all the blacker crimes with which she has been charged, must still continue matter of doubt, it is not too much to declare all history uncertain, and virtue and vice merely convertible terms.

ADDENDUM.

Through the kindness of William Traill, Esq. of Woodwick, Orkney, we are enabled to give the following authentic genealogical account of the manner in which the interesting portrait of Mary Queen of Scots, engraved for this Work, and particularly described in Vol. I. Chap. IV., came into the possession of his family.

“Sir Robert Stewart of Strathdon, son of King James V., by Eupham, daughter of Alexander, 1st Lord Elphingston, obtained a grant of the Crown lands of Orkney and Shetland from his sister Queen Mary in 1565. He was created Earl of Orkney by his uncle James VI., 28th October 1581. He married Lady Jean Kennedy, daughter of Gilbert, fourth Earl of Cassils.

“George Traill, son of the Laird of Blebo in Fife, married, first, Jean Kennedy of Carmunks, a relative of the Earl’s Lady. He accompanied the Earl to Orkney; got a grant from the Earl of the lands of Quandale, in the Island of Ronsay, and, as steward or factor, managed the affairs of the earldom. By Jean Kennedy he had one son, the first Thomas Traill of Holland. He afterwards married Isobel Craigie of Gairsay, by whom he had James Traill of Quandale, who married Ann Baikie of Burness. Lady Barbara Stewart, the Earl’s youngest daughter, married Hugh Halcro of Halcro, a descendant of the Royal Family of Denmark, and who possessed a great part of the Islands of Orkney. For her patrimony, the Earl wadset to Halcro lands, in Widewall, Ronaldsvoe, and in South Ronaldshay, which lands were afterwards redeemed by Patrick Stewart, the Earl’s eldest son, 1598. *Vide* Bishop Law’s Rentall 1614. Lady Barbara, being the youngest and the last of the Earl’s family, succeeded to her father’s furniture, plate, pictures, and other moveables, and amongst the rest, the family picture of Queen Mary. Hugh Halcro of that Ilk, the eldest son of this marriage, succeeded his father, and married Jean, daughter of William Stewart of Mains and Burray. *Vid.* Charters 1615 and 1620. In 1644, this Hugh Halcro executed a settlement in favour of Hugh his Oye, and his heirs; whom failing, to Patrick his brother; whom failing, to Harry fiar of Aikrs; whom failing, to Edward of Hauton; whom all failing, to the name of Halcro.

Hugh the Oye, married Margaret, daughter of James Stewart of Gromsay. *Vid.* Charter by him in her favour of lands in South Ronaldshay and the Island Cava, 12th June 1630. Their son, Hugh Halcro of that Ilk, married Barbara Greem, by whom he had two daughters, Jean and Sibella Halcro. Jean married Alexander Mouat Swenze, and Sibella married James Baikie of Burness; and the estate of Halcro was divided between these families by decreet-arbitral, 21st and 22d December 1677,—Arthur Baikie of Tankerness, and John Kennaday of Carmunks, arbiters; which decreet is in the possession of the present William Traill of Woodwick, Esquire, as is the picture of Queen Mary, and other family relics.”

END OF VOLUME SECOND.

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Footnotes:

[1] Robertson, Appendix to vol. i. No. XVII.

[2] Keith, Appendix, p. 139.

[3] Keith, Preface, p. vii.

[4] Melville's Memoirs, p. 170.

[5] Goodall, vol. ii. p. 316.—Keith, p. 355; Appendix, p. 136.—Anderson, vol. ii. p. 270. vol. iv. p. 183 and 188.—“Martyre de Marie,” in Jebb, vol. ii. p. 210. It would be difficult to explain why Robertson, who, in the Dissertation subjoined to his History, allows the authenticity of the

documents which detail the particulars of this important conference at Craigmillar, should not have taken the slightest notice of it in his History. There is surely something indicative of partiality in the omission. Miss Benger, who is not always over-favourable to Mary, remarks on her decision regarding a divorce;—"It is difficult to develop the motives of Mary's refusal. Had she secretly loved Bothwell, she would probably have embraced the means of liberty; and had she already embarked in a criminal intrigue, she would not have resisted the persuasions of her paramour. If, influenced alone by vindictive feelings, she sought her husband's life, she must have been sensible that, when the nuptial tie was dissolved, he would be more easily assailable. Why then did she recoil from the proposal, unless she feared to compromise herself by endangering Darnley's safety, or that some sentiments of affection still lingered in her heart? It has been supposed, that she dreaded the censures which might be passed on her conduct in France; or that she feared to separate her interests from those of her husband, lest she should injure her title to the English crown. All these objections are valid when addressed to reason, but passion would have challenged stronger arguments."—Memoirs, vol. ii. p. 301.—Blackwood, in his *Martyre de Marie*, mentions, that Mary upon this occasion told her nobility, that "her husband was yet young, and might be brought back to the right path, having left it principally in consequence of the bad advice of those who were no less his enemies than her's."—"This answer," adds Blackwood, "was far from being agreeable to the Lords, proving to them that her Majesty's present estrangement from her husband was more from the necessity of the times, than because she had ceased to love him."

[6] Chalmers, vol. ii. p. 173.—Keith, Preface, p. vii.

[7] The above transaction, in which there is so little mystery, has been converted by Robertson into "a negociation, secretly carried on by Mary, for subverting the Reformed Church." He cannot, it is true, very easily reconcile the "negotiation" with the fact that, "at the very time, she did not scruple publicly to employ her authority towards obtaining for the ministers of that Church a more certain and comfortable subsistence." "During this year," he tells us, "she issued several proclamations and Acts of Council for that purpose, and readily approved of every scheme which was proposed for the more effectual payment of their stipends." The historian might have inquired a little more closely into the real nature of her correspondence with

the Court of Rome, before charging Mary with “falsehood and deceit,” and availing himself of the subject to point a moral.

[8] Keith, p. 359.

[9] Anderson, vol. ii. p. 271.

[10] That Darnley was actually absent upon this occasion, we are not quite satisfied. Robertson says he was, on the authority of Le Croc’s letter in Keith, preface, p. vii.; and after him, most writers on the subject state the fact as beyond a doubt. All, however, that Le Croc says is this:—“The King had still given out, that he would depart two days before the baptism; but when the time came on, he made no sign of removing at all, only he still kept close within his own apartment. The very day of the baptism, he sent three several times, desiring me either to come and see him, or to appoint him an hour, that he might come to me in my lodgings.” This is no direct evidence that the King was absent from the christening. Neither does Buchanan furnish us with any; he merely says, with his usual accuracy and love of calumny, that “her lawful husband was not allowed necessities at the christening; nay, was forbid to come in sight of the ambassadors, who were advised not to enter into discourse with the King, though they were in the same part of the castle the most part of the day.”—History, Book XVIII. Nor does Knox say any thing definite upon the subject; but Keith, Crawford, and Spottswood, though not referred to by Robertson, seem to support his opinion. Let the fact, however, be as it may, it is not of great consequence. The erroneousness of the popular belief, that Darnley, during the whole of this time, resided in a citizen’s house in the town of Stirling, is more deserving of being pointed out and corrected.

[11] Knox, p. 400.—Keith, Preface, p. vii.

[12] Keith, p. 369.—Knox, p. 400.—The Historie of King James the Sext, p. 5.

[13] Chalmers, vol. ii. p. 176.

[14] Melville, p. 192.

[15] The Ruthven here spoken of is the son of the Lord Ruthven, who took so active a part in the murder.

[16] Chalmers, vol. ii. p. 175 and 342.

[17] Keith—Preface, p. viii.

[18] Keith, p. 364.

[19] Keith, p. 151.—Laing, vol. ii. p. 76.—Chalmers, vol. ii. p. 268.—Whittaker, in endeavouring to prove (vol. ii. p. 322) that the Catholic Ecclesiastical Courts had never been deprived of their jurisdiction, and that, consequently, there was no *restoration* of power to the Archbishop of St Andrews, evidently takes an erroneous view of this matter. In direct opposition to such a view, Knox, or his continuator, has the following account of the transaction:—"At the same time, the Bishop of St Andrews, by means of the Earl of Bothwell, procured a writing from the Queen's Majesty, to be obeyed within the Diocese of his Jurisdiction, in all such causes as before, in time of Popery, were used in the Consistory, and, therefore, to discharge the new Commissioners; and for the same purpose, came to Edinburgh in January, having a company of one hundred horses, or more, intending to take possession according to his gift lately obtained. The Provost being advertised thereof by the Earl of Murray, they sent to the Bishop three or four of the Council, desiring him to desist from the said matter, for fear of trouble and sedition that might rise thereupon; whereby he was persuaded to desist at that time."—Knox, p. 403. This account is not quite correct, in so far as the Earl of Murray alone, unsupported by Mary's authority, is described as having diverted the Archbishop from his purpose.

[20] Chalmers, vol. i. p. 199; and vol. ii. p. 176.

[21] Keith, Preface p. viii.

[22] Anderson, vol. iv. p. 165.—Goodall, vol. ii. p. 76.

[23] Goodall, vol. ii. p. 76.—et seq.

[24] Birrel's Dairy, p. 6.—Laing, vol. i. p. 30.

[25] Keith, p. 364.—Anderson, vol. ii. p. 67.—Goodall, vol. ii. p. 244.—Chalmers, vol. i. p. 203.—vol. ii. p. 180, and 271.—Laing, vol. i. p. 30.—and vol. ii. p. 17.—Whittaker, vol. iii. p. 258, and 283.—Arnot's History of Edinburgh, p. 237. Whittaker has made several mistakes regarding the

House of the Kirk-of-Field. He describes it as much larger than it really was; and, misled by the appearance of a gun-port still remaining in one part of the old wall, and which Arnot supposed had been the postern-door in the gavel of the house, he fixes its situation at too great a distance from the College, and too near the Infirmary. Sir Walter Scott, in his “Tales of a Grandfather,” (vol. iii. p. 187.) has oddly enough fallen into the error of describing the Kirk-of-Field, as standing “just *without* the walls of the city.”

[26] Morton’s Confession in Laing, vol. ii. p. 354; and Archibald Douglas’s Letter, *ibid.* p. 363.

[27] *Idem.*

[28] Lesley’s Defence in Anderson, vol. i. p. 75.—Buchanan’s History, p. 350.—Laing, vol. ii. p. 34.

[29] Ormiston’s Confession in Laing, vol. ii. p. 322.

[30] Paris’s Confession in Laing, vol. ii. p. 298-9.

[31] Paris’s Deposition in Laing, vol. ii. p. 296.

[32] Laing, vol. ii. p. 282 and 370.

[33] Deposition of Hepburn—Anderson, vol. ii. p. 183.

[34] Anderson, vol. ii. p. 183.

[35] Keith, Preface, p. viii.

[36] Anderson, vol. ii. p. 179.

[37] *Ibid.* vol. ii. p. 184.

[38] Laing, Appendix, p. 304.

[39] Deposition of John Hay in Anderson, vol. ii. p. 177.

[40] Deposition of William Powrie, in Anderson, vol. ii. p. 165.

[41] Anderson, vol. ii. p. 183.

[42] *Ibid.* vol. ii. p. 181.

[43] Buchanan's *History*, Book XVIII. may be compared with his *Detection* in Anderson, vol. i. p. 22 and 72.

[44] Buchanan's *History*, Book XVIII.

[45] Freebairn's *Life of Mary*, p. 112 and 114.

[46] *Deposition of Paris* in Laing, vol. ii. p. 305.

[47] *Evidence of Thomas Nelson*, Anderson, vol. iv. p. 165.

[48] *The Confessions and Depositions* in Anderson, vol. ii. and vol. iv; and in Laing, vol. ii.

[49] *Melville's Memoirs*, p. 174. *Lesley* in Anderson, vol. i. p. 24. Freebairn, p. 115.

[50] Anderson, vol. i. p. 36.—Goodall, vol. ii. p. 245.

[51] Laing, vol. ii. p. 289 et 290.

[52] *Historie of King James the Sext*, p. 6.

[53] *Miss Benger*, vol. ii. p. 313.

[54] *Sanderson's Life of Mary*, p. 48.—Freebairn, p. 113.

[55] *Knox*, p. 404.

[56] *Keith*, p. 365.

[57] *Melville*, p. 174.

[58] The notion that the powder, with which the Kirk-of-Field was blown up, had been placed in a mine, dug for the purpose, was for a while very prevalent. Mary, of course, never suspected that it had been put into her own bedroom; but the truth came out as soon as the depositions of Bothwell's accomplices were published. Why Whittaker should still have continued to believe that a mine had been excavated, it is difficult to understand. Laing very justly ridicules the absurdity of such a belief.

[59] There is a sincere piety in this rejection of the word "chance." Mary was steadily religious all her life, and certainly nothing but a pure and

upright spirit could have induced her, on the present occasion, to appeal to her Creator, and say, “It was not chance, but God.”

[60] Keith, Preface, p. viii.

[61] Anderson, vol. i. p. 36.

[62] Lesley in Anderson, vol. i. p. 23.

[63] Keith, p. 368.

[64] Laing’s remarks upon this subject, are exceedingly weak. He seems to suppose that Mary, for the mere sake of appearances, ought to have thrown into prison some of her most powerful nobility. He adds,—“If innocent, she must have suspected somebody, and the means of detection were evidently in her hands. The persons who provided or furnished the lodging,—the man to whom the house belonged,—the servants of the Queen, who were intrusted with the keys,—the King’s servants who had previously withdrawn, or were preserved, at his death,—her brother, Lord Robert, who had apprised him of his danger, were the first objects for suspicion or inquiry; and their evidence would have afforded the most ample detection.” Laing does not seem to be aware, that he is here suggesting the very steps which Mary actually took. She had not, indeed, herself examined witnesses, which would have been alike contrary to her general habits and her feelings at the time; but she had ordered the legal authorities to assemble every day, till they ascertained all the facts which could be collected. Nor does Laing seem to remember, that Bothwell had it in his power to exercise over these legal authorities no inconsiderable control, and to prevail upon them, as he in truth did, to garble and conceal several circumstances of importance which came out.

[65] Killigrew, the English ambassador, sent by Elizabeth to offer her condolence, mentions, that he “found the Queen’s Majesty in a dark chamber so as he could not see her face, but by her words she seemed very doleful.”—Chalmers, vol. ii. p. 209.

[66] Chalmers, vol. i. p. 208.

[67] *Vide* these Letters in Anderson, vol. i. p. 40, or Keith, p. 369.

[68] Anderson, vol. i. p. 50.

[69] Goodall, vol. i. p. 346, *et seq.*

[70] Chalmers, vol. i. p. 209. The above fact is no proof, as Chalmers alleges, that Murray was connected with the conspirators; but it shows, that whatever his own suspicions or belief were, he did not choose to discountenance Bothwell. Could Mary ever suppose that the *godly* Earl of Murray would entertain a murderer at his table?

[71] Anderson, vol. i. p. 52.

[72] Robertson—Appendix to vol. i. No. XIX.

[73] Anderson, vol. ii. p. 103.

[74] Anderson, vol. ii. p. 104, *et seq.*—and Keith, p. 375, *et seq.*

[75] Anderson, vol. ii. p. 157.

[76] Anderson, vol. i. p. 107; and Keith, p. 381.

[77] Keith, p. 382.—There are extant two lists of the names of the subscribers, and these differ in one or two particulars from each other; but the one was only a list given to Cecil from memory by John Reid, Buchanan's clerk; the other is a document authenticated by the subscription of Sir James Balfour, who was at the time Clerk of Register and Privy Council. The chief difference between these two copies is, that Reid's list contains the name of the Earl of Murray, though on the 20th of April he was out of the realm of Scotland. It has been supposed that the bond, though not produced, might have been drawn up some time before, and that Murray put his name to it before going away. This is possible, but, considering Murray's cautious character, not probable. The point does not seem one of great importance, though by those who are anxious to make out a case against Murray rather than against Bothwell, it is deemed necessary to insist upon it at length. Perhaps Bothwell forged Murray's signature, to give his bond greater weight both with the nobles and with the Queen; although one name more or less could not make much difference either to her or them.

[78] Keith, p. 390.

[79] Keith, p. 383.—Melville's *Memoirs*, p. 177.—Whittaker, vol. iii. p. 106 and 356.

[80] Melville, p. 177.

[81] Keith, p. 390.

[82] Anderson, vol. i. p. 97.—Keith, p. 390.

[83] Melville, p. 197.

[84] Anderson, vol. i. p. 95.

[85] Anderson, vol. i. p. 95.

[86] Anderson, vol. i. p. 97. et seq. There is something so peculiar in the last passage quoted above, and Bothwell's conduct was so despotic, during the whole of the time he had Mary's person at his disposal, that Whittaker's supposition seems by no means unlikely, that the *force* to which Mary alludes was of the most culpable and desperate kind. "Throughout the whole of the Queen's own account of these transactions," he observes, "the delicacy of the lady, and the prudence of the wife, are in a continual struggle with facts,—willing to lay open the whole for her own vindication, yet unable to do it for her own sake and her husband's, and yet doing it in effect." Vide Whittaker, vol. iii. p. 112. et seq.—Melville is still more explicit upon the subject, p. 177. And in a letter from "the Lords of Scotland," written to the English ambassador, six weeks after the ravishment, it is expressly said, that "the Queen was led captive, and by fear, force, and (as by many conjectures may be well suspected) other extraordinary and more unlawful means, compelled to become the bedfellow to another wife's husband."—See the letter in Keith p. 418.

[87] Vide Laing, vol. i. p. 86, and vol. ii. p. 105, and Whittaker, vol. iii. p. 116.

[88] Keith, p. 383.

[89] History of James VI., p. 10.—Buchanan's *History*, Book XVII.—Keith, p. 384.—Whittaker, vol. iii. p. 120.

[90] “I plainly refused,” says Craig, in his account of this matter, which still remains among the records of the General Assembly, “because he (Hepburn) had not her handwriting; and also the constant bruit that my Lord had both ravished her and kept her in captivity.”—Anderson, vol. ii. p. 299.

[91] Anderson, vol. ii. p. 280.

[92] Anderson, vol. i. p. 111.—Keith, p. 384.

[93] Anderson, vol. i. p. 87.

[94] History of James VI. p. 10.—Keith, p. 386.—Melville, p. 78.—Whittaker, vol. iii. p. 127. et seq. Upon this subject, Lord Hailes has judiciously remarked:—“After Mary had remained a fortnight under the power of a daring profligate adventurer, few foreign princes would have solicited her hand. Some of her subjects might still have sought that honour, but her compliance would have been humiliating beyond measure. It would have left her at the mercy of a capricious husband,—it would have exposed her to the disgrace of being reproached in some sullen hour, for the adventure at Dunbar. Mary was so situated, at this critical period, that she was reduced to this horrid alternative, either to remain in a friendless and most hazardous celibacy, or to yield her hand to Bothwell.”—*Remarks on the History of Scotland*, p. 204.

[95] Melville, p. 178.

[96] Letter from the Lords of Scotland to Sir Nicholas Throckmorton, in Keith, p. 417.

[97] Melville, p. 180.

[98] Melville, p. 199.

[99] Keith, p. 394.—Melville, p. 179.—Knox, p. 406.

[100] Anderson, vol. i. p. 131.

[101] Anderson, vol. i. p. 128.

[102] Knox, p. 409.

[103] Laing, Appendix, p. 115.

[104] Laing, Appendix, vol. ii. p. 116. Knox says that it was Bothwell who drew back; but the authority to which we have referred is more to be depended on.

[105] Melville, p. 182.

[106] Laing, Appendix, vol. ii. p. 116.

[107] Keith, p. 402.

[108] Keith, p. 403.—Melville, p. 184.—Knox, p. 409.—Laing, Appendix, vol. ii. p. 117.

[109] Laing, Appendix, vol. ii. p. 119.—Anderson, vol. i. p. 128.—Keith, p. 418.

[110] Anderson, vol. i. p. 134.

[111] Keith, p. 408.

[112] Buchanan's History, Book XVIII.

[113] Keith, p. 406, et seq.

[114] Anderson, vol. i. p. 139.

[115] The above account of Bothwell's adventures and fate, after he left Scotland, is taken principally from Melville, and the History of James VI. But an interesting and original manuscript, entitled a "Declaration of the Earl of Bothwell," which was made at Copenhagen, in the year 1568, for the satisfaction apparently of the Danish government, has recently been discovered, and an authenticated copy of it having been transmitted to this country in August 1824, a careful translation from the old French in which it is written, was presented to the public in "The New Monthly Magazine," for June 1825. Satisfied as we are of the authenticity of this "Declaration," we have availed ourselves of some of the information it supplies, though, of course, great allowance must be made for the colouring Bothwell has artfully given to the transactions he details. We shall have more to say of this "Declaration" afterwards; at present, it is necessary only to refer to it.

[116] Keith, p. 411 and 414.

[117] Keith, p. 418. It is worth noticing, that no proof of this absurd falsehood is offered—no allusion being even made to the letter which had been shown to Grange, and which, though only the first of a series of forgeries, yet having been hastily prepared to serve the purpose of the hour, seems to have been destroyed immediately.

[118] Keith, Ibid.

[119] Keith, p. 420.

[120] Throckmorton's Letter in Keith, p. 420, et seq.

[121] Melville's Memoirs, p. 197.

[122] Whittaker, vol. i. p. 228.

[123] Throckmorton in Keith, p. 422.

[124] Robertson, Appendix to vol. i. No. XXI.

[125] Robertson, Appendix to vol. i. No. XXII.

[126] Throckmorton, in one of his letters, mentions explicitly, that Mary had given him the very reasons stated above for refusing to renounce Bothwell. But as Throckmorton could communicate with Mary only through the channel of the rebel Lords, who, he says, "*had sent him word*," it is not at all improbable, that her message may have been a good deal garbled by the way. The passage in Throckmorton's letter is as follows:—"I have also persuaded her to conform herself to renounce Bothwell for her husband, and to be contented to suffer a divorce to pass betwixt them. She hath sent me word, that she will in no wise consent unto that, but rather die: grounding herself upon this reason, taking herself to be seven weeks gone with child; by renouncing Bothwell, she should acknowledge herself to be with child of a bastard, and to have forfeited her honour, which she will not do to die for it. I have persuaded her to save her own life and her child, to choose the least hard condition." Robertson—Appendix to vol. i. No. XXII. It was, perhaps, this passage in Throckmorton's despatch to England, that gave rise to a vulgar rumour, which was of course much improved by the time it reached France. Le Laboureur, an historian of much respectability, actually asserts that the Queen of Scots had a daughter to Bothwell, who

was educated as a religieuse in the Convent of Notre Dame at Soissons. *Vide* Laboureur Addit. aux Mem. de Castelnau, p. 610. Of course, the assertion is altogether unfounded.

[127] Some historians have asserted, that Lord Ruthven accompanied the two Commissioners mentioned in the text. But this is not the case, for he was present at a conference with the English ambassador, Throckmorton, on the very day the others were at Lochleven. Throckmorton in Keith, p. 426.

[128] Pennant, in his “Tour in Scotland,” thus describes Lochleven, and the island where the Queen resided:—“Lochleven, a magnificent piece of water, very broad but irregularly indented; is about twelve miles in circumference, and its greatest depth about twenty-four fathoms. Some islands are dispersed in this great expanse of water, one of which is large enough to feed several head of cattle; but the most remarkable is that distinguished by the captivity of Mary Stuart, which stands almost in the middle of the lake. The castle still remains, consists of a *square tower*, a small yard with two round towers, a chapel, and the ruins of a building, where (it is said) the unfortunate Princess was lodged. In the square tower is a DUNGEON, with a vaulted room above, over which had been three other stories.”—Tour in Scotland, vol. i. p. 64.

[129] Keith, p. 431.

[130] Keith, p. 426.—Whittaker, vol. i. p. 299.

[131] Goodall, vol. ii. p. 166, and 344.

[132] Leslie, p. 37.—Jebb, vol. ii. p. 221 and 222.

[133] Goodall, *ibid.*—Freebairn, p. 147.—Whittaker, vol. i. p. 301. *et seq.*—Chalmers, vol. i. p. 248.

[134] Keith, p. 436.

[135] History of James VI. p. 17. Keith, p. 438.

[136] Melville’s Memoirs, p. 193. Keith, p. 442. *et seq.*

[137] Throckmorton’s Letter in Keith, p. 444 *et seq.*

[138] What Mark Antony, according to Shakespeare, said of Cæsar, might be, with propriety, applied to the Earl of Murray:

“You all did see that, on the Lupercal,
I thrice presented him a kingly crown,
Which he did thrice refuse.—Was this ambition?”

[139] Anderson, vol. ii. p. 251 and 254.—Chalmers, vol. ii. p. 355.

[140] Goodall, vol. ii. p. 66.—Anderson, vol. ii. p. 206 et seq.

[141] Goodall, vol. ii. p. 299, and Chalmers, vol. i. p. 275 and 278.

[142] Jebb, vol. ii. p. 230.—Keith, p. 471—and Chalmers, vol. i. p. 275.

[143] Sir William Drury’s Letter in Keith, p. 470.

[144] Buchanan’s Cameleon, p. 13.

[145] Jebb, vol. ii. p. 65 and 230.—Keith, p. 471.—Freebairn, p. 152, et seq.—Chalmers, vol. i. p. 277, et seq. The interest taken in Queen Mary by George Douglas, is ascribed by Mackenzie to a motive less pure than the affection of a good subject. His chief characteristic, we are told by that author, was an excessive love of money, and it was by bribing him, he asserts, with the best part of what gold and jewels she had about her, that Mary prevailed upon him to assist her. But this statement does not seem well authenticated. Another story, still more improbable, was told by the Earl of Murray to the English ambassador, Sir William Drury, namely, that Mary had entreated him to allow her to have a husband, and had named George Douglas as the person she would wish to marry. Murray must have fabricated this falsehood, in order to lower the dignity of the Queen; but he surely forgot that the reason assigned in justification of her imprisonment in Loch-Leven, was her alleged determination not to consent to a separation from Bothwell. How then did she happen to wish to marry another? See Sir William Drury’s Letter in Keith, p. 469.

[146] Keith, p. 472, et seq.

[147] Buchanan, Book xix.—Melville’s Memoirs, p. 200. et seq.—Keith, p. 477.—Calderwood, Crawford, and Holinshed. The accounts which historians give of this battle are so confused and contradictory, that it is

almost impossible to furnish any very distinct narrative of it, even by collating them all. Robertson hardly attempts any detail, and the few particulars which he does mention, are in several instances erroneous.

[148] Keith, p. 481 and 482.—Anderson, vol. iv. p. 1.

[149] Anderson, vol. iv. p. 1. et seq.—Keith, p. 481.

[150] Goodall, vol. ii. p. 69.

[151] Chalmers, vol. i. p. 283.

[152] Goodall, vol. ii. p. 71.

[153] Anderson, vol. iv. p. 6.—Chalmers, vol. i. p. 288. Even at Carlisle, Mary was always strictly watched. In one of his letters to Cecil, Knollys writes thus:—"Yesterday, her Grace went out at a postern, to walk on the playing green, towards Scotland; and we, with twenty-two halberdeers, diverse gentlemen and other servants, waited upon her. About twenty of her retinue played at foot-ball before her the space of two hours, very strongly, nimbly, and skilfully,—without any foul play offered, the smallness of their ball occasioning their fair play. And before yesterday, since our coming, she went but twice out of the town, once to the like play of foot-ball, in the same place, and once she rode out a hunting the hare, she galloping so fast upon every occasion, and her whole retinue being so well horsed, that we, upon experience thereof, doubting that, upon a set course, some of her friends out of Scotland might invade and assault us upon the sudden, for to rescue and take her from us; we mean hereafter, if any such riding pastimes be required that way, so much to fear the endangering of her person by some sudden invasion of her enemies, that she must hold us excused, in that behalf."

[154] Anderson, vol. iv. p. 95.—Stuart, vol. i. p. 300. It is of Dr Stuart's translation that we have availed ourselves.

[155] Anderson, vol. iv. part ii. p. 33.

[156] Buchanan, book xix. It is worth remarking, that of these particular friends of Murray, the two Commissioners, Lord Lindsay and the Commendator of Dunfermlin, and the two lawyers, Macgill and Balnaves,

sat on the trial of Bothwell when he was unanimously acquitted. Yet they afterwards accused the Queen of consenting to an unfair trial.

[157] Anderson, vol. iv. Part ii. p. 3.

[158] Anderson, vol. iv. Part I. p. 12.

[159] Goodall, vol. ii. p. 128.

[160] Goodall, vol. ii. p. 144.

[161] Goodall, vol. ii. p. 162.

[162] Goodall, vol. ii. p. 62.

[163] We do not at present stop the course of our narrative to examine these letters more minutely, but we shall devote some time to their consideration afterwards.

[164] Goodall, vol. ii. p. 182.

[165] Goodall, vol. ii. p. 184.

[166] Goodall, vol. ii. p. 206.

[167] Ibid. p. 220.

[168] Ibid. p. 221.

[169] Ibid. p. 184 and 206.

[170] Ibid. p. 283.

[171] Ibid. p. 312.

[172] Ibid. p. 300 and 301.

[173] There is one other circumstance connected with this conference, which, though not bearing any immediate reference to Mary, is worth mentioning. We allude to the challenges which passed between Lord Lindsay, one of Murray's Commissioners, and Lord Herries, one of Mary's most constant and faithful servants. Lindsay, whose passionate violence we

have formerly had occasion to notice, attempted to force a quarrel upon Herries, by writing him the following letter:

“Lord Herries,—I am informed that you have spoken and affirmed, that my Lord Regent’s Grace and his company here present, were guilty of the abominable murder of the late King, our Sovereign Lord’s father. If you have so spoken, you have said untruly, and have lied in your throat, which I will maintain, God willing, against you, as becomes me of honour and duty. And hereupon I desire your answer. Subscribed with my hand, at Kingston, the twenty-second day of December 1568. PATRICK LINDSAY.”

To this epistle Lord Herries made the following spirited reply:

“Lord Lindsay,—I have seen a writing of yours, the 22d of December, and thereby understand,—‘You are informed that I have said and affirmed, that the Earl of Murray, whom you call your Regent, and his company, are guilty of the Queen’s husband’s slaughter, father to our Prince; and if I said it, I have lied in my throat, which you will maintain against me as becomes you of honour and duty.’ In respect they have accused the Queen’s Majesty, mine and your native Sovereign, of that foul crime, far from the duty that good subjects owed, or ever have been seen to have done to their native Sovereign,—I have said—‘There is of that company present with the Earl of Murray, guilty of that abominable treason, in the fore-knowledge and consent thereto.’ That you were privy to it, Lord Lindsay, I know not; and if you will say that I have specially spoken of you, you lie in your throat; and that I will defend as of my honour and duty becomes me. But let any of the principal that is of them subscribe the like writing you have sent to me, and I shall point them forth, and fight with some of the traitors therein; for meetest it is that traitors should pay for their own treason. HERRIES. London, 22d of December 1568.”

No answer appears to have been returned to this letter, and so the affair was dropped.—Goodall, vol. ii. p. 271.

[174] Goodall, vol. ii. p. 313.

[175] Chalmers, vol. i. p. 327.

[176] Chalmers, vol. i. p. 332.

[177] Anderson, vol. i. p. 80.

[178] Strype, vol. i. p. 538.—Chalmers, vol. i. p. 337.

[179] Stranguage, p. 114.

[180] Goodall, vol. ii. p. 375.—Anderson, vol. ii. p. 261.—Stuart, vol. ii. p. 59.—Chalmers, vol. i. p. 349.

[181] Anderson, vol. iii. p. 248.

[182] See “An Account of the Life and Actions of the Reverend Father in God, John Lesley, Bishop of Ross,” in Anderson, vol. iii. p. vii.

[183] Miss Benger, vol. ii. p. 439.

[184] Additions to the Memoirs of Castelnau, p. 589, et seq.

[185] Laing, vol. ii. p. 285.

Alas! what am I?—what avails my life?
Does not my body live without a soul?—
A shadow vain—the sport of anxious strife,
That wishes but to die, and end the whole.
Why should harsh enmity pursue me more?
The false world’s greatness has no charms for me;
Soon will the struggle and the grief be o’er;—
Soon the oppressor gain the victory.
Ye friends! to whose remembrance I am dear,
No strength to aid you, or your cause, have I;
Cease then to shed the unavailing tear,—
I have not feared to live, nor dread to die;
Perchance the pain that I have suffered here,
May win me more of bliss thro’ God’s eternal year.

[186] See the whole of this letter in Whittaker, vol. iv. p. 399. Camden translated it into Latin, and introduced it into his History; but he published only an abridged edition of it, which Dr Stuart has paraphrased and abridged still further; and Mademoiselle de Keralio has translated Dr Stuart’s paraphrased abridgment into French, supposing it to have been the

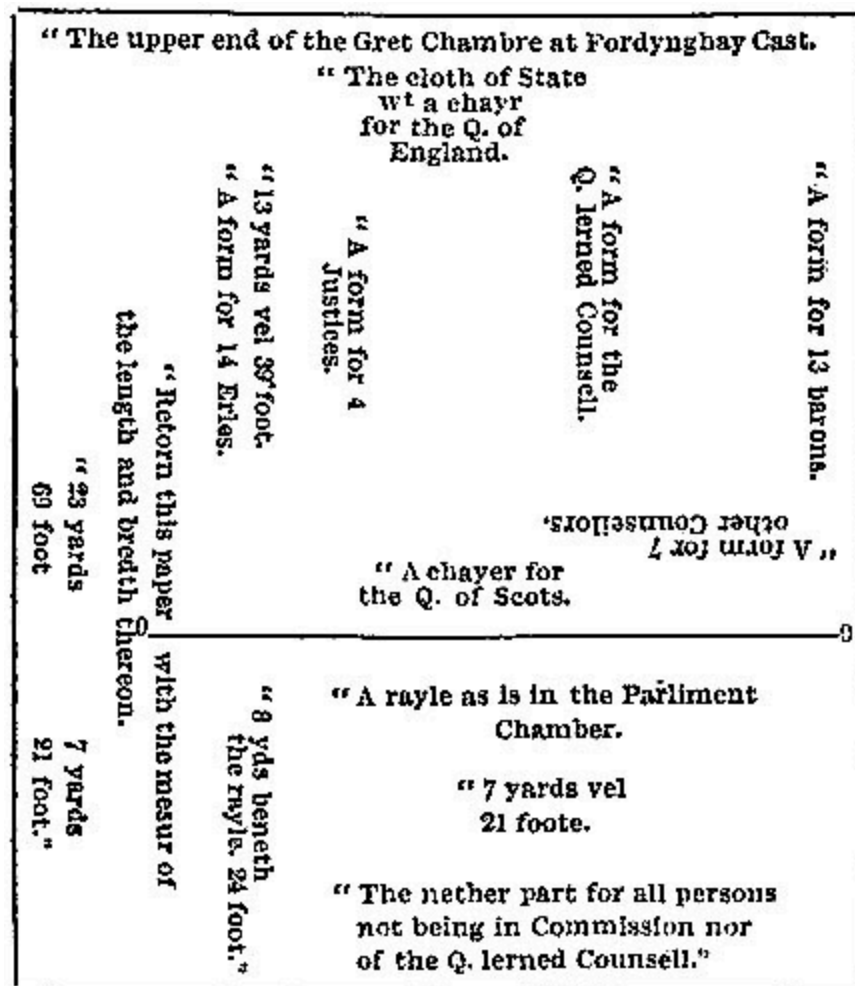
original letter. Stuart, vol. ii. p. 164.—Keralio, Histoire d'Elisabeth, vol. v. p. 349.

[187] Chalmers, vol. i. p. 395.

[188] They were hanged on two successive days, seven on each day; and the first seven, among whom were Ballard, Babington, and Savage, were cut down before they were dead, embowelled, and then quartered.—*Stranguage*, p. 177.

[189] *Stranguage*, p. 176.—Chalmers, vol. i. p. 427 et seq.

[190] In the first series of Ellis's Collection of "Original Letters illustrative of English History," there is given a fac simile of the plan, in Lord Burleigh's hand, for the arrangement to be observed at the trial of the Queen of Scots. As it is interesting, and brings the whole scene more vividly before us, the following explanatory copy of it will be perused with interest.



Below, in another hand, apparently in answer to Lord Burleigh's direction, is the following:

"This will be most convenientlye in the greatt Chamber; the lengthe whereof is in all xxiiij. yerds with the windowe: whereof there may be fr. the neither part beneath the barre viij. yerds: and the rest for the upper parte. The breadeth of the chamber is vij. yerds.

"There is another chambre for the Lords to dyne in, the lengthe is xiiij. yerds; the breadeth, vij. yerdes; and the deppeth iij. yerdes dim."

[191] As an example of some of the mistakes which the fabricators of these letters committed, it may be mentioned, that in one of them, dated the 27th of July 1586, Mary is made to say,—“I am not yet brought so low but that I am able to handle my cross-bow for killing a deer, and to gallop after the hounds on horseback, as this afternoon I intend to do, within the limits of

this park, and could elsewhere if it were permitted.” Yet on the 3d of June previous, Sir Amias Paulet informed Walsingham—“The Scottish Queen is getting a little strength, and has been out in her coach, and is sometimes carried in a chair to one of the adjoining ponds to see the diversion of duck-hunting; but she is not able to walk without support on each side.” See Chalmers, vol. i. p. 426.

[192] Camden, p. 519, et seq.—Stranguage, p. 192, et seq.—Robertson, Book VII.—Stuart, vol. ii. p. 268, et seq.

[193] It deserves notice, that no particulars of the trial at Fotheringay have been recorded, either by Mary herself, or any of her friends, but are all derived from the narrative of two of Elizabeth’s notaries. If Mary’s triumph was so decided, even by their account, it may easily be conceived that it would have appeared still more complete, had it been described by less partial writers.

[194] Camden, p. 525, et seq.

[195] Murdin, p. 569.

[196] Camden.

[197] Jebb, vol. ii. p. 91.

[198] Tytler, vol. ii. p. 319, et seq., and p. 403.—Chalmers, vol. i. p. 447.—Tytler gives a strong and just exposition of the shameful nature of the Queen’s correspondence with Paulet. The reader cannot fail to peruse the following passage with interest:

“The letters written by Elizabeth to Sir Amias Paulet, Queen Mary’s keeper in her prison at Fotheringay Castle, disclose to us the true sentiments of her heart, and her steady purpose to have Mary privately assassinated. Paulet, a rude but an honest man, had behaved with great insolence and harshness to Queen Mary, and treated her with the utmost disrespect. He approached her person without any ceremony, and usually came covered into her presence, of which she had complained to Queen Elizabeth. He was therefore thought a fit person for executing the above purpose. The following letter from Elizabeth displays a strong picture of her artifice and flattery, in order to raise his expectations to the highest pitch.

‘TO MY LOVING AMIAS.

‘*Amias, my most faithful and careful servant*, God reward thee treblefold for the most troublesome charge so well discharged. If you knew, *my Amias*, how kindly, beside most dutifully, my grateful heart accepts and praiseth your spotless endeavours and faithful actions, performed in so dangerous and crafty a charge, it would ease your travail, and rejoyce your heart; in which I charge you to carry this most instant thought, that I cannot balance in any weight of my judgment the value that I prize you at, and suppose no treasure can countervail such a faith. And you shall condemn me in that fault that yet I never committed, if I reward not such desert; yea let me lack when I most need it, if I acknowledge not such a merit, *non omnibus datum.*’*

Having thus buoyed up his hopes and wishes, Walsingham, in his letters to Paulet and Drury, mentions the proposal in plain words to them. ‘We find, by a speech lately made by her Majesty, that she doth note in you both a lack of that care and zeal for her service, that she looketh for at your hands, in that you have not in all this time (of yourselves, without any other provocation) found out some way to shorten the life of the Scots Queen, considering the great peril she is hourly subject to, so long as the said Queen shall live.’—In a Post-script: ‘I pray you, let both this and the enclosed be committed to the fire; as your answer shall be, after it has been communicated to her Majesty, for her satisfaction.’ In a subsequent letter: ‘I pray you let me know what you have done with my letters, because they are not fit to be kept, that I may satisfy her Majesty therein, who might otherwise take offence thereat.’

What a cruel snare is here laid for this faithful servant! He is tempted to commit a murder, and at the same time has orders from his Sovereign to destroy the warrant for doing it. He was too wise and too honourable to do either the one or the other. Had he fallen into the snare, we may guess, from the fate of Davidson, what would have been his. Paulet, in return, thus writes to Walsingham:—‘Your letters of yesterday coming to my hand this day, I would not fail, according to your directions, to return my answer with all possible speed; which I shall deliver unto you with great grief and bitterness of mind, in that I am so unhappy, as living to see this unhappy day, in which I am required, by direction of my most gracious Sovereign, to

do an act which God and the law forbiddeth. My goods and life are at her Majesty's disposition, and I am ready to lose them the next morrow if it shall please her. But God forbid I should make so foul a shipwreck of my conscience, or leave so great a blot to my poor posterity, as shed blood without law or warrant."

* What a picture have we here, of the heroine of England! Wooing a faithful servant to commit a clandestine murder, which she herself durst not avow! The portrait of King John, in the same predicament, practising with Hubert to murder his nephew, then under his charge, shows how intimately the great Poet was acquainted with nature.

O my gentle Hubert,
We owe thee much! Within this wall of flesh,
There is a soul, counts thee her creditor,
And with advantage means to pay thy love,
And, my good friend, thy voluntary oath
Lives in this bosom dearly cherished.

[199] Mackenzie's *Lives of the Scottish Writers*, vol. iii. p. 336.—Robertson, vol. ii. p. 194.—Chalmers, vol. i. p. 449.

[200] *La Mort de la Royne d'Ecosse* in Jebb, vol. ii. p. 611.

[201] Jebb, vol. ii. p. 622. et seq.

[202] "Mary's testament and letters," says Ritson the antiquarian, "which I have seen, blotted with her tears in the Scotch College, Paris, will remain perpetual monuments of singular abilities, tenderness, and affection,—of a head and heart of which no other Queen in the world was probably ever possessed."

[203] Jebb, vol. ii. p. 628, et seq.

[204] *History of Fotheringay*, p. 79.

[205] Among these attendants were her physician Bourgoine, who afterwards wrote a long and circumstantial narrative of her death, and Jane Kennedy, formerly mentioned on the occasion of Mary's escape from Loch-Leven.

[206] *Narratio Supplicii Mortis Mariae Stuart* in Jebb, vol. ii. p. 163.—*La Mort de la Royne d'Ecosse* in Jebb, vol. ii. p. 636 and 639.—Camden, p. 535.

[207] Jebb, vol. ii. p. 640, et seq.

[208] See Mezeray, Histoire de France, tome iii.

[209] “We may say of Mary, I believe, with strict propriety,” observes Whittaker, “what has been said of one of her Royal predecessors,—‘the gracious Duncan,’ that she

“Had borne her faculties so meek, had been
So clear in her great office, that her virtues,
Will plead, like angels, trumpet-tongued, against
The deep damnation of her taking off.”

[210] “Oraison Funebre” in Jebb, vol. ii. p. 671.

[211] Anderson, vol. ii. p. 92.

[212] Keith, p. 79.

[213] Anderson, vol. i. p. 117.—Keith, p. 379.

[214] Melville, p. 175. et seq.

[215] Goodall, vol. ii. p. 90.

[216] Keith, p. 406.

[217] Anderson, vol. i. p. 139.

[218] Keith, p. 417.

[219] Haynes, p. 454.—Stuart, vol. i. p. 361.

[220] Goodall, vol. ii. p. 66.

[221] Keith, p. 467.—Anderson, vol. ii. p. 173.

[222] Goodall, vol. ii. p. 140.

[223] Goodall, vol. ii. p. 235.

[224] Ibid. 256.

[225] Tytler, vol. i. p. 144.

[226] There is preserved at Hamilton Palace, a small silver box, said to be the very casket which once contained the Letters. Laing, who appears to believe in the genuineness of this relic somewhat too hastily, mentions, that “the casket was purchased from a Papist by the Marchioness of Douglas (a daughter of the Huntly family) about the period of the Restoration. After her death, her plate was sold to a goldsmith, from whom her daughter-in-law Anne, heiress and Dutchess of Hamilton, repurchased the casket.”

“For the following accurate and satisfactory account of the casket,” adds Mr Laing, “I am indebted to Mr Alexander Young, W. S., to whom I transmitted the description of it given in Morton’s receipt, and in the Memorandum prefixed to the Letters in Buchanan’s ‘Detection.’”

“‘The silver box is carefully preserved in the Charter-room at Hamilton Palace, and answers exactly the description you have given of it, both in size and general appearance. I examined the outside very minutely. On the first glance I was led to state, that it had none of those ornaments to which you allude, and, in particular, that it wanted the crowns, with the Italic letter *F*. Instead of these, I found on one of the sides the arms of the house of Hamilton, which seemed to have been engraved on a compartment, which had previously contained some other ornament. On the top of the lock, which is of curious workmanship, there is a large embossed crown with *fleurs de lis*, but without any letters. Upon the bottom, however, of the casket, there are two other small ornaments—one near each end, which, at first sight, I thought resembled our silver-smiths’ marks; but, on closer inspection, I found they consisted each of a royal crown above a *fleur de lis*, surmounting the Italic letter *F*.’” —Laing, vol. ii. p. 235.

Upon this description of the box, it may be remarked, that it does *not* exactly agree with the account given of it by Buchanan; for it would appear, that in the casket preserved at Hamilton, there are only two Italic *F*’s; while Buchanan describes it as “a small gilt coffer, not fully a foot long, being *garnished in sundry places* with the Roman letter *F*, under a king’s crown,” an expression he would not have used, had there been only two of these letters. Besides, there seems to have been a king’s crown above each; but on the coffer at Hamilton, there is only one crown on the top of the lock, and not above the letter *F*. Antiquarians, however, have investigated subjects of less curiosity, and have been willing to believe upon far more slender data.

[227] Goodall, vol. ii. p. 87.

[228] Goodall, vol. ii. p. 140.

[229] Goodall, vol. ii. p. 235; and p. 257.

[230] The authentic “Warrant” and “Consent,” has been already described, *supra*, vol. ii. p. 95, and may be seen at length in Anderson, vol. i. p. 87.

[231] Laing, Appendix, vol. ii. p. 356.

[232] See in further corroboration of the facts stated above, a Letter of Archibald Douglas to the Queen of Scots, in Robertson’s Appendix, or in Laing, vol. ii. p. 363.

[233] “Nec ullam hac in causa reginæ accusationem intervenire.”—See the King of Denmark’s Letter in Laing, vol. ii. p. 328.

[234] Goodall, vol. ii. p. 382.

[235] Keith, Appendix, p. 141.

[236] Jebb, vol. ii. p. 227.—Keith, Appendix, p. 143.

[237] See the New Monthly Magazine, No. LIV. p. 521.

[238] Lesley’s “Defence” in Anderson, vol. i. p. 40.

[239] Miss Benger, Appendix, vol. ii. p. 494.

[240] Buchanan, book xix.—Stuart, vol. i. p. 460.

[241] Robertson, Appendix to vol. i. No. xxii.

[242] Anderson, vol. iv. Part I. p. 120 and 125.

[243] Keith, Appendix, p. 145.

[244] Jebb, vol. ii. p. 671.

[245] Anderson, vol. ii. p. 185.

[246] Anderson, *ibid.* p. 187.—Laing, vol. ii. p. 296.

[247] Laing, Appendix p. 323.

[248] Laing, vol. ii. p. 298.

[249] Ibid. p. 300.

[250] Tytler, vol. i. p. 20.

[251] It is unnecessary to enter into any discussion regarding the second Confession of Paris, which has been so satisfactorily proved to be spurious, by Tytler, Whittaker, and Chalmers, and on which Robertson acknowledges “no stress is to be laid,” on account of the “improbable circumstances” it contains. See Tytler, vol. i. p. 286.—Whittaker, vol. ii. p. 305.—Chalmers, vol. ii. p. 50.—Robertson, vol. iii. p. 20.

[252] Robertson, vol. iii. p. 21.

[253] Goodall, vol. ii. p. 371 and 375.—Robertson, vol. iii. p. 28.

[254] The French edition of the Detection, p. 2.—Goodall, vol. i. p. 103.

[255] Goodall, vol. ii. p. 235.

[256] Laing, vol. i. p. 250.

[257] See the Letter in Laing, vol. ii. p. 202; and an unsuccessful attempt to give a criminal interpretation to it, in vol. i. p. 311. It is quite unnecessary to allude here to several other flimsy forgeries which, at a later period, have been attempted to be palmed upon the world as genuine letters of Mary. In 1726, a book was published, entitled, “The genuine Letters of Mary Queen of Scots, to James Earl of Bothwell, found in his Secretary’s Closet after his Decease, and now in the Possession of a Gentleman at Oxford. Translated from the French by Edward Simmons, late of Christ-Church College, Oxford.” These had only to be read, to be seen to be fabrications. Yet so late as the year 1824, a compilation was published by Dr Hugh Campbell, containing, among other things, eleven letters, which the Doctor thought were original love-letters of the Queen to Bothwell, although, with a very trifling variation, they were the same as those published in 1726; only, not being described as translations, and being written in comparatively modern English, which Mary never could write, they bear still more evidently the stamp of forgery. This is put beyond a doubt, by a short Examination of

them, published by Murray, London, 1825, and entitled, “A Detection of the Love-Letters, lately attributed, in Hugh Campbell’s Work, to Mary Queen of Scots; wherein his Plagiarisms are proved, and his fictions fixed.”

[258] Whittaker, vol. ii. p. 79.

[259] Goodall, vol. i. p. 79—Laing, vol. i. p. 209.

[260] Goodall, vol. ii. p. 342.

[261] Jebb, vol. ii. 244.

[262] Camden, p. 143.—Tytler, vol. i. p. 101.

[263] Goodall, vol. ii. p. 31.

[264] It is proper to state, that Robertson has considered this argument at some length; and though he has not overturned, he has certainly invalidated the strength of the evidence adduced by Goodall in support of it.—Goodall, vol. i. p. 118.—Whittaker, vol. i. p. 383.—Chalmers, vol. ii. p. 375.—Laing, vol. i. p. 315.

[265] Whittaker, vol. i. p. 332.

[266] Goodall, vol. ii. p. 64 & 67.

[267] Whittaker, vol. i. p. 408.

[268] Goodall, vol. ii. p. 51.

[269] Regarding these sonnets, the curious reader may consult Whittaker, vol. iii. p. 55.—Stuart, vol. i. p. 395.—Jebb, vol. ii. p. 481—and Laing, vol. i. p. 230. 347. 349. and 368. For remarks on the marriage-contracts, see Goodall, vol. ii. p. 54 & 56, and vol. i. p. 126.—Whittaker, vol. i, p. 392, and Stuart, vol, i. p. 397.

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